

|                                                                                                                                                                                                                                                                                                                                                                                                                       |      |                                       |                                                                                                                     |  |                                                                                                                              |                                                                            |                                                                          |                                                                  |                                               |  |           |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------|---------------------------------------|---------------------------------------------------------------------------------------------------------------------|--|------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------|--------------------------------------------------------------------------|------------------------------------------------------------------|-----------------------------------------------|--|-----------|
| <b>SOLICITATION, OFFER AND AWARD</b>                                                                                                                                                                                                                                                                                                                                                                                  |      |                                       | 1. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 7900)                                                          |  |                                                                                                                              | RATING                                                                     |                                                                          | PAGE 1 OF 195 PAGES                                              |                                               |  |           |
| 2. CONTRACT NUMBER                                                                                                                                                                                                                                                                                                                                                                                                    |      |                                       | 3. SOLICITATION NUMBER<br>HHM40226R0007                                                                             |  | 4. TYPE OF SOLICITATION<br><input type="checkbox"/> SEALED BID (IFB)<br><input checked="" type="checkbox"/> NEGOTIATED (RFP) |                                                                            | 5. DATE ISSUED                                                           |                                                                  | 6. REQUISITION/PURCHASE NUMBER                |  |           |
| 7. ISSUED BY<br>Virginia Contracting Activity<br>ATTN: CFO-HQ Bolling AFB, Building 6000<br>Washington DC 20340-5100                                                                                                                                                                                                                                                                                                  |      |                                       | CODE<br>HHM402                                                                                                      |  | 8. ADDRESS OFFER TO (If other than Item 7)<br>See Schedule USA                                                               |                                                                            |                                                                          |                                                                  |                                               |  |           |
| NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".                                                                                                                                                                                                                                                                                                                                      |      |                                       |                                                                                                                     |  |                                                                                                                              |                                                                            |                                                                          |                                                                  |                                               |  |           |
| <b>SOLICITATION</b>                                                                                                                                                                                                                                                                                                                                                                                                   |      |                                       |                                                                                                                     |  |                                                                                                                              |                                                                            |                                                                          |                                                                  |                                               |  |           |
| 9. Sealed offers in original and 1 copies for furnishing the supplies or services in the Schedule will be received at the place specified in Item 8, or if handcarried, in the depository located in _____ until 10:00 AM ET local time JUN 15, 2026 (Hour) (Date)                                                                                                                                                    |      |                                       |                                                                                                                     |  |                                                                                                                              |                                                                            |                                                                          |                                                                  |                                               |  |           |
| CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision No. 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.                                                                                                                                                                                                                     |      |                                       |                                                                                                                     |  |                                                                                                                              |                                                                            |                                                                          |                                                                  |                                               |  |           |
| 10. FOR INFORMATION CALL                                                                                                                                                                                                                                                                                                                                                                                              |      |                                       | A. NAME<br>Bianca L. Rogan                                                                                          |  |                                                                                                                              | B. TELEPHONE (NO COLLECT CALLS)<br>AREA CODE 434 NUMBER 995-4071 EXTENSION |                                                                          |                                                                  | C. E-MAIL ADDRESS<br>bianca.rogan2@dodiis.mil |  |           |
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| (X)                                                                                                                                                                                                                                                                                                                                                                                                                   | SEC. | DESCRIPTION                           |                                                                                                                     |  | PAGE(S)                                                                                                                      | (X)                                                                        | SEC.                                                                     | DESCRIPTION                                                      |                                               |  | PAGE(S)   |
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| <b>OFFER (Must be fully completed by offeror)</b>                                                                                                                                                                                                                                                                                                                                                                     |      |                                       |                                                                                                                     |  |                                                                                                                              |                                                                            |                                                                          |                                                                  |                                               |  |           |
| NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.                                                                                                                                                                                                                                                                                                 |      |                                       |                                                                                                                     |  |                                                                                                                              |                                                                            |                                                                          |                                                                  |                                               |  |           |
| 12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule. |      |                                       |                                                                                                                     |  |                                                                                                                              |                                                                            |                                                                          |                                                                  |                                               |  |           |
| 13. DISCOUNT FOR PROMPT PAYMENT<br>(See Section I, Clause No. 52.232-8)                                                                                                                                                                                                                                                                                                                                               |      |                                       | 10 CALENDAR DAYS (%)                                                                                                |  | 20 CALENDAR DAYS (%)                                                                                                         |                                                                            | 30 CALENDAR DAYS (%)                                                     |                                                                  | CALENDAR DAYS (%)                             |  |           |
| 14. ACKNOWLEDGMENT OF AMENDMENTS<br>(The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):                                                                                                                                                                                                                                                       |      |                                       | AMENDMENT NO.                                                                                                       |  | DATE                                                                                                                         |                                                                            | AMENDMENT NO.                                                            |                                                                  | DATE                                          |  |           |
| 15A. NAME AND ADDRESS OF OFFEROR                                                                                                                                                                                                                                                                                                                                                                                      |      |                                       | CODE                                                                                                                |  | FACILITY                                                                                                                     |                                                                            | 16. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER<br>(Type or print) |                                                                  |                                               |  |           |
| 15B. TELEPHONE NUMBER<br>AREA CODE NUMBER EXTENSION                                                                                                                                                                                                                                                                                                                                                                   |      |                                       | <input type="checkbox"/> 15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE. |  | 17. SIGNATURE                                                                                                                |                                                                            |                                                                          | 18. OFFER DATE                                                   |                                               |  |           |
| <b>AWARD (To be completed by Government)</b>                                                                                                                                                                                                                                                                                                                                                                          |      |                                       |                                                                                                                     |  |                                                                                                                              |                                                                            |                                                                          |                                                                  |                                               |  |           |
| 19. ACCEPTED AS TO ITEMS NUMBERED                                                                                                                                                                                                                                                                                                                                                                                     |      |                                       | 20. AMOUNT                                                                                                          |  | 21. ACCOUNTING AND APPROPRIATION                                                                                             |                                                                            |                                                                          |                                                                  |                                               |  |           |
| 22. AUTHORITY FOR USING OTHER THAN FULL AND OPEN COMPETITION:<br><input type="checkbox"/> 10 U.S.C. 2304(c) <input type="checkbox"/> 41 U.S.C. 3304(a) ( )                                                                                                                                                                                                                                                            |      |                                       |                                                                                                                     |  | 23. SUBMIT INVOICES TO ADDRESS SHOWN IN<br>(4 copies unless otherwise specified)                                             |                                                                            |                                                                          | ITEM                                                             |                                               |  |           |
| 24. ADMINISTERED BY (If other than Item 7)                                                                                                                                                                                                                                                                                                                                                                            |      |                                       |                                                                                                                     |  | 25. PAYMENT WILL BE MADE BY<br>CODE                                                                                          |                                                                            |                                                                          |                                                                  |                                               |  |           |
| 26. NAME OF CONTRACTING OFFICER (Type or print)                                                                                                                                                                                                                                                                                                                                                                       |      |                                       |                                                                                                                     |  | 27. UNITED STATES OF AMERICA<br>(Signature of Contracting Officer)                                                           |                                                                            |                                                                          | 28. AWARD DATE                                                   |                                               |  |           |
| IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.                                                                                                                                                                                                                                                                                                  |      |                                       |                                                                                                                     |  |                                                                                                                              |                                                                            |                                                                          |                                                                  |                                               |  |           |

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**STANDARD FORM 33** (REV. 6/2014)  
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**SCHEDULE Continued**

| ITEM NO. | SUPPLIES/SERVICES                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|----------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|------|------------|--------|
|          | <p>I. Line items will be funded via individual Task Orders.<br/>           II. Contract Minimum: \$3,000.00<br/>           III. Contract Maximum: \$800,000,000.00<br/>           IV. Period of Performance: Five-year base ordering period;<br/>           V. Task Order CLINs will contain separate CLINs for: Labor, Materials, Travel, and ODCs.<br/>           VI. Task Order Contract types authorized: Fixed-Price; Cost-Reimbursement; Labor Hour; &amp; Time and Material</p> <p># Incorporation. All terms and conditions of this Indefinite-Delivery/Indefinite-Quantity (IDIQ) contract, including all clauses incorporated by reference or in full text, apply to each task order issued under this IDIQ as though set forth in a future task order, unless otherwise provided in this IDIQ or in a future task order.<br/>           # Order of precedence. In the event of a conflict between the terms of a task order and this IDIQ contract, the following order of precedence applies: (a) the task order (including task order clauses/attachments), (b) this IDIQ contract.<br/>           #Task-order-specific clause applicability. Clauses that are contingent upon contract type, funding method, place of performance, or other conditions apply to a task order only to the extent the conditions are met for that task order (e.g., cost-reimbursement clauses apply only to cost-type task orders; T&amp;M/LH clauses apply only to T&amp;M/LH task orders; overseas clauses apply only to task orders requiring performance outside the United States).<br/>           # Additional clauses. The Contracting Officer may include additional clauses in a task order as necessary to reflect the task order's scope, contract type, dollar value, security classification, or other requirements.</p> |          |      |            |        |
| 0001     | <p>Base Period - Labor in accordance with the DORE3 IDIQ Statement of Work.</p> <p>Period of Performance: 5-year ordering period</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | 1.00     | EA   |            |        |
| 0002     | <p>Base Period - Materials in accordance with the DORE3 IDIQ Statement of Work.</p> <p>Period of Performance: 5-year ordering period</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | 1.00     | EA   |            |        |
| 0003     | <p>Base Period - Travel in accordance with the DORE3 IDIQ Statement of Work.</p> <p>Period of Performance: 5-year ordering period</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | 1.00     | EA   |            |        |
| 0004     | <p>Base Period - ODCs in accordance with the DORE3 IDIQ Statement of Work.</p> <p>Period of Performance: 5-year ordering period</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | 1.00     | EA   |            |        |
| 0005     | <p>This CLIN is to provide the minimum guarantee through the issuing of Task Order 0001. This task order will be issued as an FFP TO. The minimum guarantee for this effort is \$3,000.00.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | 1.00     | EA   |            |        |
| 0999     | <p>Contract Data Requirements Lists (CDRLs)</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | 1.00     | EA   | NSP        | NSP    |

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[REDACTED]

**SECTION B**  
**SUPPLIES OR SERVICES AND PRICES/COSTS**

B.1 B.1 DORE3 Contract Type

**B.1 CONTRACT TYPE**

This is an Indefinite Delivery/Indefinite Quantity (IDIQ) contract vehicle. Task orders may be issued against this contract on a Firm-Fixed-Price (FFP), Firm-Fixed-Price Level-of-Effort (FFP-LOE), Cost-Plus-Fixed-Fee (CPFF) (Term or Completion form), Time-and-Materials (T&M), Labor-Hour (LH), or hybrid of the foregoing contract types basis. Task Order 0001 shall be Firm-Fixed-Price (FFP) and serve as the minimum guarantee award.

[REDACTED]

**SECTION C**  
**DESCRIPTION/SPECIFICATIONS/WORK STATEMENT**

C.1 C.1 DORE3 SOW

The classified Statement of Work (SOW) is incorporated by reference. It will be sent through different channels.

[REDACTED]

**SECTION D**  
**PACKAGING AND MARKING**

D.1 5552.246-9000 PACKAGING AND MARKING (DEC 2008)

Unless otherwise specified, all items delivered under this contract shall be preserved, packaged, and marked in accordance with normal commercial practices to meet the requirements of the carrier and ensure safe delivery at destination.

(End of Clause)



**SECTION E**  
**INSPECTION AND ACCEPTANCE**

- E.1 52.246-3 INSPECTION OF SUPPLIES--COST-REIMBURSEMENT (MAR 2001)  
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- E.2 52.246-4 INSPECTION OF SERVICES--FIXED-PRICE (AUG 1996)  
(Reference 52.246-4)
- E.3 52.246-5 INSPECTION OF SERVICES--COST-REIMBURSEMENT (APR 1984)  
(Reference 52.246-5)
- E.4 52.246-6 INSPECTION--TIME-AND-MATERIAL AND LABOR-HOUR (MAY 2001)  
(Reference 52.246-6)
- E.5 52.246-15 CERTIFICATE OF CONFORMANCE (APR 1984)  
(Reference 52.246-15)
- E.6 52.246-16 RESPONSIBILITY FOR SUPPLIES (APR 1984)  
(Reference 52.246-16)

[REDACTED]

**SECTION F**  
**DELIVERIES OR PERFORMANCE**

F.1 52.242-15 STOP-WORK ORDER (AUG 1989)  
(Reference 52.242-15)

F.2 52.242-17 GOVERNMENT DELAY OF WORK (APR 1984)

(a) If the performance of all or any part of the work of this contract is delayed or interrupted

(1) by an act of the Contracting Officer in the administration of this contract that is not expressly or implied authorized by this contract, or

(2) by a failure of the Contracting Officer to act within the time specified in this contract, or within a reasonable time if not specified, an adjustment (excluding profit) shall be made for any increase in the cost of performance of this contract caused by the delay or interruption and the contract shall be modified in writing accordingly. Adjustment shall also be made in the delivery or performance dates and any other contractual term or condition affected by the delay or interruption. However, no adjustment shall be made under this clause for any delay or interruption to the extent that performance would have been delayed or interrupted by any other cause, including the fault or negligence of the Contractor, or for which an adjustment is provided or excluded under any other term or condition of this contract.

(b) A claim under this clause shall not be allowed--

(1) For any costs incurred more than 20 days before the Contractor shall have notified the Contracting Officer in writing of the act or failure to act involved; and

(2) Unless the claim, in an amount stated, is asserted in writing as soon as practicable after the termination of the delay or interruption, but not later than the day of final payment under the contract.

(End of Clause)

|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |  |                                                  |                                        |                                        |                                    |                                                                             |         |           |  |                         |  |
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| <div>CONTRACT DATA REQUIREMENTS LIST</div> <div>(1 Data Item)</div>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  |                                                  |                                        |                                        | Form Approved<br>OMB No. 0704-0188 |                                                                             |         |           |  |                         |  |
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| A. CONTRACT LINE ITEM NO.<br>X999                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |  |                                                  |                                        | B. EXHIBIT<br>A                        |                                    | C. CATEGORY<br>TDP _____ TM <input checked="" type="checkbox"/> OTHER _____ |         |           |  |                         |  |
| D. SYSTEM/ITEM.<br>DORE3 IDIQ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |  |                                                  |                                        | E. CONTRACT/PR NO.<br>HHM402-2X-D-00XX |                                    | F. CONTRACTOR<br>SEE P.1 OF CONTRACT                                        |         |           |  |                         |  |
| 1. DATA ITEM NO.<br>A001                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  | 2. TITLE OF DATA ITEM<br>Contract Summary Report |                                        |                                        |                                    | 3. SUBTITLE<br>N/A                                                          |         |           |  |                         |  |
| 4. AUTHORITY (Data Acquisition Document No.)<br>DI-ADMN-80447A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |  |                                                  | 5. CONTRACT REFERENCE<br>SOW section 5 |                                        |                                    | 6. REQUIRING OFFICE<br>DIA/ST                                               |         |           |  |                         |  |
| 7. DD 250 REQ<br>DD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  | 9. DIST. STATEMENT<br>REQUIRED<br>D              |                                        | 10. FREQUENCY<br>MTHLY                 |                                    | 12. DATE OF FIRST<br>SUBMISSION<br>See Blk 16                               |         |           |  |                         |  |
| 8. APP CODE<br>A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |  |                                                  |                                        | 11. AS OF DATE<br>See Blk 16           |                                    | 13. DATE OF SUBSEQUENT<br>SUBMISSION<br>See Blk 16                          |         |           |  |                         |  |
| 16. REMARKS:<br><br>All data items shall be marked in accordance with the relevant security classification guides.<br><br>Block 4: Contractor tailoring and formatting acceptable subject to COR approval.<br><br>Block 11: End of contractor's monthly billing cycle.<br><br>Blocks 12 & 13: Due NLT the 10th day of the month (after the first 30 days of the contract). Cut off is the last day of the preceding month.<br><br>Block 14: Repro Copy: Softcopy preferred ---PDF or Microsoft Office Compatible.                                                                                                                                                                                                                                                                                                                                                                                                                         |  |                                                  |                                        |                                        |                                    | 14. DISTRIBUTION                                                            |         |           |  |                         |  |
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| 15. TOTAL                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |  |                                                  |                                        |                                        |                                    | 1 1 2                                                                       |         |           |  |                         |  |
| G. PREPARED BY<br>Mona Haddad                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |  |                                                  | H. DATE<br>08/21/2025                  |                                        | I. APPROVED BY                     |                                                                             | J. DATE |           |  |                         |  |

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| CONTRACT DATA REQUIREMENTS LIST                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  |                                                                 |                                        |                                        |                | Form Approved<br>OMB No. 0704-0188                 |         |            |  |
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| A. CONTRACT LINE ITEM NO.<br>X999                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |  |                                                                 |                                        | B. EXHIBIT<br>A                        |                | C. CATEGORY<br>TDP _____ TM _____ OTHER <u>x</u>   |         |            |  |
| D. SYSTEM/ITEM.<br>DORE3 IDIQ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |  |                                                                 |                                        | E. CONTRACT/PR NO.<br>HHM402-2X-D-00XX |                | F. CONTRACTOR<br>SEE P.1 OF CONTRACT               |         |            |  |
| 1. DATA ITEM NO.<br>A003                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  | 2. TITLE OF DATA ITEM<br>Funds and Man-Hours Expenditure Report |                                        |                                        |                | 3. SUBTITLE<br>N/A                                 |         |            |  |
| 4. AUTHORITY (Data Acquisition Document No.)<br>DI-FNCL-80331A/T                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |  |                                                                 | 5. CONTRACT REFERENCE<br>SOW section 5 |                                        |                | 6. REQUIRING OFFICE<br>DIA/ST                      |         |            |  |
| 7. DD 250 REQ<br>LT                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |  | 9. DIST. STATEMENT<br>REQUIRED                                  |                                        | 10. FREQUENCY<br>MTHLY                 |                | 12. DATE OF FIRST<br>SUBMISSION<br>See Blk 16      |         |            |  |
| 8. APP CODE<br>A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |  | D                                                               |                                        | 11. AS OF DATE<br>See Blk 16           |                | 13. DATE OF SUBSEQUENT<br>SUBMISSION<br>See Blk 16 |         |            |  |
| <b>16. REMARKS:</b><br>All data items shall be marked in accordance with the relevant security classification guides.<br><br>Block 4: The Data Item Description (DD Form 1664) is tailored as follows:<br>- Contractor format acceptable.<br><br>- Content: The funds and man hour report will at a minimum contain<br>- Expensed hours<br>- Expensed ODC<br>- Contractor Acquired Property (CAP) (If applicable)<br>- Expensed Travel<br>- Obligated funds remaining per CLIN<br>- Estimation to completion - provide explanation of over-burn and under-burn<br>- Submit in conjunction with the Contract Status Report<br><br>Block 11: End of contractor's monthly billing cycle.<br><br>Block 12 & 13: Due NLT the 10th calendar day of the following month<br><br>Block 14: Repro Copy: Softcopy required --- Microsoft Office Compatible. Delivery Address: Reference individual task orders.                                  |  |                                                                 |                                        |                                        |                | 14. DISTRIBUTION                                   |         |            |  |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  |                                                                 |                                        |                                        |                | a. ADDRESSEE                                       |         | b. COPIES  |  |
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| G. PREPARED BY<br>Mona Haddad                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |  |                                                                 | H. DATE<br>08/21/2025                  |                                        | I. APPROVED BY |                                                    | J. DATE |            |  |

| CONTRACT DATA REQUIREMENTS LIST                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  |                                          |                                        |                                        |  | Form Approved<br>OMB No. 0704-0188                                                |  |            |  |
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| (1 Data Item)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                          |                                        |                                        |  |                                                                                   |  |            |  |
| Public reporting burden for this collection of information is estimated to average 110 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden to Department of Defense, Washington Headquarters Services, Directorate for Information Operations and Reports, 1215 Jefferson Davis Highway, Suite 1204, Arlington, VA 22202-2302, and to the Office of Management and Budget, Paperwork Reduction Project (0704-0188), Washington, DC 20503. Please DO NOT RETURN your form to either of these addresses. Send completed form to the Government Issuing Contracting Officer for the Contract. PR No. listed in Block E. |  |                                          |                                        |                                        |  |                                                                                   |  |            |  |
| A. CONTRACT LINE ITEM NO.<br>X999                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  |                                          |                                        | B. EXHIBIT<br>A                        |  | C. CATEGORY<br>TDP _____ TM _____ OTHER <input checked="" type="checkbox"/> _____ |  |            |  |
| D. SYSTEM/ITEM.<br>DORE3 IDIQ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                          |                                        | E. CONTRACT/PR NO.<br>HHM402-2X-D-00XX |  | F. CONTRACTOR<br>SEE P.1 OF CONTRACT                                              |  |            |  |
| 1. DATA ITEM NO.<br>A004                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  | 2. TITLE OF DATA ITEM<br>Management Plan |                                        |                                        |  | 3. SUBTITLE<br>Program Management Plan (PMP) and Project Schedule                 |  |            |  |
| 4. AUTHORITY (Data Acquisition Document No.)<br>DI-MGMT-80004A/T                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  |                                          | 5. CONTRACT REFERENCE<br>SOW section 5 |                                        |  | 6. REQUIRING OFFICE<br>DIA/ST                                                     |  |            |  |
| 7. DD 250 REQ<br>DD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |  | 9. DIST. STATEMENT<br>REQUIRED           |                                        | 10. FREQUENCY<br>See Blk 16            |  | 12. DATE OF FIRST<br>SUBMISSION<br>See Blk 16                                     |  |            |  |
| 8. APP CODE<br>A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  | D                                        |                                        | 11. AS OF DATE<br>N/A                  |  | 13. DATE OF SUBSEQUENT<br>SUBMISSION<br>See Blk 16                                |  |            |  |
| <b>16. REMARKS:</b><br>All data items shall be marked in accordance with the relevant security classification guides.<br><br>Block 4: The Data Item Description (DD Form 1664) is tailored as follows:<br>Format - Contractor format acceptable.<br>Content - The Management Plan shall cover the organizational structure, program management methodology, personnel, security, and the reports as described.<br><br>Block 10-13: Draft due to COR at kickoff meeting. Final due NLT 15 days after the kickoff meeting. Quarterly submissions are due 15 days prior to quarterly PMR.                                                                                                                                                                                                                                                                                                                                         |  |                                          |                                        |                                        |  | 14. DISTRIBUTION                                                                  |  |            |  |
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| G. PREPARED BY<br>Mona Haddad                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                          |                                        | H. DATE<br>08/21/2025                  |  | I. APPROVED BY                                                                    |  |            |  |
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| CONTRACT DATA REQUIREMENTS LIST                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  |                                           |                                        |                                        |                | Form Approved<br>OMB No. 0704-0188                 |         |            |  |
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| (1 Data Item)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                           |                                        |                                        |                |                                                    |         |            |  |
| Public reporting burden for this collection of information is estimated to average 110 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden to Department of Defense, Washington Headquarters Services, Directorate for Information Operations and Reports, 1215 Jefferson Davis Highway, Suite 1204, Arlington, VA 22202-2302, and to the Office of Management and Budget, Paperwork Reduction Project (0704-0188), Washington, DC 20503. Please DO NOT RETURN your form to either of these addresses. Send completed form to the Government Issuing Contracting Officer for the Contract. PR No. listed in Block E. |  |                                           |                                        |                                        |                |                                                    |         |            |  |
| A. CONTRACT LINE ITEM NO.<br>X999                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  |                                           |                                        | B. EXHIBIT<br>A                        |                | C. CATEGORY<br>TDP _____ TM _____ OTHER <u>x</u>   |         |            |  |
| D. SYSTEM/ITEM.<br>DORE3 IDIQ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                           |                                        | E. CONTRACT/PR NO.<br>HHM402-2X-D-00XX |                | F. CONTRACTOR<br>SEE P.1 OF CONTRACT               |         |            |  |
| 1. DATA ITEM NO.<br>A005                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  | 2. TITLE OF DATA ITEM<br>Meetings Minutes |                                        |                                        |                | 3. SUBTITLE<br>N/A                                 |         |            |  |
| 4. AUTHORITY (Data Acquisition Document No.)<br>DI-ADMN-81250C/T                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  |                                           | 5. CONTRACT REFERENCE<br>SOW section 5 |                                        |                | 6. REQUIRING OFFICE<br>DIA/ST                      |         |            |  |
| 7. DD 250 REQ<br>DD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |  | 9. DIST. STATEMENT<br>REQUIRED<br>D       |                                        | 10. FREQUENCY<br>See Blk 16            |                | 12. DATE OF FIRST<br>SUBMISSION<br>See Blk 16      |         |            |  |
| 8. APP CODE<br>A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  |                                           |                                        | 11. AS OF DATE<br>N/A                  |                | 13. DATE OF SUBSEQUENT<br>SUBMISSION<br>See Blk 16 |         |            |  |
| 16. REMARKS:<br><br>All data items shall be marked in accordance with the relevant security classification guides.<br><br>Block 4: The Data Item Description (DD Form 1664) is tailored as follows:<br>__Contractor format acceptable.<br><br>Blocks 10, 12 & 13: Draft agendas are <b>due 3 days prior</b> to meeting. Final agenda and meeting minutes are due 5-7 days after meeting. Trip reports are to be submitted within 14 days of travel. Revisions as required.<br><br>Block 14: Unclassified data shall be provided electronically in Microsoft Word, PDF, or other format as mutually agreed upon. Classified deliveries shall be submitted in accordance with the CDRL preparation instructions. The contractor will submit a transmittal letter to the DORE3 Contracting Officer for every data item submitted to the Government.                                                                               |  |                                           |                                        |                                        |                | 14. DISTRIBUTION                                   |         |            |  |
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| G. PREPARED BY<br>Mona Haddad                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                           | H. DATE<br>08/21/2025                  |                                        | I. APPROVED BY |                                                    | J. DATE |            |  |

| CONTRACT DATA REQUIREMENTS LIST                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                                           |                                        |                                        |                | Form Approved<br>OMB No. 0704-0188                 |         |            |  |
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| (1 Data Item)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  |                                                           |                                        |                                        |                |                                                    |         |            |  |
| Public reporting burden for this collection of information is estimated to average 110 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden to Department of Defense, Washington Headquarters Services, Directorate for Information Operations and Reports, 1215 Jefferson Davis Highway, Suite 1204, Arlington, VA 22202-2302, and to the Office of Management and Budget, Paperwork Reduction Project (0704-0188), Washington, DC 20503. Please DO NOT RETURN your form to either of these addresses. Send completed form to the Government Issuing Contracting Officer for the Contract. PR No. listed in Block E.                                                                                                                                                                                                                                                                                   |  |                                                           |                                        |                                        |                |                                                    |         |            |  |
| A. CONTRACT LINE ITEM NO.<br>X999                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  |                                                           |                                        | B. EXHIBIT<br>A                        |                | C. CATEGORY<br>TDP _____ TM _____ OTHER <u>x</u>   |         |            |  |
| D. SYSTEM/ITEM.<br>DORE3 IDIQ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  |                                                           |                                        | E. CONTRACT/PR NO.<br>HHM402-2X-D-00XX |                | F. CONTRACTOR<br>SEE P.1 OF CONTRACT               |         |            |  |
| 1. DATA ITEM NO.<br>A006                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |  | 2. TITLE OF DATA ITEM<br>Scientific and Technical Reports |                                        |                                        |                | 3. SUBTITLE<br>N/A                                 |         |            |  |
| 4. AUTHORITY (Data Acquisition Document No.)<br>DI-MISC-80711A/T                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |  |                                                           | 5. CONTRACT REFERENCE<br>SOW section 5 |                                        |                | 6. REQUIRING OFFICE<br>DIA/ST                      |         |            |  |
| 7. DD 250 REQ<br>DD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  | 9. DIST. STATEMENT<br>REQUIRED<br>D                       |                                        | 10. FREQUENCY<br>AS REQ                |                | 12. DATE OF FIRST<br>SUBMISSION<br>See Blk 16      |         |            |  |
| 8. APP CODE<br>A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |  |                                                           |                                        | 11. AS OF DATE<br>See Blk 16           |                | 13. DATE OF SUBSEQUENT<br>SUBMISSION<br>See Blk 16 |         |            |  |
| <b>16. REMARKS:</b><br><br>All data items shall be marked in accordance with the relevant security classification guides.<br><br>Block 4: The Data Item Description (DD Form 1664) is tailored as follows:<br>Format - Contractor format acceptable.<br>Content - Prime contractor is responsible for flowing down Scientific and Technical Report requirements contained in their prime contract to all subcontractors who meet the reporting thresholds. Must be clearly written, describe accomplishments and other facts adequately with no technical errors, and be acceptable for release. If marked unclassified, unlimited, they should be accompanied by a letter certifying that the documents have been cleared for public release and sale, to include foreign nationals.<br><br>Clarification to the following section as indicated below:<br>3.1 After "test and evaluation (RDT&E)" ... <i>(insert)</i> ..., Procurement (PROC), and Operations, Support, Sustainment, Maintenance (O&M)" rest of sentence remains unchanged<br><br>Block 11-13: Draft due NLT 15 days after completion of task, final due NLT 30 days following receipt of government comments. Submit as annex to final report. |  |                                                           |                                        |                                        |                | 14. DISTRIBUTION                                   |         |            |  |
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| G. PREPARED BY<br>Mona Haddad                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  |                                                           | H. DATE<br>08/21/2025                  |                                        | I. APPROVED BY |                                                    | J. DATE |            |  |



| CONTRACT DATA REQUIREMENTS LIST                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  |                                    |                                        |                                        |                | Form Approved<br>OMB No. 0704-0188                 |                      |            |  |
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| (1 Data Item)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                    |                                        |                                        |                |                                                    |                      |            |  |
| Public reporting burden for this collection of information is estimated to average 110 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden to Department of Defense, Washington Headquarters Services, Directorate for Information Operations and Reports, 1215 Jefferson Davis Highway, Suite 1204, Arlington, VA 22202-2302, and to the Office of Management and Budget, Paperwork Reduction Project (0704-0188), Washington, DC 20503. Please DO NOT RETURN your form to either of these addresses. Send completed form to the Government Issuing Contracting Officer for the Contract. PR No. listed in Block E. |  |                                    |                                        |                                        |                |                                                    |                      |            |  |
| A. CONTRACT LINE ITEM NO.<br>X999                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  |                                    |                                        | B. EXHIBIT<br>A                        |                | C. CATEGORY<br>TDP _____ TM _____ OTHER <u>x</u>   |                      |            |  |
| D. SYSTEM/ITEM.<br>DORE3 IDIQ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                    |                                        | E. CONTRACT/PR NO.<br>HHM402-2X-D-00XX |                | F. CONTRACTOR<br>SEE P.1 OF CONTRACT               |                      |            |  |
| 1. DATA ITEM NO.<br>A007                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  | 2. TITLE OF DATA ITEM<br>Test Plan |                                        |                                        |                | 3. SUBTITLE<br>N/A                                 |                      |            |  |
| 4. AUTHORITY (Data Acquisition Document No.)<br>DI-NDTI-80566A/T                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  |                                    | 5. CONTRACT REFERENCE<br>SOW section 5 |                                        |                | 6. REQUIRING OFFICE<br>DIA/ST                      |                      |            |  |
| 7. DD 250 REQ<br>LT                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |  | 9. DIST. STATEMENT<br>REQUIRED     |                                        | 10. FREQUENCY<br>See Blk 16            |                | 12. DATE OF FIRST<br>SUBMISSION<br>See Blk 16      |                      |            |  |
| 8. APP CODE<br>A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  | D                                  |                                        | 11. AS OF DATE<br>N/A                  |                | 13. DATE OF SUBSEQUENT<br>SUBMISSION<br>See Blk 16 |                      |            |  |
| 16. REMARKS:<br><br>All data items shall be marked in accordance with the relevant security classification guides.<br><br>Block 4: The Data Item Description (DD Form 1664) is tailored as follows:<br><u>Contractor</u> format acceptable.<br><br>Block 10: One draft and one final report as described in the SOW.<br><br>Blocks 11-13: Draft test plans due to the COR NLT 45 days prior to the start of the scheduled test. Final test plans due NLT 7 days after COR approval.                                                                                                                                                                                                                                                                                                                                                                                                                                            |  |                                    |                                        |                                        |                | 14. DISTRIBUTION                                   |                      |            |  |
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| G. PREPARED BY<br>Mona Haddad                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                    | H. DATE<br>08/21/2025                  |                                        | I. APPROVED BY |                                                    | J. DATE<br>28 Aug 13 |            |  |

| CONTRACT DATA REQUIREMENTS LIST                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |  |                                                            |                                        |                                                    | Form Approved<br>OMB No. 0704-0188                   |                                               |  |    |  |
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| (1 Data Item)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |  |                                                            |                                        |                                                    |                                                      |                                               |  |    |  |
| Public reporting burden for this collection of information is estimated to average 110 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden to Department of Defense, Washington Headquarters Services, Directorate for Information Operations and Reports, 1215 Jefferson Davis Highway, Suite 1204, Arlington, VA 22202-2302, and to the Office of Management and Budget, Paperwork Reduction Project (0704-0188), Washington, DC 20503. Please DO NOT RETURN your form to either of these addresses. Send completed form to the Government Issuing Contracting Officer for the Contract. PR No. listed in Block E.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |  |                                                            |                                        |                                                    |                                                      |                                               |  |    |  |
| A. CONTRACT LINE ITEM NO.<br>X999                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |  |                                                            | B. EXHIBIT<br>A                        |                                                    | C. CATEGORY<br>TDP ____ TM ____ OTHER ____ RELI ____ |                                               |  |    |  |
| D. SYSTEM/ITEM.<br>DORE3 IDIQ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |  |                                                            | E. CONTRACT/PR NO.<br>HHM402-2X-D-00XX |                                                    | F. CONTRACTOR<br>SEE P.1 OF CONTRACT                 |                                               |  |    |  |
| 1. DATA ITEM NO.<br>A008                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  | 2. TITLE OF DATA ITEM<br>Integrated Logistics Support Plan |                                        |                                                    | 3. SUBTITLE<br>N/A                                   |                                               |  |    |  |
| 4. AUTHORITY (Data Acquisition Document No.)<br>DI-ILSS-80095/T                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |  | 5. CONTRACT REFERENCE<br>SOW section 5                     |                                        |                                                    | 6. REQUIRING OFFICE<br>DIA/ST                        |                                               |  |    |  |
| 7. DD 250 REQ<br>DD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  | 9. DIST. STATEMENT<br>REQUIRED<br>D                        |                                        | 10. FREQUENCY<br>See Blk 16                        |                                                      | 12. DATE OF FIRST<br>SUBMISSION<br>See Blk 16 |  |    |  |
| 8. APP CODE<br>A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  | 11. AS OF DATE<br>N/A                                      |                                        | 13. DATE OF SUBSEQUENT<br>SUBMISSION<br>See Blk 16 |                                                      | 14. DISTRIBUTION                              |  |    |  |
| <b>16. REMARKS:</b><br><br>All data items shall be marked in accordance with the relevant security classification guides.<br><br>Block 4: The Data Item Description (DD Form 1664) is tailored as follows:<br>___ Contractor format acceptable.<br>___ Prime contractor is responsible for flowing down ILSP requirements contained in their prime contract to all subcontractors who meet the reporting thresholds<br>___ Clarification the following sections as indicated below:<br><br>10.9.1.6 Change:<br>"Military departments points of contact. List the military department(s) POCs to include: service, function autovon telephone number, and command."<br>To: "Military/Agency departments points of contact. List the military/agency department(s) POCs to include: service, function secure/unsecure telephone number, and command/section."<br><br>10.9.2.2.4 Change: "State whether there are REQUIREMENTS for a depot (refer to minutes of the applicable MEILSR Conference)."<br>To: "State whether there are inherent/derived REQUIREMENTS for a depot repair capability based on the system requirements."<br>10.9.2.2.4 After "Identify organizational responsibilities" ...(insert)..."to include manpower and cost requirements." rest of sentence remains unchanged.<br><br>10.9.2.4 After "when available" ..." (insert)..."as required by specific task order."<br><br><div style="text-align: center;"><b>CONTINUED ON NEXT PAGE</b></div> |  |                                                            |                                        | a. ADDRESSEE                                       |                                                      | b. COPIES                                     |  |    |  |
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| G. PREPARED BY<br>Mona Haddad                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |  | H. DATE<br>08/21/2025                                      |                                        | I. APPROVED BY                                     |                                                      | J. DATE                                       |  |    |  |

| CONTRACT DATA REQUIREMENTS LIST                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |  |                                                            |                                        |                                                    | Form Approved<br>OMB No. 0704-0188                       |                                               |  |    |  |
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| (1 Data Item)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  |                                                            |                                        |                                                    |                                                          |                                               |  |    |  |
| Public reporting burden for this collection of information is estimated to average 110 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden to Department of Defense, Washington Headquarters Services, Directorate for Information Operations and Reports, 1215 Jefferson Davis Highway, Suite 1204, Arlington, VA 22202-2302, and to the Office of Management and Budget, Paperwork Reduction Project (0704-0188), Washington, DC 20503. Please DO NOT RETURN your form to either of these addresses. Send completed form to the Government Issuing Contracting Officer for the Contract. PR No. listed in Block E.                                                                                              |  |                                                            |                                        |                                                    |                                                          |                                               |  |    |  |
| A. CONTRACT LINE ITEM NO.<br>X999                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |  |                                                            | B. EXHIBIT<br>A                        |                                                    | C. CATEGORY<br>TDP _____ TM _____ OTHER _____ RELI _____ |                                               |  |    |  |
| D. SYSTEM/ITEM.<br>DORE3 IDIQ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  |                                                            | E. CONTRACT/PR NO.<br>HHM402-2X-D-00XX |                                                    | F. CONTRACTOR<br>SEE P.1 OF CONTRACT                     |                                               |  |    |  |
| 1. DATA ITEM NO.<br>A008                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  | 2. TITLE OF DATA ITEM<br>Integrated Logistics Support Plan |                                        |                                                    | 3. SUBTITLE<br>N/A                                       |                                               |  |    |  |
| 4. AUTHORITY (Data Acquisition Document No.)<br>DI-ILSS-80095/T                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |  | 5. CONTRACT REFERENCE<br>SOW section 5                     |                                        |                                                    | 6. REQUIRING OFFICE<br>DIA/ST                            |                                               |  |    |  |
| 7. DD 250 REQ<br>DD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |  | 9. DIST. STATEMENT<br>REQUIRED<br>D                        |                                        | 10. FREQUENCY<br>See Blk 16                        |                                                          | 12. DATE OF FIRST<br>SUBMISSION<br>See Blk 16 |  |    |  |
| 8. APP CODE<br>A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |  | 11. AS OF DATE<br>N/A                                      |                                        | 13. DATE OF SUBSEQUENT<br>SUBMISSION<br>See Blk 16 |                                                          | 14. DISTRIBUTION                              |  |    |  |
| 16. REMARKS: <b>CONTINUED FROM PREVIOUS PAGE</b><br><br>Block 4: (Continued)<br><br>10.9.3.2 & 10.9.3.3 clarity: "known TEMP" refers to CDRL A007 Test Plan DI-NDTI-80566A<br><br>10.9.4.5.1.1 Add "/Supply Chain Management" to subsection title.<br><br>10.9.4.5.2.1 Add "/Supply Chain Management" to subsection title After "...for additional supply support..." (insert)... "such as supply chain management" (rest of sentence unchanged)<br><br>10.9.5.6 After "Transportability requirements..." (insert)... "to include transportability processes."<br><br>10.9.5.10 Clarity: "ARFCOS" refers to Defense Courier Service (DCS)<br><br>10.9.7.4 After "/ Configuration items...(insert)..." "to include operational and developmental licenses/scripts/subscriptions/warranties" (rest of sentence unchanged)<br><br>10.9.8.3 Add "/Fielding Plan" to subsection title.<br><br>Delete the following sections:<br>10.9.2.3 Maintenance management.;<br>10.9.2.3.1 Forms usage<br><br><b>CONTINUED ON NEXT PAGE</b> |  |                                                            |                                        | a. ADDRESSEE                                       |                                                          | b. COPIES                                     |  |    |  |
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| G. PREPARED BY<br>Mona Haddad                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  | H. DATE<br>08/21/2025                                      |                                        | I. APPROVED BY                                     |                                                          | J. DATE                                       |  |    |  |

Form Approved  
OMB No. 0704-0188

Public reporting burden for this collection of information is estimated to average 110 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden to Department of Defense, Washington Headquarters Services, Directorate for Information Operations and Reports, 1215 Jefferson Davis Highway, Suite 1204, Arlington, VA 22202-2302, and to the Office of Management and Budget, Paperwork Reduction Project (0704-0188), Washington, DC 20503. Please Do NOT RETURN your form to either of these addresses. Send completed form to the Government Issuing Contracting Officer for the Contract. PR No. listed in Block E.

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| CONTRACT DATA REQUIREMENTS LIST                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |  |                                                                               |                                        |                                                    | Form Approved<br>OMB No. 0704-0188                                            |                                               |         |   |  |    |  |
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| (1 Data Item)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  |                                                                               |                                        |                                                    |                                                                               |                                               |         |   |  |    |  |
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| A. CONTRACT LINE ITEM NO.<br>X999                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |  |                                                                               | B. EXHIBIT<br>A                        |                                                    | C. CATEGORY<br>TDP _____ TM _____ OTHER <input checked="" type="checkbox"/> x |                                               |         |   |  |    |  |
| D. SYSTEM/ITEM.<br>DORE3 IDIQ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  |                                                                               | E. CONTRACT/PR NO.<br>HHM402-2X-D-00XX |                                                    | F. CONTRACTOR<br>SEE P.1 OF CONTRACT                                          |                                               |         |   |  |    |  |
| 1. DATA ITEM NO.<br>A009                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |  | 2. TITLE OF DATA ITEM<br>Product Engineering Design Data and Associated Lists |                                        |                                                    | 3. SUBTITLE<br>Tech Data Package                                              |                                               |         |   |  |    |  |
| 4. AUTHORITY (Data Acquisition Document No.)<br>DI-SESS-81000F/T                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |  | 5. CONTRACT REFERENCE<br>SOW section 5                                        |                                        |                                                    | 6. REQUIRING OFFICE<br>DIA/ST                                                 |                                               |         |   |  |    |  |
| 7. DD 250 REQ<br>SD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |  | 9. DIST. STATEMENT<br>REQUIRED<br>D                                           |                                        | 10. FREQUENCY<br>See Blk 16                        |                                                                               | 12. DATE OF FIRST<br>SUBMISSION<br>See Blk 16 |         |   |  |    |  |
| 8. APP CODE<br>See Blk 16                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  | 11. AS OF DATE<br>N/A                                                         |                                        | 13. DATE OF SUBSEQUENT<br>SUBMISSION<br>See Blk 16 |                                                                               | 14. DISTRIBUTION                              |         |   |  |    |  |
| 16. REMARKS:<br><br>All data items shall be marked in accordance with the relevant security classification guides.<br><br>Block 4: The Data Item Description (DD Form 1664) is tailored on the attached back-up sheets as specified by the individual Task Order.<br><br>Block 7: "S"—Inspection is at source and is to ensure this product meets this CDRL and its tasking document. Shipping list must accurately reflect the shipped product. "D"—Acceptance is at destination. Acceptance of final data will be by approval of the Engineering Data Management Specialists and/or, Government Sr Engineer, and/or COR.<br><br>Block 8: Government disposition of the paper copy submittals will be provided 120 days after receipt of data, unless additional time is required, at which time the contractor will be notified. Government disposition of the "final reproducible digital data package" will be provided 30 days after receipt.<br><br><p style="text-align: center;"><b>CONTINUED ON NEXT PAGE</b></p> |  |                                                                               |                                        | a. ADDRESSEE                                       |                                                                               | b. COPIES                                     |         |   |  |    |  |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |  |                                                                               |                                        | DIA/ST                                             |                                                                               | 1                                             |         | 1 |  | 1  |  |
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| G. PREPARED BY<br>Mona Haddad                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  |                                                                               | H. DATE<br>08/21/2025                  |                                                    | I. APPROVED BY                                                                |                                               | J. DATE |   |  |    |  |

| CONTRACT DATA REQUIREMENTS LIST                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  |                                                                               |                                        |                                                    | Form Approved<br>OMB No. 0704-0188         |                                               |         |            |  |    |  |
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| (1 Data Item)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                                                               |                                        |                                                    |                                            |                                               |         |            |  |    |  |
| Public reporting burden for this collection of information is estimated to average 110 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden to Department of Defense, Washington Headquarters Services, Directorate for Information Operations and Reports, 1215 Jefferson Davis Highway, Suite 1204, Arlington, VA 22202-2302, and to the Office of Management and Budget, Paperwork Reduction Project (0704-0188), Washington, DC 20503. Please DO NOT RETURN your form to either of these addresses. Send completed form to the Government Issuing Contracting Officer for the Contract. PR No. listed in Block E.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |  |                                                                               |                                        |                                                    |                                            |                                               |         |            |  |    |  |
| A. CONTRACT LINE ITEM NO.<br>X999                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  |                                                                               | B. EXHIBIT<br>A                        |                                                    | C. CATEGORY<br>TDP ____ TM ____ OTHER ____ |                                               |         |            |  |    |  |
| D. SYSTEM/ITEM.<br>DORE3 IDIQ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                                                               | E. CONTRACT/PR NO.<br>HHM402-2X-D-00XX |                                                    | F. CONTRACTOR<br>SEE P.1 OF CONTRACT       |                                               |         |            |  |    |  |
| 1. DATA ITEM NO.<br>A009                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  | 2. TITLE OF DATA ITEM<br>Product Engineering Design Data and Associated Lists |                                        |                                                    | 3. SUBTITLE<br>Tech Data Package           |                                               |         |            |  |    |  |
| 4. AUTHORITY (Data Acquisition Document No.)<br>DI-SESS-81000F/T                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  | 5. CONTRACT REFERENCE<br>SOW Section 5                                        |                                        |                                                    | 6. REQUIRING OFFICE<br>DIA/ST              |                                               |         |            |  |    |  |
| 7. DD 250 REQ<br>SD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |  | 9. DIST. STATEMENT<br>REQUIRED<br>D                                           |                                        | 10. FREQUENCY<br>See Blk 16                        |                                            | 12. DATE OF FIRST<br>SUBMISSION<br>See Blk 16 |         |            |  |    |  |
| 8. APP CODE<br>See Blk 16                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |  | 11. AS OF DATE<br>N/A                                                         |                                        | 13. DATE OF SUBSEQUENT<br>SUBMISSION<br>See Blk 16 |                                            | 14. DISTRIBUTION                              |         |            |  |    |  |
| 16. REMARKS: <b>CONTINUED FROM PREVIOUS PAGE</b><br><br><b>BLOCK 9:</b><br><b>DESTRUCTION NOTICE.</b> Mark documents with one of the following:<br>a. For unclassified limited documents: "DESTRUCTION NOTICE. Destroy by any method that will prevent disclosure of contents or reconstruction of the document."<br>b. For classified documents: "DESTRUCTION NOTICE. Follow the procedures in DoD 5220.22-M, National Industrial Security Program Operating Manual, Chapter 5, Section 7, or DoD 5200.1R, Information Security Program, Chapter 6."<br><br><b>BLOCKS 10, 12, and 13:</b> Paper copy: as specified by the individual Task Order. Concurrent with the initial submittal of the paper copy, the contractor shall submit four (4) representative samples of each digital data format of data for this project (Native, Neutral, HPGL, Metadata Spreadsheet, Gerber, Software/memory Device Data, etc.). One set of all "final reproducible digital data package" is due 60 days after receipt of government approval of the paper copy. Subsequent submissions due 30 days after identification of any revisions/changes to the TDP. Final due 60 days prior to the end of the contract. Revisions are required.<br><br><b>BLOCK 14:</b> * The "final reproducible digital data package" to include Native, Neutral, HPGL, Metadata Spreadsheet, Gerber, Software/Memory Device Data, etc. to the following:<br>DIA/ST VACA, COR |  |                                                                               |                                        | a. ADDRESSEE                                       |                                            | b. COPIES                                     |         |            |  |    |  |
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| 15. TOTAL                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |  |                                                                               |                                        | 2                                                  |                                            | 2                                             |         | 2          |  |    |  |
| G. PREPARED BY<br>Mona Haddad                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                                                               | H. DATE<br>08/21/2025                  |                                                    | I. APPROVED BY                             |                                               | J. DATE |            |  |    |  |



**CONTRACT DATA REQUIREMENTS LIST**

*(1 Data Item)*

|                                                        |                                        |                                                           |
|--------------------------------------------------------|----------------------------------------|-----------------------------------------------------------|
| A. CONTRACT LINE-ITEM NO.<br>KO/CS fill from contract] | B. EXHIBIT<br>A                        | C. CATEGORY:<br>TDP _____ TM _____ OTHER <u>X-General</u> |
| D. SYSTEM/ITEM<br>DORE3 IDIQ                           | E. CONTRACT/PR NO.<br>HHM402-2X-D-00XX | F. CONTRACTOR<br>TBD                                      |

**16. REMARKS** *(Continued)*

**MANDATORY Government Furnished Property (GFP) and Contractor Acquired Property (CAP) Reporting:**

All inventories of GFP and CAP must be reported using the Report of GFP and CAP in Contractor's Possession (RGP-CP) spreadsheet and sent to the email distribution list of addresses specified in Block 14. The vendor is required to conduct a 100% acceptance inventory within 60 calendar days following the awarding of the contract, as well as a closeout inventory that must be approved by the COR at least 90 calendar days before the contract's conclusion.

**MANDATORY REPORTING REQUIREMENTS**

The Contractor must submit a monthly comprehensive inventory property report to the designated COR, Property Administrator (PA), PA Oversight Office, and the Facilities, Logistics and Service (FLS) Office.

The GFP and CAP Report must include:

A detailed list of GFP and CAP. All data entries must adhere to the instructions outlined in the RGP-CP. The Contractor is responsible for ensuring the accuracy, completeness, and timely submission of reports. Additionally, the Contractor must keep records of all GFP and CAP assets, including transfer receipts and disposal documentation, for a minimum of three years after the contract's completion or termination.

Reports must be submitted in the designated RGP-CP Agency template for GFP and CAP, which is the only acceptable format for property data reporting. Vendor-generated reports will not be accepted. Deviations from the Agency RGP-CP template will be regarded as non-compliant.

The Government retains the right to request additional information or clarification concerning the Contractor's GFP reports. The Contractor must respond promptly to such requests and provide any required documentation or explanations.

**\*\*CONTACT\*\***

For any questions or concerns regarding GFP and CAP reporting, please contact the designated Contracting Officer Representative, Property Administrator, and PA Oversight Office point of contact listed above.

**\*\*EFFECTIVE DATE\*\***

This RGP-CP is effective as of [9/10/2025] and supersedes all previous versions.



| CONTRACT DATA REQUIREMENTS LIST                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  |                                                        |                                        |                        |                                                  | Form Approved<br>OMB No. 0704-0188                 |         |           |  |   |  |
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| (1 Data Item)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                                        |                                        |                        |                                                  |                                                    |         |           |  |   |  |
| Public reporting burden for this collection of information is estimated to average 110 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden to Department of Defense, Washington Headquarters Services, Directorate for Information Operations and Reports, 1215 Jefferson Davis Highway, Suite 1204, Arlington, VA 22202-2302, and to the Office of Management and Budget, Paperwork Reduction Project (0704-0188), Washington, DC 20503. Please DO NOT RETURN your form to either of these addresses. Send completed form to the Government Issuing Contracting Officer for the Contract. PR No. listed in Block E. |  |                                                        |                                        |                        |                                                  |                                                    |         |           |  |   |  |
| A. CONTRACT LINE ITEM NO.<br>X999                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  |                                                        | B. EXHIBIT<br>A                        |                        | C. CATEGORY<br>TDP _____ TM _____ OTHER <u>x</u> |                                                    |         |           |  |   |  |
| D. SYSTEM/ITEM.<br>DORE3 IDIQ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                                        | E. CONTRACT/PR NO.<br>HHM402-2X-D-00XX |                        | F. CONTRACTOR<br>SEE P.1 OF CONTRACT             |                                                    |         |           |  |   |  |
| 1. DATA ITEM NO.<br>A011                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  | 2. TITLE OF DATA ITEM<br>List of Subcontractors Report |                                        |                        | 3. SUBTITLE                                      |                                                    |         |           |  |   |  |
| 4. AUTHORITY (Data Acquisition Document No.)<br>DI-MGMT-82070                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                                        | 5. CONTRACT REFERENCE<br>SOW section 5 |                        | 6. REQUIRING OFFICE<br>DIA/ST                    |                                                    |         |           |  |   |  |
| 7. DD 250 REQ<br>LT                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |  | 9. DIST. STATEMENT<br>REQUIRED                         |                                        | 10. FREQUENCY<br>SEMIA |                                                  | 12. DATE OF FIRST<br>SUBMISSION<br>See Blk 16      |         |           |  |   |  |
| 8. APP CODE<br>A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  | D                                                      |                                        | 11. AS OF DATE<br>N/A  |                                                  | 13. DATE OF SUBSEQUENT<br>SUBMISSION<br>See Blk 16 |         |           |  |   |  |
| 16. REMARKS:<br><br>All data items shall be marked in accordance with the relevant security classification guides.<br><br>Block 4: Contractor must use Standard Form 294.<br><br>Blocks 11: Reports are due semi-annual on 1 April and 1 November each year.<br><br>Blocks 12 & 13: First submission depends on date of contract award and submissions may be through IC eSRS or via e-mail to <a href="mailto:subcontracting@dodiis.mil">subcontracting@dodiis.mil</a>                                                                                                                                                                                                                                                                                                                                                                                                                                                        |  |                                                        |                                        | 14. DISTRIBUTION       |                                                  | a. ADDRESSEE                                       |         | b. COPIES |  |   |  |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  |                                                        |                                        | DIA/OSBP               |                                                  |                                                    |         | 1         |  |   |  |
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| G. PREPARED BY<br>Mona Haddad                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                                        | H. DATE<br>08/21/2025                  |                        | I. APPROVED BY                                   |                                                    | J. DATE |           |  |   |  |

| CONTRACT DATA REQUIREMENTS LIST                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  |                                                                            |                                        |                        | Form Approved<br>OMB No. 0704-0188                                                            |                                                    |         |                         |  |
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| (1 Data Item)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |  |                                                                            |                                        |                        |                                                                                               |                                                    |         |                         |  |
| Public reporting burden for this collection of information is estimated to average 110 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden to Department of Defense, Washington Headquarters Services, Directorate for Information Operations and Reports, 1215 Jefferson Davis Highway, Suite 1204, Arlington, VA 22202-2302, and to the Office of Management and Budget, Paperwork Reduction Project (0704-0188), Washington, DC 20503. Please DO NOT RETURN your form to either of these addresses. Send completed form to the Government Issuing Contracting Officer for the Contract. PR No. listed in Block E.                        |  |                                                                            |                                        |                        |                                                                                               |                                                    |         |                         |  |
| A. CONTRACT LINE ITEM NO.<br>X999                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |  |                                                                            | B. EXHIBIT<br>A                        |                        | C. CATEGORY<br>TDP _____ TM _____ OTHER <input checked="" type="checkbox"/> x _____           |                                                    |         |                         |  |
| D. SYSTEM/ITEM.<br>DORE3 IDIQ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |  |                                                                            | E. CONTRACT/PR NO.<br>HHM402-2X-D-00XX |                        | F. CONTRACTOR<br>SEE P.1 OF CONTRACT                                                          |                                                    |         |                         |  |
| 1. DATA ITEM NO.<br>A012                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  | 2. TITLE OF DATA ITEM<br>Site Preparation Requirements & Installation Plan |                                        |                        | 3. SUBTITLE<br>Site Specific Engineering Plan (SSEP)/Site Specific Implementation Plan (SSIP) |                                                    |         |                         |  |
| 4. AUTHORITY (Data Acquisition Document No.)<br>DI-MGMT-80033A/T                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |  |                                                                            | 5. CONTRACT REFERENCE<br>SOW section 5 |                        | 6. REQUIRING OFFICE<br>DIA/ST                                                                 |                                                    |         |                         |  |
| 7. DD 250 REQ<br>DD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |  | 9. DIST. STATEMENT<br>REQUIRED                                             |                                        | 10. FREQUENCY<br>ASREQ |                                                                                               | 12. DATE OF FIRST<br>SUBMISSION<br>See Blk 16      |         |                         |  |
| 8. APP CODE<br>See Blk 16                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |  | D                                                                          |                                        | 11. AS OF DATE<br>N/A  |                                                                                               | 13. DATE OF SUBSEQUENT<br>SUBMISSION<br>See Blk 16 |         |                         |  |
| 16. REMARKS:<br><br>All data items shall be marked in accordance with the relevant security classification guides.<br><br>Block 4: The Data Item Description (DD Form 1664) is tailored as follows:<br>__ Contractor format is acceptable.<br><br>Block 8: The Government will review the "As-Built's" and provide comments within fifteen (15) calendar days.<br><br>Block 10: For each site installation event at any site. Updates for retrofits/upgrades conducted and/or facilitated by the contractor.<br><br>Block 12 & 13: Due 15 DA the completion of a Site Survey. Updates 15 calendar days after Government comments are received. After installation, the contractor shall provide "As-Built's" within 15 calendar days following the Post Installation Turnover Review conducted in support of a site installation. Final update fifteen (15) calendar days after government comments are received for approval. Revisions as required. |  |                                                                            |                                        | 14. DISTRIBUTION       |                                                                                               |                                                    |         |                         |  |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  |                                                                            |                                        | a. ADDRESSEE           |                                                                                               | b. COPIES                                          |         |                         |  |
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| 15. TOTAL                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |  | 2                                                                          |                                        | 2                      |                                                                                               |                                                    |         |                         |  |
| G. PREPARED BY<br>Mona Haddad                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |  |                                                                            | H. DATE<br>08/21/2025                  |                        | I. APPROVED BY                                                                                |                                                    | J. DATE |                         |  |

| CONTRACT DATA REQUIREMENTS LIST                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  |                                                           |                                        |                             | Form Approved<br>OMB No. 0704-0188                    |                                                    |  |
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| (1 Data Item)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                                           |                                        |                             |                                                       |                                                    |  |
| Public reporting burden for this collection of information is estimated to average 110 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden to Department of Defense, Washington Headquarters Services, Directorate for Information Operations and Reports, 1215 Jefferson Davis Highway, Suite 1204, Arlington, VA 22202-2302, and to the Office of Management and Budget, Paperwork Reduction Project (0704-0188), Washington, DC 20503. Please DO NOT RETURN your form to either of these addresses. Send completed form to the Government Issuing Contracting Officer for the Contract. PR No. listed in Block E. |  |                                                           |                                        |                             |                                                       |                                                    |  |
| A. CONTRACT LINE ITEM NO.<br>X999                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  |                                                           | B. EXHIBIT<br>A                        |                             | C. CATEGORY<br>TDP _____ TM _____ OTHER _____ x _____ |                                                    |  |
| D. SYSTEM/ITEM.<br>DORE3 IDIQ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                                           | E. CONTRACT/PR NO.<br>HHM402-2X-D-00XX |                             | F. CONTRACTOR<br>SEE P.1 OF CONTRACT                  |                                                    |  |
| 1. DATA ITEM NO.<br>A013                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  | 2. TITLE OF DATA ITEM<br>OPERATIONS SECURITY (OPSEC) PLAN |                                        |                             | 3. SUBTITLE                                           |                                                    |  |
| 4. AUTHORITY (Data Acquisition Document No.)<br>DI-MGMT-80934C/T                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  | 5. CONTRACT REFERENCE<br>SOW section 5                    |                                        |                             | 6. REQUIRING OFFICE<br>DIA/ST                         |                                                    |  |
| 7. DD 250 REQ<br>DD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |  | 9. DIST. STATEMENT<br>REQUIRED                            |                                        | 10. FREQUENCY<br>See Blk 16 |                                                       | 12. DATE OF FIRST<br>SUBMISSION<br>See Blk 16      |  |
| 8. APP CODE<br>A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  | D                                                         |                                        | 11. AS OF DATE<br>N/A       |                                                       | 13. DATE OF SUBSEQUENT<br>SUBMISSION<br>See Blk 16 |  |
| 16. REMARKS:<br><br>All data items shall be marked in accordance with the relevant security classification guides.<br><br>Block 4: The Data Item Description (DD Form 1664) is tailored as follows:<br>___ Contractor format acceptable.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  |                                                           |                                        | a. ADDRESSEE                |                                                       | b. COPIES                                          |  |
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| G. PREPARED BY<br>Mona Haddad                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  | H. DATE<br>08/21/2025                                     |                                        | I. APPROVED BY              |                                                       | J. DATE                                            |  |

| CONTRACT DATA REQUIREMENTS LIST                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |  |                                                                                                                          |                                        |                        | Form Approved<br>OMB No. 0704-0188               |                                                    |  |            |  |
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| (1 Data Item)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |  |                                                                                                                          |                                        |                        |                                                  |                                                    |  |            |  |
| Public reporting burden for this collection of information is estimated to average 110 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden to Department of Defense, Washington Headquarters Services, Directorate for Information Operations and Reports, 1215 Jefferson Davis Highway, Suite 1204, Arlington, VA 22202-2302, and to the Office of Management and Budget, Paperwork Reduction Project (0704-0188), Washington, DC 20503. Please DO NOT RETURN your form to either of these addresses. Send completed form to the Government Issuing Contracting Officer for the Contract. PR No. listed in Block E.                                            |  |                                                                                                                          |                                        |                        |                                                  |                                                    |  |            |  |
| A. CONTRACT LINE ITEM NO.<br>X999                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |  |                                                                                                                          | B. EXHIBIT<br>A                        |                        | C. CATEGORY<br>TDP _____ TM _____ OTHER <u>x</u> |                                                    |  |            |  |
| D. SYSTEM/ITEM.<br>DORE3 IDIQ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |  |                                                                                                                          | E. CONTRACT/PR NO.<br>HHM402-2X-D-00XX |                        | F. CONTRACTOR<br>SEE P.1 OF CONTRACT             |                                                    |  |            |  |
| 1. DATA ITEM NO.<br>A014                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  | 2. TITLE OF DATA ITEM<br>Manuals, Technical: General Acquisition and Development Requirements, General Specification for |                                        |                        | 3. SUBTITLE                                      |                                                    |  |            |  |
| 4. AUTHORITY (Data Acquisition Document No.)<br>MIL-DTL-24784D(1)/T                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  | 5. CONTRACT REFERENCE<br>SOW section 5                                                                                   |                                        |                        | 6. REQUIRING OFFICE<br>DIA/ST                    |                                                    |  |            |  |
| 7. DD 250 REQ<br>DD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  | 9. DIST. STATEMENT<br>REQUIRED                                                                                           |                                        | 10. FREQUENCY<br>ASREQ |                                                  | 12. DATE OF FIRST<br>SUBMISSION<br>See Blk 16      |  |            |  |
| 8. APP CODE<br>See Blk 16                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |  | D                                                                                                                        |                                        | 11. AS OF DATE<br>N/A  |                                                  | 13. DATE OF SUBSEQUENT<br>SUBMISSION<br>See Blk 16 |  |            |  |
| 16. REMARKS:<br><br>All data items shall be marked in accordance with the relevant security classification guides.<br><br>Block 4: The Data Item Description (DD Form 1664) is tailored as follows:<br>__ Contractor format acceptable.<br><br>Block 12: Draft Technical Orders/Operation Instructions and Manuals will be submitted in response to Government Delivery Order proposal request. Deliver First Submission thirty (30) calendar days after Government approval of draft.<br><br>Block 13: Subsequent submissions are required thirty (30) calendar days after a proposed change to the first submission is approved by the Government.<br><br>Final 45 DP to production hardware delivery to government.<br><br>NOTE: Technical data shall not be transmitted via email unless transmitted on JWICS IAW PCO/COR direction. Otherwise, all transmission of technical data shall be via mail or express delivery service at appropriate classification level. |  |                                                                                                                          |                                        | 14. DISTRIBUTION       |                                                  |                                                    |  |            |  |
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| G. PREPARED BY<br>Mona Haddad                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |  | H. DATE<br>08/21/2025                                                                                                    |                                        | I. APPROVED BY         |                                                  | J. DATE                                            |  |            |  |

| CONTRACT DATA REQUIREMENTS LIST                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |  |                                                                               |                                        |                                        |                | Form Approved<br>OMB No. 0704-0188                       |         |            |  |
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| (1 Data Item)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |  |                                                                               |                                        |                                        |                |                                                          |         |            |  |
| Public reporting burden for this collection of information is estimated to average 110 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden to Department of Defense, Washington Headquarters Services, Directorate for Information Operations and Reports, 1215 Jefferson Davis Highway, Suite 1204, Arlington, VA 22202-2302, and to the Office of Management and Budget, Paperwork Reduction Project (0704-0188), Washington, DC 20503. Please DO NOT RETURN your form to either of these addresses. Send completed form to the Government Issuing Contracting Officer for the Contract. PR No. listed in Block E.                                                                                          |  |                                                                               |                                        |                                        |                |                                                          |         |            |  |
| A. CONTRACT LINE ITEM NO.<br>X999                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  |                                                                               |                                        | B. EXHIBIT<br>A                        |                | C. CATEGORY<br>TDP _____ TM _____ OTHER _____ RELI _____ |         |            |  |
| D. SYSTEM/ITEM.<br>DORE3 IDIQ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |  |                                                                               |                                        | E. CONTRACT/PR NO.<br>HHM402-2X-D-00XX |                | F. CONTRACTOR<br>SEE P.1 OF CONTRACT                     |         |            |  |
| 1. DATA ITEM NO.<br>A015                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  | 2. TITLE OF DATA ITEM<br>Work Breakdown Structures for Defense Material Items |                                        |                                        |                | 3. SUBTITLE<br>WBS                                       |         |            |  |
| 4. AUTHORITY (Data Acquisition Document No.)<br>MIL-STD-881F/T                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |  |                                                                               | 5. CONTRACT REFERENCE<br>SOW section 5 |                                        |                | 6. REQUIRING OFFICE<br>DIA/ST                            |         |            |  |
| 7. DD 250 REQ<br>DD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |  | 9. DIST. STATEMENT<br>REQUIRED<br>D                                           |                                        | 10. FREQUENCY<br>See Blk 16            |                | 12. DATE OF FIRST<br>SUBMISSION<br>See Blk 16            |         |            |  |
| 8. APP CODE<br>A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |  |                                                                               |                                        | 11. AS OF DATE<br>N/A                  |                | 13. DATE OF SUBSEQUENT<br>SUBMISSION<br>See Blk 16       |         |            |  |
| 16. REMARKS:<br>All data items shall be marked in accordance with the relevant security classification guides.<br><br>Block 4: The Data Item Description (DD Form 1664) is tailored as follows:<br>WBS Index not to exceed three (3) levels deep unless required by specific Task Order.<br><br>References to IPT shall be replaced with Working group, (WG), Technical Interchange Meeting (TIM), or Program Management Reviews (PMR), or other meetings required by specific Task Order.<br><br>Contractor format acceptable.<br><br>Prime contractor is responsible for flowing down WBS and WBS dictionary requirements contained in their prime contract to all subcontractors who meet the reporting thresholds<br><br>Note: CWBS and dictionary to be updated as the result of contractual modifications when there are scope changes.<br><br>Block 11-13: draft due within 14 days after contract award. Update 30 DA Government approval of draft updated and submitted for comment/approval as changes arise. |  |                                                                               |                                        |                                        |                | 14. DISTRIBUTION                                         |         |            |  |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |  |                                                                               |                                        |                                        |                | a. ADDRESSEE                                             |         | b. COPIES  |  |
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| G. PREPARED BY<br>Mona Haddad                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |  |                                                                               | H. DATE<br>08/21/2025                  |                                        | I. APPROVED BY |                                                          | J. DATE |            |  |

| CONTRACT DATA REQUIREMENTS LIST                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  |                                                                                                |                                        |                        |                                                                                                                                                        | Form Approved<br>OMB No. 0704-0188            |         |            |  |
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| (1 Data Item)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                                                                                |                                        |                        |                                                                                                                                                        |                                               |         |            |  |
| Public reporting burden for this collection of information is estimated to average 110 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden to Department of Defense, Washington Headquarters Services, Directorate for Information Operations and Reports, 1215 Jefferson Davis Highway, Suite 1204, Arlington, VA 22202-2302, and to the Office of Management and Budget, Paperwork Reduction Project (0704-0188), Washington, DC 20503. Please DO NOT RETURN your form to either of these addresses. Send completed form to the Government Issuing Contracting Officer for the Contract. PR No. listed in Block E. |  |                                                                                                |                                        |                        |                                                                                                                                                        |                                               |         |            |  |
| A. CONTRACT LINE ITEM NO.<br>X999                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  |                                                                                                | B. EXHIBIT<br>A                        |                        | C. CATEGORY<br>TDP _____ TM _____ OTHER <u>x</u>                                                                                                       |                                               |         |            |  |
| D. SYSTEM/ITEM.<br>DORE3 IDIQ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                                                                                | E. CONTRACT/PR NO.<br>HHM402-2X-D-00XX |                        | F. CONTRACTOR<br>SEE P.1 OF CONTRACT                                                                                                                   |                                               |         |            |  |
| 1. DATA ITEM NO.<br>A016                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  | 2. TITLE OF DATA ITEM<br>Control and Instrumentation Equipment, General Specification for (NR) |                                        |                        | 3. SUBTITLE<br>Export License Requirements Analysis for International Traffic in Arms Regulation (ITAR) and/or Export Administration Regulations (EAR) |                                               |         |            |  |
| 4. AUTHORITY (Data Acquisition Document No.)<br>MIL-DTL-23200F/T                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  |                                                                                                | 5. CONTRACT REFERENCE<br>SOW section 5 |                        | 6. REQUIRING OFFICE<br>DIA/ST                                                                                                                          |                                               |         |            |  |
| 7. DD 250 REQ<br>DD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |  | 9. DIST. STATEMENT<br>REQUIRED                                                                 |                                        | 10. FREQUENCY<br>ASGEN |                                                                                                                                                        | 12. DATE OF FIRST<br>SUBMISSION<br>ASREQ      |         |            |  |
| 8. APP CODE<br>A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  | D                                                                                              |                                        | 11. AS OF DATE<br>N/A  |                                                                                                                                                        | 13. DATE OF SUBSEQUENT<br>SUBMISSION<br>ASREQ |         |            |  |
| 16. REMARKS:<br><br>All data items shall be marked in accordance with the relevant security classification guides.<br><br>Block 4: The Data Item Description (DD Form 1664) is tailored as follows:<br><u>  </u> Contractor format acceptable.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |  |                                                                                                |                                        | 14. DISTRIBUTION       |                                                                                                                                                        | a. ADDRESSEE                                  |         |            |  |
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| 15. TOTAL                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |  |                                                                                                |                                        |                        |                                                                                                                                                        | 2                                             |         |            |  |
| G. PREPARED BY<br>Mona Haddad                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                                                                                | H. DATE<br>08/21/2025                  |                        | I. APPROVED BY                                                                                                                                         |                                               | J. DATE |            |  |

| CONTRACT DATA REQUIREMENTS LIST                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  |                                                               |                                        |                             | Form Approved<br>OMB No. 0704-0188                                                  |                                                    |         |                         |  |
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| (1 Data Item)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                                               |                                        |                             |                                                                                     |                                                    |         |                         |  |
| Public reporting burden for this collection of information is estimated to average 110 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden to Department of Defense, Washington Headquarters Services, Directorate for Information Operations and Reports, 1215 Jefferson Davis Highway, Suite 1204, Arlington, VA 22202-2302, and to the Office of Management and Budget, Paperwork Reduction Project (0704-0188), Washington, DC 20503. Please DO NOT RETURN your form to either of these addresses. Send completed form to the Government Issuing Contracting Officer for the Contract. PR No. listed in Block E. |  |                                                               |                                        |                             |                                                                                     |                                                    |         |                         |  |
| A. CONTRACT LINE ITEM NO.<br>X999                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  |                                                               | B. EXHIBIT<br>A                        |                             | C. CATEGORY<br>TDP _____ TM _____ OTHER <input checked="" type="checkbox"/> x _____ |                                                    |         |                         |  |
| D. SYSTEM/ITEM.<br>DORE3 IDIQ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                                               | E. CONTRACT/PR NO.<br>HHM402-2X-D-00XX |                             | F. CONTRACTOR<br>SEE P.1 OF CONTRACT                                                |                                                    |         |                         |  |
| 1. DATA ITEM NO.<br>A017                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  | 2. TITLE OF DATA ITEM<br>System/Subsystem Specification (SSS) |                                        |                             | 3. SUBTITLE<br>N/A                                                                  |                                                    |         |                         |  |
| 4. AUTHORITY (Data Acquisition Document No.)<br>DI-IPSC-81431A/T                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  |                                                               | 5. CONTRACT REFERENCE<br>SOW section 5 |                             | 6. REQUIRING OFFICE<br>DIA/ST                                                       |                                                    |         |                         |  |
| 7. DD 250 REQ<br>DD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |  | 9. DIST. STATEMENT<br>REQUIRED<br><br>D                       |                                        | 10. FREQUENCY<br>See Blk 16 |                                                                                     | 12. DATE OF FIRST<br>SUBMISSION<br>See Blk 16      |         |                         |  |
| 8. APP CODE<br>See Blk 16                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |  |                                                               |                                        | 11. AS OF DATE<br><br>N/A   |                                                                                     | 13. DATE OF SUBSEQUENT<br>SUBMISSION<br>See Blk 16 |         |                         |  |
| 16. REMARKS:<br><br>All data items shall be marked in accordance with the relevant security classification guides.<br><br>Block 4: The Data Item Description (DD Form 1664) is tailored as follows:<br>___Contractor format acceptable.<br><br>Block 8: Government disposition will be provided 60 days after receipt of submittal.<br><br>Block 10, 12, & 13: Preliminary 45 DP to PDR. Update 45 DP to CDR. Final 45 DP to Contractor TRR. Revisions as required.<br><br>Blocks 11-13: Documents and events required of DoD acquisition processes and lifecycle timelines will be scheduled upon award of individual Task Orders.                                                                                                                                                                                                                                                                                            |  |                                                               |                                        | 14. DISTRIBUTION            |                                                                                     |                                                    |         |                         |  |
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| G. PREPARED BY<br>Mona Haddad                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                                               | H. DATE<br>08/21/2025                  |                             | I. APPROVED BY                                                                      |                                                    | J. DATE |                         |  |

| CONTRACT DATA REQUIREMENTS LIST                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |  |                                                    |                                        |                                        |                | Form Approved<br>OMB No. 0704-0188                 |         |
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| (1 Data Item)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |  |                                                    |                                        |                                        |                |                                                    |         |
| Public reporting burden for this collection of information is estimated to average 110 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden to Department of Defense, Washington Headquarters Services, Directorate for Information Operations and Reports, 1215 Jefferson Davis Highway, Suite 1204, Arlington, VA 22202-2302, and to the Office of Management and Budget, Paperwork Reduction Project (0704-0188), Washington, DC 20503. Please DO NOT RETURN your form to either of these addresses. Send completed form to the Government Issuing Contracting Officer for the Contract. PR No. listed in Block E.                                                                                                                                                                                                                                                                                                                  |  |                                                    |                                        |                                        |                |                                                    |         |
| A. CONTRACT LINE ITEM NO.<br>X999                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  |                                                    |                                        | B. EXHIBIT<br>A                        |                | C. CATEGORY<br>TDP _____ TM _____ OTHER <u>x</u>   |         |
| D. SYSTEM/ITEM.<br>DORE3 IDIQ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |  |                                                    |                                        | E. CONTRACT/PR NO.<br>HHM402-2X-D-00XX |                | F. CONTRACTOR<br>SEE P.1 OF CONTRACT               |         |
| 1. DATA ITEM NO.<br>A018                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |  | 2. TITLE OF DATA ITEM<br>Data Accession List (DAL) |                                        |                                        |                | 3. SUBTITLE                                        |         |
| 4. AUTHORITY (Data Acquisition Document No.)<br>DI-MGMT-81453C/T                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  |                                                    | 5. CONTRACT REFERENCE<br>SOW section 5 |                                        |                | 6. REQUIRING OFFICE<br>DIA/ST                      |         |
| 7. DD 250 REQ<br>LT                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |  | 9. DIST. STATEMENT<br>REQUIRED                     |                                        | 10. FREQUENCY<br>See Blk 16            |                | 12. DATE OF FIRST<br>SUBMISSION<br>See Blk 16      |         |
| 8. APP CODE<br>A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  | D                                                  |                                        | 11. AS OF DATE<br>N/A                  |                | 13. DATE OF SUBSEQUENT<br>SUBMISSION<br>See Blk 16 |         |
| <b>16. REMARKS:</b><br><br>All data items shall be marked in accordance with the relevant security classification guides.<br><br>Block 4: The Data Item Description (DD Form 1664) is tailored as follows: __Contractor format is acceptable.<br><br>Tailoring and Instructions:<br>The Data Accession List shall be maintained and updated at each contract milestone or upon delivery of data items.<br><br>The list shall be delivered electronically in a Government-approved format compatible with data administration systems.<br><br>Each data item shall be uniquely identified and linked to corresponding life-cycle management records.<br><br>Deviations from this DID shall be documented and approved by the Contracting Officer's Representative (COR).<br><br>Additional Instructions:<br>The Data Accession List shall integrate with configuration management databases and data quality controls.<br><br>The contractor shall ensure traceability of all data deliveries throughout the system life-cycle.<br><br>Blocks 10, 12 & 13: Preliminary 60 DA contract award. Subsequent submissions quarterly (reporting period to include the last day of the third month) on the 28th day of the following month. As required. |  |                                                    |                                        | a. ADDRESSEE                           |                | b. COPIES                                          |         |
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| G. PREPARED BY<br>Mona Haddad                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |  |                                                    | H. DATE<br>08/21/2025                  |                                        | I. APPROVED BY |                                                    | J. DATE |



| CONTRACT DATA REQUIREMENTS LIST                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |  |                                                            |                                        |                             | Form Approved<br>OMB No. 0704-0188                                    |                                                    |    |    |
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| (1 Data Item)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  |                                                            |                                        |                             |                                                                       |                                                    |    |    |
| Public reporting burden for this collection of information is estimated to average 110 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden to Department of Defense, Washington Headquarters Services, Directorate for Information Operations and Reports, 1215 Jefferson Davis Highway, Suite 1204, Arlington, VA 22202-2302, and to the Office of Management and Budget, Paperwork Reduction Project (0704-0188), Washington, DC 20503. Please DO NOT RETURN your form to either of these addresses. Send completed form to the Government Issuing Contracting Officer for the Contract. PR No. listed in Block E.                                                                                                                                                                                                                                                                                                                                                                                                                             |  |                                                            |                                        |                             |                                                                       |                                                    |    |    |
| A. CONTRACT LINE ITEM NO.<br>X999                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |  |                                                            | B. EXHIBIT<br>A                        |                             | C. CATEGORY<br>TDP _____ TM _____ OTHER <u>x</u>                      |                                                    |    |    |
| D. SYSTEM/ITEM.<br>DORE3 IDIQ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  |                                                            | E. CONTRACT/PR NO.<br>HHM402-2X-D-00XX |                             | F. CONTRACTOR<br>SEE P.1 OF CONTRACT                                  |                                                    |    |    |
| 1. DATA ITEM NO.<br>A019                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |  | 2. TITLE OF DATA ITEM<br>Training Conduct Support Document |                                        |                             | 3. SUBTITLE<br>Computer Based Training (CBT)<br>Materials Development |                                                    |    |    |
| 4. AUTHORITY (Data Acquisition Document No.)<br>DI-PSSS-81523D/T                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |  | 5. CONTRACT REFERENCE<br>SOW section 5                     |                                        |                             | 6. REQUIRING OFFICE<br>DIA/ST                                         |                                                    |    |    |
| 7. DD 250 REQ<br>SD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |  | 9. DIST. STATEMENT<br>REQUIRED                             |                                        | 10. FREQUENCY<br>See Blk 16 |                                                                       | 12. DATE OF FIRST<br>SUBMISSION<br>See Blk 16      |    |    |
| 8. APP CODE<br>A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |  | D                                                          |                                        | 11. AS OF DATE<br>N/A       |                                                                       | 13. DATE OF SUBSEQUENT<br>SUBMISSION<br>See Blk 16 |    |    |
| 16. REMARKS:<br>Block 4: The Data Item Description (DD Form 1664) is tailored as follows:<br>___ Contractor format is acceptable.<br><br>Blocks 10, 12 & 13: 35% completed CBT Training Materials due 1 month prior to event designated by individual Task Order. 75% completed CBT Training Materials due 1 month prior to event designated by individual Task Order, and 75% completed CBT Training Materials due 1 month prior to event designated by individual Task Order (i.e. Certification/Validation/Verification event).<br><br>The 35% In Process Review (IPR) for CBT development shall consist of a sample demo to show the design and functionality features of the CBT.<br><br>The 75% IPR of CBT development shall, at a minimum, demonstrate size and duration features of the CBT being reviewed.<br><br>Updates of all CBT materials shall be on DVD. Due one month after completion of the first course presentation that uses CBT. Partial deliveries as necessary, after each increment (build/block) is completed. Upon completion of all software updates, update existing CBT training materials. Final updates and revisions due last day of the contract.<br><br>**Training materials will be delivered to the site 1 month prior to the scheduled installation event.<br>** Deliver one copy per student to the training site. |  |                                                            |                                        | a. ADDRESSEE                |                                                                       | b. COPIES                                          |    |    |
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| G. PREPARED BY<br>Mona Haddad                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  | H. DATE<br>08/21/2025                                      |                                        | I. APPROVED BY              |                                                                       | J. DATE                                            |    |    |

| CONTRACT DATA REQUIREMENTS LIST                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  |                                                                     |                                        |                                        |                | Form Approved<br>OMB No. 0704-0188                                     |         |
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| (1 Data Item)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  |                                                                     |                                        |                                        |                |                                                                        |         |
| Public reporting burden for this collection of information is estimated to average 110 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden to Department of Defense, Washington Headquarters Services, Directorate for Information Operations and Reports, 1215 Jefferson Davis Highway, Suite 1204, Arlington, VA 22202-2302, and to the Office of Management and Budget, Paperwork Reduction Project (0704-0188), Washington, DC 20503. Please DO NOT RETURN your form to either of these addresses. Send completed form to the Government Issuing Contracting Officer for the Contract. PR No. listed in Block E.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  |                                                                     |                                        |                                        |                |                                                                        |         |
| A. CONTRACT LINE ITEM NO.<br>X999                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |  |                                                                     |                                        | B. EXHIBIT<br>A                        |                | C. CATEGORY<br>TDP _____ TM _____ OTHER <u>x</u>                       |         |
| D. SYSTEM/ITEM.<br>DORE3 IDIQ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  |                                                                     |                                        | E. CONTRACT/PR NO.<br>HHM402-2X-D-00XX |                | F. CONTRACTOR<br>SEE P.1 OF CONTRACT                                   |         |
| 1. DATA ITEM NO.<br>A020                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |  | 2. TITLE OF DATA ITEM<br>Installation Completion Notification (ICN) |                                        |                                        |                | 3. SUBTITLE<br>Site Installation and Training Report                   |         |
| 4. AUTHORITY (Data Acquisition Document No.)<br>DI-SESS-81245C/T                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |  |                                                                     | 5. CONTRACT REFERENCE<br>SOW section 5 |                                        |                | 6. REQUIRING OFFICE<br>DIA/ST                                          |         |
| 7. DD 250 REQ<br>LT                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |  | 9. DIST. STATEMENT<br>REQUIRED                                      |                                        | 10. FREQUENCY<br>See Blk 16            |                | 12. DATE OF FIRST<br>SUBMISSION<br>See Blk 16                          |         |
| 8. APP CODE<br>A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |  | D                                                                   |                                        | 11. AS OF DATE<br>N/A                  |                | 13. DATE OF SUBSEQUENT<br>SUBMISSION<br>See Blk 16                     |         |
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| <b>16. REMARKS:</b><br>Block 4: The Data Item Description (DD Form 1663) is tailored as follows:<br><u>Paragraph 1</u> under " Use, Relationships:" for clarification.<br>___ Replace "report field accomplishment" with "report fielding and training accomplishment."<br>___ Delete: "of retrofit changes"<br>___ Replace "required by an approved Engineering Change Proposal (ECP)" with "required by the Government."<br>___ Replace "when the Government is maintaining the" with "when the Government or the contractor is maintaining the"<br>___ Replace "The reporting of the installation of retrofit kits in the field by the contractor during the acquisition phase and prior to the end of operational test and evaluation is required to verify the status of delivered configuration items subsequent to Government product acceptance." With "Reporting of the installation and training at the site by the contractor is considered complete after the over-the-air operational check is conducted/data/image is transmitted/received with 100% accuracy and the training executed."<br><u>Paragraph 2</u> under "Requirements:" for clarification: "<br>___ b. The configuration item or top assembly modified/installed<br>___ c. The part identifier and serial number(s) of part(s) modified/replaced/installed<br>___ d. The part identifier and serial number of part(s) incorporated/installed<br>___ e. training surveys collected<br><br>Block 10, 12 & 13: The ICN will be completed for each fielding activity.<br>Preliminary 90 DA CDR. Final within five (5) days of each installation completion.<br>Revisions as required |  |                                                                     |                                        | DIA/ST                                 |                | 1                                                                      |         |
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| G. PREPARED BY<br>Mona Haddad                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  |                                                                     | H. DATE<br>08/21/2025                  |                                        | I. APPROVED BY |                                                                        | J. DATE |

| CONTRACT DATA REQUIREMENTS LIST                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  |                                                   |                                        |                                        |                | Form Approved<br>OMB No. 0704-0188                                                  |         |           |  |
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| (1 Data Item)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                                   |                                        |                                        |                |                                                                                     |         |           |  |
| Public reporting burden for this collection of information is estimated to average 110 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden to Department of Defense, Washington Headquarters Services, Directorate for Information Operations and Reports, 1215 Jefferson Davis Highway, Suite 1204, Arlington, VA 22202-2302, and to the Office of Management and Budget, Paperwork Reduction Project (0704-0188), Washington, DC 20503. Please DO NOT RETURN your form to either of these addresses. Send completed form to the Government Issuing Contracting Officer for the Contract. PR No. listed in Block E.                                                                                                                                                                                 |  |                                                   |                                        |                                        |                |                                                                                     |         |           |  |
| A. CONTRACT LINE ITEM NO.<br>X999                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  |                                                   |                                        | B. EXHIBIT<br>A                        |                | C. CATEGORY<br>TDP _____ TM _____ OTHER <input checked="" type="checkbox"/> x _____ |         |           |  |
| D. SYSTEM/ITEM.<br>DORE3 IDIQ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                                   |                                        | E. CONTRACT/PR NO.<br>HHM402-2X-D-00XX |                | F. CONTRACTOR<br>SEE P.1 OF CONTRACT                                                |         |           |  |
| 1. DATA ITEM NO.<br>A021                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  | 2. TITLE OF DATA ITEM<br>Site Survey Report (SSR) |                                        |                                        |                | 3. SUBTITLE<br>Fielding Site Survey Report                                          |         |           |  |
| 4. AUTHORITY (Data Acquisition Document No.)<br>DI-MISC-82104/T                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  |                                                   | 5. CONTRACT REFERENCE<br>SOW section 5 |                                        |                | 6. REQUIRING OFFICE<br>DIA/ST                                                       |         |           |  |
| 7. DD 250 REQ<br>LT                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |  | 9. DIST. STATEMENT<br>REQUIRED                    |                                        | 10. FREQUENCY<br>See Blk 16            |                | 12. DATE OF FIRST<br>SUBMISSION<br>See Blk 16                                       |         |           |  |
| 8. APP CODE<br>A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  | D                                                 |                                        | 11. AS OF DATE<br>N/A                  |                | 13. DATE OF SUBSEQUENT<br>SUBMISSION<br>See Blk 16                                  |         |           |  |
| 16. REMARKS:<br>All data items shall be marked in accordance with the relevant security classification guides.<br><br>Block 4: The Data Item Description (DD Form 1663) is tailored as follows:<br>__Format: The contractor shall deliver high-level briefing in MS Power point.<br><br>Tailoring and Instructions:<br>The report shall include details on site infrastructure, network capabilities, power systems, security, and environmental conditions.<br><br>Delivery shall be in electronic format compatible with Government systems.<br><br>The report shall be submitted at the milestones specified in the contract or upon completion of the survey.<br><br>Any deviations from this DID shall be clearly identified and approved by the Contracting Officer's Representative (COR).<br><br>Additional Instructions:<br>Photographic documentation and diagrams shall be included where applicable.<br><br>Recommendations for site modifications or risk mitigation shall be provided.<br><br>Blocks 10, 12 & 13: Required for each site. Due NLT 15 DA each site survey. Revisions as required. |  |                                                   |                                        |                                        |                | a. ADDRESSEE                                                                        |         | b. COPIES |  |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  |                                                   |                                        |                                        |                | DIA/ST                                                                              |         | 1         |  |
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| G. PREPARED BY<br>Mona Haddad                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                                   | H. DATE<br>08/21/2025                  |                                        | I. APPROVED BY |                                                                                     | J. DATE |           |  |

| CONTRACT DATA REQUIREMENTS LIST                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  |                                                            |                                        |                        | Form Approved<br>OMB No. 0704-0188                    |                                                                                                                                                                                                                            |         |  |
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| (1 Data Item)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                                            |                                        |                        |                                                       |                                                                                                                                                                                                                            |         |  |
| Public reporting burden for this collection of information is estimated to average 110 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden to Department of Defense, Washington Headquarters Services, Directorate for Information Operations and Reports, 1215 Jefferson Davis Highway, Suite 1204, Arlington, VA 22202-2302, and to the Office of Management and Budget, Paperwork Reduction Project (0704-0188), Washington, DC 20503. Please DO NOT RETURN your form to either of these addresses. Send completed form to the Government Issuing Contracting Officer for the Contract. PR No. listed in Block E. |  |                                                            |                                        |                        |                                                       |                                                                                                                                                                                                                            |         |  |
| A. CONTRACT LINE ITEM NO.<br>X999                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  |                                                            | B. EXHIBIT<br>A                        |                        | C. CATEGORY<br>TDP _____ TM _____ OTHER _____ x _____ |                                                                                                                                                                                                                            |         |  |
| D. SYSTEM/ITEM.<br>DORE3 IDIQ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                                            | E. CONTRACT/PR NO.<br>HHM402-2X-D-00XX |                        | F. CONTRACTOR<br>SEE P.1 OF CONTRACT                  |                                                                                                                                                                                                                            |         |  |
| 1. DATA ITEM NO.<br>A022                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  | 2. TITLE OF DATA ITEM<br>Technical Report – Study/Services |                                        |                        | 3. SUBTITLE                                           |                                                                                                                                                                                                                            |         |  |
| 4. AUTHORITY (Data Acquisition Document No.)<br>DI-MISC-80508B/T                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  | 5. CONTRACT REFERENCE<br>SOW section 5                     |                                        |                        | 6. REQUIRING OFFICE<br>DIA/ST                         |                                                                                                                                                                                                                            |         |  |
| 7. DD 250 REQ<br>LT                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |  | 9. DIST. STATEMENT<br>REQUIRED                             |                                        | 10. FREQUENCY<br>SEMIA |                                                       | 12. DATE OF FIRST<br>SUBMISSION<br>See Blk 16                                                                                                                                                                              |         |  |
| 8. APP CODE<br>A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  | D                                                          |                                        | 11. AS OF DATE<br>N/A  |                                                       | 13. DATE OF SUBSEQUENT<br>SUBMISSION<br>See Blk 16                                                                                                                                                                         |         |  |
| 16. REMARKS:<br><br>All data items shall be marked in accordance with the relevant security classification guides.<br><br>Analysis of Alternatives (AoA) may involve a variety of engineering techniques including complete or partial simulation of operations or maintenance. As appropriate, AoA Reports will document the results of system effectiveness, life cycle cost and risk analysis. AoA supports the ongoing design definition activity and are accomplished at various points in the acquisition cycle and are not limited to just one phase of the program.<br><br>Block 4: The Data Item Description (DD Form 1664) is tailored as follows:<br>___Contractor format is acceptable.<br><br>Blocks 12 & 13: First submission depends on date of contract award.                                                                                                                                                 |  |                                                            |                                        | a. ADDRESSEE           |                                                       | b. COPIES                                                                                                                                                                                                                  |         |  |
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| G. PREPARED BY<br>Mona Haddad                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                                            | H. DATE<br>08/21/2025                  |                        | I. APPROVED BY                                        |                                                                                                                                                                                                                            | J. DATE |  |

| CONTRACT DATA REQUIREMENTS LIST                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |  |                                                    |                                                  |                        | Form Approved<br>OMB No. 0704-0188               |                                               |  |
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| (1 Data Item)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |  |                                                    |                                                  |                        |                                                  |                                               |  |
| Public reporting burden for this collection of information is estimated to average 110 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden to Department of Defense, Washington Headquarters Services, Directorate for Information Operations and Reports, 1215 Jefferson Davis Highway, Suite 1204, Arlington, VA 22202-2302, and to the Office of Management and Budget, Paperwork Reduction Project (0704-0188), Washington, DC 20503. Please DO NOT RETURN your form to either of these addresses. Send completed form to the Government Issuing Contracting Officer for the Contract. PR No. listed in Block E.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |  |                                                    |                                                  |                        |                                                  |                                               |  |
| A. CONTRACT LINE ITEM NO.<br>X999                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |  |                                                    | B. EXHIBIT<br>A                                  |                        | C. CATEGORY<br>TDP _____ TM _____ OTHER <u>x</u> |                                               |  |
| D. SYSTEM/ITEM.<br>DORE3 IDIQ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |  |                                                    | E. CONTRACT/PR NO.<br>HHM402-2X-D-00XX           |                        | F. CONTRACTOR<br>SEE P.1 OF CONTRACT             |                                               |  |
| 1. DATA ITEM NO.<br>A023                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  | 2. TITLE OF DATA ITEM<br>Computer Software Product |                                                  |                        | 3. SUBTITLE                                      |                                               |  |
| 4. AUTHORITY (Data Acquisition Document No.)<br>DI-IPSC-81488/T                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |  |                                                    | 5. CONTRACT REFERENCE<br>SOW Para 4.3.1 and 15.4 |                        | 6. REQUIRING OFFICE<br>DIA/ST                    |                                               |  |
| 7. DD 250 REQ<br>SD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  | 9. DIST. STATEMENT<br>REQUIRED                     |                                                  | 10. FREQUENCY<br>ASREQ |                                                  | 12. DATE OF FIRST<br>SUBMISSION<br>ASREQ      |  |
| 8. APP CODE<br>A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  | D                                                  |                                                  | 11. AS OF DATE<br>N/A  |                                                  | 13. DATE OF SUBSEQUENT<br>SUBMISSION<br>ASREQ |  |
| <b>16. REMARKS:</b><br>All data items shall be marked in accordance with the relevant security classification guides.<br><br>Block 4: The Data Item Description (DD Form 1664) is tailored as follows:<br>The deliverable shall include all software components necessary for the operation, installation, and maintenance of the system as specified in the contract.<br><br>Tailoring and Instructions:<br>Software shall be delivered on electronic media compatible with Government systems or via secure download.<br><br>Deliverables shall include source code, executable code, build scripts, installation guides, and user documentation.<br><br>All software components must be clearly versioned and traceable to configuration management records.<br><br>The software product shall conform to applicable standards including MIL-STD-498 or equivalent software development standards as specified in the contract.<br><br>Third-party software licenses must be identified and provided if applicable.<br><br>The deliverable shall include test results, defect reports, and corrective action documentation if specified by the contract.<br><br>Additional Instructions:<br>Delivery media and format must be compatible with Government systems and approved by the Contracting Officer's Representative (COR).<br><br>Any proprietary tools or libraries shall be documented and included with necessary licenses or permissions. |  |                                                    |                                                  | a. ADDRESSEE           |                                                  | b. COPIES                                     |  |
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| G. PREPARED BY<br>Mona Haddad                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |  |                                                    | H. DATE<br>08/21/2025                            |                        | I. APPROVED BY                                   |                                               |  |
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| CONTRACT DATA REQUIREMENTS LIST                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |  |                                                             |                                        |                        | Form Approved<br>OMB No. 0704-0188               |                                                    |         |  |
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| (1 Data Item)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |  |                                                             |                                        |                        |                                                  |                                                    |         |  |
| Public reporting burden for this collection of information is estimated to average 110 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden to Department of Defense, Washington Headquarters Services, Directorate for Information Operations and Reports, 1215 Jefferson Davis Highway, Suite 1204, Arlington, VA 22202-2302, and to the Office of Management and Budget, Paperwork Reduction Project (0704-0188), Washington, DC 20503. Please DO NOT RETURN your form to either of these addresses. Send completed form to the Government Issuing Contracting Officer for the Contract. PR No. listed in Block E.                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  |                                                             |                                        |                        |                                                  |                                                    |         |  |
| A. CONTRACT LINE ITEM NO.<br>X999                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |  |                                                             | B. EXHIBIT<br>A                        |                        | C. CATEGORY<br>TDP _____ TM _____ OTHER <u>x</u> |                                                    |         |  |
| D. SYSTEM/ITEM.<br>DORE3 IDIQ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |  |                                                             | E. CONTRACT/PR NO.<br>HHM402-2X-D-00XX |                        | F. CONTRACTOR<br>SEE P.1 OF CONTRACT             |                                                    |         |  |
| 1. DATA ITEM NO.<br>A024                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |  | 2. TITLE OF DATA ITEM<br>Software License Requirements List |                                        |                        | 3. SUBTITLE                                      |                                                    |         |  |
| 4. AUTHORITY (Data Acquisition Document No.)<br>DI-PSSS-82046/T                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |  | 5. CONTRACT REFERENCE<br>SOW section 5                      |                                        |                        | 6. REQUIRING OFFICE<br>DIA/ST                    |                                                    |         |  |
| 7. DD 250 REQ<br>LT                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  | 9. DIST. STATEMENT<br>REQUIRED                              |                                        | 10. FREQUENCY<br>ASREQ |                                                  | 12. DATE OF FIRST<br>SUBMISSION<br>See Blk 16      |         |  |
| 8. APP CODE<br>A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  | D                                                           |                                        | 11. AS OF DATE<br>N/A  |                                                  | 13. DATE OF SUBSEQUENT<br>SUBMISSION<br>See Blk 16 |         |  |
| <b>16. REMARKS:</b><br>All data items shall be marked in accordance with the relevant security classification guides.<br><br>Block 4: The Data Item Description (DD Form 1664) is tailored as follows:<br>___Contractor format acceptable.<br><br>The SLR shall document all software requirements, including functional, performance, interface, and design constraints as specified in the contract.<br><br>Tailoring and Instructions:<br>The SLR shall be structured to support requirements traceability and verification.<br><br>Requirements shall be uniquely identified and categorized.<br><br>The list shall include status fields such as verification method, source, and priority.<br><br>The SLR shall be delivered electronically in a format approved by the Government.<br><br>Updates to the SLR shall be submitted at specified contract milestones or as changes occur.<br><br>Any deviations from the DID shall be documented and approved by the Contracting Officer's Representative (COR).<br><br>Additional Instructions:<br>The SLR shall align with the system-level requirements specification and other contract documents.<br><br>Changes to requirements shall be managed through formal configuration management procedures.<br><br>Blocks 12 & 13: Draft due prior to purchase. Final due at time of system certification and software install. |  |                                                             |                                        | a. ADDRESSEE           |                                                  | b. COPIES                                          |         |  |
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| G. PREPARED BY<br>Mona Haddad                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |  |                                                             | H. DATE<br>08/21/2025                  |                        | I. APPROVED BY                                   |                                                    | J. DATE |  |

| CONTRACT DATA REQUIREMENTS LIST                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  |                                             |                                        |                                        |                | Form Approved<br>OMB No. 0704-0188                 |         |            |  |
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| (1 Data Item)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |  |                                             |                                        |                                        |                |                                                    |         |            |  |
| Public reporting burden for this collection of information is estimated to average 110 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden to Department of Defense, Washington Headquarters Services, Directorate for Information Operations and Reports, 1215 Jefferson Davis Highway, Suite 1204, Arlington, VA 22202-2302, and to the Office of Management and Budget, Paperwork Reduction Project (0704-0188), Washington, DC 20503. Please DO NOT RETURN your form to either of these addresses. Send completed form to the Government Issuing Contracting Officer for the Contract. PR No. listed in Block E.                     |  |                                             |                                        |                                        |                |                                                    |         |            |  |
| A. CONTRACT LINE ITEM NO.<br>X999                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                             |                                        | B. EXHIBIT<br>A                        |                | C. CATEGORY<br>TDP _____ TM _____ OTHER <u>x</u>   |         |            |  |
| D. SYSTEM/ITEM.<br>DORE3 IDIQ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |  |                                             |                                        | E. CONTRACT/PR NO.<br>HHM402-2X-D-00XX |                | F. CONTRACTOR<br>SEE P.1 OF CONTRACT               |         |            |  |
| 1. DATA ITEM NO.<br>A025                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |  | 2. TITLE OF DATA ITEM<br>Trip/Travel Report |                                        |                                        |                | 3. SUBTITLE<br>N/A                                 |         |            |  |
| 4. AUTHORITY (Data Acquisition Document No.)<br>DI-MISC-81943/T                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  |                                             | 5. CONTRACT REFERENCE<br>SOW section 5 |                                        |                | 6. REQUIRING OFFICE<br>DIA/ST                      |         |            |  |
| 7. DD 250 REQ<br>LT                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  | 9. DIST. STATEMENT<br>REQUIRED              |                                        | 10. FREQUENCY<br>ASREQ                 |                | 12. DATE OF FIRST<br>SUBMISSION<br>See Blk 16      |         |            |  |
| 8. APP CODE<br>A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |  | D                                           |                                        | 11. AS OF DATE<br>N/A                  |                | 13. DATE OF SUBSEQUENT<br>SUBMISSION<br>See Blk 16 |         |            |  |
| <b>16. REMARKS:</b><br>All data items shall be marked in accordance with the relevant security classification guides.<br><br>CDRL will be delivered electronically in a Microsoft Excel or Word template.<br><br>Block 4: The Data Item Description (DD Form 1664) is tailored as follows:<br>Contractor format is acceptable<br><br>Block 11: CDRL will be submitted NLT five (5) days after Temporary Duty Assignment (TDY) has been completed.<br><br>Block 14: Contractor reports shall be provided as directed to the addressees on the schedule as stated below. Reports that include any data that are classified can NOT be sent by e-mail from unclassified sites; COR & Contractor shall arrange an alternative.<br><br>E-mail addresses on distribution of unclassified reports:<br>COR: <a href="mailto:amy.wolf3@dodiis.mil">amy.wolf3@dodiis.mil</a><br>CO: <a href="mailto:willie.marbury@dodiis.mil">willie.marbury@dodiis.mil</a> |  |                                             |                                        | a. ADDRESSEE                           |                | b. COPIES                                          |         |            |  |
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| G. PREPARED BY<br>Mona Haddad                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |  |                                             | H. DATE<br>08/21/2025                  |                                        | I. APPROVED BY |                                                    | J. DATE |            |  |

[REDACTED]



**SECTION G**  
**CONTRACT ADMINISTRATION DATA**

G.1 252.204-7006 BILLING INSTRUCTIONS--COST VOUCHERS (MAY 2023)  
(Reference 252.204-7006)

G.2 52.216-32 TASK-ORDER AND DELIVERY-ORDER OMBUDSMAN (SEPT 2019)

(a) In accordance with 41 U.S.C. 4106(g), the Agency has designated the following task-order and delivery-order Ombudsman for this contract. The Ombudsman must review complaints from the Contractor concerning all task-order and delivery-order actions for this contract and ensure the Contractor is afforded a fair opportunity for consideration in the award of orders, consistent with the procedures in the contract.

TBD

(b) Consulting an ombudsman does not alter or postpone the timeline for any other process (e.g., protests).

(c) Before consulting with the Ombudsman, the Contractor is encouraged to first address complaints with the Contracting Officer for resolution. When requested by the Contractor, the Ombudsman may keep the identity of the concerned party or entity confidential, unless prohibited by law or agency procedure.

(End of clause)

[REDACTED]

## SECTION H

### SPECIAL CONTRACT REQUIREMENTS

#### H.1 5552.204-9000 CONTRACTOR PERSONNEL CLEARANCES - CONTRACT (DEC 2008)

- a. It shall be the responsibility of the contractor to optimize the use of currently cleared personnel in completing the requirements of this contract. In the event that the contractor requires additional personnel clearances, any delays incurred in the contract progress and/or schedule as a result of the time required to clear such personnel shall be the contractor's responsibility. Under no circumstances shall the Government recognize a claim for an equitable adjustment in the contract price and/or schedule as a result of any delay due to the failure to have properly cleared personnel.
- b. It is understood that the contractor will provide personnel as suitable replacements on a best efforts basis.

(End of Clause)

#### H.2 5552.204-9005 SECURITY REQUIREMENTS (OCT 2018)

- a. The contractor shall maintain and administer a security program in accordance with Industrial Security Manual DoD 5220.22-M and DIA Manual 50-14. Copies of these documents are available for review by contacting the contracting officer.
- b. Loss or suspension of required security clearance as set forth on the DD Form 254, "Contract Security Classification Specifications," would result in contractor's inability to perform in accordance with the terms and conditions of this contract. As a result of this failure to perform, the contractor is subject to default under the appropriate termination clause herein.
- c. The Government reserves the right to direct any contractor employee to be removed from performance, direct or indirect, whenever there is probable cause to believe, on the basis of all facts available, that such action is warranted in the interest of national security, whether or not the cause is deemed of sufficient severity to warrant action to terminate the contractor's or individual's security clearance. The Government also reserves the right to direct any contractor employee to be removed from performance, direct or indirect, for the period of time necessary to conduct any investigation of alleged misconduct which may in the opinion of the contracting officer jeopardize the security of the project.
- d. Military security requirements in the performance of this contract shall be maintained in accordance with the DD Form 254 listed in Section J. The highest classification involved in the performance of this contract is TS-SCI .
- e. The contractor will not use any electrical information processing equipment in his possession for the purpose of processing or transmitting classified information under this contract without the written permission of the contracting officer.

(End of Clause)

#### H.3 5552.209-9004 DISCLOSURE OF INFORMATION - CONTRACT (DEC 2008)

- a. DFARS 252.204-7000 and this clause shall govern any disclosure of information regarding this contract. In using information authorized by this clause, the contractor (i) shall not disclose any information concerning the sponsorship of this contract, or (ii) the nature of the Government's interest in and application of this subject matter of this contract unless this type of information is expressly allowed to be disclosed by paragraph (b) and/or (c) below, or by written approval of the cognizant contracting officer.
- b. The information listed below may be disclosed in proposals to United States Government Agencies in response to requests for past performance assessments: When this information is completed at time of contract award, the document shall be marked "FOR OFFICIAL USE ONLY." If any of the information that follows changes in your disclosure, the contracting officer must be notified in writing of the change.

1. Contract Number: (complete at award) TBD
2. Contract Type: (complete at award) TBD
3. Award Date: (complete at award) TBD
4. Government Contracting Activity: TBD

- [REDACTED]
5. Original Contract Value: (complete at award) TBD
  6. Current or Completed Contract Value: TBD  
(contractor may update) TBD
  7. Period of Performance: From:(complete at award) TBD  
To:(contractor may update) TBD
  8. Competitive/Noncompetitive/Follow-on  
(circle, underline or highlight appropriate description)
  9. Program Title: (complete at award) TBD
  10. Contract Effort Description (unclassified - as provided in solicitation  
package and completed as part of the award document)  
TBD  
TBD  
TBD
  11. Place of Performance: (complete at award) TBD
  12. Points of Contact/Phone Number: TBD
  13. Contracting Officer: TBD  
(complete at award) (contractor may update)
  14. Program Manager: TBD  
(complete at award) (contractor may update)

c. For additional disclosures which require specific prior approval by the contracting officer, once authorization to use any specific information has been approved by the contracting officer, the contractor is authorized to reuse such specific information without obtaining additional authorization from the contracting officer. The contractor shall maintain a log of the additional uses and submit a copy of the log to the contracting officer when each additional disclosure is made.

(End of Clause)

#### H.4 5552.209-9005 UNAUTHORIZED DISCLOSURE OF GOVERNMENT INFORMATION SYSTEMS (DEC 2008)

- a. The contractor is strictly prohibited from disclosing any data derived from Government Information Systems. This prohibition applies equally to extracts or summaries of such data, and includes oral, written or electronic media disclosures. The subject data include, but are not limited to, financial databases, program budget information databases, procurement information databases, and other informational databases. In limited circumstances, the contracting officer may authorize the contractor's disclosure of such information when disclosure is necessary to the successful completion of the contract. The contractor's unauthorized disclosure of Government Information Systems data could result in the disqualification, debarment, or suspension of the contractor. Such an unauthorized disclosure may also constitute a criminal violation of the fraud or information disclosure provisions of Title 18 of the United States Code. In addition, the unauthorized disclosure of information related to national defense may constitute a violation of the "espionage" provisions of Title 18 of the U.S. Code, Sections 793, 794, and/or 798, or Title 50 of the U.S. Code, Section 783.
- b. The contractor shall provide the COR a list of applicable employees prior to personnel gaining access to any Information System(s).
- c. Information Systems is defined as any telecommunications and/or computer-related equipment or interconnected system or subsystems of equipment that is used in the acquisition, storage, manipulation, management, movement, control, display, switching, interchange, transmitting, or receiving of voice and/or data, and includes software, firmware, and hardware.

(End of Clause)

Approved DRAFT

| <b>DEPARTMENT OF DEFENSE<br/>CONTRACT SECURITY CLASSIFICATION SPECIFICATION</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | OMB No. 0704-0567<br>OMB approval expires:<br>August 31, 2028                                                                       |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------|
| (The requirements of the National Industrial Security Program (NISP) apply to all security aspects of this effort involving classified information.)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                                                                                                     |
| <p>The public reporting burden for this collection of information, 0704-0567, is estimated to average 36 minutes per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing the burden, to the Department of Defense, Washington Headquarters Services, at <a href="mailto:whs.mc-alex.esd.mbx.dd-dod-information-collectons@mail.mil">whs.mc-alex.esd.mbx.dd-dod-information-collectons@mail.mil</a>. Respondents should be aware that notwithstanding any other provision of law, no person shall be subject to any penalty for failing to comply with a collection of information if it does not display a currently valid OMB control number.</p> <p style="text-align: center;"><b>RETURN COMPLETED FORM AS DIRECTED IN THE INSTRUCTIONS.</b></p> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                                                                                                     |
| <b>1. CLEARANCE AND SAFEGUARDING</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                                                                                                     |
| <b>a. LEVEL OF FACILITY SECURITY CLEARANCE (FCL) REQUIRED</b><br><i>(See Instructions)</i><br><br>Top Secret                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | <b>b. LEVEL OF SAFEGUARDING FOR CLASSIFIED INFORMATION/MATERIAL REQUIRED AT CONTRACTOR FACILITY</b><br><br>Top Secret                                                                                                                                                                                                                                                                                                                                                                                                                |                                                                                                                                     |
| <b>2. THIS SPECIFICATION IS FOR:</b> <i>(X and complete as applicable.)</i><br><br><input type="checkbox"/> <b>a. PRIME CONTRACT NUMBER</b> <i>(See instructions.)</i><br>HHM402<br><br><input type="checkbox"/> <b>b. SUBCONTRACT NUMBER</b><br><br><input type="checkbox"/> <b>c. SOLICITATION OR OTHER NUMBER DUE DATE</b> <i>(YYYYMMDD)</i><br>239-0001-26-Z                      20251001                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | <b>3. THIS SPECIFICATION IS:</b> <i>(X and complete as applicable.)</i><br><br><input type="checkbox"/> <b>a. ORIGINAL</b> <i>(Complete date in all cases.)</i> <b>DATE</b> <i>(YYYYMMDD)</i><br>20250820<br><br><input checked="" type="checkbox"/> <b>b. REVISED</b> <i>(Supersedes all previous specifications.)</i><br><b>REVISION NO.</b> <b>DATE</b> <i>(YYYYMMDD)</i><br>2                      20250929<br><br><input type="checkbox"/> <b>c. FINAL</b> <i>(Complete Item 5 in all cases.)</i> <b>DATE</b> <i>(YYYYMMDD)</i> |                                                                                                                                     |
| <b>4. IS THIS A FOLLOW-ON CONTRACT?</b> <input checked="" type="checkbox"/> No <input type="checkbox"/> Yes <i>If yes, complete the following:</i><br>Classified material received or generated under _____ <i>(Preceding Contract Number) is transferred to this follow-on contract.</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                                                                                                     |
| <b>5. IS THIS A FINAL DD FORM 254?</b> <input checked="" type="checkbox"/> No <input type="checkbox"/> Yes <i>If yes, complete the following:</i><br>In response to the contractor's request dated _____ , retention of the classified material is authorized for the period of: _____.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                                                                                                     |
| <b>6. CONTRACTOR</b> <i>(Include Commercial and Government Entity (CAGE) Code)</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                                                                                                     |
| <b>a. NAME, ADDRESS, AND ZIP CODE</b><br>TBD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | <b>b. CAGE CODE</b><br><br>TBD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | <b>c. COGNIZANT SECURITY OFFICE(S) (CSO)</b><br><i>(Name, Address, ZIP Code, Telephone required; Email Address optional)</i><br>TBD |
| <b>7. SUBCONTRACTOR(S)</b> <i>(Click button if you choose to add or list the subcontractors – but will still require a separate DD Form 254 issued by a prime contractor to each subcontractor)</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                                                                                                     |
| <b>a. NAME, ADDRESS, AND ZIP CODE</b><br>TBD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | <b>b. CAGE CODE</b><br><br>TBD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | <b>c. COGNIZANT SECURITY OFFICE(S) (CSO)</b><br><i>(Name, Address, ZIP Code, Telephone required; Email Address optional)</i><br>TBD |
| <b>8. ACTUAL PERFORMANCE</b> <i>(Click button to add more locations.)</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                                                                                                     |
| <b>a. LOCATION(S)</b> <i>(For actual performance, see instructions.)</i><br><br>See Security Continuation Pages, 8a/11a                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | <b>b. CAGE CODE</b><br><i>(If applicable, see Instructions.)</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | <b>c. COGNIZANT SECURITY OFFICE(S) (CSO)</b><br><i>(Name, Address, ZIP Code, Telephone required; Email Address optional)</i>        |
| <b>9. GENERAL UNCLASSIFIED DESCRIPTION OF THIS PROCUREMENT</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                                                                                                     |
| <i>(U) Conduct capability gap analyses, rapid prototyping, test &amp; evaluation, planning, preparing for, and enabling technical collection operations, advanced technical exploitation of multi-source data utilizing Operation and Maintenance (O&amp;M), testing/assessments of prototype technologies, procurement (PROC), and Research and Development (RDT&amp;E) efforts.</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                                                                                                     |



**10. CONTRACTOR WILL REQUIRE ACCESS TO:** (X all that apply. Provide details in Blocks 13 or 14 as set forth in the instructions.)

- |                                                                                                                                                       |                                                                                                         |
|-------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------|
| <input checked="" type="checkbox"/> a. COMMUNICATIONS SECURITY (COMSEC) INFORMATION                                                                   | <input checked="" type="checkbox"/> f. SPECIAL ACCESS PROGRAM (SAP) INFORMATION                         |
| <input checked="" type="checkbox"/> b. RESTRICTED DATA                                                                                                | <input checked="" type="checkbox"/> g. NORTH ATLANTIC TREATY ORGANIZATION (NATO) INFORMATION            |
| <input checked="" type="checkbox"/> c. CRITICAL NUCLEAR WEAPON DESIGN INFORMATION (CNWDI)<br>(If CNWDI applies, RESTRICTED DATA must also be marked.) | <input checked="" type="checkbox"/> h. FOREIGN GOVERNMENT INFORMATION                                   |
| <input checked="" type="checkbox"/> d. FORMERLY RESTRICTED DATA                                                                                       | <input checked="" type="checkbox"/> i. ALTERNATIVE COMPENSATORY CONTROL MEASURES (ACCM) INFORMATION     |
| <input checked="" type="checkbox"/> e. NATIONAL INTELLIGENCE INFORMATION:                                                                             | <input checked="" type="checkbox"/> j. CONTROLLED UNCLASSIFIED INFORMATION (CUI)<br>(See instructions.) |
| <input checked="" type="checkbox"/> (1) Sensitive Compartmented Information (SCI)                                                                     | <input checked="" type="checkbox"/> k. OTHER (Specify) (See instructions.)                              |
| <input checked="" type="checkbox"/> (2) Non-SCI                                                                                                       | See Security Continuation Pages                                                                         |

**11. IN PERFORMING THIS CONTRACT, THE CONTRACTOR WILL:** (X all that apply. See instructions. Provide details in Blocks 13 or 14 as set forth in the instructions.)

- |                                                                                                                                                                                                                                           |                                                                                                                                                                                                                                                |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <input type="checkbox"/> a. HAVE ACCESS TO CLASSIFIED INFORMATION ONLY AT ANOTHER CONTRACTOR'S FACILITY OR A GOVERNMENT ACTIVITY<br>(Applicable only if there is no access or storage required at contractor facility. See instructions.) | <input checked="" type="checkbox"/> g. BE AUTHORIZED TO USE THE SERVICES OF DEFENSE TECHNICAL INFORMATION CENTER (DTIC) OR OTHER SECONDARY DISTRIBUTION CENTER                                                                                 |
| <input type="checkbox"/> b. RECEIVE AND STORE CLASSIFIED DOCUMENTS ONLY                                                                                                                                                                   | <input checked="" type="checkbox"/> h. REQUIRE A COMSEC ACCOUNT                                                                                                                                                                                |
| <input checked="" type="checkbox"/> c. RECEIVE, STORE, AND GENERATE CLASSIFIED INFORMATION OR MATERIAL                                                                                                                                    | <input checked="" type="checkbox"/> i. HAVE A TEMPEST REQUIREMENT                                                                                                                                                                              |
| <input checked="" type="checkbox"/> d. FABRICATE, MODIFY, OR STORE CLASSIFIED HARDWARE                                                                                                                                                    | <input checked="" type="checkbox"/> j. HAVE OPERATIONS SECURITY (OPSEC) REQUIREMENTS                                                                                                                                                           |
| <input type="checkbox"/> e. PERFORM SERVICES ONLY                                                                                                                                                                                         | <input checked="" type="checkbox"/> k. BE AUTHORIZED TO USE DEFENSE COURIER SERVICE                                                                                                                                                            |
| <input checked="" type="checkbox"/> f. HAVE ACCESS TO U.S. CLASSIFIED INFORMATION OUTSIDE THE U.S., PUERTO RICO, U.S. POSSESSIONS AND TRUST TERRITORIES                                                                                   | <input checked="" type="checkbox"/> l. RECEIVE, STORE, OR GENERATE CONTROLLED UNCLASSIFIED INFORMATION (CUI).<br>(DoD Components: refer to DoDI 5200.48, only for specific CUI protection requirements. Non-DoD Components: see instructions.) |
|                                                                                                                                                                                                                                           | <input checked="" type="checkbox"/> m. OTHER (Specify) (See instructions.)                                                                                                                                                                     |
|                                                                                                                                                                                                                                           | See Security Continuation Pages                                                                                                                                                                                                                |

**12. PUBLIC RELEASE**

Any information (classified or unclassified) pertaining to this contract shall not be released for public dissemination except as provided by the National Industrial Security Program Operating Manual (NISPOM) or unless it has been approved for public release by appropriate U.S. Government authority. Proposed public releases shall be submitted for review and approval prior to release to the appropriate government approval authority identified here with at least office and phone contact information and if available, an e-mail address. (See instructions)

- |                                                 |                                                             |
|-------------------------------------------------|-------------------------------------------------------------|
| <input type="checkbox"/> DIRECT<br>See Block 13 | <input checked="" type="checkbox"/> THROUGH (Specify below) |
|-------------------------------------------------|-------------------------------------------------------------|

**Public Release Authority:**

Contracting Officer Representative: Amy Wolf/321-494-2875/  
amy.wolf3@dodis.mil

**13. SECURITY GUIDANCE**

The security classification guidance for classified information needed for this effort is identified below. If any difficulty is encountered in applying this guidance or if any other contributing factor indicates a need for changes in this guidance, the contractor is authorized and encouraged to provide recommended changes; to challenge the guidance or the classification assigned to any information or material furnished or generated under this contract; and to submit any questions for interpretation of this guidance to the official identified below. Pending final decision, the information involved shall be handled and protected at the highest level of classification assigned or recommended.

(Fill in as appropriate for the classified effort. Attach, or forward under separate correspondence, any documents/guides/extracts referenced herein. The field will expand as text is added. When removing any expanded text area, use delete key or backspace key, then click out of the text field for it to shrink after the text has been deleted. Also allows for up to 6 internal reviewers to digitally sign. See instructions for additional guidance or use of the fillable PDF.)

**Period of Performance Dates:**

Base Year: Begin Date YYYY/MM/DD– End Date YYYY/MM/DD  
Option Year 1: Begin Date YYYY/MM/DD– End Date YYYY/MM/DD  
Option Year 2: Begin Date YYYY/MM/DD– End Date YYYY/MM/DD  
Option Year 3: Begin Date YYYY/MM/DD– End Date YYYY/MM/DD  
Extension: Begin Date YYYY/MM/DD– End Date YYYY/MM/DD

See Security Continuation Pages

List of Attachments (All Files Must be attached Prior to Signing, i.e., for any digital signature on the form)

| NAME & TITLE OF REVIEWING OFFICIAL                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                        | SIGNATURE                                                                                                                                                                |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Amy Wolf, Contracting Officers<br>Representative (COR)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                                                                                                        |                                                                                                                                                                          |
| <b>14. ADDITIONAL SECURITY REQUIREMENTS</b><br>Requirements, in addition to NISPOM requirements for classified information, are established for this contract.<br><input type="checkbox"/> No <input checked="" type="checkbox"/> Yes <i>If Yes, identify the pertinent contractual clauses in the contract document itself, or provide an appropriate statement which identifies the additional requirements. Provide a copy of the requirements to the CSO. The field will expand as text is added or you can also use item 13. When removing any expanded text area, use delete key or backspace key, then click out of the text field for it to shrink after the text has been deleted.<br/>(See instructions for additional guidance or use of the fillable PDF.)</i><br><br>Access to intelligence information requires a special briefing and a FINAL U.S. Government clearance at appropriate level for access. Foreign nationals are prohibited from access to any classified information unless sanctioned by an international or cooperative program agreement. |                                                                                                                                        |                                                                                                                                                                          |
| <b>15. INSPECTIONS</b><br>Elements of this contract are outside the inspection responsibility of the CSO.<br><input type="checkbox"/> No <input checked="" type="checkbox"/> Yes <i>If Yes, explain and identify specific areas and government activity responsible for inspections. The field will expand as text is added or you can also use item 13. When removing any expanded text area, use delete key or backspace key, then click out of the text field for it to shrink after the text has been deleted.<br/>(See instructions for additional guidance or use of the fillable PDF.)</i><br><br>DIA has exclusive security responsibility for all SCI classified material released to or developed under the contract. The Defense Counterintelligence and Security Agency (DCSA) is relieved of security inspection responsibility for all such material. DCSA retains oversight/inspection responsibilities for facility clearance requirements and collateral information outside of DIA facilities.                                                           |                                                                                                                                        |                                                                                                                                                                          |
| <b>16. GOVERNMENT CONTRACTING ACTIVITY (GCA) AND POINT OF CONTACT (POC)</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                                                                                                                                        |                                                                                                                                                                          |
| <b>a. GCA NAME</b><br><br>Virginia Contracting Activity                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | <b>c. ADDRESS (Include ZIP Code)</b><br>Department of Defense<br>7400 Pentagon<br>ATTN: DIA/COR/ATI1C<br>Washington, DC 20310-7400     | <b>d. POC NAME</b><br>Amy Wolf<br><b>e. POC TELEPHONE (Include Area Code)</b><br>+1 (321) 494-2875<br><b>f. EMAIL ADDRESS (See Instructions)</b><br>amy.wolf3@dodiis.mil |
| <b>b. ACTIVITY ADDRESS CODE (AAC) OF THE CONTRACTING OFFICE (See Instructions)</b><br><br>HHM402                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                                                                                                                        |                                                                                                                                                                          |
| <b>17. CERTIFICATION AND SIGNATURES</b><br>Security requirements stated herein are complete and adequate for safeguarding the classified information to be released or generated under this classified effort. All questions shall be referred to the official named below. Upon digitally signing Item 17h, no changes can be made as the form will be locked.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                        |                                                                                                                                                                          |
| <b>a. TYPED NAME OF CERTIFYING OFFICIAL (Last, First, Middle Initial)</b><br>(See Instructions)<br>Bullock, Renee, M                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | <b>d. AAC OF THE CONTRACTING OFFICE</b><br>(See Instructions)<br>HHM402                                                                | <b>h. SIGNATURE</b>                                                                                                                                                      |
| <b>b. TITLE</b><br>Industrial Security Specialist                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | <b>e. CAGE CODE OF THE PRIME CONTRACTOR</b><br>(See Instructions.)<br>TBD                                                              |                                                                                                                                                                          |
| <b>c. ADDRESS (Include ZIP Code)</b><br>Department of Defense<br>Attn: 7400 Pentagon, DIA/SEC-3A Industrial Security<br>Washington, DC 20301-7400                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | <b>f. TELEPHONE (Include Area Code)</b><br>+1 (703) 735-2867<br><b>g. EMAIL ADDRESS (See Instructions)</b><br>renee.bullock@dodiis.mil | <b>i. DATE SIGNED</b><br>(See Instructions)                                                                                                                              |
| <b>18. REQUIRED DISTRIBUTION BY THE CERTIFYING OFFICIAL</b><br><input checked="" type="checkbox"/> a. CONTRACTOR <input type="checkbox"/> f. OTHER AS NECESSARY (If more room is needed, continue in Item 13 or on additional page if necessary.)<br><input type="checkbox"/> b. SUBCONTRACTOR<br><input checked="" type="checkbox"/> c. COGNIZANT SECURITY OFFICE FOR PRIME AND SUBCONTRACTOR<br><input type="checkbox"/> d. U.S. ACTIVITY RESPONSIBLE FOR OVERSEAS SECURITY ADMINISTRATION<br><input checked="" type="checkbox"/> e. ADMINISTRATIVE CONTRACTING OFFICER                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                        |                                                                                                                                                                          |



(a) Definitions. As used in this clause-

Controlled unclassified information means information the Government creates or possesses, or information an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls (32 CFR 2002.4(h)).

Current means--

(1) With regard to Conditional Cybersecurity Maturity Model Certification (CMMC) Status--

(i) Not older than 180 days for Conditional Level 2 (Self) assessments and Conditional Level 2 (certified third-party assessment organization (C3PAO)) assessments, with--

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance by an affirming official (see 32 CFR 170.4); and

(ii) Not older than 180 days for Conditional Level 3 (Defense Industrial Base Cybersecurity Assessment Center (DIBCAC)) assessments, with--

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance by an affirming official;

(2) With regard to Final CMMC Status--

(i) Not older than 1 year for Final Level 1 (Self), with--

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.15); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official;

(ii) Not older than 3 years for Final Level 2 (Self) assessments and Final Level 2 (C3PAO) assessments, with--

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(iii) Not older than 3 years for Final Level 3 (DIBCAC) assessments, with--

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(3) With regard to affirmation of continuous compliance (32 CFR 170.22), not older than 1 year with no changes in compliance with the requirements at 32 CFR part 170.

Cybersecurity Maturity Model Certification (CMMC) status means the result of meeting or exceeding the minimum required score for the corresponding assessment. The potential statuses are as follows:

(1) Final Level 1 (Self).

(2) Conditional Level 2 (Self).

(3) Final Level 2 (Self).

(4) Conditional Level 2 (C3PAO).

(5) Final Level 2 (C3PAO).

(6) Conditional Level 3 (DIBCAC).

(7) Final Level 3 (DIBCAC).

Cybersecurity Maturity Model Certification unique identifier (CMMC UID) means 10 alpha-numeric characters assigned to each CMMC assessment and reflected in the Supplier Performance Risk System (SPRS) for each contractor information system.

Federal contract information (FCI) means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government. It does not include information provided by the Government to the public, such as on public websites, or simple transactional information, such as information necessary to process payments.

(d) Requirements. The Contractor shall--

Plan of action and milestones means a document that identifies tasks to be accomplished. It details resources required to accomplish the elements of the plan, any milestones in meeting the tasks, and scheduled completion dates for the milestones, as defined in National Institute of Standards and Technology Special Publication 800-115 (32 CFR 170.21).

(b) Framework. The Cybersecurity Maturity Model Certification (CMMC) is a framework for assessing a contractor's compliance with applicable information security protections (see 32 CFR part 170).

(c) Duplication. The CMMC assessments will not duplicate efforts from any other comparable DoD assessment, except for rare circumstances when a reassessment may be necessary, for example, when there are indications of issues with cybersecurity and/or compliance with CMMC requirements.

(1) (i) Have and maintain for the duration of the contract a current CMMC status at the following CMMC level, or higher: **TBD at the Task Order Level 3**[Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC)] for all information systems used in performance of the contract, task order, or delivery order that process, store, or transmit FCI or CUI; and

(ii) Consult 32 CFR 170.23 related to the flowdown of the CMMC requirements, and flow down the correct CMMC level to subcontracts and other contractual instruments;

(2) Only process, store, or transmit FCI or CUI on contractor information systems that have a CMMC status at the CMMC level required in paragraph (d) (1) of this clause, or higher;

(3) Complete on an annual basis, and maintain as current, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required in paragraph (d) (1) of this clause in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) for each CMMC UID applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract;

(4) Ensure all subcontractors and suppliers complete prior to subcontract award, and maintain on an annual basis, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required for the subcontract or other contractual instrument for each of the subcontractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the subcontract; and

(5) If the Contractor has a CMMC Status of Conditional, successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(e) Reporting. The Contractor shall--

(1) Submit to the Contracting Officer--

(i) The CMMC UID(s) issued by SPRS for contractor information systems that will process, store, or transmit FCI or CUI during performance of the contract; and

(f) Subcontracts. The Contractor shall--

(ii) Any changes in the CMMC UIDs generated in SPRS throughout the life of the contract, task order, or delivery order, if applicable;

(2) Enter into SPRS the results of a current self-assessment for each CMMC UID, not covered by a C3PAO assessment or DIBCAC assessment, applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract; and

(3) Complete in SPRS on an annual basis and maintain as current an affirmation of continuous compliance by the affirming official (see 32 CFR 170.4) for each self-assessment, C3PAO assessment, or DIBCAC assessment required under the contract in SPRS.

(1) Insert the substance of this clause, including this paragraph

(f) and excluding paragraph (e) (1), in subcontracts and other contractual instruments, including those for the acquisition of commercial products and commercial services, excluding commercially available off-the-shelf items, if the subcontract or other contractual instrument will contain a requirement to process, store, or transmit FCI or CUI; and



[REDACTED]

(2) Prior to awarding a subcontract or other contractual instrument, ensure that the subcontractor has a current CMMC certificate or current CMMC status at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor based on the requirements at 32 CFR 170.23.

(End Of Clause)

[REDACTED]

**SECTION I**  
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- I.1 52.202-1 DEFINITIONS (JUN 2020)  
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- I.2 52.203-3 GRATUITIES (APR 1984)  
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- I.3 52.203-5 COVENANT AGAINST CONTINGENT FEES (MAY 2014)  
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- I.4 52.203-6 RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT (JUN 2020)  
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- I.5 52.203-6 I RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT (JUN 2020)-- ALTERNATE I (NOV 2021)  
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- I.6 52.203-7 ANTI-KICKBACK PROCEDURES (JUN 2020)  
(Reference 52.203-7)
- I.7 52.203-8 CANCELLATION, RESCISSION, AND RECOVERY OF FUNDS FOR ILLEGAL OR IMPROPER ACTIVITY (MAY 2014)  
(Reference 52.203-8)
- I.8 52.203-10 PRICE OR FEE ADJUSTMENT FOR ILLEGAL OR IMPROPER ACTIVITY (MAY 2014)  
(Reference 52.203-10)
- I.9 52.203-12 LIMITATION ON PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS (JUN 2020)  
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- I.10 52.203-16 PREVENTING PERSONAL CONFLICTS OF INTEREST (JUN 2020)  
(Reference 52.203-16)
- I.11 52.203-17 CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS (NOV 2023)  
(Reference 52.203-17)
- I.12 52.203-19 PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS (JAN 2017)  
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- I.13 52.204-19 INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS (DEC 2014)  
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- I.14 52.204-25 PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)  
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- I.15 52.209-6 PROTECTING THE GOVERNMENT`S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED (JAN 2025)  
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- I.16 52.209-9 UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)  
(Reference 52.209-9)
- I.17 52.209-10 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS (NOV 2015)  
(Reference 52.209-10)
- I.18 52.210-1 MARKET RESEARCH (NOV 2021)  
(Reference 52.210-1)

- I.19 52.215-8 ORDER OF PRECEDENCE--UNIFORM CONTRACT FORMAT (OCT 1997)  
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- I.20 52.215-12 I SUBCONTRACTOR CERTIFIED COST OR PRICING DATA (JUN 2020) -- ALTERNATE I (OCT 2025)  
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- I.21 52.215-13 I SUBCONTRACTOR CERTIFIED COST OR PRICING DATA--MODIFICATIONS (JUN 2020) -- ALTERNATE 1  
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- I.22 52.215-14 INTEGRITY OF UNIT PRICES (NOV 2021)  
(Reference 52.215-14)
- I.23 52.215-17 WAIVER OF FACILITIES CAPITAL COST OF MONEY (OCT 1997)  
(Reference 52.215-17)
- I.24 52.215-23 LIMITATIONS ON PASS-THROUGH CHARGES (JUN 2020)  
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- I.25 52.215-23 I LIMITATIONS ON PASS-THROUGH CHARGES (JUN 2020) ALTERNATE I (OCT 2010)  
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- I.26 52.216-8 FIXED FEE (JUN 2011)  
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- I.27 52.216-26 PAYMENTS OF ALLOWABLE COSTS BEFORE DEFINITIZATION (DEC 2002)  
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- I.28 52.217-2 CANCELLATION UNDER MULTI-YEAR CONTRACTS (OCT 1997)  
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- I.29 52.219-4 NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (OCT 2022)  
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- I.30 52.219-8 UTILIZATION OF SMALL BUSINESS CONCERNS (JAN 2025)  
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- I.31 52.219-16 LIQUIDATED DAMAGES--SUBCONTRACTING PLAN (SEP 2021)  
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- I.32 52.222-3 CONVICT LABOR (JUN 2003)  
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- I.33 52.222-35 EQUAL OPPORTUNITY FOR VETERANS. (JUN 2020)  
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- I.34 52.222-37 EMPLOYMENT REPORTS ON VETERANS (JUN 2020)  
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- I.35 52.222-40 NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT (DEC 2010)  
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- I.36 52.222-50 COMBATING TRAFFICKING IN PERSONS (OCT 2025)  
(Reference 52.222-50)
- I.37 52.222-50 I COMBATING TRAFFICKING IN PERSONS (OCT 2025)-- ALTERNATE I (MAR 2015)

[REDACTED]

(Reference 52.222-50 I)

- I.38 52.222-54 EMPLOYMENT ELIGIBILITY VERIFICATION (JAN 2025)  
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- I.39 52.223-5 POLLUTION PREVENTION AND RIGHT-TO-KNOW INFORMATION (MAY 2024)  
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- I.40 52.223-23 SUSTAINABLE PRODUCTS AND SERVICES (MAY 2024)  
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- I.41 52.224-1 PRIVACY ACT NOTIFICATION (APR 1984)  
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- I.42 52.224-2 PRIVACY ACT (APR 1984)  
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- I.43 52.226-7 DRUG-FREE WORKPLACE (MAY 2024)  
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- I.44 52.226-8 ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING (MAY 2024)  
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- I.45 52.227-1 AUTHORIZATION AND CONSENT (JUN 2020)  
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- I.46 52.227-16 ADDITIONAL DATA REQUIREMENTS (JUN 1987)  
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- I.47 52.228-4 WORKERS` COMPENSATION AND WAR-HAZARD INSURANCE OVERSEAS (APR 1984)  
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- I.48 52.228-5 INSURANCE--WORK ON A GOVERNMENT INSTALLATION (JAN 1997)  
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- I.49 52.228-7 INSURANCE--LIABILITY TO THIRD PERSONS (MAR 1996)  
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- I.50 52.229-11 Tax on Certain Foreign Procurements--Notice and Representation (JUN 2020)  
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- I.51 52.229-12 TAX ON CERTAIN FOREIGN PROCUREMENTS (FEB 2021)  
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- I.52 52.232-2 PAYMENTS UNDER FIXED-PRICE RESEARCH AND DEVELOPMENT CONTRACTS (APR 1984)  
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- I.53 52.232-8 DISCOUNTS FOR PROMPT PAYMENT (FEB 2002)  
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- I.54 52.232-9 LIMITATION ON WITHHOLDING OF PAYMENTS (APR 1984)  
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- I.55 52.232-17 INTEREST (MAY 2014)  
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- I.56 52.232-18 AVAILABILITY OF FUNDS (APR 1984)

[REDACTED]

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- I.57 52.232-20 LIMITATION OF COST (APR 1984)  
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- I.58 52.232-22 LIMITATION OF FUNDS (APR 1984)  
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- I.59 52.232-23 ASSIGNMENT OF CLAIMS (MAY 2014)  
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- I.60 52.232-37 MULTIPLE PAYMENT ARRANGEMENTS (MAY 1999)  
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- I.61 52.232-39 UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS (JUNE 2013)  
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- I.62 52.232-40 PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS (MAR 2023)  
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- I.63 52.233-1 DISPUTES (MAY 2014)  
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- I.64 52.233-3 PROTEST AFTER AWARD (AUG 1996)  
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- I.65 52.233-3 I PROTEST AFTER AWARD (AUG 1996)--ALTERNATE I (JUN 1985)  
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- I.66 52.233-4 APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM (OCT 2004)  
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- I.67 52.237-2 PROTECTION OF GOVERNMENT BUILDINGS, EQUIPMENT, AND VEGETATION (APR 1984)  
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- I.68 52.240-1 PROHIBITION ON UNMANNED AIRCRAFT SYSTEMS MANUFACTURED OR ASSEMBLED BY AMERICAN SECURITY  
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- I.69 52.242-1 NOTICE OF INTENT TO DISALLOW COSTS (APR 1984)  
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- I.70 52.242-3 PENALTIES FOR UNALLOWABLE COSTS (DEC 2022)  
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- I.71 52.242-5 PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS (JAN 2017)  
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- I.72 52.242-13 BANKRUPTCY (JUL 1995)  
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- I.73 52.243-1 CHANGES--FIXED-PRICE (AUG 1987)  
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- I.74 52.243-3 CHANGES--TIME-AND-MATERIALS OR LABOR-HOURS (SEP 2000)  
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- I.75 52.244-5 COMPETITION IN SUBCONTRACTING (AUG 2024)  
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- I.76 52.244-6 SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025)  
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- I.77 52.245-1 GOVERNMENT PROPERTY (SEP 2021)  
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- I.78 52.245-9 USE AND CHARGES (APR 2012)  
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- I.79 52.249-8 DEFAULT (FIXED-PRICE SUPPLY AND SERVICE) (APR 1984)  
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- I.80 52.249-14 EXCUSABLE DELAYS (APR 1984)  
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- I.81 52.253-1 COMPUTER GENERATED FORMS (JAN 1991)  
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- I.82 252.201-7000 CONTRACTING OFFICER`s REPRESENTATIVE (DEC 1991)  
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- I.83 252.203-7000 REQUIREMENTS RELATING TO COMPENSATION OF FORMER DOD OFFICIALS (SEP 2011)  
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- I.84 252.203-7001 PROHIBITION ON PERSONS CONVICTED OF FRAUD OR OTHER DEFENSE-CONTRACT-RELATED FELONIES  
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- I.85 252.203-7002 REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS (DEC 2022)  
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- I.86 252.203-7004 DISPLAY OF HOTLINE POSTERS (JAN 2023)  
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- I.87 252.204-7000 DISCLOSURE OF INFORMATION (OCT 2016)  
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- I.88 252.204-7003 CONTROL OF GOVERNMENT PERSONNEL WORK PRODUCT (APR 1992)  
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- I.89 252.204-7004 ANTITERRORISM AWARENESS TRAINING FOR CONTRACTORS (JAN 2023)  
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- I.90 252.204-7009 LIMITATIONS ON THE USE OR DISCLOSURE OF THIRD-PARTY CONTRACTOR REPORTED CYBER INCIDENT  
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- I.91 252.204-7012 SAFEGUARDING COVERED DEFENSE INFORMATION AND CYBER INCIDENT REPORTING (MAY 2024)  
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- I.92 252.204-7014 LIMITATIONS ON THE USE OR DISCLOSURE OF INFORMATION BY LITIGATION SUPPORT CONTRACTORS  
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- I.93 252.204-7015 NOTICE OF AUTHORIZED DISCLOSURE OF INFORMATION FOR LITIGATION SUPPORT (JAN 2023)

[REDACTED]

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I.94 252.204-7020 NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS (NOV 2023)  
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I.95 252.204-7021 CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL  
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I.96 252.204-7022 EXPEDITING CONTRACT CLOSEOUT (MAY 2021)  
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I.97 252.204-7023 I REPORTING REQUIREMENTS FOR CONTRACTED SERVICES (JUL 2021)--ALTERNATE I (JUL 2021)  
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I.98 252.205-7000 PROVISION OF INFORMATION TO COOPERATIVE AGREEMENT HOLDERS (OCT 2024)  
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I.99 252.209-7004 SUBCONTRACTING WITH FIRMS THAT ARE OWNED OR CONTROLLED BY THE GOVERNMENT OF A  
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I.100 252.209-7009 ORGANIZATIONAL CONFLICT OF INTEREST--MAJOR DEFENSE ACQUISITION PROGRAM (MAY 2019)  
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I.101 252.211-7008 USE OF GOVERNMENT-ASSIGNED SERIAL NUMBERS (SEP 2010)  
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I.102 252.215-7002 COST ESTIMATING SYSTEM REQUIREMENTS (JAN 2025)  
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I.103 252.215-7014 EXCEPTION FROM CERTIFIED COST OR PRICING DATA REQUIREMENTS FOR FOREIGN MILITARY SALES  
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I.104 252.216-7002 ALTERNATE A, TIME-AND-MATERIALS/LABOR-HOUR PROPOSAL REQUIREMENTS -- OTHER THAN  
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I.105 252.216-7009 ALLOWABILITY OF LEGAL COSTS INCURRED IN CONNECTION WITH A WHISTLEBLOWER PROCEEDING  
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I.106 252.216-7010 POSTAWARD DEBRIEFINGS FOR TASK ORDERS AND DELIVERY ORDERS (OCT 2025)  
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I.108 252.219-7003 SMALL BUSINESS SUBCONTRACTING PLAN (DOD CONTRACTS)--BASIC (DEC 2019)  
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I.109 252.219-7003 I SMALL BUSINESS SUBCONTRACTING PLAN (DOD CONTRACTS) (DEC 2019)--ALTERNATE I (DEC  
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I.110 252.219-7004 SMALL BUSINESS SUBCONTRACTING PLAN (TEST PROGRAM) (DEC 2022)  
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I.112 252.225-7004 REPORT OF INTENDED PERFORMANCE OUTSIDE THE UNITED STATES AND CANADA -- SUBMISSION  
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I.113 252.225-7013 DUTY-FREE ENTRY (AUG 2025)  
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I.115 252.225-7048 EXPORT-CONTROLLED ITEMS (JUNE 2013)  
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I.125 252.227-7027 DEFERRED ORDERING OF TECHNICAL DATA OR COMPUTER SOFTWARE (APR 1988)  
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I.126 252.227-7028 TECHNICAL DATA OR COMPUTER SOFTWARE PREVIOUSLY DELIVERED TO THE GOVERNMENT (JAN 2025)  
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I.127 252.227-7032 RIGHTS IN TECHNICAL DATA AND COMPUTER SOFTWARE (FOREIGN) (JUN 1975)  
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I.128 252.227-7037 VALIDATION OF RESTRICTIVE MARKINGS ON TECHNICAL DATA (JAN 2025)  
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I.129 252.227-7038 II PATENT RIGHTS--OWNERSHIP BY THE CONTRACTOR (LARGE BUSINESS) (DEC 2007)--ALTERNATE  
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I.130 252.227-7039 PATENTS--REPORTING OF SUBJECT INVENTIONS (APR 1990)  
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I.131 252.228-7003 CAPTURE AND DETENTION (DEC 1991)  
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I.132 252.228-7007 PUBLIC AIRCRAFT AND STATE AIRCRAFT OPERATIONS--LIABILITY (MAR 2023)  
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I.133 252.229-7014 FULL EXEMPTION FROM TWO-PERCENT EXCISE TAX ON CERTAIN FOREIGN PROCUREMENTS (OCT 2022)  
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I.134 252.232-7003 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS AND RECEIVING REPORTS (DEC 2018)  
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I.135 252.232-7008 ASSIGNMENT OF CLAIMS (OVERSEAS) (JUN 1997)  
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I.136 252.232-7010 LEVIES ON CONTRACT PAYMENTS (DEC 2006)  
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I.137 252.235-7000 INDEMNIFICATION UNDER 10 U.S.C. 3861--FIXED PRICE (DEC 2022)  
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I.138 252.235-7001 INDEMNIFICATION UNDER 10 U.S.C. 3861--COST REIMBURSEMENT (DEC 2022)  
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I.139 252.235-7003 FREQUENCY AUTHORIZATION - BASIC (MAR 2014)  
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I.140 252.235-7010 ACKNOWLEDGMENT OF SUPPORT AND DISCLAIMER (MAY 1995)  
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I.142 252.237-7010 PROHIBITION ON INTERROGATION OF DETAINEES BY CONTRACTOR PERSONNEL (JAN 2023)  
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I.145 252.239-7001 INFORMATION ASSURANCE CONTRACTOR TRAINING AND CERTIFICATION (JAN 2008)  
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I.146 252.239-7016 TELECOMMUNICATIONS SECURITY EQUIPMENT, DEVICES, TECHNIQUES, AND SERVICES (DEC 1991)  
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[REDACTED]

I.147 252.239-7017 NOTICE OF SUPPLY CHAIN RISK (DEC 2022)  
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I.148 252.239-7018 SUPPLY CHAIN RISK (DEC 2022)  
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I.149 252.241-7001 GOVERNMENT ACCESS (DEC 1991)  
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I.150 252.242-7004 MATERIAL MANAGEMENT AND ACCOUNTING SYSTEM (JAN 2025)  
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I.151 252.242-7005 CONTRACTOR BUSINESS SYSTEMS (JAN 2025)  
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I.152 252.242-7006 ACCOUNTING SYSTEM ADMINISTRATION (JAN 2025)  
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I.153 252.243-7001 PRICING OF CONTRACT MODIFICATIONS (DEC 1991)  
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I.154 252.243-7002 REQUESTS FOR EQUITABLE ADJUSTMENT (DEC 2022)  
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I.155 252.244-7000 SUBCONTRACTS FOR COMMERCIAL PRODUCTS OR COMMERCIAL SERVICES (NOV 2023)  
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I.156 252.244-7001 CONTRACTOR PURCHASING SYSTEM ADMINISTRATION - BASIC (JAN 2025)  
(Reference 252.244-7001)

I.157 252.245-7003 CONTRACTOR PROPERTY MANAGEMENT SYSTEM ADMINISTRATION (JAN 2025)  
(Reference 252.245-7003)

I.158 252.245-7005 MANAGEMENT AND REPORTING OF GOVERNMENT PROPERTY (JAN 2024)  
(Reference 252.245-7005)

I.159 252.246-7007 CONTRACTOR COUNTERFEIT ELECTRONIC PART DETECTION AND AVOIDANCE SYSTEM (JAN 2023)  
(Reference 252.246-7007)

I.160 252.246-7008 SOURCES OF ELECTRONIC PARTS (JAN 2023)  
(Reference 252.246-7008)

I.161 252.247-7023 TRANSPORTATION OF SUPPLIES BY SEA--BASIC (OCT 2024)  
(Reference 252.247-7023)

I.162 252.270-7002 PILOT PROGRAM TO INCENTIVIZE CONTRACTING WITH EMPLOYEE-OWNED BUSINESSES (NOV 2024)  
(Reference 252.270-7002)

I.163 5552.219-9001 Total Contract Value Subcontracting Goals and Reporting (AUG 2024)  
(Reference 5552.219-9001)

I.164 5552.245-9003 PROPERTY ADMINISTRATOR (JUL 2020)  
(Reference 5552.245-9003)

I.165 52.204-9 PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL (JAN 2011)

(a) The Contractor shall comply with agency personal identity verification procedures identified in the contract that implement Homeland Security Presidential Directive-12 (HSPD-12), Office of Management and Budget (OMB) guidance M-05-24, as amended, and Federal Information Processing Standards Publication (FIPS PUB) Number 201, as amended.

(b) The Contractor shall account for all forms of Government-provided identification issued to the Contractor employees in connection with performance under this contract. The Contractor shall return such identification to the issuing agency at the earliest of any of the following, unless otherwise determined by the Government:

- (1) When no longer needed for contract performance.
- (2) Upon completion of the Contractor employee's employment.
- (3) Upon contract completion or termination.

(c) The Contracting Officer may delay final payment under a contract if the Contractor fails to comply with these requirements.

(d) The Contractor shall insert the substance of this clause, including this paragraph (d), in all subcontracts when the subcontractor's employees are required to have routine physical access to a Federally-controlled facility and/or routine access to a Federally-controlled information system. It shall be the responsibility of the prime Contractor to return such identification to the issuing agency in accordance with the terms set forth in paragraph (b) of this section, unless otherwise approved in writing by the Contracting Officer.

(End of clause)

#### I.166 52.204-23 PROHIBITION ON CONTRACTING FOR HARDWARE, SOFTWARE, AND SERVICES DEVELOPED OR PROVIDED BY KASPERSKY LAB COVERED ENTITIES (DEC 2023)

(a) Definitions. As used in this clause--

Kaspersky Lab covered article means any hardware, software, or service that--

- (1) Is developed or provided by a Kaspersky Lab covered entity;
- (2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab covered entity; or
- (3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab covered entity.

Kaspersky Lab covered entity means--

- (1) Kaspersky Lab;
- (2) Any successor entity to Kaspersky Lab, including any change in name, e.g., "Kaspersky";
- (3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or
- (4) Any entity of which Kaspersky Lab has a majority ownership.

(b) Prohibition. Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits Government use of any Kaspersky Lab covered article. The Contractor is prohibited from--

- (1) Providing any Kaspersky Lab covered article that the Government will use on or after October 1, 2018; and
- (2) Using any Kaspersky Lab covered article on or after October 1, 2018, in the development of data or deliverables first produced in the performance of the contract.

(c) Reporting requirement.

(1) In the event the Contractor identifies a Kaspersky Lab covered article provided to the Government during contract performance, or the Contractor is notified of such by a subcontractor at any tier or any other source, the Contractor shall report, in writing, to the Contracting Officer or, in the case of the Department of Defense, to the website at <https://dibnet.dod.mil>. For indefinite delivery contracts, the Contractor shall report to the Contracting Officer for the indefinite delivery contract and the Contracting Officer(s) for any affected order or, in the case of the Department of Defense, identify both the indefinite delivery contract and any affected orders in the report provided at <https://dibnet.dod.mil>.

(2) The Contractor shall report the following information pursuant to paragraph (c)(1) of this clause:

(i) Within 3 business days from the date of such identification or notification: The contract number; the order number(s), if applicable; supplier name; brand; model number (Original Equipment Manufacturer (OEM) number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the report pursuant to paragraph (c)(1) of this clause: Any further available information about mitigation actions undertaken or recommended. In addition, the Contractor shall describe the efforts it undertook to prevent use or submission of a Kaspersky Lab covered article, any reasons that led to the use or submission of the Kaspersky Lab covered article, and any additional efforts that will be incorporated to prevent future use or submission of Kaspersky Lab covered articles.

[REDACTED]

(d) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (d), in all subcontracts including subcontracts for the acquisition of commercial products or commercial services.

(End Of Clause)

I.167 52.204-27 PROHIBITION ON A BYTEDANCE COVERED APPLICATION (JUNE 2023)

(a) Definitions. As used in this clause--

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Information technology, as defined in 40 U.S.C. 11101(6)--

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use--

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

(b) Prohibition. Section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328), the No TikTok on Government Devices Act, and its implementing guidance under Office of Management and Budget (OMB) Memorandum M-23-13, dated February 27, 2023, "No TikTok on Government Devices" Implementation Guidance, collectively prohibit the presence or use of a covered application on executive agency information technology, including certain equipment used by Federal contractors. The Contractor is prohibited from having or using a covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees; however, this prohibition does not apply if the Contracting Officer provides written notification to the Contractor that an exception has been granted in accordance with OMB Memorandum M-23-13.

(c) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts, including subcontracts for the acquisition of commercial products or commercial services.

(End Of Clause)

I.168 52.211-11 LIQUIDATED DAMAGES--SUPPLIES, SERVICES, OR RESEARCH AND DEVELOPMENT (SEP 2000)

(a) If the Contractor fails to deliver the supplies or perform the services within the time specified in this contract, the Contractor shall, in place of actual damages, pay to the Government liquidated damages of \$TBD per calendar day of delay.

(b) If the Government terminates this contract in whole or in part under the Default-Fixed-Price Supply and Service clause, the Contractor is liable for liquidated damages accruing until the Government reasonably obtains delivery or performance of similar supplies or services. These liquidated damages are in addition to excess costs of repurchase under the Termination clause.

(c) The Contractor will not be charged with liquidated damages when the delay in delivery or performance is beyond the control and without the fault or negligence of the Contractor as defined in the Default-Fixed-Price Supply and Service clause in this contract.

(End of Clause)

I.169 52.215-2 AUDIT AND RECORDS--NEGOTIATION (JUN 2020)

(a) As used in this clause, "records" includes books, documents, accounting procedures and practices, and other data, regardless of type and regardless of whether such items are in written form, in the form of computer data, or in any other form.

(b) "Examination of costs." If this is a cost-reimbursement, incentive, time-and-materials, labor-hour, or price redeterminable contract, or any combination of these, the Contractor shall maintain and the Contracting Officer, or an authorized representative of the Contracting Officer, shall have the right to examine and audit all records and other evidence sufficient to reflect properly all costs claimed to have been incurred or anticipated to be incurred directly or indirectly in performance of this contract.

[REDACTED]

This right of examination shall include inspection at all reasonable times of the Contractor's plants, or parts of them, engaged in performing the contract.

(3) Pricing of the contract, subcontract, or modification; or

(c) "Certified cost or pricing data." If the Contractor has been required to submit certified cost or pricing data in connection with any pricing action relating to this contract, the Contracting Officer, or an authorized representative of the Contracting Officer, in order to evaluate the accuracy, completeness, and currency of the certified cost or pricing data, shall have the right to examine and audit all of the Contractor's records, including computations and projections, related to--

(1) The proposal for the contract, subcontract, or modification;

(2) The discussions conducted on the proposal(s), including those related to negotiating;

(4) Performance of the contract, subcontract or modification.

(d) "Comptroller General"--

(1) The Comptroller General of the United States, or an authorized representative, shall have access to and the right to examine any of the Contractor's directly pertinent records involving transactions related to this contract or a subcontract hereunder and to interview any current employee regarding such transactions.

(2) This paragraph may not be construed to require the Contractor or subcontractor to create or maintain any record that the Contractor or subcontractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e) "Reports." If the Contractor is required to furnish cost, funding, or performance reports, the Contracting Officer or an authorized representative of the Contracting Officer shall have the right to examine and audit the supporting records and materials, for the purpose of evaluating--

(1) The effectiveness of the Contractor's policies and procedures to produce data compatible with the objectives of these reports; and

(2) The data reported.

(f) "Availability." The Contractor shall make available at its office at all reasonable times the records, materials, and other evidence described in paragraphs (a), (b), (c), (d), and (e) of this clause, for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in Subpart 4.7, Contractor Records Retention, of the Federal Acquisition Regulation (FAR), or for any longer period required by statute or by other clauses of this contract. In addition--

(1) If this contract is completely or partially terminated, the Contractor shall make available the records relating to the work terminated until 3 years after any resulting final termination settlement; and

(2) The Contractor shall make available records relating to appeals under the Disputes clause or to litigation or the settlement of claims arising under or relating to this contract until such appeals, litigation, or claims are finally resolved.

(3) That require the subcontractor to furnish reports as discussed in paragraph (e) of this clause.

(g) The Contractor shall insert a clause containing all the terms of this clause, including this paragraph (g), in all subcontracts under this contract that exceed the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, and--

(1) That are cost-reimbursement, incentive, time-and-materials, labor-hour, or price-redeterminable type or any combination of these;

(2) For which certified cost or pricing data are required; or

The clause may be altered only as necessary to identify properly the contracting parties and the Contracting Officer under the Government prime contract.

(End Of Clause)

#### I.170 52.215-10 PRICE REDUCTION FOR DEFECTIVE CERTIFIED COST OR PRICING DATA (AUG 2011)

(a) If any price, including profit or fee, negotiated in connection with this contract, or any cost reimbursable under this contract, was increased by any significant amount because--

(1) The Contractor or a subcontractor furnished certified cost or pricing data that were not complete, accurate, and current as certified in its Certificate of Current Cost or Pricing Data;

(2) A subcontractor or prospective subcontractor furnished the Contractor certified cost or pricing data that were not complete, accurate, and current as certified in the Contractor's Certificate of Current Cost or Pricing Data; or

(3) Any of these parties furnished data of any description that were not accurate, the price or cost shall be reduced accordingly and the contract shall be modified to reflect the reduction.

(b) Any reduction in the contract price under paragraph (a) of this clause due to defective data from a prospective subcontractor that was not subsequently awarded the subcontract shall be limited to the amount, plus applicable overhead and profit markup, by which

(1) the actual subcontract or

(2) the actual cost to the Contractor, if there was no subcontract, was less than the prospective subcontract cost estimate submitted by the Contractor; provided, that the actual subcontract price was not itself affected by defective certified cost or pricing data.

(c)

(1) If the Contracting Officer determines under paragraph (a) of this clause that a price or cost reduction should be made, the Contractor agrees not to raise the following matters as a defense:

(i) The Contractor or subcontractor was a sole source supplier or otherwise was in a superior bargaining position and thus the price of the contract would not have been modified even if accurate, complete, and current certified cost or pricing data had been submitted.

(ii) The Contracting Officer should have known that the certified cost or pricing data in issue were defective even though the Contractor or subcontractor took no affirmative action to bring the character of the data to the attention of the Contracting Officer.

(iii) The contract was based on an agreement about the total cost of the contract and there was no agreement about the cost of each item procured under the contract.

(iv) The Contractor or subcontractor did not submit a Certificate of Current Cost or Pricing Data.

(2)

(i) Except as prohibited by subdivision (c)(2)(ii) of this clause, an offset in an amount determined appropriate by the Contracting Officer based upon the facts shall be allowed against the amount of a contract price reduction if--

(A) The understated data were known by the Contractor to be understated before the "as of" date specified on its Certificate of Current Cost or Pricing Data; or

(A) The Contractor certifies to the Contracting Officer that, to the best of the Contractor's knowledge and belief, the Contractor is entitled to the offset in the amount requested; and

(B) The Contractor proves that the certified cost or pricing data were available before the "as of" date specified on its Certificate of Current Cost or Pricing Data, and that the data were not submitted before such date.

(ii) An offset shall not be allowed if--

(B) The Government proves that the facts demonstrate that the contract price would not have increased in the amount to be offset even if the available data had been submitted before the "as of" date specified on its Certificate of Current Cost or Pricing Data.

(d) If any reduction in the contract price under this clause reduces the price of items for which payment was made prior to the date of the modification reflecting the price reduction, the Contractor shall be liable to and shall pay the United States at the time such overpayment is repaid--

(1) Interest compounded daily, as required by 26 U.S.C. 6622, on the amount of such overpayment to be computed from the date(s) of overpayment to the Contractor to the date the Government is repaid by the Contractor at the applicable underpayment rate effective for each quarter prescribed by the Secretary of the Treasury under 26 U.S.C. 6621(a)(2); and

(End of Clause)

(2) A penalty equal to the amount of the overpayment, if the Contractor or subcontractor knowingly submitted certified cost or pricing data that were incomplete, inaccurate, or noncurrent.

#### I.171 52.215-11 PRICE REDUCTION FOR DEFECTIVE CERTIFIED COST OR PRICING DATA--MODIFICATIONS (JUN 2020)

(a) This clause shall become operative only for any modification to this contract involving a pricing adjustment expected to exceed the threshold for submission of certified cost or pricing data in Federal Acquisition Regulation (FAR) 15.403-4(a)(1) on the date of execution of the modification, except that this clause does not apply to any modification if an exception under FAR 15.403-1(b) applies.

(b) If any price, including profit or fee, negotiated in connection with any modification under this clause, or any cost reimbursable under this contract, was increased by any significant amount because

(c) Any reduction in the contract price under paragraph (b) of this clause due to defective data from a prospective subcontractor that was not subsequently awarded the subcontract shall be limited to the amount, plus applicable overhead and profit markup, by which

(1) the Contractor or a subcontractor furnished certified cost or pricing data that were not complete, accurate, and current as certified in its Certificate of Current Cost or Pricing Data,

(2) a subcontractor or prospective subcontractor furnished the Contractor certified cost or pricing data that were not complete, accurate, and current as certified in the Contractor's Certificate of Current Cost or Pricing Data, or

(3) any of these parties furnished data of any description that were not accurate, the price or cost shall be reduced accordingly and the contract shall be modified to reflect the reduction. This right to a price reduction is limited to that resulting from defects in data relating to modifications for which this clause becomes operative under paragraph (a) of this clause.

(1) the actual subcontract or  
(2) the actual cost to the Contractor, if there was no subcontract, was less than the prospective subcontract cost estimate submitted by the Contractor; provided, that the actual subcontract price was not itself affected by defective certified cost or pricing data.

(d)

(1) If the Contracting Officer determines under paragraph (b) of this clause that a price or cost reduction should be made, the Contractor agrees not to raise the following matters as a defense:

(i) The Contractor or subcontractor was a sole source supplier or otherwise was in a superior bargaining position and thus the price of the contract would not have been modified even if accurate, complete, and current certified cost or pricing data had been submitted.

(ii) The Contracting Officer should have known that the certified cost or pricing data in issue were defective even though the Contractor or subcontractor took no affirmative action to bring the character of the data to the attention of the Contracting Officer.

(iii) The contract was based on an agreement about the total cost of the contract and there was no agreement about the cost of each item procured under the contract.

(iv) The Contractor or subcontractor did not submit a Certificate of Current Cost or Pricing Data.  
(2)

(i) Except as prohibited by paragraph (d)(2)(ii) of this clause, an offset in an amount determined appropriate by the Contracting Officer based upon the facts shall be allowed against the amount of a contract price reduction if--

(A) The understated data were known by the Contractor to be understated before the "as of" date specified on its Certificate of Current Cost or Pricing Data; or

(A) The Contractor certifies to the Contracting Officer that, to the best of the Contractor's knowledge and belief, the Contractor is entitled to the offset in the amount requested; and

(B) The Contractor proves that the certified cost or pricing data were available before the "as of" date specified on its Certificate of Current Cost or Pricing Data, and that the data were not submitted before such date.

(ii) An offset shall not be allowed if--

(B) The Government proves that the facts demonstrate that the contract price would not have increased in the amount to be offset even if the available data had been submitted before the "as of" date specified on its Certificate of Current Cost or Pricing Data.

(e) If any reduction in the contract price under this clause reduces the price of items for which payment was made prior to the date of the modification reflecting the price reduction, the Contractor shall be liable to and shall pay the United States at the time such overpayment is repaid--

(1) Interest compounded daily, as required by 26 U.S.C. 6622, on the amount of such overpayment to be computed from the date(s) of overpayment to the Contractor to the date the Government is repaid by the Contractor at the applicable underpayment rate effective for each quarter prescribed by the Secretary of the Treasury under 26 U.S.C. 6621(a)(2); and

(End Of Clause)

(2) A penalty equal to the amount of the overpayment, if the Contractor or subcontractor knowingly submitted certified cost or pricing data that were incomplete, inaccurate, or noncurrent.

#### I.172 52.215-12 SUBCONTRACTOR CERTIFIED COST OR PRICING DATA (JUN 2020)

(a) Before awarding any subcontract expected to exceed the threshold for submission of certified cost or pricing data in Federal Acquisition Regulation (FAR) 15.403-4(a)(1), on the date of agreement on price or the date of award, whichever is later; or before pricing any subcontract modification involving a pricing adjustment expected to exceed the threshold for submission of certified cost or pricing data in FAR 15.403-4(a)(1), the Contractor shall require the subcontractor to submit certified cost or pricing data (actually or by specific identification in writing), in accordance with FAR 15.408, Table 15-2 (to include any information reasonably required to explain the subcontractor's estimating process such as the judgmental factors applied and the mathematical or other methods used in the estimate, including those used in projecting from known data, and the nature and amount of any contingencies included in the price), unless an exception under FAR 15.403-1(b) applies. If the threshold for submission of certified cost or pricing data specified in FAR 15.403-4(a)(1) is adjusted for inflation as set forth in FAR 1.109(a), then pursuant to FAR 1.109(d) the changed threshold applies throughout the remaining term of the contract, unless there is a subsequent threshold adjustment.

(b) The Contractor shall require the subcontractor to certify in substantially the form prescribed in FAR 15.406-2 that, to the best of its knowledge and belief, the data submitted under paragraph (a) of this clause were accurate, complete, and current as of the date of agreement on the negotiated price of the subcontract or subcontract modification.

(End Of Clause)

(c) In each subcontract that, when entered into, exceeds the threshold for submission of certified cost or pricing data in FAR 15.403-4(a)(1), the Contractor shall insert either--



(1) The substance of this clause, including this paragraph (c), if paragraph (a) of this clause requires submission of certified cost or pricing data for the subcontract; or

(2) The substance of the clause at FAR 52.215-13, Subcontractor Certified Cost or Pricing Data-Modifications.

I.173 52.215-13 SUBCONTRACTOR CERTIFIED COST OR PRICING DATA--MODIFICATIONS (JUN 2020)

(a) The requirements of paragraphs (b) and (c) of this clause shall--

(1) Become operative only for any modification to this contract involving a pricing adjustment expected to exceed the threshold for submission of certified cost or pricing data in Federal Acquisition Regulation (FAR) 15.403-4(a)(1) on the date of execution of the modification; and

(2) Be limited to such modifications.

(b) Before awarding any subcontract expected to exceed the threshold for submission of certified cost or pricing data in FAR 15.403-4(a)(1), on the date of agreement on price or the date of award, whichever is later; or before pricing any subcontract modification involving a pricing adjustment expected to exceed the threshold for submission of certified cost or pricing data in FAR 15.403-4(a)(1), the Contractor shall require the subcontractor to submit certified cost or pricing data (actually or by specific identification in writing), in accordance with FAR 15.408, Table 15-2 (to include any information reasonably required to explain the subcontractor's estimating process such as the judgmental factors applied and the mathematical or other methods used in the estimate, including those used in projecting from known data, and the nature and amount of any contingencies included in the price), unless an exception under FAR 15.403-1(b) applies. If the threshold for submission of certified cost or pricing data specified in FAR 15.403-4(a)(1) is adjusted for inflation as set forth in FAR 1.109(a), then pursuant to FAR 1.109(d) the changed threshold applies throughout the remaining term of the contract, unless there is a subsequent threshold adjustment.

(c) The Contractor shall require the subcontractor to certify in substantially the form prescribed in FAR 15.406-2 that, to the best of its knowledge and belief, the data submitted under paragraph (b) of this clause were accurate, complete, and current as of the date of agreement on the negotiated price of the subcontract or subcontract modification.

(d) The Contractor shall insert the substance of this clause, including this paragraph (d), in each subcontract that exceeds the threshold for submission of certified cost or pricing data in FAR 15.403-4(a)(1) on the date of agreement on price or the date of award, whichever is later.

(End Of Clause)

I.174 52.215-15 PENSION ADJUSTMENTS AND ASSET REVERSIONS (OCT 2010)

(a) The Contractor shall promptly notify the Contracting Officer in writing when it determines that it will terminate a defined-benefit pension plan or otherwise recapture such pension fund assets.

(b) For segment closings, pension plan terminations, or curtailment of benefits, the amount of the adjustment shall be--

(1) For contracts and subcontracts that are subject to full coverage under the Cost Accounting Standards (CAS) Board rules and regulations (48 CFR Chapter 99), the amount measured, assigned, and allocated in accordance with 48 CFR 9904.413-50(c)(12); and

(2) For contracts and subcontracts that are not subject to full coverage under the CAS, the amount measured, assigned, and allocated in accordance with 48 CFR 9904.413-50(c)(12), except the numerator of the fraction at 48 CFR 904.413-50(c)(12)(vi) shall be the sum of the pension plan costs allocated to all non-CAS covered contracts and subcontracts that are subject to Federal Acquisition Regulation (FAR) Subpart 31.2 or for which certified cost or pricing data were submitted.

(c) For all other situations where assets revert to the Contractor, or such assets are constructively received by it for any reason, the Contractor shall, at the Government's option, make a refund or give a credit to the Government for its equitable share of the gross amount withdrawn. The Government's equitable share shall reflect the Government's participation in pension costs through those contracts for which certified cost or pricing data were submitted or that are subject to FAR Subpart 31.2.

(d) The Contractor shall include the substance of this clause in all subcontracts under this contract that meet the applicability requirement of FAR 15.408(g).

(End of Clause)

I.175 52.215-18 REVERSION OR ADJUSTMENT OF PLANS FOR POSTRETIREMENT BENEFITS (PRB) OTHER THAN PENSIONS (JUL 2005)

(a) The Contractor shall promptly notify the Contracting Officer in writing when it determines that it will terminate or reduce the benefits of a PRB plan.

(b) If PRB fund assets revert or inure to the Contractor, or are constructively received by it under a plan termination or otherwise, the Contractor shall make a refund or give a credit to the Government for its equitable share as required by 31.205-6(o)(5) of the Federal Acquisition Regulation (FAR). When determining or agreeing on the method for recovery of the Government's equitable share, the contracting parties should consider the following methods: cost reductions, amortizing the credit over a number of years (with appropriate interest), cash refund, or some other agreed upon method. Should the parties be unable to agree on the method of recovery of the Government's equitable share, through good faith negotiations, the Contracting Officer shall designate the method of recovery.

(c) The Contractor shall include the substance of this clause in all subcontracts under this contract that meet the applicability requirements of FAR 15.408(j).

(End of Clause)

I.176 52.215-19 NOTIFICATION OF OWNERSHIP CHANGES (OCT 1997)

(a) The Contractor shall make the following notifications in writing:

(1) When the Contractor becomes aware that a change in its ownership has occurred, or is certain to occur, that could result in changes in the valuation of its capitalized assets in the accounting records, the Contractor shall notify the Administrative Contracting Officer (ACO) within 30 days.

(2) The Contractor shall also notify the ACO within 30 days whenever changes to asset valuations or any other cost changes have occurred or are certain to occur as a result of a change in ownership.

(b) The Contractor shall--

(1) Maintain current, accurate, and complete inventory records of assets and their costs;

(2) Provide the ACO or designated representative ready access to the records upon request;

(3) Ensure that all individual and grouped assets, their capitalized values, accumulated depreciation or amortization, and remaining useful lives are identified accurately before and after each of the Contractor's ownership changes; and

(4) Retain and continue to maintain depreciation and amortization schedules based on the asset records maintained before each Contractor ownership change.

(c) The Contractor shall include the substance of this clause in all subcontracts under this contract that meet the applicability requirement of FAR 15.408(k).

(End of Clause)

I.177 52.215-21 REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA--MODIFICATIONS (NOV 2021)

(a) "Exceptions from certified cost or pricing data."

(1) In lieu of submitting certified cost or pricing data for modifications under this contract, for price adjustments expected to exceed the threshold set forth in Federal Acquisition Regulation (FAR) 15.403-4(a)(1) on the date of the agreement on price or the date of the award, whichever is later, the Contractor may submit a written request for exception by submitting the information described in paragraphs (a)(1)(i) and (ii) of this clause. If the threshold for submission of certified cost or pricing data specified in FAR 15.403-4(a)(1) is adjusted for inflation as set forth in FAR 1.109(a), then pursuant to FAR 1.109(d) the changed threshold applies throughout the remaining term of the contract, unless there is a subsequent threshold adjustment. The Contracting Officer may require additional supporting information, but only to the extent necessary to determine whether an exception should be granted, and whether the price is fair and reasonable--

(B) For a commercial product and commercial service exception, the Contractor shall provide, at a minimum, information on prices at which the same item or similar items have previously been sold that is adequate for evaluating the reasonableness of the price of the modification. Such information may include--

(i) "Identification of the law or regulation establishing the price offered." If the price is controlled under law by periodic rulings, reviews, or similar actions of a governmental body, attach a copy of the controlling document, unless it was previously submitted to the contracting office.

(ii) "Information on modifications of contracts or subcontracts for commercial products or commercial services."

(A) If--

(1) The original contract or subcontract was granted an exception from cost or pricing data requirements because the price agreed upon was based on adequate price competition or prices set by law or regulation, or was a contract or subcontract for the acquisition of a commercial product or commercial service; and

[REDACTED]

(2) The modification (to the contract or subcontract) is not exempted based on one of these exceptions, then the Contractor may provide information to establish that the modification would not change the contract or subcontract from a contract or subcontract for the acquisition of a commercial product or commercial service, to a contract or subcontract for the acquisition of other than a commercial product or commercial service.

(2) For market-priced items, the source and date or period of the market quotation or other basis for market price, the base amount, and applicable discounts. In addition, describe the nature of the market.

(1) For catalog items, a copy of or identification of the catalog and its date, or the appropriate pages for the offered items, or a statement that the catalog is on file in the buying office to which the proposal is being submitted. Provide a copy or describe current discount policies and price lists (published or unpublished), e.g., wholesale, original equipment manufacturer, or reseller. Also explain the basis of each offered price and its relationship to the established catalog price, including how the proposed price relates to the price of recent sales in quantities similar to the proposed quantities.

(3) For items included on an active Federal Supply Service Multiple Award Schedule contract, proof that an exception has been granted for the schedule item.

(End Of Clause)

(2) The Contractor grants the Contracting Officer or an authorized representative the right to examine, at any time before award, books, records, documents, or other directly pertinent records to verify any request for an exception under this clause, and the reasonableness of price. For items priced using catalog or market prices, or law or regulation, access does not extend to cost or profit information or other data relevant solely to the Contractor's determination of the prices to be offered in the catalog or marketplace.

(b) "Requirements for certified cost or pricing data." If the Contractor is not granted an exception from the requirement to submit certified cost or pricing data, the following applies:

(1) The Contractor shall submit certified cost or pricing data, data other than certified cost or pricing data, and supporting attachments in accordance with the instructions contained in Table 15-2 of FAR 15.408, which is incorporated by reference with the same force and effect as though it were inserted here in full text. The instructions in Table 15-2 are incorporated as a mandatory format to be used in this contract, unless the Contracting Officer and the Contractor agree to a different format and change this clause to use Alternate I.

(2) As soon as practicable after agreement on price, but before award (except for unpriced actions), the Contractor shall submit a Certificate of Current Cost or Pricing Data, as prescribed by FAR 15.406-2.

#### I.178 52.216-4 ECONOMIC PRICE ADJUSTMENT--LABOR AND MATERIAL (NOV 2021)

(a) The Contractor shall notify the Contracting Officer if, at any time during contract performance, the rate of pay for labor (including fringe benefits) or the unit prices for material shown in the Schedule either increase or decrease. The Contractor shall furnish this notice within 60 days after the increase or decrease, or within any additional period that the Contracting Officer may approve in writing, but not later than the date of final payment under this contract. The notice shall include the Contractor's proposal for an adjustment in the contract unit prices to be negotiated under paragraph (b) of this clause, and shall include, in the form required by the Contracting Officer, supporting data explaining the cause, effective date, and amount of the increase or decrease and the amount of the Contractor's adjustment proposal.

(b) Promptly after the Contracting Officer receives the notice and data under paragraph (a) of this clause, the Contracting Officer and the Contractor shall negotiate a price adjustment in the contract unit prices and its effective date. However, the Contracting Officer may postpone the negotiations until an accumulation of increases and decreases in the labor rates (including fringe benefits) and unit prices of material shown in the Schedule results in an adjustment allowable under paragraph (c)(3) of this clause. The Contracting Officer shall modify this contract

(1) to include the price adjustment and its effective date and

(2) to revise the labor rates (including fringe benefits) or unit prices of material as shown in the Schedule to reflect the increases or decreases resulting from the adjustment. The Contractor shall continue performance pending agreement on, or determination of, any adjustment and its effective date.

(c) Any price adjustment under this clause is subject to the following limitations:

(1) Any adjustment shall be limited to the effect on unit prices of the increases or decreases in the rates of pay for labor (including fringe benefits) or unit prices for material shown in the Schedule. There shall be no adjustment for--

(i) Supplies or services for which the production cost is not affected by such changes;

(ii) Changes in rates or unit prices other than those shown in the Schedule; or

(iii) Changes in the quantities of labor or material used from those shown in the Schedule for each item.

(2) No upward adjustment shall apply to supplies or services that are required to be delivered or performed before the effective date of the adjustment, unless the Contractor's failure to deliver or perform according to the delivery schedule results from causes beyond the Contractor's control and without its fault or negligence, within the meaning of the Default clause.

(3) There shall be no adjustment for any change in rates of pay for labor (including fringe benefits) or unit prices for material which would not result in a net change of at least 3 percent of the then-current total contract price. This limitation shall not apply, however, if, after final delivery of all line items, either party requests an adjustment under paragraph (b) of this clause.

(4) The aggregate of the increases in any contract unit price made under this clause shall not exceed 10 percent of the original unit price. There is no percentage limitation on the amount of decreases that may be made under this clause.

(d) The Contracting Officer may examine the Contractor's books, records, and other supporting data relevant to the cost of labor (including fringe benefits) and material during all reasonable times until the end of 3 years after the date of final payment under this contract or the time periods specified in Subpart 4.7 of the Federal Acquisition Regulation (FAR), whichever is earlier.

(End Of Clause)

#### I.179 52.216-7 ALLOWABLE COST AND PAYMENT (AUG 2018)

##### (a) "Invoicing."

(1) The Government will make payments to the Contractor when requested as work progresses, but (except for small business concerns) not more often than once every 2 weeks, in amounts determined to be allowable by the Contracting Officer in accordance with Federal Acquisition Regulation (FAR) Subpart 31.2 in effect on the date of this contract and the terms of this contract. The Contractor may submit to an authorized representative of the Contracting Officer, in such form and reasonable detail as the representative may require, an invoice or voucher supported by a statement of the claimed allowable cost for performing this contract.

(2) Contract financing payments are not subject to the interest penalty provisions of the Prompt Payment Act. Interim payments made prior to the final payment under the contract are contract financing payments, except interim payments if this contract contains Alternate I to the clause at 52.232-25.

(3) The designated payment office will make interim payments for contract financing on the TBD day after the designated billing office receives a proper payment request. In the event that the Government requires an audit or other review of a specific payment request to ensure compliance with the terms and conditions of the contract, the designated payment office is not compelled to make payment by the specified due date.

##### (b) "Reimbursing costs."

(1) For the purpose of reimbursing allowable costs (except as provided in paragraph (b)(2) of this clause, with respect to pension, deferred profit sharing, and employee stock ownership plan contributions), the term "costs" includes only--

(i) Those recorded costs that, at the time of the request for reimbursement, the Contractor has paid by cash, check, or other form of actual payment for items or services purchased directly for the contract;

(A) Supplies and services purchased directly for the contract and associated financing payments to subcontractors, provided payments determined due will be made--

(ii) When the Contractor is not delinquent in paying costs of contract performance in the ordinary course of business, costs incurred, but not necessarily paid, for--

(1) In accordance with the terms and conditions of a subcontract or invoice; and

(2) Ordinarily within 30 days of the submission of the Contractor's payment request to the Government;

(B) Materials issued from the Contractor's inventory and placed in the production process for use on the contract;

(C) Direct labor;

(D) Direct travel;

(E) Other direct in-house costs; and

(F) Properly allocable and allowable indirect costs, as shown in the records maintained by the Contractor for purposes of obtaining reimbursement under Government contracts; and

(i) The Contractor's practice is to make contributions to the retirement fund quarterly or more frequently; and

(iii) The amount of financing payments that have been paid by cash, check, or other forms of payment to subcontractors.

(2) Accrued costs of Contractor contributions under employee pension plans shall be excluded until actually paid unless--

(ii) The contribution does not remain unpaid 30 days after the end of the applicable quarter or shorter payment period (any contribution remaining unpaid shall be excluded from the Contractor's indirect costs for payment purposes).

(3) Notwithstanding the audit and adjustment of invoices or vouchers under paragraph (g) of this clause, allowable indirect costs under this contract shall be obtained by applying indirect cost rates established in accordance with paragraph (d) of this clause.

(4) Any statements in specifications or other documents incorporated in this contract by reference designating performance of services or furnishing of materials at the Contractor's expense or at no cost to the Government shall be disregarded for purposes of cost-reimbursement under this clause.

(c) "Small business concerns." A small business concern may receive more frequent payments than every 2 weeks.

(d) "Final indirect cost rates."

(1) Final annual indirect cost rates and the appropriate bases shall be established in accordance with Subpart 42.7 of the Federal Acquisition Regulation (FAR) in effect for the period covered by the indirect cost rate proposal.

(2)

(i) The Contractor shall submit an adequate final indirect cost rate proposal to the Contracting Officer (or cognizant Federal agency official) and auditor within the 6-month period following the expiration of each of its fiscal years. Reasonable extensions, for exceptional circumstances only, may be requested in writing by the Contractor and granted in writing by the Contracting Officer. The Contractor shall support its proposal with adequate supporting data.

(ii) The proposed rates shall be based on the Contractor's actual cost experience for that period. The appropriate Government representative and the Contractor shall establish the final indirect cost rates as promptly as practical after receipt of the Contractor's proposal.

(iii) An adequate indirect cost rate proposal shall include the following data unless otherwise specified by the cognizant Federal agency official:

(A) Summary of all claimed indirect expense rates, including pool, base, and calculated indirect rate.

(B) General and Administrative expenses (final indirect cost pool). Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts).

(F) Facilities capital cost of money factors computation.

(C) Overhead expenses (final indirect cost pool). Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) for each final indirect cost pool.

(D) Occupancy expenses (intermediate indirect cost pool). Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) and expense reallocation to final indirect cost pools.

(E) Claimed allocation bases, by element of cost, used to distribute indirect costs.

(G) Reconciliation of books of account (i.e., General Ledger) and claimed direct costs by major cost element.

(H) Schedule of direct costs by contract and subcontract and indirect expense applied at claimed rates, as well as a subsidiary schedule of Government participation percentages in each of the allocation base amounts.

(I) Schedule of cumulative direct and indirect costs claimed and billed by contract and subcontract.

(J) Subcontract information. Listing of subcontracts awarded to companies for which the contractor is the prime or upper-tier contractor (include prime and subcontract numbers; subcontract value and award type; amount claimed during the fiscal year; and the subcontractor name, address, and point of contact information).

(K) Summary of each time-and-materials and labor-hour contract information, including labor categories, labor rates, hours, and amounts; direct materials; other direct costs; and, indirect expense applied at claimed rates.

(L) Reconciliation of total payroll per IRS form 941 to total labor costs distribution.

(M) Listing of decisions/agreements/approvals and description of accounting/organizational changes.

(N) Certificate of final indirect costs (see 52.242-4, Certification of Final Indirect Costs).

(O) Contract closing information for contracts physically completed in this fiscal year (include contract number, period of performance, contract ceiling amounts, contract fee computations, level of effort, and indicate if the contract is ready to close).

(iv) The following supplemental information is not required to determine if a proposal is adequate, but may be required during the audit process:

(A) Comparative analysis of indirect expense pools detailed by account to prior fiscal year and budgetary data.

(B) General organizational information and limitation on allowability of compensation for certain contractor personnel. See 31.205-6(p). Additional salary reference information is available at <https://www.whitehouse.gov/wp-content/uploads/2017/11/ContractorCompensationCapContractsAwardedBeforeJune24.pdf> and <https://www.whitehouse.gov/wp-content/uploads/2017/11/ContractorCompensationCapContractsAwardedafterJune24.pdf>.

(D) Description of accounting system (excludes contractors required to submit a CAS Disclosure Statement or contractors where the description of the accounting system has not changed from the previous year's submission).

(C) Identification of prime contracts under which the contractor performs as a subcontractor.

(E) Procedures for identifying and excluding unallowable costs from the costs claimed and billed (excludes contractors where the procedures have not changed from the previous year's submission).

(F) Certified financial statements and other financial data (e.g., trial balance, compilation, review, etc.).

(G) Management letter from outside CPAs concerning any internal control weaknesses.

(H) Actions that have been and/or will be implemented to correct the weaknesses described in the management letter from subparagraph (G) of this section.

(I) List of all internal audit reports issued since the last disclosure of internal audit reports to the Government.

(J) Annual internal audit plan of scheduled audits to be performed in the fiscal year when the final indirect cost rate submission is made.

(K) Federal and State income tax returns.

(L) Securities and Exchange Commission 10-K annual report.

(M) Minutes from board of directors meetings.

(N) Listing of delay claims and termination claims submitted which contain costs relating to the subject fiscal year.

(O) Contract briefings, which generally include a synopsis of all pertinent contract provisions, such as: contract type, contract amount, product or service(s) to be provided, contract performance period, rate ceilings, advance approval requirements, pre-contract cost allowability limitations, and billing limitations.

(v) The Contractor shall update the billings on all contracts to reflect the final settled rates and update the schedule of cumulative direct and indirect costs claimed and billed, as required in paragraph (d)(2)(iii)(I) of this section, within 60 days after settlement of final indirect cost rates.

(iii) the periods for which the rates apply,

(3) The Contractor and the appropriate Government representative shall execute a written understanding setting forth the final indirect cost rates. The understanding shall specify

(i) the agreed-upon final annual indirect cost rates,

(ii) the bases to which the rates apply,

(iv) any specific indirect cost items treated as direct costs in the settlement, and

(5) Within 120 days (or longer period if approved in writing by the Contracting Officer) after settlement of the final annual indirect cost rates for all years of a physically complete contract, the Contractor shall submit a completion invoice or voucher to reflect the settled amounts and rates. The prime contractor is responsible for settling subcontractor amounts and rates included in the completion invoice or voucher and providing status of subcontractor audits to the contracting officer upon request.

(v) the affected contract and/or subcontract, identifying any with advance agreements or special terms and the applicable rates. The understanding shall not change any monetary ceiling, contract obligation, or specific cost allowance or disallowance provided for in this contract. The understanding is incorporated into this contract upon execution.

(4) Failure by the parties to agree on a final annual indirect cost rate shall be a dispute within the meaning of the Disputes clause.

(6)

(i) If the Contractor fails to submit a completion invoice or voucher within the time specified in paragraph (d)(5) of this clause, the Contracting Officer may-

(A) Determine the amounts due to the Contractor under the contract; and

(B) Record this determination in a unilateral modification to the contract.

(ii) This determination constitutes the final decision of the Contracting Officer in accordance with the Disputes clause.

(e) "Billing rates." Until final annual indirect cost rates are established for any period, the Government shall reimburse the Contractor at billing rates established by the Contracting Officer or by an authorized representative (the cognizant auditor), subject to adjustment when the final rates are established. These billing rates--

(1) Shall be the anticipated final rates; and

(2) May be prospectively or retroactively revised by mutual agreement, at either party's request, to prevent substantial overpayment or underpayment.

(f) "Quick-closeout procedures." Quick-closeout procedures are applicable when the conditions in FAR 42.708(a) are satisfied.

(g) "Audit." At any time or times before final payment, the Contracting Officer may have the Contractor's invoices or vouchers and statements of cost audited. Any payment may be--

(i) An assignment to the Government, in form and substance satisfactory to the Contracting Officer, of refunds, rebates, credits, or other amounts (including interest, if any) properly allocable to costs for which the Contractor has been reimbursed by the Government under this contract; and

(1) Reduced by amounts found by the Contracting Officer not to constitute allowable costs; or

(2) Adjusted for prior overpayments or underpayments.

(h) "Final payment."

(1) Upon approval of a completion invoice or voucher submitted by the Contractor in accordance with paragraph (d)(5) of this clause, and upon the Contractor's compliance with all terms of this contract, the Government shall promptly pay any balance of allowable costs and that part of the fee (if any) not previously paid.

(2) The Contractor shall pay to the Government any refunds, rebates, credits, or other amounts (including interest, if any) accruing to or received by the Contractor or any assignee under this contract, to the extent that those amounts are properly allocable to costs for which the Contractor has been reimbursed by the Government. Reasonable expenses incurred by the Contractor for securing refunds, rebates, credits, or other amounts shall be allowable costs if approved by the Contracting Officer. Before final payment under this contract, the Contractor and each assignee whose assignment is in effect at the time of final payment shall execute and deliver--

(ii) A release discharging the Government, its officers, agents, and employees from all liabilities, obligations, and claims arising out of or under this contract, except--

(A) Specified claims stated in exact amounts, or in estimated amounts when the exact amounts are not known;

(B) Claims (including reasonable incidental expenses) based upon liabilities of the Contractor to third parties arising out of the performance of this contract; provided, that the claims are not known to the Contractor on the date of the execution of the release, and that the Contractor gives notice of the claims in writing to the Contracting Officer within 6 years following the release date or notice of final payment date, whichever is earlier; and

(C) Claims for reimbursement of costs, including reasonable incidental expenses, incurred by the Contractor under the patent clauses of this contract, excluding, however, any expenses arising from the Contractor's indemnification of the Government against patent liability.

(End of Clause)

#### I.180 52.216-10 INCENTIVE FEE (JUN 2011)

(a) "General." The Government shall pay the Contractor for performing this contract a fee determined as provided in this contract.

(b) "Target cost and target fee." The target cost and target fee specified in the Schedule are subject to adjustment if the contract is modified in accordance with paragraph (d) of this clause.

(1) "Target cost," as used in this contract, means the estimated cost of this contract as initially negotiated, adjusted in accordance with paragraph (d) of this clause.

(2) "Target fee," as used in this contract, means the fee initially negotiated on the assumption that this contract would be performed for a cost equal to the estimated cost initially negotiated, adjusted in accordance with paragraph (d) of this clause.

(c) "Withholding of payment."

(1) Normally, the Government shall pay the fee to the Contractor as specified in the Schedule. However, when the Contracting Officer considers that performance or cost indicates that the Contractor will not achieve target, the Government shall pay on the basis of an appropriate lesser fee. When the Contractor demonstrates that performance or cost clearly indicates that the Contractor will earn a fee significantly above the target fee, the Government may, at the sole discretion of the Contracting Officer, pay on the basis of an appropriate higher fee.

(2) Payment of the incentive fee shall be made as specified in the Schedule; provided that the Contracting Officer withholds a reserve not to exceed 15 percent of the total incentive fee or \$100,000, whichever is less, to protect the Government's interest. The Contracting Officer shall release 75 percent of all fee withholds under this contract after receipt of an adequate certified final indirect cost rate proposal covering the year of physical completion of this contract, provided the Contractor has satisfied all other contract terms and conditions, including the submission of the final patent and royalty reports, and is not delinquent in submitting final vouchers on prior years' settlements. The Contracting Officer may release up to 90 percent of the fee withholds under this

contract based on the Contractor's past performance related to the submission and settlement of final indirect cost rate proposals.

(d) "Equitable adjustments." When the work under this contract is increased or decreased by a modification to this contract or when any equitable adjustment in the target cost is authorized under any other clause, equitable adjustments in the target cost, target fee, minimum fee, and maximum fee, as appropriate, shall be stated in a supplemental agreement to this contract.

(e) "Fee payable."

(1) The fee payable under this contract shall be the target fee increased by TBD (See T0) cents for every dollar that the total allowable cost is less than the target cost or decreased by TBD (See T0) cents for every dollar that the total allowable cost exceeds the target cost. In no event shall the fee be greater than TBD (See T0) percent or less than TBD (See T0) percent of the target cost.

(3) If this contract is terminated in its entirety, the portion of the target fee payable shall not be subject to an increase or decrease as provided in this paragraph. The termination shall be accomplished in accordance with other applicable clauses of this contract.

(2) The fee shall be subject to adjustment, to the extent provided in paragraph (d) of this clause, and within the minimum and maximum fee limitations in paragraph (e)(1) of this clause, when the total allowable cost is increased or decreased as a consequence of--

(i) Payments made under assignments; or

(ii) Claims excepted from the release as required by paragraph (h)(2) of the Allowable Cost and Payment clause.

(4) For the purpose of fee adjustment, "total allowable cost" shall not include allowable costs arising out of--

(i) Any of the causes covered by the Excusable Delays clause to the extent that they are beyond the control and without the fault or negligence of the Contractor or any subcontractor;

(ii) The taking effect, after negotiating the target cost, of a statute, court decision, written ruling, or regulation that results in the Contractor's being required to pay or bear the burden of any tax or duty or rate increase in a tax or duty;

(iv) The purchase and maintenance of additional insurance not in the target cost and required by the Contracting Officer, or claims for reimbursement for liabilities to third persons pursuant to the Insurance Liability to Third Persons clause;

(iii) Any direct cost attributed to the Contractor's involvement in litigation as required by the Contracting Officer pursuant to a clause of this contract, including furnishing evidence and information requested pursuant to the Notice and Assistance Regarding Patent and Copyright Infringement clause;

(v) Any claim, loss, or damage resulting from a risk for which the Contractor has been relieved of liability by the Government Property clause; or

(vi) Any claim, loss, or damage resulting from a risk defined in the contract as unusually hazardous or as a nuclear risk and against which the Government has expressly agreed to indemnify the Contractor.

(5) All other allowable costs are included in "total allowable cost" for fee adjustment in accordance with this paragraph (e), unless otherwise specifically provided in this contract.

(f) "Contract modification." The total allowable cost and the adjusted fee determined as provided in this clause shall be evidenced by a modification to this contract signed by the Contractor and Contracting Officer.

(g) "Inconsistencies." In the event of any language inconsistencies between this clause and provisioning documents or Government options under this contract, compensation for spare parts or other supplies and services ordered under such documents shall be determined in accordance with this clause.

(End of Clause)

#### I.181 52.216-18 ORDERING (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from TBD through TBD

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when--

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or



- [REDACTED]
- (3) If sent electronically, the Government either--
    - (i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or
    - (ii) Distributes the delivery order or task order via email to the Contractor's email address.
  - (d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.
- (End Of Clause)

I.182 52.216-19 ORDER LIMITATIONS (OCT 1995)

- (a) "Minimum order." When the Government requires supplies or services covered by this contract in an amount of less than \$3,000.00 the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.
- (b) "Maximum order." The Contractor is not obligated to honor--
  - (1) Any order for a single item in excess of TBD
  - (2) Any order for a combination of items in excess of TBD or
- (3) A series of orders from the same ordering office within TBD days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.
- (c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.
- (d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within TBD days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of Clause)

I.183 52.216-22 INDEFINITE QUANTITY (OCT 1995)

- (a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.
  - (b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."
  - (c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.
- (End of Clause)
- (d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; provided, that the Contractor shall not be required to make any deliveries under this contract after expiration of all task orders.

I.184 52.216-25 CONTRACT DEFINITIZATION (OCT 2010)

- (a) A TBD definitive contract is contemplated. The Contractor agrees to begin promptly negotiating with the Contracting Officer the terms of a definitive contract that will include
  - (1) all clauses required by the Federal Acquisition Regulation (FAR) on the date of execution of the letter contract,
  - (2) all clauses required by law on the date of execution of the definitive contract, and

(3) any other mutually agreeable clauses, terms, and conditions. The Contractor agrees to submit a TBD proposal and including data other than certified cost or pricing data, and certified cost or pricing data, in accordance with FAR 15.408, Table 15-2, supporting its proposal.

(b) The schedule for definitizing this contract is [insert target date for definitization of the contract and dates for submission of proposal, beginning of negotiations, and, if appropriate, submission of make-or-buy and subcontracting plans and certified cost or pricing data]:

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(c) If agreement on a definitive contract to supersede this letter contract is not reached by the target date in paragraph (b) of this section, or within any extension of it granted by the Contracting Officer, the Contracting Officer may, with the approval of the head of the contracting activity, determine a reasonable price or fee in accordance with Subpart 15.4 and Part 31 of the FAR, subject to Contractor appeal as provided in the Disputes clause. In any event, the Contractor shall proceed with completion of the contract, subject only to the Limitation of Government Liability clause.

(1) After the Contracting Officer's determination of price or fee, the contract shall be governed by--

(i) All clauses required by the FAR on the date of execution of this letter contract for either fixed-price or cost-reimbursement contracts, as determined by the Contracting Officer under this paragraph (c);

(ii) All clauses required by law as of the date of the Contracting Officer's determination; and

(iii) Any other clauses, terms, and conditions mutually agreed upon.

(2) To the extent consistent with paragraph (c)(1) of this section, all clauses, terms, and conditions included in this letter contract shall continue in effect, except those that by their nature apply only to a letter contract.

(End of Clause)

I.185 52.216-25 I CONTRACT DEFINITIZATION (OCT 2010)--ALTERNATE I (APR 1984)

(a) A TBD definitive contract is contemplated. The Contractor agrees to begin promptly negotiating with the Contracting Officer the terms of a definitive contract that will include

(1) all clauses required by the Federal Acquisition Regulation (FAR) on the date of execution of the letter contract,

(2) all clauses required by law on the date of execution of the definitive contract, and

(3) any other mutually agreeable clauses, terms, and conditions. The Contractor agrees to submit a TBD proposal and including data other than certified cost or pricing data, and certified cost or pricing data, in accordance with FAR 15.408, Table 15-2, supporting its proposal.

(b) The schedule for definitizing this contract is [insert target date for definitization of the contract and dates for submission of proposal, beginning of negotiations, and, if appropriate, submission of make-or-buy and subcontracting plans and certified cost or pricing data]:

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(c) If agreement on a definitive contract to supersede this letter contract is not reached by the target date in paragraph (b) of this section, or within any extension of it granted by the Contracting Officer, the Contracting Officer may, with the approval of the head of the contracting activity, determine a reasonable price or fee in accordance with Subpart 15.4 and Part 31 of the FAR, subject to Contractor appeal as provided in the Disputes clause. In any event, the Contractor shall proceed with completion of the contract, subject only to the Limitation of Government Liability clause.

(1) After the Contracting Officer's determination of price or fee, the contract shall be governed by--

(i) All clauses required by the FAR on the date of execution of this letter contract for either fixed-price or cost-reimbursement contracts, as determined by the Contracting Officer under this paragraph (c);

(ii) All clauses required by law as of the date of the Contracting Officer's determination; and  
(iii) Any other clauses, terms, and conditions mutually agreed upon.

(2) To the extent consistent with paragraph (c)(1) of this section, all clauses, terms, and conditions included in this letter contract shall continue in effect, except those that by their nature apply only to a letter contract.

(d) The definitive contract resulting from this letter contract will include a negotiated TBD in no event to exceed TBD

(End of Clause)

I.186 52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days

(End of Clause)

I.187 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 15 days provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 66 months.

(End of Clause)

I.188 52.219-9 SMALL BUSINESS SUBCONTRACTING PLAN (JAN 2025)

(a) This clause does not apply to small business concerns.

(b) Definitions. As used in this clause--

"Alaska Native Corporation (ANC)" means any Regional Corporation, Village Corporation, Urban Corporation, or Group Corporation organized under the laws of the State of Alaska in accordance with the Alaska Native Claims Settlement Act, as amended (43 U.S.C. 1601, et seq.) and which is considered a minority and economically disadvantaged concern under the criteria at 43 U.S.C. 1626(e)

(1). This definition also includes ANC direct and indirect subsidiary corporations, joint ventures, and partnerships that meet the requirements of 43 U.S.C. 1626(e)(2).

"Individual subcontracting plan" means a subcontracting plan that covers the entire contract period (including option periods), applies to a specific contract, and has goals that are based on the offeror's planned subcontracting in support of the specific contract, except that indirect costs incurred for common or joint purposes may be allocated on a prorated basis to the contract.

"Commercial plan" means a subcontracting plan (including goals) that covers the offeror's fiscal year and that applies to the entire production of commercial products and commercial services sold by either the entire company or a portion thereof (e.g., division, plant, or product line).

"Commercial product" means a product that satisfies the definition of "commercial product" in Federal Acquisition Regulation (FAR) 2.101.

"Commercial service" means a service that satisfies the definition of "commercial service" in FAR 2.101.

"Electronic Subcontracting Reporting System (eSRS)" means the Governmentwide, electronic, web-based system for small business subcontracting program reporting. The eSRS is located at <http://www.esrs.gov>.

[REDACTED]

"Indian tribe" means any Indian tribe, band, group, pueblo, or community, including native villages and native groups (including corporations organized by Kenai, Juneau, Sitka, and Kodiak) as defined in the Alaska Native Claims Settlement Act (43 U.S.C.A. 1601 et seq.), that is recognized by the Federal Government as eligible for services from the Bureau of Indian Affairs in accordance with 25 U.S.C. 1452(c). This definition also includes Indian-owned economic enterprises that meet the requirements of 25 U.S.C. 1452(e).

"Master subcontracting plan" means a subcontracting plan that contains all the required elements of an individual subcontracting plan, except goals, and may be incorporated into individual subcontracting plans, provided the master subcontracting plan has been approved.

"Reduced payment" means a payment that is for less than the amount agreed upon in a subcontract in accordance with its terms and conditions, for supplies and services for which the Government has paid the prime contractor.

(ii) Unless the Contractor has reason to question the representations, it may accept a subcontractor's representations of its size and socioeconomic status as a small business, small disadvantaged business, veteran-owned small business, service-disabled veteran-owned small business, or a women-owned small business in the System for Award Management (SAM) if--

"Subcontract" means any agreement (other than one involving an employer-employee relationship) entered into by a Federal Government prime Contractor or subcontractor calling for supplies or services required for performance of the contract or subcontract.

"Total contract dollars" means the final anticipated dollar value, including the dollar value of all options.

"Untimely payment" means a payment to a subcontractor that is more than 90 days past due under the terms and conditions of a subcontract for supplies and services for which the Government has paid the prime contractor.

(c)(1) The Offeror, upon request by the Contracting Officer, shall submit and negotiate a subcontracting plan, where applicable, that separately addresses subcontracting with small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns. If the Offeror is submitting an individual subcontracting plan, the plan must separately address subcontracting with small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns, with a separate part for the basic contract and separate parts for each option (if any). The subcontracting plan shall be included in and made a part of the resultant contract. The subcontracting plan shall be negotiated within the time specified by the Contracting Officer. Failure to submit and negotiate the subcontracting plan shall make the Offeror ineligible for award of a contract.

(2)(i) Unless the Contractor has reason to question the representations, it may accept a subcontractor's written representations of its size and socioeconomic status as a small business, small disadvantaged business, veteran-owned small business, service-disabled veteran-owned small business, or a women-owned small business if the subcontractor represents that the size and socioeconomic status representations with its offer are current, accurate, and complete as of the date of the offer for the subcontract.

(A) The subcontractor is registered in SAM; and

(B) The subcontractor represents that the size and socioeconomic status representations made in SAM are current, accurate and complete as of the date of the offer for the subcontract.

(iii) The Contractor may not require the use of SAM for the purposes of representing size or socioeconomic status in connection with a subcontract.

(iv) In accordance with 13 CFR 121.411, 126.900, 127.700, and 128.600, a contractor acting in good faith is not liable for misrepresentations made by its subcontractors regarding the subcontractor's size or socioeconomic status.

(d) The Offeror's subcontracting plan shall include the following:

(A) In most cases, the appropriate Contractor is the Contractor that awarded the subcontract to the ANC or Indian tribe.

(1) Separate goals, expressed in terms of total dollars subcontracted, and as a percentage of total planned subcontracting dollars, for the use of small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns as subcontractors. For individual subcontracting plans, and if required by the Contracting Officer, goals shall also be expressed in terms of percentage of total contract dollars, in addition to the goals expressed as a percentage of total subcontract dollars. The Offeror shall include all subcontracts that contribute to contract performance, and may include a proportionate share of products and services that are normally allocated as indirect costs. In accordance with 15 U.S.C. 657r(a), an Offeror that is a mentor with an SBA-approved mentor-protege agreement (see 13 CFR 125.9) that provides a subcontract to its protege may apply the costs incurred for training it provides to its protege toward its subcontracting plan goals, provided that protege is a covered territory business or

[REDACTED]

that protege has its principal office located in the Commonwealth of Puerto Rico. In accordance with 43 U.S.C. 1626--

(i) Subcontracts awarded to an ANC or Indian tribe shall be counted towards the subcontracting goals for small business and small disadvantaged business concerns, regardless of the size or Small Business Administration certification status of the ANC or Indian tribe; and

(ii) Where one or more subcontractors are in the subcontract tier between the prime Contractor and the ANC or Indian tribe, the ANC or Indian tribe shall designate the appropriate Contractor(s) to count the subcontract towards its small business and small disadvantaged business subcontracting goals.

(2) A statement of--

(B) If the ANC or Indian tribe designates more than one Contractor to count the subcontract toward its goals, the ANC or Indian tribe shall designate only a portion of the total subcontract award to each Contractor. The sum of the amounts designated to various Contractors cannot exceed the total value of the subcontract.

(C) The ANC or Indian tribe shall give a copy of the written designation to the Contracting Officer, the prime Contractor, and the subcontractors in between the prime Contractor and the ANC or Indian tribe within 30 days of the date of the subcontract award.

(D) If the Contracting Officer does not receive a copy of the ANC's or the Indian tribe's written designation within 30 days of the subcontract award, the Contractor that awarded the subcontract to the ANC or Indian tribe will be considered the designated Contractor.

(i) Total dollars planned to be subcontracted for an individual subcontracting plan; or the Offeror's total projected sales, expressed in dollars, and the total value of projected subcontracts, including all indirect costs except as described in paragraph (g) of this clause, to support the sales for a commercial plan;

(ii) Total dollars planned to be subcontracted to small business concerns (including ANC and Indian tribes);

(iii) Total dollars planned to be subcontracted to veteran-owned small business concerns;

(iv) Total dollars planned to be subcontracted to service-disabled veteran-owned small business;

(v) Total dollars planned to be subcontracted to HUBZone small business concerns;

(vi) Total dollars planned to be subcontracted to small disadvantaged business concerns (including ANCs and Indian tribes); and

(vii) Total dollars planned to be subcontracted to women-owned small business concerns.

(3) A description of the principal types of supplies and services to be subcontracted, and an identification of the types planned for subcontracting to--

(i) Small business concerns;

(ii) Veteran-owned small business concerns;

(iii) Service-disabled veteran-owned small business concerns;

(iv) HUBZone small business concerns;

(v) Small disadvantaged business concerns; and

(vi) Women-owned small business concerns.

(4) A description of the method used to develop the subcontracting goals in paragraph (d)(1) of this clause.

(iii) Service-disabled veteran-owned small business concerns;

(5) A description of the method used to identify potential sources for solicitation purposes (e.g., existing company source lists, SAM, veterans service organizations, the National Minority Purchasing Council Vendor Information Service, the Research and Information Division of the Minority Business Development Agency in the Department of Commerce, or small, HUBZone, small disadvantaged, and women-owned small business trade associations). A firm may rely on the information contained in SAM as an accurate representation of a concern's size and ownership characteristics for the purposes of maintaining a small, veteran-owned small, service-disabled veteran-owned small, HUBZone small, small disadvantaged, and women-owned small business source list. Use of SAM as its source list does not relieve a firm of its responsibilities (e.g., outreach, assistance, counseling, or publicizing subcontracting opportunities) in this clause.

(6) A statement as to whether or not the Offeror included indirect costs in establishing subcontracting goals, and a description of the method used to determine the proportionate share of indirect costs to be incurred with--

(i) Small business concerns (including ANC and Indian tribes);

(ii) Veteran-owned small business concerns;

(iv) HUBZone small business concerns;

(v) Small disadvantaged business concerns (including ANC and Indian tribes); and

(vi) Women-owned small business concerns.

(7) The name of the individual employed by the Offeror who will administer the Offeror's subcontracting program, and a description of the duties of the individual.

(8) A description of the efforts the Offeror will make to assure that small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small

disadvantaged business, and women-owned small business concerns have an equitable opportunity to compete for subcontracts.

(9) Assurances that the Offeror will include the clause of this contract entitled "Utilization of Small Business Concerns" in all subcontracts that offer further subcontracting opportunities, and that the Offeror will require all subcontractors (except small business concerns, including entities that are treated as small business concerns by statute for certain purposes (e.g., ANCs, see 13 CFR 125.3(b)(2))) that receive subcontracts in excess of the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, with further subcontracting possibilities to adopt a subcontracting plan that complies with the requirements of this clause.

(10) Assurances that the Offeror will--

(i) Cooperate in any studies or surveys as may be required;

(iii) After November 30, 2017, include subcontracting data for each order when reporting subcontracting achievements for indefinite-delivery, indefinite-quantity contracts with individual subcontracting plans where the contract is intended for use by multiple agencies;

(ii) Submit periodic reports so that the Government can determine the extent of compliance by the Contractor with the subcontracting plan;

(iv) Submit the Individual Subcontract Report (ISR) and/or the Summary Subcontract Report (SSR), in accordance with paragraph (l) of this clause using the Electronic Subcontracting Reporting System (eSRS) at <http://www.esrs.gov>. The reports shall provide information on subcontract awards to small business concerns (including ANCs and Indian tribes that are not small businesses), veteran-owned small business concerns, service-disabled veteran-owned small business concerns, HUBZone small business concerns, small disadvantaged business concerns (including ANCs and Indian tribes that have not been certified by SBA as small disadvantaged businesses), women-owned small business concerns, and for NASA only, Historically Black Colleges and Universities and Minority Institutions. Reporting shall be in accordance with this clause, or as provided in agency regulations;

(v) Ensure that its subcontractors with subcontracting plans agree to submit the ISR and/or the SSR using eSRS;

(vi) Provide its prime contract number, its unique entity identifier, and the e-mail address of the Offeror's official responsible for acknowledging receipt of or rejecting the ISRs, to all first-tier subcontractors with subcontracting plans so they can enter this information into the eSRS when submitting their ISRs; and

(ii) Organizations contacted in an attempt to locate sources that are small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, or women-owned small business concerns.

(vii) Require that each subcontractor with a subcontracting plan provide the prime contract number, its own unique entity identifier, and the e-mail address of the subcontractor's official responsible for acknowledging receipt of or rejecting the ISRs, to its subcontractors with subcontracting plans.

(11) A description of the types of records that will be maintained concerning procedures that have been adopted to comply with the requirements and goals in the plan, including establishing source lists; and a description of the offeror's efforts to locate small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns and award subcontracts to them. The records shall include at least the following (on a plant-wide or company-wide basis, unless otherwise indicated):

(i) Source lists (e.g., SAM), guides, and other data that identify small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns.

(B) Whether veteran-owned small business concerns were solicited and, if not, why not;

(iii) Records on each subcontract solicitation resulting in an award of more than the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, indicating --

(A) Whether small business concerns were solicited and if not, why not;

(C) Whether service-disabled veteran-owned small business concerns were solicited and, if not, why not;

(D) Whether HUBZone small business concerns were solicited and, if not, why not;

(E) Whether small disadvantaged business concerns were solicited and if not, why not;

(F) Whether women-owned small business concerns were solicited and if not, why not; and

(G) If applicable, the reason award was not made to a small business concern.

(iv) Records of any outreach efforts to contact --

(A) Trade associations;

(B) Business development organizations;

(C) Conferences and trade fairs to locate small, HUBZone small, small disadvantaged, service-disabled veteran-owned, and women-owned small business sources; and

(D) Veterans service organizations.

(v) Records of internal guidance and encouragement provided to buyers through --

(A) Workshops, seminars, training, etc., and

[REDACTED]

(B) Monitoring performance to evaluate compliance with the program's requirements.

(vi) On a contract-by-contract basis, records to support award data submitted by the offeror to the Government, including the name, address, and business size of each subcontractor. Contractors having commercial plans need not comply with this requirement.

(12) Assurances that the Offeror will make a good faith effort to acquire articles, equipment, supplies, services, or materials, or obtain the performance of construction work from the small business concerns that it used in preparing the bid or proposal, in the same or greater scope, amount, and quality used in preparing and submitting the bid or proposal. Responding to a request for a quote does not constitute use in preparing a bid or proposal. The Offeror used a small business concern in preparing the bid or proposal if--

(i) The Offeror identifies the small business concern as a subcontractor in the bid or proposal or associated small business subcontracting plan, to furnish certain supplies or perform a portion of the subcontract; or

(ii) The Offeror used the small business concern's pricing or cost information or technical expertise in preparing the bid or proposal, where there is written evidence of an intent or understanding that the small business concern will be awarded a subcontract for the related work if the Offeror is awarded the contract.

(13) Assurances that the Contractor will provide the Contracting Officer with a written explanation if the Contractor fails to acquire articles, equipment, supplies, services or materials or obtain the performance of construction work as described in (d)(12) of this clause. This written explanation must be submitted to the Contracting Officer within 30 days of contract completion.

(15) Assurances that the Contractor will pay its small business subcontractors on time and in accordance with the terms and conditions of the underlying subcontract, and notify the contracting officer when the prime contractor makes either a reduced or an untimely payment to a small business subcontractor (see 52.242-5).

(14) Assurances that the Contractor will not prohibit a subcontractor from discussing with the Contracting Officer any material matter pertaining to payment to or utilization of a subcontractor.

(e) In order to effectively implement this plan to the extent consistent with efficient contract performance, the Contractor shall perform the following functions:

(7) Assign each subcontract the NAICS code and corresponding size standard that best describes the principal purpose of the subcontract.

(f) A master subcontracting plan on a plant or division-wide basis that contains all the elements required by paragraph (d) of this clause, except goals, may be incorporated by reference as a part of the subcontracting plan required of the Offeror by this clause; provided--

(1) The master subcontracting plan has been approved;

(2) The Offeror ensures that the master subcontracting plan is updated as necessary and provides copies of the approved master subcontracting plan, including evidence of its approval, to the Contracting Officer; and

(3) Goals and any deviations from the master subcontracting plan deemed necessary by the Contracting Officer to satisfy the requirements of this contract are set forth in the individual subcontracting plan.

(1) Assist small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns by arranging solicitations, time for the preparation of bids, quantities, specifications, and delivery schedules so as to facilitate the participation by such concerns. Where the Contractor's lists of potential small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business subcontractors are excessively long, reasonable effort shall be made to give all such small business concerns an opportunity to compete over a period of time.

(2) Provide adequate and timely consideration of the potentialities of small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns in all "make-or-buy" decisions.

(3) Counsel and discuss subcontracting opportunities with representatives of small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business firms.

(4) Confirm that a subcontractor representing itself as a HUBZone small business concern is certified by SBA as a HUBZone small business concern by accessing SAM or by accessing the Dynamic Small Business Search (DSBS) at [https://web.sba.gov/pro-net/search/dsp\\_dsbs.cfm](https://web.sba.gov/pro-net/search/dsp_dsbs.cfm).

(5) Provide notice to subcontractors concerning penalties and remedies for misrepresentations of business status as small, veteran-owned small business, HUBZone small, small disadvantaged, or women-owned small business for the purpose of obtaining a subcontract that is to be included as part or all of a goal contained in the Contractor's subcontracting plan.

(6) For all competitive subcontracts over the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, in which a small business concern received a small business preference, upon determination of the successful subcontract offeror, prior to award of the subcontract

the Contractor must inform each unsuccessful small business subcontract offeror in writing of the name and location of the apparent successful offeror and if the successful subcontract offeror is a small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, or women-owned small business concern.

(g) A commercial plan is the preferred type of subcontracting plan for contractors furnishing commercial products and commercial services. The commercial plan shall relate to the offeror's planned subcontracting generally, for both commercial and Government business, rather than solely to the Government contract. Once the Contractor's commercial plan has been approved, the Government will not require another subcontracting plan from the same Contractor while the plan remains in effect, as long as the product or service being provided by the Contractor continues to meet the definition of a commercial product or commercial service. A Contractor with a commercial plan shall comply with the reporting requirements stated in paragraph (d)(10) of this clause by submitting one SSR in eSRS for all contracts covered by its commercial plan. A Contractor authorized to use a commercial subcontracting plan shall include in its subcontracting goals and in its SSR all indirect costs, with the exception of those such as the following: Employee salaries and benefits; payments for petty cash; depreciation; interest; income taxes; property taxes; lease payments; bank fees; fines, claims, and dues; original equipment manufacturer relationships during warranty periods (negotiated up front with the product); utilities and other services purchased from a municipality or an entity solely authorized by the municipality to provide those services in a particular geographical region; and philanthropic contributions. This report shall be acknowledged or rejected in eSRS by the Contracting Officer who approved the plan. This report shall be submitted within 30 days after the end of the Government's fiscal year.

(h) Prior compliance of the offeror with other such subcontracting plans under previous contracts will be considered by the Contracting Officer in determining the responsibility of the offeror for award of the contract.

(i) A contract may have no more than one subcontracting plan. When a contract modification exceeds the subcontracting plan threshold in FAR 19.702(a), or an option is exercised, the goals of the existing subcontracting plan shall be amended to reflect any new subcontracting opportunities. When the goals in a subcontracting plan are amended, these goal changes do not apply retroactively.

(j) Subcontracting plans are not required from subcontractors when the prime contract contains the clause at FAR 52.212-5, Contract Terms and Conditions Required to Implement Statutes or Executive Orders--Commercial Products and Commercial Services, or when the subcontractor provides a commercial product or commercial service subject to the clause at FAR 52.244-6, Subcontracts for Commercial Products and Commercial Services, under a prime contract.

(k) The failure of the Contractor or subcontractor to comply in good faith with (1) the clause of this contract entitled "Utilization Of Small Business Concerns," or (2) an approved plan required by this clause, shall be a material breach of the contract and may be considered in any past performance evaluation of the Contractor.

(l) The Contractor shall submit ISRs and SSRs using the web-based eSRS at <http://www.esrs.gov>. Purchases from a corporation, company, or subdivision that is an affiliate of the Contractor or subcontractor are not included in these reports. Subcontract awards by affiliates shall be treated as subcontract awards by the Contractor. Subcontract award data reported by the Contractor and subcontractors shall be limited to awards made to their immediate next-tier subcontractors. Credit cannot be taken for awards made to lower tier subcontractors, unless the Contractor or subcontractor has been designated to receive a small business or small disadvantaged business credit from an ANC or Indian tribe. Only subcontracts involving performance in the United States or its outlying areas should be included in these reports with the exception of subcontracts under a contract awarded by the State Department or any other agency that has statutory or regulatory authority to require subcontracting plans for subcontracts performed outside the United States and its outlying areas.

(i) The report shall be submitted semi-annually during contract performance for the periods ending March 31 and September 30. A report is also required for each contract within 30 days of contract completion. Reports are due 30 days after the close of each reporting period, unless otherwise directed by the Contracting Officer. Reports are required when due, regardless of whether there has been any subcontracting activity since the inception of the contract or the previous reporting period. When the Contracting Officer rejects an ISR, the Contractor shall submit a corrected report within 30 days of receiving the notice of ISR rejection.

(1) ISR. This report is not required for commercial plans. The report is required for each contract containing an individual subcontracting plan.

(ii)(A) When a subcontracting plan contains separate goals for the basic contract and each option, as prescribed by FAR 19.704(c), the dollar goal inserted on this report shall be the sum of the base period through the current option; for example, for a report submitted after the second option is exercised, the dollar goal would be the sum of the goals for the basic contract, the first option, and the second option.



(B) If a subcontracting plan has been added to the contract pursuant to 19.702(a)(1)(iii) or 19.301-2(e), the Contractor's achievements must be reported in the ISR on a cumulative basis from the date of incorporation of the subcontracting plan into the contract.

(iii) When a subcontracting plan includes indirect costs in the goals, these costs must be included in this report.

(2) SSR.

(iv) The authority to acknowledge receipt or reject the ISR resides--

(A) In the case of the prime Contractor, with the Contracting Officer; and

(B) In the case of a subcontract with a subcontracting plan, with the entity that awarded the subcontract.

(i) Reports submitted under individual contract plans.

(A) This report encompasses all subcontracting under prime contracts and subcontracts with an executive agency, regardless of the dollar value of the subcontracts. This report also includes indirect costs on a prorated basis when the indirect costs are excluded from the subcontracting goals.

(B) The report may be submitted on a corporate, company or subdivision (e.g. plant or division operating as a separate profit center) basis, unless otherwise directed by the agency.

(C) If the Contractor or a subcontractor is performing work for more than one executive agency, a separate report shall be submitted to each executive agency covering only that agency's contracts, provided at least one of that agency's contracts is over the applicable threshold specified in FAR 19.702(a), and the contract contains a subcontracting plan. For DoD, a consolidated report shall be submitted for all contracts awarded by military departments/agencies and/or subcontracts awarded by DoD prime contractors.

(D) The report shall be submitted annually by October 30 for the twelve month period ending September 30. When a Contracting Officer rejects an SSR, the Contractor shall submit a revised report within 30 days of receiving the notice of SSR rejection.

(A) The report shall include all subcontract awards under the commercial plan in effect during the Government's fiscal year and all indirect costs.

(E) Subcontract awards that are related to work for more than one executive agency shall be appropriately allocated.

(F) The authority to acknowledge or reject SSRs in eSRS, including SSRs submitted by subcontractors with subcontracting plans, resides with the Government agency awarding the prime contracts unless stated otherwise in the contract.

(ii) Reports submitted under a commercial plan.

(B) The report shall be submitted annually, within thirty days after the end of the Government's fiscal year.

(C) If a Contractor has a commercial plan and is performing work for more than one executive agency, the Contractor shall specify the percentage of dollars attributable to each agency.

(D) The authority to acknowledge or reject SSRs for commercial plans resides with the Contracting Officer who approved the commercial plan.

(End Of Clause)

#### I.189 52.219-9 II SMALL BUSINESS SUBCONTRACTING PLAN (JAN 2025)--ALTERNATE II (JUN 2020)

(a) This clause does not apply to small business concerns.

(b) Definitions. As used in this clause--

"Alaska Native Corporation (ANC)" means any Regional Corporation, Village Corporation, Urban Corporation, or Group Corporation organized under the laws of the State of Alaska in accordance with the Alaska Native Claims Settlement Act, as amended (43 U.S.C. 1601, et seq.) and which is considered a minority and economically disadvantaged concern under the criteria at 43 U.S.C. 1626(e)(1). This definition also includes ANC direct and indirect subsidiary corporations, joint ventures, and partnerships that meet the requirements of 43 U.S.C. 1626(e)(2).

"Commercial plan" means a subcontracting plan (including goals) that covers the offeror's fiscal year and that applies to the entire production of commercial products and commercial services sold by either the entire company or a portion thereof (e.g., division, plant, or product line).

"Commercial product" means a product that satisfies the definition of "commercial product" in Federal Acquisition Regulation (FAR) 2.101.

"Commercial service" means a service that satisfies the definition of "commercial service" in FAR 2.101.

"Electronic Subcontracting Reporting System (eSRS)" means the Governmentwide, electronic, web-based system for small business subcontracting program reporting. The eSRS is located at <http://www.esrs.gov>.

"Indian tribe" means any Indian tribe, band, group, pueblo, or community, including native villages and native groups (including corporations organized by Kenai, Juneau, Sitka, and Kodiak) as defined in the Alaska Native Claims Settlement Act (43 U.S.C.A. 1601 et seq.), that is recognized by the Federal Government as eligible for services from the Bureau of Indian Affairs in accordance with 25 U.S.C.

1452(c). This definition also includes Indian-owned economic enterprises that meet the requirements of 25 U.S.C. 1452(e).

"Individual subcontracting plan" means a subcontracting plan that covers the entire contract period (including option periods), applies to a specific contract, and has goals that are based on the offeror's planned subcontracting in support of the specific contract, except that indirect costs incurred for common or joint purposes may be allocated on a prorated basis to the contract.

"Master subcontracting plan" means a subcontracting plan that contains all the required elements of an individual subcontracting plan, except goals, and may be incorporated into individual subcontracting plans, provided the master subcontracting plan has been approved.

"Reduced payment" means a payment that is for less than the amount agreed upon in a subcontract in accordance with its terms and conditions, for supplies and services for which the Government has paid the prime contractor.

"Subcontract" means any agreement (other than one involving an employer-employee relationship) entered into by a Federal Government prime Contractor or subcontractor calling for supplies or services required for performance of the contract or subcontract.

"Total contract dollars" means the final anticipated dollar value, including the dollar value of all options.

"Untimely payment" means a payment to a subcontractor that is more than 90 days past due under the terms and conditions of a subcontract for supplies and services for which the Government has paid the prime contractor.

(c)(1) Proposals submitted in response to this solicitation shall include a subcontracting plan that separately addresses subcontracting with small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns. If the Offeror is submitting an individual subcontracting plan, the plan must separately address subcontracting with small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns, with a separate part for the basic contract and separate parts for each option (if any). The plan shall be included in and made a part of the resultant contract. The subcontracting plan shall be negotiated within the time specified by the Contracting Officer. Failure to submit and negotiate a subcontracting plan shall make the Offeror ineligible for award of a contract.

(2)(i) Unless the Contractor has reason to question the representations, it may accept a subcontractor's written representations of its size and socioeconomic status as a small business, small disadvantaged business, veteran-owned small business, service-disabled veteran-owned small business, or a women-owned small business if the subcontractor represents that the size and socioeconomic status representations with its offer are current, accurate, and complete as of the date of the offer for the subcontract.

(iii) The Contractor may not require the use of SAM for the purposes of representing size or socioeconomic status in connection with a subcontract.

(ii) Unless the Contractor has reason to question the representations, it may accept a subcontractor's representations of its size and socioeconomic status as a small business, small disadvantaged business, veteran-owned small business, service-disabled veteran-owned small business, or a women-owned small business in the System for Award Management (SAM) if--

(A) The subcontractor is registered in SAM; and

(B) The subcontractor represents that the size and socioeconomic status representations made in SAM are current, accurate and complete as of the date of the offer for the subcontract.

(iv) In accordance with 13 CFR 121.411, 126.900, 127.700, and 128.600, a contractor acting in good faith is not liable for misrepresentations made by its subcontractors regarding the subcontractor's size or socioeconomic status.

(d) The Offeror's subcontracting plan shall include the following:

(A) In most cases, the appropriate Contractor is the Contractor that awarded the subcontract to the ANC or Indian tribe.

(1) Separate goals, expressed in terms of total dollars subcontracted, and as a percentage of total planned subcontracting dollars, for the use of small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns as subcontractors. For individual subcontracting plans, and if required by the Contracting Officer, goals shall also be expressed in terms of percentage of total contract dollars, in addition to the goals expressed as a percentage of total subcontract dollars. The Offeror shall include all subcontracts that contribute to contract performance, and may include a proportionate share of products and services that are normally allocated as indirect costs. In accordance with 15 U.S.C. 657r(a), an Offeror that is a mentor with an SBA-approved mentor-protege agreement (see 13 CFR 125.9) that provides a subcontract to its protege may apply the costs incurred for training it provides to its protege toward its subcontracting plan goals, provided that protege is a covered territory business or that protege has its principal office located in the Commonwealth of Puerto Rico. In accordance with 43 U.S.C. 1626--

(i) Subcontracts awarded to an ANC or Indian tribe shall be counted towards the subcontracting goals for small business and small disadvantaged business concerns, regardless of the size or Small Business Administration certification status of the ANC or Indian tribe; and

(ii) Where one or more subcontractors are in the subcontract tier between the prime Contractor and the ANC or Indian tribe, the ANC or Indian tribe shall designate the appropriate Contractor(s) to count the subcontract towards its small business and small disadvantaged business subcontracting goals.

(2) A statement of--

(i) Total dollars planned to be subcontracted for an individual subcontracting plan; or the Offeror's total projected sales, expressed in dollars, and the total value of projected subcontracts, including all indirect costs except as described in paragraph (g) of this clause, to support the sales for a commercial plan;

(ii) Total dollars planned to be subcontracted to small business concerns (including ANC and Indian tribes);

(iii) Total dollars planned to be subcontracted to veteran-owned small business concerns;

(iv) Total dollars planned to be subcontracted to service-disabled veteran-owned small business;

(v) Total dollars planned to be subcontracted to HUBZone small business concerns;

(vi) Total dollars planned to be subcontracted to small disadvantaged business concerns (including ANCs and Indian tribes); and

(vii) Total dollars planned to be subcontracted to women-owned small business concerns.

(3) A description of the principal types of supplies and services to be subcontracted, and an identification of the types planned for subcontracting to--

(ii) Veteran-owned small business concerns;

(B) If the ANC or Indian tribe designates more than one Contractor to count the subcontract toward its goals, the ANC or Indian tribe shall designate only a portion of the total subcontract award to each Contractor. The sum of the amounts designated to various Contractors cannot exceed the total value of the subcontract.

(C) The ANC or Indian tribe shall give a copy of the written designation to the Contracting Officer, the prime Contractor, and the subcontractors in between the prime Contractor and the ANC or Indian tribe within 30 days of the date of the subcontract award.

(D) If the Contracting Officer does not receive a copy of the ANC's or the Indian tribe's written designation within 30 days of the subcontract award, the Contractor that awarded the subcontract to the ANC or Indian tribe will be considered the designated Contractor.

(i) Small business concerns;

(iii) Service-disabled veteran-owned small business concerns;

(iv) HUBZone small business concerns;

(v) Small disadvantaged business concerns; and

(vi) Women-owned small business concerns.

(4) A description of the method used to develop the subcontracting goals in paragraph (d)(1) of this clause.

(ii) Veteran-owned small business concerns;

(5) A description of the method used to identify potential sources for solicitation purposes (e.g., existing company source lists, SAM, veterans service organizations, the National Minority Purchasing Council Vendor Information Service, the Research and Information Division of the Minority Business Development Agency in the Department of Commerce, or small, HUBZone, small disadvantaged, and women-owned small business trade associations). A firm may rely on the information contained in SAM as an accurate representation of a concern's size and ownership characteristics for the purposes of maintaining a small, veteran-owned small, service-disabled veteran-owned small, HUBZone small, small disadvantaged, and women-owned small business source list. Use of SAM as its source list does not relieve a firm of its responsibilities (e.g., outreach, assistance, counseling, or publicizing subcontracting opportunities) in this clause.

(6) A statement as to whether or not the Offeror included indirect costs in establishing subcontracting goals, and a description of the method used to determine the proportionate share of indirect costs to be incurred with--

(i) Small business concerns (including ANC and Indian tribes);

(iii) Service-disabled veteran-owned small business concerns;

(iv) HUBZone small business concerns;

(v) Small disadvantaged business concerns (including ANC and Indian tribes); and

(vi) Women-owned small business concerns.

(7) The name of the individual employed by the Offeror who will administer the Offeror's subcontracting program, and a description of the duties of the individual.

(8) A description of the efforts the Offeror will make to assure that small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns have an equitable opportunity to compete for subcontracts.

[REDACTED]

(9) Assurances that the Offeror will include the clause of this contract entitled "Utilization of Small Business Concerns" in all subcontracts that offer further subcontracting opportunities, and that the Offeror will require all subcontractors (except small business concerns, including entities that are treated as small business concerns by statute for certain purposes (e.g., ANCs, see 13 CFR 125.3(b)(2))) that receive subcontracts in excess of the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, with further subcontracting possibilities to adopt a subcontracting plan that complies with the requirements of this clause.

(10) Assurances that the Offeror will--

- (i) Cooperate in any studies or surveys as may be required;
- (ii) Submit periodic reports so that the Government can determine the extent of compliance by the Contractor with the subcontracting plan;
- (iii) After November 30, 2017, include subcontracting data for each order when reporting subcontracting achievements for indefinite-delivery, indefinite-quantity contracts with individual subcontracting plans where the contract is intended for use by multiple agencies;
- (iv) Submit the Individual Subcontract Report (ISR) and/or the Summary Subcontract Report (SSR), in accordance with paragraph (l) of this clause using the Electronic Subcontracting Reporting System (eSRS) at <http://www.esrs.gov>. The reports shall provide information on subcontract awards to small business concerns (including ANCs and Indian tribes that are not small businesses), veteran-owned small business concerns, service-disabled veteran-owned small business concerns, HUBZone small business concerns, small disadvantaged business concerns (including ANCs and Indian tribes that have not been certified by SBA as small disadvantaged businesses), women-owned small business concerns, and for NASA only, Historically Black Colleges and Universities and Minority Institutions. Reporting shall be in accordance with this clause, or as provided in agency regulations;
- (v) Ensure that its subcontractors with subcontracting plans agree to submit the ISR and/or the SSR using eSRS;
- (vi) Provide its prime contract number, its unique entity identifier, and the e-mail address of the Offeror's official responsible for acknowledging receipt of or rejecting the ISRs, to all first-tier subcontractors with subcontracting plans so they can enter this information into the eSRS when submitting their ISRs; and
- (vii) Require that each subcontractor with a subcontracting plan provide the prime contract number, its own unique entity identifier, and the e-mail address of the subcontractor's official responsible for acknowledging receipt of or rejecting the ISRs, to its subcontractors with subcontracting plans.

(B) Whether veteran-owned small business concerns were solicited and, if not, why not;

(11) A description of the types of records that will be maintained concerning procedures that have been adopted to comply with the requirements and goals in the plan, including establishing source lists; and a description of the offeror's efforts to locate small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns and award subcontracts to them. The records shall include at least the following (on a plant-wide or company-wide basis, unless otherwise indicated):

- (i) Source lists (e.g., SAM), guides, and other data that identify small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns.
- (ii) Organizations contacted in an attempt to locate sources that are small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, or women-owned small business concerns.
- (iii) Records on each subcontract solicitation resulting in an award of more than the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, indicating --
  - (A) Whether small business concerns were solicited and if not, why not;
  - (C) Whether service-disabled veteran-owned small business concerns were solicited and, if not, why not;
  - (D) Whether HUBZone small business concerns were solicited and, if not, why not;
  - (E) Whether small disadvantaged business concerns were solicited and if not, why not;
  - (F) Whether women-owned small business concerns were solicited and if not, why not; and
  - (G) If applicable, the reason award was not made to a small business concern.
- (iv) Records of any outreach efforts to contact --
  - (A) Trade associations;
  - (B) Business development organizations;
  - (C) Conferences and trade fairs to locate small, HUBZone small, small disadvantaged, service-disabled veteran-owned, and women-owned small business sources; and
  - (D) Veterans service organizations.
- (v) Records of internal guidance and encouragement provided to buyers through --
  - (A) Workshops, seminars, training, etc., and
  - (B) Monitoring performance to evaluate compliance with the program's requirements.

(vi) On a contract-by-contract basis, records to support award data submitted by the offeror to the Government, including the name, address, and business size of each subcontractor. Contractors having commercial plans need not comply with this requirement.

(12) Assurances that the Offeror will make a good faith effort to acquire articles, equipment, supplies, services, or materials, or obtain the performance of construction work from the small business concerns that it used in preparing the bid or proposal, in the same or greater scope, amount, and quality used in preparing and submitting the bid or proposal. Responding to a request for a quote does not constitute use in preparing a bid or proposal. The Offeror used a small business concern in preparing the bid or proposal if--

(14) Assurances that the Contractor will not prohibit a subcontractor from discussing with the Contracting Officer any material matter pertaining to payment to or utilization of a subcontractor.

(i) The Offeror identifies the small business concern as a subcontractor in the bid or proposal or associated small business subcontracting plan, to furnish certain supplies or perform a portion of the subcontract; or

(ii) The Offeror used the small business concern's pricing or cost information or technical expertise in preparing the bid or proposal, where there is written evidence of an intent or understanding that the small business concern will be awarded a subcontract for the related work if the Offeror is awarded the contract.

(13) Assurances that the Contractor will provide the Contracting Officer with a written explanation if the Contractor fails to acquire articles, equipment, supplies, services or materials or obtain the performance of construction work as described in (d)(12) of this clause. This written explanation must be submitted to the Contracting Officer within 30 days of contract completion.

(15) Assurances that the Contractor will pay its small business subcontractors on time and in accordance with the terms and conditions of the underlying subcontract, and notify the contracting officer when the prime contractor makes either a reduced or an untimely payment to a small business subcontractor (see 52.242-5).

(e) In order to effectively implement this plan to the extent consistent with efficient contract performance, the Contractor shall perform the following functions:

(1) Assist small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns by arranging solicitations, time for the preparation of bids, quantities, specifications, and delivery schedules so as to facilitate the participation by such concerns. Where the Contractor's lists of potential small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business subcontractors are excessively long, reasonable effort shall be made to give all such small business concerns an opportunity to compete over a period of time.

(2) Provide adequate and timely consideration of the potentialities of small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns in all "make-or-buy" decisions.

(3) Counsel and discuss subcontracting opportunities with representatives of small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business firms.

(7) Assign each subcontract the NAICS code and corresponding size standard that best describes the principal purpose of the subcontract.

(4) Confirm that a subcontractor representing itself as a HUBZone small business concern is certified by SBA as a HUBZone small business concern by accessing SAM or by accessing the Dynamic Small Business Search (DSBS) at [https://web.sba.gov/pro-net/search/dsp\\_dsbs.cfm](https://web.sba.gov/pro-net/search/dsp_dsbs.cfm).

(5) Provide notice to subcontractors concerning penalties and remedies for misrepresentations of business status as small, veteran-owned small business, HUBZone small, small disadvantaged, or women-owned small business for the purpose of obtaining a subcontract that is to be included as part or all of a goal contained in the Contractor's subcontracting plan.

(6) For all competitive subcontracts over the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, in which a small business concern received a small business preference, upon determination of the successful subcontract offeror, prior to award of the subcontract the Contractor must inform each unsuccessful small business subcontract offeror in writing of the name and location of the apparent successful offeror and if the successful subcontract offeror is a small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, or women-owned small business concern.

(f) A master subcontracting plan on a plant or division-wide basis that contains all the elements required by paragraph (d) of this clause, except goals, may be incorporated by reference as a part of the subcontracting plan required of the Offeror by this clause; provided--

(1) The master subcontracting plan has been approved;

(2) The Offeror ensures that the master subcontracting plan is updated as necessary and provides copies of the approved master subcontracting plan, including evidence of its approval, to the Contracting Officer; and

(3) Goals and any deviations from the master subcontracting plan deemed necessary by the Contracting Officer to satisfy the requirements of this contract are set forth in the individual subcontracting plan.

(j) Subcontracting plans are not required from subcontractors when the prime contract contains the clause at FAR 52.212-5, Contract Terms and Conditions Required to Implement Statutes or Executive Orders--Commercial Products and Commercial Services, or when the subcontractor provides a commercial product and commercial service subject to the clause at FAR 52.244-6, Subcontracts for Commercial Products and Commercial Services, under a prime contract.

(g) A commercial plan is the preferred type of subcontracting plan for contractors furnishing commercial products and commercial services. The commercial plan shall relate to the offeror's planned subcontracting generally, for both commercial and Government business, rather than solely to the Government contract. Once the Contractor's commercial plan has been approved, the Government will not require another subcontracting plan from the same Contractor while the plan remains in effect, as long as the product or service being provided by the Contractor continues to meet the definition of a commercial product or commercial service. A Contractor with a commercial plan shall comply with the reporting requirements stated in paragraph (d)(10) of this clause by submitting one SSR in eSRS for all contracts covered by its commercial plan. A Contractor authorized to use a commercial subcontracting plan shall include in its subcontracting goals and in its SSR all indirect costs, with the exception of those such as the following: Employee salaries and benefits; payments for petty cash; depreciation; interest; income taxes; property taxes; lease payments; bank fees; fines, claims, and dues; original equipment manufacturer relationships during warranty periods (negotiated up front with the product); utilities and other services purchased from a municipality or an entity solely authorized by the municipality to provide those services in a particular geographical region; and philanthropic contributions. This report shall be acknowledged or rejected in eSRS by the Contracting Officer who approved the plan. This report shall be submitted within 30 days after the end of the Government's fiscal year.

(h) Prior compliance of the offeror with other such subcontracting plans under previous contracts will be considered by the Contracting Officer in determining the responsibility of the offeror for award of the contract.

(i) A contract may have no more than one subcontracting plan. When a contract modification exceeds the subcontracting plan threshold in FAR 19.702(a), or an option is exercised, the goals of the existing subcontracting plan shall be amended to reflect any new subcontracting opportunities. When the goals in a subcontracting plan are amended, these goal changes do not apply retroactively.

(k) The failure of the Contractor or subcontractor to comply in good faith with (1) the clause of this contract entitled "Utilization Of Small Business Concerns," or (2) an approved plan required by this clause, shall be a material breach of the contract and may be considered in any past performance evaluation of the Contractor.

(1) ISR. This report is not required for commercial plans. The report is required for each contract containing an individual subcontracting plan.

(i) The report shall be submitted semi-annually during contract performance for the periods ending March 31 and September 30. A report is also required for each contract within 30 days of contract completion. Reports are due 30 days after the close of each reporting period, unless otherwise directed by the Contracting Officer. Reports are required when due, regardless of whether there has been any subcontracting activity since the inception of the contract or the previous reporting period. When the Contracting Officer rejects an ISR, the Contractor shall submit a corrected report within 30 days of receiving the notice of ISR rejection.

(l) The Contractor shall submit ISRs and SSRs using the web-based eSRS at <http://www.esrs.gov>. Purchases from a corporation, company, or subdivision that is an affiliate of the Contractor or subcontractor are not included in these reports. Subcontract awards by affiliates shall be treated as subcontract awards by the Contractor. Subcontract award data reported by the Contractor and subcontractors shall be limited to awards made to their immediate next-tier subcontractors. Credit cannot be taken for awards made to lower tier subcontractors, unless the Contractor or subcontractor has been designated to receive a small business or small disadvantaged business credit from an ANC or Indian tribe. Only subcontracts involving performance in the United States or its outlying areas should be included in these reports with the exception of subcontracts under a contract awarded by the State Department or any other agency that has statutory or regulatory authority to require subcontracting plans for subcontracts performed outside the United States and its outlying areas.

(ii)(A) When a subcontracting plan contains separate goals for the basic contract and each option, as prescribed by FAR 19.704(c), the dollar goal inserted on this report shall be the sum of the base period through the current option; for example, for a report submitted after the second option is exercised, the dollar goal would be the sum of the goals for the basic contract, the first option, and the second option.

(B) If a subcontracting plan has been added to the contract pursuant to 19.702(a)(1)(iii) or 19.301-2(e), the Contractor's achievements must be reported in the ISR on a cumulative basis from the date of incorporation of the subcontracting plan into the contract.

(iii) When a subcontracting plan includes indirect costs in the goals, these costs must be included in this report.

(iv) The authority to acknowledge receipt or reject the ISR resides--

(A) In the case of the prime Contractor, with the Contracting Officer; and

(B) In the case of a subcontract with a subcontracting plan, with the entity that awarded the subcontract.

(2) SSR.

(i) Reports submitted under individual contract plans.

(B) The report may be submitted on a corporate, company or subdivision (e.g. plant or division operating as a separate profit center) basis, unless otherwise directed by the agency.

(A) This report encompasses all subcontracting under prime contracts and subcontracts with an executive agency, regardless of the dollar value of the subcontracts. This report also includes indirect costs on a prorated basis when the indirect costs are excluded from the subcontracting goals.

(C) If the Contractor or a subcontractor is performing work for more than one executive agency, a separate report shall be submitted to each executive agency covering only that agency's contracts, provided at least one of that agency's contracts is over the applicable threshold specified in FAR 19.702(a), and the contract contains a subcontracting plan. For DoD, a consolidated report shall be submitted for all contracts awarded by military departments/agencies and/or subcontracts awarded by DoD prime contractors.

(D) The report shall be submitted annually by October 30 for the twelve month period ending September 30. When a Contracting Officer rejects an SSR, the Contractor shall submit a revised report within 30 days of receiving the notice of SSR rejection.

(E) Subcontract awards that are related to work for more than one executive agency shall be appropriately allocated.

(F) The authority to acknowledge or reject SSRs in eSRS, including SSRs submitted by subcontractors with subcontracting plans, resides with the Government agency awarding the prime contracts unless stated otherwise in the contract.

(ii) Reports submitted under a commercial plan.

(A) The report shall include all subcontract awards under the commercial plan in effect during the Government's fiscal year and all indirect costs.

(B) The report shall be submitted annually, within thirty days after the end of the Government's fiscal year.

(C) If a Contractor has a commercial plan and is performing work for more than one executive agency, the Contractor shall specify the percentage of dollars attributable to each agency.

(D) The authority to acknowledge or reject SSRs for commercial plans resides with the Contracting Officer who approved the commercial plan.

(End Of Clause)

#### I.190 52.219-13 NOTICE OF SET-ASIDE OF ORDERS (MAR 2020)

(a) The Contracting Officer may set aside orders for the small business concerns identified in 19.000(a)(3).

(b) The Contracting Officer will give notice of the order or orders, if any, to be set aside for small business concerns identified in 19.000(a)(3) and the applicable small business program. This notice, and its restrictions, will apply only to the specific orders that have been set aside for any of the small business concerns identified in 19.000(a)(3).

(End of clause)

#### I.191 52.219-14 LIMITATIONS ON SUBCONTRACTING (OCT 2022)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) Definition. Similarly situated entity, as used in this clause, means a first-tier subcontractor, including an independent contractor, that--

(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) Applicability. This clause applies only to--

- (1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);
- (2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);
- (3) Contracts that have been awarded on a sole-source basis in accordance with subparts 19.8, 19.13, 19.14, and 19.15;
- (4) Orders expected to exceed the simplified acquisition threshold and that are--
- (i) Set aside for small business concerns under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or
- (ii) Issued directly to small business concerns under multiple-award contracts as described in 19.504(c)(1)(ii);
- (5) Orders, regardless of dollar value, that are--
- (i) Set aside in accordance with subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or
- (ii) Issued directly to concerns that qualify for the programs described in subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 19.504(c)(1)(ii); and
- (6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.
- (d) Independent contractors. An independent contractor shall be considered a subcontractor.
- (e) Limitations on subcontracting. By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for--
- (1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;
- (2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;
- (3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or
- (4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.
- (f) The Contractor shall comply with the limitations on subcontracting as follows:
- (1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause--  
[Contracting Officer check as appropriate.]
- TBD By the end of the base term of the contract and then by the end of each subsequent option period;
- or
- TBD By the end of the performance period for each order issued under the contract.
- (2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.
- (g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.
- (1) In a joint venture comprised of a small business protege and its mentor approved by the Small Business Administration, the small business protege shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protege in the joint venture must be more than administrative functions.
- (2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.
- (End Of Clause)

I.192 52.219-28 POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (JAN 2025)

- (a) Definitions. As used in this clause--



Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern--

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (d) of this clause.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts--

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) If the Contractor represented its status as any of the small business concerns identified at 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, for the NAICS code assigned to an order (except that paragraphs (c)(1) through (3) of this clause do not apply to an order issued under a Federal Supply Schedule contract at subpart 8.4)--

(1) Set aside exclusively for a small business concern identified at 19.000(a)(3) that is issued under an unrestricted multiple-award contract, unless the order is issued under the reserved portion of an unrestricted multiple-award contract (e.g., an order set aside for a woman-owned small business under a multiple-award contract that is not set-aside, unless the order is issued under the reserved portion of the multiple-award contract);

(2) Issued under a multiple-award contract set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying multiple-award contract (e.g., an order set aside for a HUBZone small business concern under a multiple-award contract that is set aside for small businesses);

(3) Issued under the part of the multiple-award contract that is set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying set-aside part of the multiple-award contract (e.g., an order set aside for a WOSB concern under the part of the multiple-award contract that is partially set aside for small businesses); and

(4) When the Contracting Officer explicitly requires it for an order issued under a multiple-award contract, including for an order issued under a Federal Supply Schedule contract (see 8.405-5(b) and 19.301-2(b)(2)).

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(d) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(e) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition--

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(f) Except as provided in paragraph (h) of this clause, the Contractor shall make the representation(s) required by paragraphs (b) and (c) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other

[REDACTED]

data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, or with its offer for an order (see paragraph (c) of this clause), that the data have been validated or updated, and provide the date of the validation or update.

(g) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (f) or (h) of this clause.

(h) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it \_\_\_\_\_ is, \_\_\_\_\_ is not a small business concern under NAICS Code \_\_\_\_\_ assigned to contract number \_\_\_\_\_.

(2) The Contractor represents that it [ TBD ] is, [ TBD ] is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) The Contractor represents that it [ TBD ] is, [ TBD ] is not a women-owned small business concern.

(6) The Contractor represents that it [ TBD ] is, [ TBD ] is not a veteran-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it [ TBD ] is, [ TBD ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture:\_\_\_ .]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it [ TBD ] is, [ TBD ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture:\_\_\_ .]

(7) The Contractor represents that it [ TBD ] is, [ TBD ] is not a service-disabled veteran-owned small business concern.

(8) Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program. The Contractor represents that it [ TBD ] is, [ TBD ] is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: \_\_.]

(9) The Contractor represents that--

(i) It [ TBD ] is, [ TBD ] is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR part 126; and

(ii) It [ TBD ] is, [ TBD ] is not a HUBZone joint venture that complies with the requirements of 13 CFR part 126, and the representation in paragraph (h)(8)(i) of this clause is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [The Contractor shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: \_\_\_\_\_.] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

(End Of Clause)

[Contractor to sign and date and insert authorized signer's name and title.]

#### I.193 52.222-2 PAYMENT FOR OVERTIME PREMIUMS (JUL 1990)

(a) The use of overtime is authorized under this contract if the overtime premium does not exceed TBD or the overtime premium is paid for work--

(1) Necessary to cope with emergencies such as those resulting from accidents, natural disasters, breakdowns of production equipment, or occasional production bottlenecks of a sporadic nature;

(2) By indirect-labor employees such as those performing duties in connection with administration, protection, transportation, maintenance, standby plant protection, operation of utilities, or accounting;

(3) To perform tests, industrial processes, laboratory procedures, loading or unloading of transportation conveyances, and operations in flight or afloat that are continuous in nature and cannot reasonably be interrupted or completed otherwise; or

(4) That will result in lower overall costs to the Government.

(b) Any request for estimated overtime premiums that exceeds the amount specified above shall include all estimated overtime for contract completion and shall--

[REDACTED]

(3) Identify the extent to which approval of overtime would affect the performance or payments in connection with other Government contracts, together with identification of each affected contract; and

(1) Identify the work unit; e.g., department or section in which the requested overtime will be used, together with present workload, staffing, and other data of the affected unit sufficient to permit the Contracting Officer to evaluate the necessity for the overtime;

(2) Demonstrate the effect that denial of the request will have on the contract delivery or performance schedule;

(4) Provide reasons why the required work cannot be performed by using multishift operations or by employing additional personnel.

(End of Clause)

\* Insert either "zero" or the dollar amount agreed to during negotiations. The inserted figure does not apply to the exceptions in paragraph (a)(1) through (a)(4) of the clause.

#### I.194 52.222-36 EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES (JUN 2020)

(a) Equal opportunity clause. The Contractor shall abide by the requirements of the equal opportunity clause at 41 CFR 60-741.5(a), as of March 24, 2014. This clause prohibits discrimination against qualified individuals on the basis of disability, and requires affirmative action by the Contractor to employ and advance in employment qualified individuals with disabilities.

(b) Subcontracts. The Contractor shall include the terms of this clause in every subcontract or purchase order in excess of the threshold specified in Federal Acquisition Regulation (FAR) 22.1408(a) on the date of subcontract award, unless exempted by rules, regulations, or orders of the Secretary, so that such provisions will be binding upon each subcontractor or vendor. The Contractor shall act as specified by the Director, Office of Federal Contract Compliance Programs of the U.S. Department of Labor, to enforce the terms, including action for noncompliance. Such necessary changes in language may be made as shall be appropriate to identify properly the parties and their undertakings.

(End Of Clause)

#### I.195 52.224-3 PRIVACY TRAINING (JAN 2017)

(a) Definition. As used in this clause, personally identifiable information means information that can be used to distinguish or trace an individual's identity, either alone or when combined with other information that is linked or linkable to a specific individual. (See Office of Management and Budget (OMB) Circular A-130, Managing Federal Information as a Strategic Resource).

(b) The Contractor shall ensure that initial privacy training, and annual privacy training thereafter, is completed by contractor employees who--

(1) Have access to a system of records;

(2) Create, collect, use, process, store, maintain, disseminate, disclose, dispose, or otherwise handle personally identifiable information on behalf of an agency; or

(3) Design, develop, maintain, or operate a system of records (see also FAR subpart 24.1 and 39.105).

(c) (1) Privacy training shall address the key elements necessary for ensuring the safeguarding of personally identifiable information or a system of records. The training shall be role-based, provide foundational as well as more advanced levels of training, and have measures in place to test the knowledge level of users. At a minimum, the privacy training shall cover--

(i) The provisions of the Privacy Act of 1974 (5 U.S.C. 552a), including penalties for violations of the Act;

(ii) The appropriate handling and safeguarding of personally identifiable information;

(iii) The authorized and official use of a system of records or any other personally identifiable information;

(iv) The restriction on the use of unauthorized equipment to create, collect, use, process, store, maintain, disseminate, disclose, dispose or otherwise access personally identifiable information;

(v) The prohibition against the unauthorized use of a system of records or unauthorized disclosure, access, handling, or use of personally identifiable information; and

(vi) The procedures to be followed in the event of a suspected or confirmed breach of a system of records or the unauthorized disclosure, access, handling, or use of personally identifiable information (see OMB guidance for Preparing for and Responding to a Breach of Personally Identifiable Information).

(2) Completion of an agency-developed or agency-conducted training course shall be deemed to satisfy these elements.

(d) The Contractor shall maintain and, upon request, provide documentation of completion of privacy training to the Contracting Officer.

(e) The Contractor shall not allow any employee access to a system of records, or permit any employee to create, collect, use, process, store, maintain, disseminate, disclose, dispose or otherwise handle personally identifiable information, or to design, develop, maintain, or operate a system of records unless the employee has completed privacy training, as required by this clause.

(f) The substance of this clause, including this paragraph (f), shall be included in all subcontracts under this contract, when subcontractor employees will--

- (1) Have access to a system of records;
- (2) Create, collect, use, process, store, maintain, disseminate, disclose, dispose, or otherwise handle personally identifiable information; or
- (3) Design, develop, maintain, or operate a system of records.

(End of clause)

I.196 52.225-19 CONTRACTOR PERSONNEL IN A DESIGNATED OPERATIONAL AREA OR SUPPORTING A DIPLOMATIC OR CONSULAR MISSION OUTSIDE THE UNITED STATES (MAY 2020)

(a) Definitions. As used in this clause--

"Chief of mission" means the principal officer in charge of a diplomatic mission of the United States or of a United States office abroad which is designated by the Secretary of State as diplomatic in nature, including any individual assigned under section 502(c) of the Foreign Service Act of 1980 (Public Law 96-465) to be temporarily in charge of such a mission or office.

"Combatant commander" means the commander of a unified or specified combatant command established in accordance with 10 U.S.C. 161.

"Designated operational area" means a geographic area designated by the combatant commander or subordinate joint force commander for the conduct or support of specified military operations.

"Supporting a diplomatic or consular mission" means performing outside the United States under a contract administered by Federal agency personnel who are subject to the direction of a chief of mission.

(b) General.

(1) This clause applies when Contractor personnel are required to perform outside the United States--

(i) In a designated operational area during--

- (A) Contingency operations;
- (B) Humanitarian or peacekeeping operations; or
- (B) That the Contracting Officer has indicated is subject to this clause.
- (C) Other military operations; or military exercises, when designated by the Combatant Commander;

or

(ii) When supporting a diplomatic or consular mission--

(A) That has been designated by the Department of State as a danger pay post (see <https://aoprals.state.gov/>); or

(2) Contract performance may require work in dangerous or austere conditions. Except as otherwise provided in the contract, the Contractor accepts the risks associated with required contract performance in such operations.

(3) Contractor personnel are civilians.

(i) Except as provided in paragraph (b)(3)(ii) of this clause, and in accordance with paragraph (i)

(3) of this clause, Contractor personnel are only authorized to use deadly force in self-defense.

(ii) Contractor personnel performing security functions are also authorized to use deadly force when use of such force reasonably appears necessary to execute their security mission to protect assets/persons, consistent with the terms and conditions contained in the contract or with their job description and terms of employment.

(4) Service performed by Contractor personnel subject to this clause is not active duty or service under 38 U.S.C. 106 note.

(2) Treaties and international agreements;

(c) Support. Unless specified elsewhere in the contract, the Contractor is responsible for all logistical and security support required for Contractor personnel engaged in this contract.

(d) Compliance with laws and regulations. The Contractor shall comply with, and shall ensure that its personnel in the designated operational area or supporting the diplomatic or consular mission are familiar with and comply with, all applicable--

(1) United States, host country, and third country national laws;

(1) Specific requirements for paragraphs (e)(2)(i) through (e)(2)(vi) of this clause will be set forth in the statement of work, or elsewhere in the contract.

(3) United States regulations, directives, instructions, policies, and procedures; and

[REDACTED]

(4) Force protection, security, health, or safety orders, directives, and instructions issued by the Chief of Mission or the Combatant Commander; however, only the Contracting Officer is authorized to modify the terms and conditions of the contract.

(e) Preliminary personnel requirements.

(2) Before Contractor personnel depart from the United States or a third country, and before Contractor personnel residing in the host country begin contract performance in the designated operational area or supporting the diplomatic or consular mission, the Contractor shall ensure the following:

(i) All required security and background checks are complete and acceptable.

(ii) All personnel are medically and physically fit and have received all required vaccinations.

(iii) All personnel have all necessary passports, visas, entry permits, and other documents required for Contractor personnel to enter and exit the foreign country, including those required for in-transit countries.

(iv) All personnel have received--

(A) A country clearance or special area clearance, if required by the chief of mission; and

(B) Theater clearance, if required by the Combatant Commander.

(v) All personnel have received personal security training. The training must at a minimum--

(A) Cover safety and security issues facing employees overseas;

(B) Identify safety and security contingency planning activities; and

(C) Identify ways to utilize safety and security personnel and other resources appropriately.

(vi) All personnel have received isolated personnel training, if specified in the contract.

Isolated personnel are military or civilian personnel separated from their unit or organization in an environment requiring them to survive, evade, or escape while awaiting rescue or recovery.

(ii) Pursuant to the War Crimes Act, 18 U.S.C. 2441, Federal criminal jurisdiction also extends to conduct that is determined to constitute a war crime when committed by a civilian national of the United States; and

(vii) All personnel who are U.S. citizens are registered with the U.S. Embassy or Consulate with jurisdiction over the area of operations on-line at <http://www.travel.state.gov>.

(3) The Contractor shall notify all personnel who are not a host country national or ordinarily resident in the host country that--

(i) If this contract is with the Department of Defense, or the contract relates to supporting the mission of the Department of Defense outside the United States, such employees, and dependents residing with such employees, who engage in conduct outside the United States that would constitute an offense punishable by imprisonment for more than one year if the conduct had been engaged in within the special maritime and territorial jurisdiction of the United States, may potentially be subject to the criminal jurisdiction of the United States (see the Military Extraterritorial Jurisdiction Act of 2000 (18 U.S.C. 3261 et seq.);

(iii) Other laws may provide for prosecution of U.S. nationals who commit offenses on the premises of United States diplomatic, consular, military or other United States Government missions outside the United States (18 U.S.C. 7(9)).

(3) Process through a reception center as designated by the Contracting Officer upon arrival at the place of performance.

(f) Processing and departure points. The Contractor shall require its personnel who are arriving from outside the area of performance to perform in the designated operational area or supporting the diplomatic or consular mission to--

(1) Process through the departure center designated in the contract or complete another process as directed by the Contracting Officer;

(2) Use a specific point of departure and transportation mode as directed by the Contracting Officer; and

(g) Personnel data.

(1) Unless personnel data requirements are otherwise specified in the contract, the Contractor shall establish and maintain with the designated Government official a current list of all Contractor personnel in the areas of performance. The Contracting Officer will inform the Contractor of the Government official designated to receive this data and the appropriate system to use for this effort.

(2) The Contractor shall ensure that all employees on this list have a current record of emergency data, for notification of next of kin, on file with both the Contractor and the designated Government official.

(i) The Contracting Officer may authorize an approved Contractor to issue Contractor-owned weapons and ammunition to specified employees; or

(h) Contractor personnel. The Contracting Officer may direct the Contractor, at its own expense, to remove and replace any Contractor personnel who fail to comply with or violate applicable requirements of this contract. Such action may be taken at the Government's discretion without prejudice to its rights under any other provision of this contract, including termination for default or cause.

(i) Weapons.

(1) If the Contracting Officer, subject to the approval of the Combatant Commander or the Chief of Mission, authorizes the carrying of weapons--

(ii) The TBD may issue Government-furnished weapons and ammunition to the Contractor for issuance to specified Contractor employees.

(2) The Contractor shall provide to the Contracting Officer a specific list of personnel for whom authorization to carry a weapon is requested.

(3) The Contractor shall ensure that its personnel who are authorized to carry weapons--

(i) Are adequately trained to carry and use them--

(A) Safely;

(B) With full understanding of, and adherence to, the rules of the use of force issued by the Combatant Commander or the Chief of Mission; and

(C) In compliance with applicable agency policies, agreements, rules, regulations, and other applicable law;

(ii) Are not barred from possession of a firearm by 18 U.S.C. 922; and

(iii) Adhere to all guidance and orders issued by the Combatant Commander or the Chief of Mission regarding possession, use, safety, and accountability of weapons and ammunition.

(4) Upon revocation by the Contracting Officer of the Contractor's authorization to possess weapons, the Contractor shall ensure that all Government-furnished weapons and unexpended ammunition are returned as directed by the Contracting Officer.

(5) Whether or not weapons are Government-furnished, all liability for the use of any weapon by Contractor personnel rests solely with the Contractor and the Contractor employee using such weapon.

(1) Contractor personnel are prohibited from wearing military clothing unless specifically authorized by the Combatant Commander. If authorized to wear military clothing, Contractor personnel must wear distinctive patches, armbands, nametags, or headgear, in order to be distinguishable from military personnel, consistent with force protection measures.

(j) Vehicle or equipment licenses. Contractor personnel shall possess the required licenses to operate all vehicles or equipment necessary to perform the contract in the area of performance.

(k) Military clothing and protective equipment.

(2) In the event of a non-mandatory evacuation order, the Contractor shall maintain personnel on location sufficient to meet contractual obligations unless instructed to evacuate by the Contracting Officer.

(2) Contractor personnel may wear specific items required for safety and security, such as ballistic, nuclear, biological, or chemical protective equipment.

(l) Evacuation.

(1) If the Chief of Mission or Combatant Commander orders a mandatory evacuation of some or all personnel, the Government will provide to United States and third country national Contractor personnel the level of assistance provided to private United States citizens.

(m) Personnel recovery.

(1) In the case of isolated, missing, detained, captured or abducted Contractor personnel, the Government will assist in personnel recovery actions.

(n) Notification and return of personal effects.

(2) Personnel recovery may occur through military action, action by non-governmental organizations, other Government-approved action, diplomatic initiatives, or through any combination of these options.

(3) The Department of Defense has primary responsibility for recovering DoD contract service employees and, when requested, will provide personnel recovery support to other agencies in accordance with DoD Directive 2310.2, Personnel Recovery.

(1) The Contractor shall be responsible for notification of the employee-designated next of kin, and notification as soon as possible to the U.S. Consul responsible for the area in which the event occurred, if the employee--

(i) Dies;

(ii) Requires evacuation due to an injury; or

(iii) Is isolated, missing, detained, captured, or abducted.

(2) The Contractor shall also be responsible for the return of all personal effects of deceased or missing Contractor personnel, if appropriate, to next of kin.

(o) Mortuary affairs. Mortuary affairs for Contractor personnel who die in the area of performance will be handled as follows:

(1) If this contract was awarded by DoD, the remains of Contractor personnel will be handled in accordance with DoD Directive 1300.22, Mortuary Affairs Policy.

(2)

(i) If this contract was awarded by an agency other than DoD, the Contractor is responsible for the return of the remains of Contractor personnel from the point of identification of the remains to the location specified by the employee or next of kin, as applicable, except as provided in paragraph (o) (2)(ii) of this clause.

(ii) In accordance with 10 U.S.C. 1486, the Department of Defense may provide, on a reimbursable basis, mortuary support for the disposition of remains and personal effects of all U.S. citizens upon the request of the Department of State.

(p) Changes. In addition to the changes otherwise authorized by the Changes clause of this contract, the Contracting Officer may, at any time, by written order identified as a change order, make changes in place of performance or Government-furnished facilities, equipment, material, services, or site. Any change order issued in accordance with this paragraph shall be subject to the provisions of the Changes clause of this contract.

(q) Subcontracts. The Contractor shall incorporate the substance of this clause, including this paragraph (q), in all subcontracts that require subcontractor personnel to perform outside the United States-

(1) In a designated operational area during--

(i) Contingency operations;

(ii) Humanitarian or peacekeeping operations; or

(iii) Other military operations; or military exercises, when designated by the Combatant Commander;

or

(2) When supporting a diplomatic or consular mission--

(i) That has been designated by the Department of State as a danger pay post (see <https://aoprals.state.gov/>); or

(ii) That the Contracting Officer has indicated is subject to this clause.

(End of clause)

#### I.197 52.227-2 NOTICE AND ASSISTANCE REGARDING PATENT AND COPYRIGHT INFRINGEMENT (JUN 2020)

(a) The Contractor shall report to the Contracting Officer, promptly and in reasonable written detail, each notice or claim of patent or copyright infringement based on the performance of this contract of which the Contractor has knowledge.

(b) In the event of any claim or suit against the Government on account of any alleged patent or copyright infringement arising out of the performance of this contract or out of the use of any supplies furnished or work or services performed under this contract, the Contractor shall furnish to the Government, when requested by the Contracting Officer, all evidence and information in the Contractor's possession pertaining to such claim or suit. Such evidence and information shall be furnished at the expense of the Government except where the Contractor has agreed to indemnify the Government.

(End Of Clause)

(c) The Contractor shall include the substance of this clause, including this paragraph (c), in all subcontracts that are expected to exceed the simplified acquisition threshold, as defined in Federal Acquisition Regulation (FAR) 2.101 on the date of subcontract award.

#### I.198 52.227-5 WAIVER OF INDEMNITY (APR 1984)

Any provision or clause of this contract to the contrary notwithstanding, the Government hereby authorizes and consents to the use and manufacture, solely in performing this contract, of any invention covered by the United States patents identified below and waives indemnification by the Contractor with respect to such patents: TBD

(End of Clause)

#### I.199 52.227-13 PATENT RIGHTS--OWNERSHIP BY THE GOVERNMENT (DEC 2007)

(a) Definitions. As used in this clause--

"Invention" means any invention or discovery that is or may be patentable or otherwise protectable under title 35 of the U.S. Code or any variety of plant that is or may be protectable under the Plant Variety Protection Act (7 U.S.C. 2321, et seq.)

"Made" means--

(1) When used in relation to any invention other than a plant variety, means the conception or first actual reduction to practice of the invention; or

(2) When used in relation to a plant variety, means that the Contractor has at least tentatively determined that the variety has been reproduced with recognized characteristics.

"Practical application" means to manufacture, in the case of a composition or product; to practice, in the case of a process or method; or to operate, in the case of a machine or system; and, in each case,

[REDACTED]

under such conditions as to establish that the invention is being utilized and that its benefits are, to the extent permitted by law or Government regulations, available to the public on reasonable terms. "Subject invention" means any invention of the Contractor made in the performance of work under this contract.

(b) Ownership.

(1) Assignment to the Government. The Contractor shall assign to the Government title throughout the world to each subject invention, except to the extent that rights are retained under paragraphs (b)(2) and (d) of this clause.

(2) Greater rights determinations.

(i) The Contractor, or an employee-inventor after consultation with the Contractor, may request greater rights than the nonexclusive license provided in paragraph (d) of this clause. The request for a greater rights must be submitted to the Contracting Officer at the time of the first disclosure of the subject invention pursuant to paragraph (e)(2) of this clause, or not later than 8 months thereafter, unless a longer period is authorized in writing by the Contracting Officer for good cause shown in writing by the Contractor. Each determination of greater rights under this contract normally shall be subject to paragraph (c) of this clause, and to the reservations and conditions deemed to be appropriate by the agency.

(1) Regarding each subject invention to which the Contractor retains ownership, the Contractor agrees as follows:

(ii) Upon request, the Contractor shall provide the filing date, serial number and title, a copy of the patent application (including an English-language version if filed in a language other than English), and patent number and issue date for any subject invention in any country for which the Contractor has retained title.

(iii) Upon request, the Contractor shall furnish the agency an irrevocable power to inspect and make copies of the patent application file.

(c) Minimum rights acquired by the Government.

(i) The Government will have a nonexclusive, nontransferable, irrevocable, paid-up license to practice, or have practiced for or on its behalf, the subject invention throughout the world.

(ii) The agency has the right to require licensing pursuant to 35 U.S.C. 203 and 210(c) and in accordance with the procedures set forth in 37 CFR 401.6 and any supplemental regulations of the agency in effect on the date of the contract award.

(iv) When licensing a subject invention, the Contractor shall--

(A) Ensure that no royalties are charged on acquisitions involving Government funds, including funds derived through a Military Assistance Program of the Government or otherwise derived through the Government;

(B) Refund any amounts received as royalty charges on a subject invention in acquisitions for, or on behalf of, the Government;

(C) Provide for this refund in any instrument transferring rights in the subject invention to any party.

(2) The Contractor's license may be revoked or modified by the agency to the extent necessary to achieve expeditious practical application of the subject invention in a particular country in accordance with the procedures in FAR 27.302(i)(2) and 27.304-1(f).

(iii) Upon request, the Contractor shall submit periodic reports no more frequently than annually on the utilization, or efforts to obtain utilization, of a subject invention by the Contractor or its licensees or assignees. The reports shall include information regarding the status of development, date of first commercial sale or use, gross royalties received by the Contractor, and any other data and information as the agency may reasonably specify. The Contractor also shall provide additional reports as may be requested by the agency in connection with any march-in proceedings undertaken by the agency in accordance with paragraph (c)(1)(ii) of this clause. To the extent data or information supplied under this section is considered by the Contractor, or its licensees, or assignees to be privileged and confidential and is so marked, the agency, to the extent permitted by law, will not disclose such information to persons outside the Government.

(v) When transferring rights in a subject invention, the Contractor shall provide for the Government's rights set forth in paragraphs (c)(1)(i) through (c)(1)(iv) of this clause.

(2) Nothing contained in paragraph (c) of this clause shall be deemed to grant to the Government rights in any invention other than a subject invention.

(d) Minimum rights to the Contractor.

(1) The Contractor is hereby granted a revocable, nonexclusive, paid-up license in each patent application filed in any country on a subject invention and any resulting patent in which the Government obtains title, unless the Contractor fails to disclose the subject invention within the times specified in paragraph (e)(2) of this clause. The Contractor's license extends to any of its domestic subsidiaries and affiliates within the corporate structure of which the Contractor is a part, and includes the right to grant sublicenses to the extent the Contractor was legally obligated to do so at contract award.



[REDACTED]

The license is transferable only with the written approval of the agency except when transferred to the successor of that part of the Contractor's business to which the subject invention pertains.

(3) When the Government elects not to apply for a patent in any foreign country, the Contractor retains rights in that foreign country to apply for a patent, subject to the Government's rights in paragraph (c)(1) of this clause.

(e) Invention identification, disclosures, and reports.

(f) Examination of records relating to inventions.

(1) The Contractor shall establish and maintain active and effective procedures to educate its employees in order to assure that subject inventions are promptly identified and disclosed to Contractor personnel responsible for patent matters. The procedures shall include the maintenance of laboratory notebooks or equivalent records and other records as are reasonably necessary to document the conception and/or the first actual reduction to practice of subject inventions, and records that show the procedures for identifying and disclosing subject inventions are followed. Upon request, the Contractor shall furnish the Contracting Officer a description of these procedures for evaluation and for a determination as to their effectiveness.

(3) The Contractor shall furnish the Contracting Officer the following:

(i) Interim reports every 12 months (or a longer period as may be specified by the Contracting Officer) from the date of the contract, listing subject inventions during that period, and stating that all subject inventions have been disclosed (or that there are none) and that the procedures required by paragraph (e)(1) of this clause have been followed.

(2) The Contractor shall disclose in writing each subject invention to the Contracting Officer within 2 months after the inventor discloses it in writing to Contractor personnel responsible for patent matters or, if earlier, within 6 months after the Contractor becomes aware that a subject invention has been made, but in any event before any on sale (i.e., sale or offer for sale), public use, or publication of the subject invention known to the Contractor. The disclosure shall identify the contract under which the subject invention was made and the inventor(s). It shall be sufficiently complete in technical detail to convey a clear understanding of the subject invention. The disclosure shall also identify any publication, on sale, or public use of the subject invention and whether a manuscript describing the subject invention has been submitted for publication and, if so, whether it has been accepted for publication. In addition, after disclosure to the agency, the Contractor shall promptly notify the Contracting Officer of the acceptance of any manuscript describing the subject invention for publication and any on sale or public use.

(ii) A final report, within 3 months after completion of the contracted work, listing all subject inventions or stating that there were none, and listing all subcontracts at any tier containing a patent rights clause or stating that there were none.

(4) The Contractor shall require, by written agreement, its employees, other than clerical and nontechnical employees, to disclose promptly in writing to personnel identified as responsible for the administration of patent matters and in the Contractor's format each subject invention in order that the Contractor can comply with the disclosure provisions of paragraph (c) of this clause, and to execute all papers necessary to file patent applications on subject inventions and to establish the Government's rights in the subject inventions. This disclosure format should require, as a minimum, the information required by paragraph (e)(2) of this clause. The Contractor shall instruct such employees, through employee agreements or other suitable educational programs, as to the importance of reporting inventions in sufficient time to permit the filing of patent applications prior to U.S. or foreign statutory bars.

(5) Subject to FAR 27.302(i), the Contractor agrees that the Government may duplicate and disclose subject invention disclosures and all other reports and papers furnished or required to be furnished pursuant to this clause.

(1) The Contracting Officer or any authorized representative shall, until 3 years after final payment under this contract, have the right to examine any books (including laboratory notebooks), records, and documents of the Contractor relating to the conception or first actual reduction to practice of inventions in the same field of technology as the work under this contract to determine whether--

(i) Any inventions are subject inventions;

(ii) The Contractor has established and maintains the procedures required by paragraphs (e)(1) and (e)(4) of this clause; and

(g) Withholding of payment. (This paragraph does not apply to subcontracts)

(iii) The Contractor and its inventors have complied with the procedures.

(2) The Contractor shall disclose to the Contracting Officer, for the determination of ownership rights, any unreported invention that the Contracting Officer believes may be a subject invention.

(3) Any examination of records under paragraph (f) of this clause will be subject to appropriate conditions to protect the confidentiality of the information involved.

(1) Any time before final payment under this contract, the Contracting Officer may, in the Government's interest, withhold payment until a reserve not exceeding \$50,000 or 5 percent of the

amount of this contract, whichever is less, shall have been set aside if, in the Contracting Officer's opinion, the Contractor fails to--

(iv) Provide the information regarding subcontracts pursuant to paragraph (i)(4) of this clause.

(i) Establish, maintain, and follow effective procedures for identifying and disclosing subject inventions pursuant to paragraph (e)(1) of this clause;

(ii) Disclose any subject invention pursuant to paragraph (e)(2) of this clause;

(iii) Deliver acceptable interim reports pursuant to paragraph (e)(3)(i) of this clause; or

(2) The Contracting Officer will withhold the reserve or balance until the Contracting Officer has determined that the Contractor has rectified whatever deficiencies exist and has delivered all reports, disclosures, and other information required by this clause.

(3) The Contracting Officer will not make final payment under this contract before the Contractor delivers to the Contracting Officer, as required by this clause, all disclosures of subject inventions, an acceptable final report, and all due confirmatory instruments.

(4) The Contracting Officer may decrease or increase the sums withheld up to the maximum authorized. The Contracting Officer will not withhold any amount under this paragraph while the amount specified by this paragraph is being withheld under other provisions of the contract. The withholding of any amount or the subsequent payment shall not be construed as a waiver of any Government rights.

(2) In the event of a refusal by a prospective subcontractor to accept the clause, the Contractor--

(h) Preference for United States industry. Unless provided otherwise, neither the Contractor nor any assignee shall grant to any person the exclusive right to use or sell any subject invention in the United States unless the person agrees that any products embodying the subject invention or produced through the use of the subject invention will be manufactured substantially in the United States. However, in individual cases, the requirement may be waived by the agency upon a showing by the Contractor or assignee that reasonable but unsuccessful efforts have been made to grant licenses on similar terms to potential licensees that would be likely to manufacture substantially in the United States or that, under the circumstances, domestic manufacture is not commercially feasible.

(i) Subcontracts.

(1) The Contractor shall include the substance of the patent rights clause required by FAR Subpart 27.3 in all subcontracts for experimental, developmental, or research work. The prescribed patent rights clause must be modified to identify the parties as follows: references to the Government are not changed, and the subcontractor has all rights and obligations of the Contractor in the clause. The Contractor shall not, as part of the consideration for awarding the subcontract, obtain rights in the subcontractor's subject inventions.

(3) In subcontracts at any tier, the agency, the subcontractor, and the Contractor agree that the mutual obligations of the parties created by the patent rights clause constitute a contract between the subcontractor and the agency with respect to those matters covered by this clause.

(i) Shall promptly submit a written notice to the Contracting Officer setting forth the subcontractor's reasons for such refusal and other pertinent information that may expedite disposition of the matter; and

(ii) Shall not proceed with such subcontract without the written authorization of the Contracting Officer.

(4) The Contractor shall promptly notify the Contracting Officer in writing upon the award of any subcontract at any tier containing a patent rights clause by identifying the subcontractor, the applicable patent rights clause, the work to be performed under the subcontract, and the dates of award and estimated completion. Upon request of the Contracting Officer, the Contractor shall furnish a copy of such subcontract, and, no more frequently than annually, a listing of the subcontracts that have been awarded.

(End of clause)

#### I.200 52.228-3 WORKERS' COMPENSATION INSURANCE (DEFENSE BASE ACT) (APR 1984)

(a) The Contractor shall--

(1) Before commencing performance under this contract, establish provisions to provide for the payment of disability compensation and medical benefits to covered employees and death benefits to their eligible survivors, by purchasing workers' compensation insurance or qualifying as a self-insurer under the Longshore and Harbor Workers' Compensation Act (33 U.S.C. 932) as extended by the Defense Base Act (42 U.S.C. 1651, et seq.), and continue to maintain provisions to provide such Defense Base Act benefits until contract performance is completed;

(2) Within ten days of an employee's injury or death or from the date the Contractor has knowledge of the injury or death, submit Form LS-202 (Employee's First Report of Injury or Occupational Illness) to the Department of Labor in accordance with the Longshore and Harbor Workers' Compensation Act (33 U.S.C. 930(a), 20 CFR 702.201 to 702.203);

(3) Pay all compensation due for disability or death within the time frames required by the Longshore and Harbor Workers' Compensation Act (33 U.S.C. 914, 20 CFR 702.231 and 703.232);

(4) Provide for medical care as required by the Longshore and Harbor Workers' Compensation Act (33 U.S.C. 907, 20 CFR 702.402 and 702.419);

(5) If controverting the right to compensation, submit Form LS- 207 (Notice of Controversion of Right to Compensation) to the Department of Labor in accordance with the Longshore and Harbor Workers' Compensation Act (33 U.S.C. 914(d), 20 CFR 702.251);

(6) Immediately upon making the first payment of compensation in any case, submit Form LS-206 (Payment Of Compensation Without Award) to the Department of Labor in accordance with the Longshore and Harbor Workers' Compensation Act (33 U.S.C. 914(c), 20 CFR 702.234);

(7) When payments are suspended or when making the final payment, submit Form LS-208 (Notice of Final Payment or Suspension of Compensation Payments) to the Department of Labor in accordance with the Longshore and Harbor Workers' Compensation Act (33 U.S.C. 914(c) and (g), 20 CFR 702.234 and 702.235); and

(8) Adhere to all other provisions of the Longshore and Harbor Workers' Compensation Act as extended by the Defense Base Act, and Department of Labor regulations at 20 CFR Parts 701 to 704.

(b) For additional information on the Longshore and Harbor Workers' Compensation Act requirements see <http://www.dol.gov/owcp/dlhwc/lsdba.htm>.

(c) The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts to which the Defense Base Act applies.

(End of clause)

#### I.201 52.229-8 TAXES--FOREIGN COST-REIMBURSEMENT CONTRACTS (MAR 1990)

(a) Any tax or duty from which the United States Government is exempt by agreement with the Government of See TO or from which the Contractor or any subcontractor under this contract is exempt under the laws of See TO shall not constitute an allowable cost under this contract.

(b) If the Contractor or subcontractor under this contract obtains a foreign tax credit that reduces its Federal income tax liability under the United States Internal Revenue Code (Title 26, U.S. Code) because of the payment of any tax or duty that was reimbursed under this contract, the amount of the reduction shall be paid or credited at the time of such offset to the Government of the United States as the Contracting Officer directs.

(End of Clause)

#### I.202 52.230-2 COST ACCOUNTING STANDARDS (JUN 2020)

(a) Unless the contract is exempt under 48 CFR 9903.201-1 and 9903.201-2, the provisions of 48 CFR part 9903 are incorporated herein by reference and the Contractor, in connection with this contract, shall-

(1) (CAS-covered Contracts Only) By submission of a Disclosure Statement, disclose in writing the Contractor's cost accounting practices as required by 48 CFR 9903.202-1 through 9903.202-5, including methods of distinguishing direct costs from indirect costs and the basis used for allocating indirect costs. The practices disclosed for this contract shall be the same as the practices currently disclosed and applied on all other contracts and subcontracts being performed by the Contractor and which contain a Cost Accounting Standards(CAS) clause. If the Contractor has notified the Contracting Officer that the Disclosure Statement contains trade secrets and commercial or financial information which is privileged and confidential, the Disclosure Statement shall be protected and shall not be released outside of the Government.

(2) Follow consistently the Contractor's cost accounting practices in accumulating and reporting contract performance cost data concerning this contract. If any change in cost accounting practices is made for the purposes of any contract or subcontract subject to CAS requirements, the change must be applied prospectively to this contract and the Disclosure Statement must be amended accordingly. If the contract price or cost allowance of this contract is affected by such changes, adjustment shall be made in accordance with paragraph (a)(4) or (a)(5) of this clause, as appropriate.

(3) Comply with all CAS, including any modifications and interpretations indicated thereto contained in 48 CFR part 9904, in effect on the date of award of this contract or, if the Contractor has submitted certified cost or pricing data, on the date of final agreement on price as shown on the Contractor's signed certificate of current cost or pricing data. The Contractor shall also comply with any CAS (or modifications to CAS) which hereafter become applicable to a contract or subcontract of the Contractor. Such compliance shall be required prospectively from the date of applicability to such contract or subcontract.

(4)

(i) (Agree to an equitable adjustment as provided in the Changes clause of this contract if the contract cost is affected by a change which, pursuant to paragraph (a)(3) of this clause, the Contractor is required to make to the Contractor's established cost accounting practices.

(ii) Negotiate with the Contracting Officer to determine the terms and conditions under which a change may be made to a cost accounting practice, other than a change made under other provisions of paragraph (a)(4) of this clause; provided that no agreement may be made under this provision that will increase costs paid by the United States.

(b) If the parties fail to agree whether the Contractor or a subcontractor has complied with an applicable CAS in 48 CFR 9904 or a CAS rule or regulation in 48 CFR 9903 and as to any cost adjustment demanded by the United States, such failure to agree will constitute a dispute under 41 U.S.C. chapter 71, Contract Disputes.

(iii) When the parties agree to a change to a cost accounting practice, other than a change under subdivision (a)(4)(i) of this clause, negotiate an equitable adjustment as provided in the Changes clause of this contract.

(5) Agree to an adjustment of the contract price or cost allowance, as appropriate, if the Contractor or a subcontractor fails to comply with an applicable Cost Accounting Standard, or to follow any cost accounting practice consistently and such failure results in any increased costs paid by the United States. Such adjustment shall provide for recovery of the increased costs to the United States, together with interest thereon computed at the annual rate established under section 6621 of the Internal Revenue Code of 1986 (26 U.S.C. 6621(a)(2)) for such period, from the time the payment by the United States was made to the time the adjustment is effected. In no case shall the Government recover costs greater than the increased cost to the Government, in the aggregate, on the relevant contracts subject to the price adjustment, unless the Contractor made a change in its cost accounting practices of which it was aware or should have been aware at the time of price negotiations and which it failed to disclose to the Government.

(c) The Contractor shall permit any authorized representatives of the Government to examine and make copies of any documents, papers, or records relating to compliance with the requirements of this clause.  
(End Of Clause)

(d) The Contractor shall include in all negotiated subcontracts which the Contractor enters into, the substance of this clause, except paragraph (b), and shall require such inclusion in all other subcontracts, of any tier, including the obligation to comply with all CAS in effect on the subcontractor's award date or if the subcontractor has submitted certified cost or pricing data, on the date of final agreement on price as shown on the subcontractor's signed Certificate of Current Cost or Pricing Data. If the subcontract is awarded to a business unit which pursuant to 48 CFR 9903.201-2 is subject to other types of CAS coverage, the substance of the applicable clause set forth in subsection 30.201-4 of the Federal Acquisition Regulation (FAR) shall be inserted. This requirement shall apply only to negotiated subcontracts in excess of the lower CAS threshold specified in FAR 30.201-4(b) on the date of subcontract award, except that the requirement shall not apply to negotiated subcontracts otherwise exempt from the requirement to include a CAS clause as specified in 48 CFR 9903.201-1.

#### I.203 52.230-6 ADMINISTRATION OF COST ACCOUNTING STANDARDS (JUN 2010)

For the purpose of administering the Cost Accounting Standards (CAS) requirements under this contract, the Contractor shall take the steps outlined in paragraphs (b) through (i) and (k) through (n) of this clause:

(a) Definitions. As used in this clause--

"Affected CAS-covered contract or subcontract" means a contract or subcontract subject to CAS rules and regulations for which a Contractor or subcontractor--

(1) Used one cost accounting practice to estimate costs and a changed cost accounting practice to accumulate and report costs under the contract or subcontract; or

(2) Used a noncompliant practice for purposes of estimating or accumulating and reporting costs under the contract or subcontract.

"Cognizant Federal agency official (CFAO)" means the Contracting Officer assigned by the cognizant Federal agency to administer the CAS.

"Desirable change" means a compliant change to a Contractor's established or disclosed cost accounting practices that the CFAO finds is desirable and not detrimental to the Government and is, therefore, not subject to the no increased cost prohibition provisions of CAS-covered contracts and subcontracts affected by the change.

"Fixed-price contracts and subcontracts" means--

(1) Fixed-price contracts and subcontracts described at FAR 16.202, 16.203, (except when price adjustments are based on actual costs of labor or material, described at 16.203-1(a)(2)), and 16.207;

(2) Fixed-price incentive contracts and subcontracts where the price is not adjusted based on actual costs incurred (FAR Subpart 16.4);

(3) Orders issued under indefinite-delivery contracts and subcontracts where final payment is not based on actual costs incurred (FAR Subpart 16.5); and

(4) The fixed-hourly rate portion of time-and-materials and labor-hours contracts and subcontracts (FAR Subpart 16.6).

"Flexibly-priced contracts and subcontracts means"--

(1) Fixed-price contracts and subcontracts described at FAR 16.203-1(a)(2), 16.204, 16.205, and 16.206;

(2) Cost-reimbursement contracts and subcontracts (FAR Subpart 16.3);

(3) Incentive contracts and subcontracts where the price may be adjusted based on actual costs incurred (FAR Subpart 16.4);

(4) Orders issued under indefinite-delivery contracts and subcontracts where final payment is based on actual costs incurred (FAR Subpart 16.5); and

(5) The materials portion of time-and-materials contracts and subcontracts (FAR Subpart 16.6).

"Noncompliance" means a failure in estimating, accumulating, or reporting costs to--

(1) Comply with applicable CAS; or

(2) Consistently follow disclosed or established cost accounting practices.

"Required change" means--

(1) A change in cost accounting practice that a Contractor is required to make in order to comply with applicable Standards, modifications or interpretations thereto, that subsequently become applicable to existing CAS-covered contracts or subcontracts due to the receipt of another CAS-covered contract or subcontract; or

(1) When a description has been submitted for a change in cost accounting practice that is dependent on a contract award and that contract is subsequently awarded, notify the CFAO within 15 days after such award.

(2) A prospective change to a disclosed or established cost accounting practice when the CFAO determines that the former practice was in compliance with applicable CAS and the change is necessary for the Contractor to remain in compliance.

"Unilateral change" means a change in cost accounting practice from one compliant practice to another compliant practice that a Contractor with a CAS-covered contract(s) or subcontract(s) elects to make that has not been deemed a desirable change by the CFAO and for which the Government will pay no aggregate increased costs.

(b) Submit to the CFAO a description of any cost accounting practice change as outlined in paragraphs (b)(1) through (3) of this clause (including revisions to the Disclosure Statement, if applicable), and any written statement that the cost impact of the change is immaterial. If a change in cost accounting practice is implemented without submitting the notice required by this paragraph, the CFAO may determine the change to be a failure to follow paragraph (a)(2) of the clause at FAR 52.230-2, Cost Accounting Standards; paragraph (a)(4) of the clause at FAR 52.230-3, Disclosure and Consistency of Cost Accounting Practices; paragraph (a)(4) of the clause at FAR 52.230-4, Disclosure and Consistency of Cost Accounting Practices; Foreign Concerns; or paragraph (a)(2) of the clause at FAR 52.230-5, Cost Accounting Standards--Educational Institution.

(2) For any change in cost accounting practice not covered by (b)(1) of this clause that is required in accordance with paragraphs (a)(3) and (a)(4)(i) of the clause at FAR 52.230-2; or paragraphs (a)(3), (a)(4)(i), or (a)(4)(iv) of the clause at FAR 52.230-5; submit a description of the change to the CFAO not less than 60 days (or such other date as may be mutually agreed to by the CFAO and the Contractor) before implementation of the change.

(3) For any change in cost accounting practices proposed in accordance with paragraph (a)(4)(ii) or (iii) of the clauses at FAR 52.230-2 and FAR 52.230-5; or with paragraph (a)(3) of the clauses at FAR 52.230-3 and FAR 52.230-4, submit a description of the change not less than 60 days (or such other date as may be mutually agreed to by the CFAO and the Contractor) before implementation of the change. If the change includes a proposed retroactive date submit supporting rationale.

(4) Submit a description of the change necessary to correct a failure to comply with an applicable CAS or to follow a disclosed practice (as contemplated by paragraph (a)(5) of the clause at FAR 52.230-2 and FAR 52.230-5; or by paragraph (a)(4) of the clauses at FAR 52.230-3 and FAR 52.230-4)--

(i) Within 60 days (or such other date as may be mutually agreed to by the CFAO and the Contractor) after the date of agreement with the CFAO that there is a noncompliance; or

(2) A detailed cost-impact (DCI) proposal in accordance with paragraph (e) or (h) of this clause;

(ii) In the event of Contractor disagreement, within 60 days after the CFAO notifies the Contractor of the determination of noncompliance.

(c) When requested by the CFAO, submit on or before a date specified by the CFAO--

(1) A general dollar magnitude (GDM) proposal in accordance with paragraph (d) or (g) of this clause. The Contractor may submit a detailed cost-impact (DCI) proposal in lieu of the requested GDM proposal provided the DCI proposal is in accordance with paragraph (e) or (h) of this clause;

(3) For any request for a desirable change that is based on the criteria in FAR 30.603-2(b)(3)(ii), the data necessary to demonstrate the required cost savings; and

[REDACTED]

(4) For any request for a desirable change that is based on criteria other than that in FAR 30.603-2(b)(3)(ii), a GDM proposal and any other data necessary for the CFAO to determine if the change is a desirable change.

(d) For any change in cost accounting practice subject to paragraph (b)(1), (b)(2), or (b)(3) of this clause, the GDM proposal shall--

(1) Calculate the cost impact in accordance with paragraph (f) of this clause;

(2) Use one or more of the following methods to determine the increase or decrease in cost accumulations:

(i) A representative sample of affected CAS-covered contracts and subcontracts.

(ii) The change in indirect rates multiplied by the total estimated base computed for each of the following groups:

(A) Fixed-price contracts and subcontracts.

(B) Flexibly-priced contracts and subcontracts.

(A) Fixed-price contracts and subcontracts.

(iii) Any other method that provides a reasonable approximation of the total increase or decrease in cost accumulations for all affected fixed-price and flexibly-priced contracts and subcontracts;

(3) Use a format acceptable to the CFAO but, as a minimum, include the following data:

(i) The estimated increase or decrease in cost accumulations by Executive agency, including any impact the change may have on contract and subcontract incentives, fees, and profits, for each of the following groups:

(B) Flexibly-priced contracts and subcontracts.

(ii) For unilateral changes, the increased or decreased costs to the Government for each of the following groups:

(A) Fixed-price contracts and subcontracts.

(B) Flexibly-priced contracts and subcontracts; and

(4) When requested by the CFAO, identify all affected CAS-covered contracts and subcontracts.

(e) For any change in cost accounting practice subject to paragraph (b)(1), (b)(2), or (b)(3) of this clause, the DCI proposal shall--

(1) Show the calculation of the cost impact in accordance with paragraph (f) of this clause;

(2) Show the estimated increase or decrease in cost accumulations for each affected CAS-covered contract and subcontract unless the CFAO and Contractor agree to include--

(i) Only those affected CAS-covered contracts and subcontracts having an estimate to complete exceeding a specified amount; and

(ii) An estimate of the total increase or decrease in cost accumulations for all affected CAS-covered contracts and subcontracts, using the results in paragraph (e)(2)(i) of this clause;

(3) Use a format acceptable to the CFAO but, as a minimum, include the information in paragraph (d) (3) of this clause; and

(4) When requested by the CFAO, identify all affected CAS-covered contracts and subcontracts.

(f) For GDM and DCI proposals that are subject to the requirements of paragraph (d) or (e) of this clause, calculate the cost impact as follows:

(1) The cost impact calculation shall include all affected CAS-covered contracts and subcontracts regardless of their status (i.e., open or closed) or the fiscal year in which the costs were incurred (i.e., whether or not the final indirect rates have been established).

(2) For unilateral changes--

(i) Determine the increased or decreased cost to the Government for flexibly-priced contracts and subcontracts as follows:

(A) When the estimated cost to complete using the changed practice exceeds the estimated cost to complete using the current practice, the difference is increased cost to the Government.

(B) When the estimated cost to complete using the changed practice exceeds the estimated cost to complete using the current practice, the difference is decreased cost to the Government;

(B) When the estimated cost to complete using the changed practice is less than the estimated cost to complete using the current practice, the difference is decreased cost to the Government;

(ii) Determine the increased or decreased cost to the Government for fixed-priced contracts and subcontracts as follows:

(A) When the estimated cost to complete using the changed practice is less than the estimated cost to complete using the current practice, the difference is increased cost to the Government.

(i) Estimated increased cost accumulations are the basis for increasing contract prices, target prices and cost ceilings; and

(iii) Calculate the total increase or decrease in contract and subcontract incentives, fees, and profits associated with the increased or decreased costs to the Government in accordance with 48 CFR 9903.306(c). The associated increase or decrease is based on the difference between the negotiated incentives, fees, and profits and the amounts that would have been negotiated had the cost impact been known at the time the contracts and sub contracts were negotiated; and

(iv) Calculate the increased cost to the Government in the aggregate.

(3) For equitable adjustments for required or desirable changes--  
(ii) Estimated decreased cost accumulations are the basis for decreasing contract prices, target prices and cost ceilings.  
(g) For any noncompliant cost accounting practice subject to paragraph (b)(4) of this clause, prepare the GDM proposal as follows:  
(1) Calculate the cost impact in accordance with paragraph (i) of this clause.  
(2) Use one or more of the following methods to determine the increase or decrease in contract and subcontract prices or cost accumulations, as applicable:  
(i) A representative sample of affected CAS-covered contracts and subcontracts.  
(ii) When the noncompliance involves cost accumulation the change in indirect rates multiplied by the applicable base for only flexibly-priced contracts and subcontracts.  
(iii) Any other method that provides a reasonable approximation of the total increase or decrease.  
(3) Use a format acceptable to the CFAO but, as a minimum, include the following data:  
(i) The total increase or decrease in contract and subcontract price and cost accumulations, as applicable, by Executive agency, including any impact the noncompliance may have on contract and subcontract incentives, fees, and profits, for each of the following groups:  
(A) Fixed-price contracts and subcontracts.  
(B) Flexibly-priced contracts and subcontracts.  
(ii) The increased or decreased cost to the Government for each of the following groups:  
(A) Fixed-price contracts and subcontracts.  
(B) Flexibly-priced contracts and subcontracts.  
(iii) The total overpayments and underpayments made by the Government during the period of noncompliance.  
(4) When requested by the CFAO, identify all CAS-covered contracts and subcontracts.  
(h) For any noncompliant practice subject to paragraph (b)(4) of this clause, prepare the DCI proposal as follows:  
(A) Contract and subcontract values exceeding a specified amount when the noncompliance involves estimating costs; and  
(1) Calculate the cost impact in accordance with paragraph (i) of this clause.  
(2) Show the increase or decrease in price and cost accumulations for each affected CAS-covered contract and subcontract unless the CFAO and Contractor agree to--  
(i) Include only those affected CAS-covered contracts and subcontracts having--  
(B) Incurred costs exceeding a specified amount when the noncompliance involves accumulating costs; and  
(i) For GDM and DCI proposals that are subject to the requirements of paragraph (g) or (h) of this clause, calculate the cost impact as follows:  
(ii) Estimate the total increase or decrease in price and cost accumulations for all affected CAS-covered contracts and subcontracts using the results in paragraph (h)(2)(i) of this clause.  
(3) Use a format acceptable to the CFAO that, as a minimum, include the information in paragraph (g) (3) of this clause.  
(4) When requested by the CFAO, identify all CAS-covered contracts and subcontracts.  
(1) The cost impact calculation shall include all affected CAS-covered contracts and subcontracts regardless of their status (i.e., open or closed) or the fiscal year in which the costs are incurred (i.e., whether or not the final indirect rates have been established).  
(2) For noncompliances that involve estimating costs, determine the increased or decreased cost to the Government for fixed-price contracts and subcontracts as follows:  
(i) When the negotiated contract or subcontract price exceeds what the negotiated price would have been had the Contractor used a compliant practice, the difference is increased cost to the Government.  
(ii) When the negotiated contract or subcontract price is less than what the negotiated price would have been had the Contractor used a compliant practice, the difference is decreased cost to the Government.  
(3) For noncompliances that involve accumulating costs, determine the increased or decreased cost to the Government for flexibly-priced contracts and subcontracts as follows:  
(i) When the costs that were accumulated under the noncompliant practice exceed the costs that would have been accumulated using a compliant practice (from the time the noncompliant practice was first implemented until the date the noncompliant practice was replaced with a compliant practice), the difference is increased cost to the Government.  
(j) If the Contractor does not submit the information required by paragraph (b) or (c) of this clause within the specified time, or any extension granted by the CFAO, the CFAO may take one or both of the following actions:  
(ii) When the costs that were accumulated under the noncompliant practice are less than the costs that would have been accumulated using a compliant practice (from the time the noncompliant practice

[REDACTED]

was first implemented until the date the noncompliant practice was replaced with a compliant practice), the difference is decreased cost to the Government.

(4) Calculate the total increase or decrease in contract and subcontracts incentives, fees, and profits associated with the increased or decreased cost to the Government in accordance with 48 CFR 9903.306(c). The associated increase or decrease is based on the difference between the negotiated incentives, fees, and profits and the amounts that would have been negotiated had the Contractor used a compliant practice.

(5) Calculate the increased cost to the Government in the aggregate.

(1) Withhold an amount not to exceed 10 percent of each subsequent amount payment to the Contractor's affected CAS-covered contracts, (up to the estimated general dollar magnitude of the cost impact), until such time as the Contractor provides the required information to the CFAO.

(2) Repay the Government for any aggregate increased cost paid to the Contractor.

(2) Issue a final decision in accordance with FAR 33.211 and unilaterally adjust the contract(s) by the estimated amount of the cost impact.

(k) Agree to--

(1) Contract modifications to reflect adjustments required in accordance with paragraph (a)(4)(ii) or (a)(5) of the clauses at FAR 52.230-2 and 52.230-5; or with paragraph (a)(3)(i) or (a)(4) of the clauses at FAR 52.230-3 and FAR 52.230-4; and

(l) For all subcontracts subject to the clauses at FAR 52.230-2, 52.230-3, 52.230-4, or 52.230-5--

(1) So state in the body of the subcontract, in the letter of award, or in both (do not use self-deleting clauses);

(2) Include the substance of this clause in all negotiated subcontracts; and

(3) Within 30 days after award of the subcontract, submit the following information to the Contractor's CFAO:

(i) Subcontractor's name and subcontract number.

(ii) Dollar amount and date of award.

(iii) Name of Contractor making the award.

(m) Notify the CFAO in writing of any adjustments required to subcontracts under this contract and agree to an adjustment to this contract price or estimated cost and fee. The Contractor shall--

(1) Provide this notice within 30 days after the Contractor receives the proposed subcontract adjustments; and

(End of Clause)

(2) Include a proposal for adjusting the higher-tier subcontract or the contract appropriately.

(n) For subcontracts containing the clause or substance of the clause at FAR 52.230-2, FAR 52.230-3, FAR 52.230-4, or FAR 52.230-5, require the subcontractor to comply with all Standards in effect on the date of award or of final agreement on price, as shown on the subcontractor's signed Certificate of Current Cost or Pricing Data, whichever is earlier.

#### I.204 52.232-7 PAYMENTS UNDER TIME-AND-MATERIALS AND LABOR-HOUR CONTRACTS (NOV 2021)

The Government will pay the Contractor as follows upon the submission of vouchers approved by the Contracting Officer or the authorized representative:

(a) Hourly rate.

(1) Hourly rate means the rate(s) prescribed in the contract for payment for labor that meets the labor category qualifications of a labor category specified in the contract that are--

(i) Performed by the Contractor;

(ii) Performed by the subcontractors; or

(iii) Transferred between divisions, subsidiaries, or affiliates of the Contractor under a common control.

(2) The amounts shall be computed by multiplying the appropriate hourly rates prescribed in the Schedule by the number of direct labor hours performed.

(3) The hourly rates shall be paid for all labor performed on the contract that meets the labor qualifications specified in the contract. Labor hours incurred to perform tasks for which labor qualifications were specified in the contract will not be paid to the extent the work is performed by employees that do not meet the qualifications specified in the contract, unless specifically authorized by the Contracting Officer.

(4) The hourly rates shall include wages, indirect costs, general and administrative expense, and profit. Fractional parts of an hour shall be payable on a prorated basis.

(5) Vouchers may be submitted not more than once every two weeks, to the Contracting Officer or authorized representative. A small business concern may receive more frequent payments than every two weeks. The Contractor shall substantiate vouchers (including any subcontractor hours reimbursed at the hourly rate in the schedule) by evidence of actual payment and by--



[REDACTED]

(i) Individual daily job timekeeping records;

(ii) Records that verify the employees meet the qualifications for the labor categories specified in the contract; or

(iii) Other substantiation approved by the Contracting Officer.

(6) Promptly after receipt of each substantiated voucher, the Government shall, except as otherwise provided in this contract, and subject to the terms of paragraph (e) of this clause, pay the voucher as approved by the Contracting Officer or authorized representative.

(7) Unless otherwise prescribed in the Schedule, the Contracting Officer may unilaterally issue a contract modification requiring the Contractor to withhold amounts from its billings until a reserve is set aside in an amount that the Contracting Officer considers necessary to protect the Government's interests. The Contracting Officer may require a withhold of 5 percent of the amounts due under paragraph (a) of this clause, but the total amount withheld for the contract shall not exceed \$50,000. The amounts withheld shall be retained until the Contractor executes and delivers the release required by paragraph (f) of this clause.

(i) Direct materials means those materials that enter directly into the end product, or that are used or consumed directly in connection with the furnishing of the end product or service.

(8) Unless the Schedule prescribes otherwise, the hourly rates in the Schedule shall not be varied by virtue of the Contractor having performed work on an overtime basis. If no overtime rates are provided in the Schedule and overtime work is approved in advance by the Contracting Officer, overtime rates shall be negotiated. Failure to agree upon these overtime rates shall be treated as a dispute under the Disputes clause of this contract. If the Schedule provides rates for overtime, the premium portion of those rates will be reimbursable only to the extent the overtime is approved by the Contracting Officer.

(b) Materials.

(1) For the purposes of this clause--

(ii) Materials means--

(A) Direct materials, including supplies transferred between divisions, subsidiaries, or affiliates of the Contractor under a common control;

(B) Subcontracts for supplies and incidental services for which there is not a labor category specified in the contract;

(C) Other direct costs (e.g., incidental services for which there is not a labor category specified in the contract, travel, computer usage charges, etc.); and

(D) Applicable indirect costs.

(2) If the Contractor furnishes its own materials that meet the definition of a commercial product or commercial service in Federal Acquisition Regulation (FAR) 2.101, the price to be paid for such materials shall not exceed the Contractor's established catalog or market price, adjusted to reflect the--

(i) Quantities being acquired; and

(ii) Actual cost of any modifications necessary because of contract requirements.

(3) Except as provided for in paragraph (b)(2) of this clause, the Government will reimburse the Contractor for allowable cost of materials provided the Contractor--

(i) Has made payments for materials in accordance with the terms and conditions of the agreement or invoice; or

(ii) Ordinarily makes these payments within 30 days of the submission of the Contractor's payment request to the Government and such payment is in accordance with the terms and conditions of the agreement or invoice.

(4) Payment for materials is subject to the Allowable Cost and Payment clause of this contract. The Contracting Officer will determine allowable costs of materials in accordance with FAR subpart 31.2 in effect on the date of this contract.

(5) The Contractor may include allocable indirect costs and other direct costs to the extent they are--

(i) Comprised only of costs that are clearly excluded from the hourly rate;

(i) Obtain materials at the most advantageous prices available with due regard to securing prompt delivery of satisfactory materials; and

(ii) Allocated in accordance with the Contractor's written or established accounting practices; and

(iii) Indirect costs are not applied to subcontracts that are paid at the hourly rates.

(6) To the extent able, the Contractor shall--

(ii) Take all cash and trade discounts, rebates, allowances, credits, salvage, commissions, and other benefits. When unable to take advantage of the benefits, the Contractor shall promptly notify the Contracting Officer and give the reasons. The Contractor shall give credit to the Government for cash and trade discounts, rebates, scrap, commissions, and other amounts that have accrued to the benefit of the Contractor, or would have accrued except for the fault or neglect of the Contractor. The Contractor shall not deduct from gross costs the benefits lost without fault or neglect on the part of the Contractor, or lost through fault of the Government.

(7) Except as provided for in 31.205-26(e) and (f), the Government will not pay profit or fee to the prime Contractor on materials.

(c) If the Contractor enters into any subcontract that requires consent under the clause at 52.244-2, Subcontracts, without obtaining such consent, the Government is not required to reimburse the Contractor for any costs incurred under the subcontract prior to the date the Contractor obtains the required consent. Any reimbursement of subcontract costs incurred prior to the date the consent was obtained shall be at the sole discretion of the Government.

(d) Total cost. It is estimated that the total cost to the Government for the performance of this contract shall not exceed the ceiling price set forth in the Schedule, and the Contractor agrees to use its best efforts to perform the work specified in the Schedule and all obligations under this contract within such ceiling price. If at any time the Contractor has reason to believe that the hourly rate payments and material costs that will accrue in performing this contract in the next succeeding 30 days, if added to all other payments and costs previously accrued, will exceed 85 percent of the ceiling price in the Schedule, the Contractor shall notify the Contracting Officer giving a revised estimate of the total price to the Government for performing this contract with supporting reasons and documentation. If at any time during performing this contract, the Contractor has reason to believe that the total price to the Government for performing this contract will be substantially greater or less than the then stated ceiling price, the Contractor shall so notify the Contracting Officer, giving a revised estimate of the total price for performing this contract, with supporting reasons and documentation. If at any time during performing this contract, the Government has reason to believe that the work to be required in performing this contract will be substantially greater or less than the stated ceiling price, the Contracting Officer will so advise the Contractor, giving the then revised estimate of the total amount of effort to be required under the contract.

(1) Specified claims in stated amounts, or in estimated amounts if the amounts are not susceptible of exact statement by the Contractor.

(e) Ceiling price. The Government will not be obligated to pay the Contractor any amount in excess of the ceiling price in the Schedule, and the Contractor shall not be obligated to continue performance if to do so would exceed the ceiling price set forth in the Schedule, unless and until the Contracting Officer notifies the Contractor in writing that the ceiling price has been increased and specifies in the notice a revised ceiling that shall constitute the ceiling price for performance under this contract. When and to the extent that the ceiling price set forth in the Schedule has been increased, any hours expended and material costs incurred by the Contractor in excess of the ceiling price before the increase shall be allowable to the same extent as if the hours expended and material costs had been incurred after the increase in the ceiling price.

(f) Audit. At any time before final payment under this contract, the Contracting Officer may request audit of the vouchers and supporting documentation. Each payment previously made shall be subject to reduction to the extent of amounts, on preceding vouchers, that are found by the Contracting Officer or authorized representative not to have been properly payable and shall also be subject to reduction for overpayments or to increase for underpayments. Upon receipt and approval of the voucher designated by the Contractor as the "completion voucher" and supporting documentation, and upon compliance by the Contractor with all terms of this contract (including, without limitation, terms relating to patents and the terms of paragraph (g) of this clause), the Government shall promptly pay any balance due the Contractor. The completion voucher, and supporting documentation, shall be submitted by the Contractor as promptly as practicable following completion of the work under this contract, but in no event later than 120 days (or such longer period as the Contracting Officer may approve in writing) from the date of completion.

(g) Assignment and Release of Claims. The Contractor, and each assignee under an assignment entered into under this contract and in effect at the time of final payment under this contract, shall execute and deliver, at the time of and as a condition precedent to final payment under this contract, a release discharging the Government, its officers, agents, and employees of and from all liabilities, obligations, and claims arising out of or under this contract, subject only to the following exceptions:

(2) Claims, together with reasonable incidental expenses, based upon the liabilities of the Contractor to third parties arising out of performing this contract, that are not known to the Contractor on the date of the execution of the release, and of which the Contractor gives notice in writing to the Contracting Officer not more than 6 years after the date of the release or the date of any notice to the Contractor that the Government is prepared to make final payment, whichever is earlier.

(3) Claims for reimbursement of costs (other than expenses of the Contractor by reason of its indemnification of the Government against patent liability), including reasonable incidental expenses, incurred by the Contractor under the terms of this contract relating to patents.

(h) Interim payments on contracts for other than services.

(1) Interim payments made prior to the final payment under the contract are contract financing payments. Contract financing payments are not subject to the interest penalty provisions of the Prompt Payment Act.

(2) The designated payment office will make interim payments for contract financing on the TBD day after the designated billing office receives a proper payment request. In the event that the Government requires an audit or other review of a specific payment request to ensure compliance with the terms

[REDACTED]

and conditions of the contract, the designated payment office is not compelled to make payment by the specified due date.

(i) Interim payments on contracts for services. For interim payments made prior to the final payment under this contract, the Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(End of Clause)

I.205 52.232-25 PROMPT PAYMENT (JAN 2017)

Notwithstanding any other payment clause in this contract, the Government will make invoice payments under the terms and conditions specified in this clause. The Government considers payment as being made on the day a check is dated or the date of an electronic funds transfer (EFT). Definitions of pertinent terms are set forth in sections 2.101, 32.001, and 32.902 of the Federal Acquisition Regulation. All days referred to in this clause are calendar days, unless otherwise specified. (However, see paragraph (a)(4) of this clause concerning payments due on Saturdays, Sundays, and legal holidays.)

(a) "Invoice payments"--

(1) "Due date."

(i) Except as indicated in paragraphs (a)(2) and (c) of this clause, the due date for making invoice payments by the designated payment office is the later of the following two events:

(A) The 30th day after the designated billing office receives a proper invoice from the Contractor (except as provided in paragraph (a)(1)(ii) of this clause).

(i) Due dates on Contractor invoices for meat, meat food products, or fish; perishable agricultural commodities; and dairy products, edible fats or oils, and food products prepared from edible fats or oils are--

(B) The 30th day after Government acceptance of supplies delivered or services performed. For a final invoice, when the payment amount is subject to contract settlement actions, acceptance is deemed to occur on the effective date of the contract settlement.

(ii) If the designated billing office fails to annotate the invoice with the actual date of receipt at the time of receipt, the invoice payment due date is the 30th day after the date of the Contractor's invoice, provided the designated billing office receives a proper invoice and there is no disagreement over quantity, quality, or Contractor compliance with contract requirements.

(2) "Certain food products and other payments."

(A) For meat or meat food products, as defined in section 2(a)(3) of the Packers and Stockyard Act of 1921 (7 U.S.C. 182(3)), and as further defined in Pub. L. 98-181, including any edible fresh or frozen poultry meat, any perishable poultry meat food product, fresh eggs, and any perishable egg product, as close as possible to, but not later than, the 7th day after product delivery.

(B) For fresh or frozen fish, as defined in section 204(3) of the Fish and Seafood Promotion Act of 1986 (16 U.S.C. 4003(3)), as close as possible to, but not later than, the 7th day after product delivery.

(C) For perishable agricultural commodities, as defined in section 1(4) of the Perishable Agricultural Commodities Act of 1930 (7 U.S.C. 499a(4)), as close as possible to, but not later than, the 10th day after product delivery, unless another date is specified in the contract.

(D) For dairy products, as defined in section 111(e) of the Dairy Production Stabilization Act of 1983 (7 U.S.C. 4502(e)), edible fats or oils, and food products prepared from edible fats or oils, as close as possible to, but not later than, the 10th day after the date on which a proper invoice has been received. Liquid milk, cheese, certain processed cheese products, butter, yogurt, ice cream, mayonnaise, salad dressings, and other similar products, fall within this classification. Nothing in the Act limits this classification to refrigerated products. When questions arise regarding the proper classification of a specific product, prevailing industry practices will be followed in specifying a contract payment due date. The burden of proof that a classification of a specific product is, in fact, prevailing industry practice is upon the Contractor making the representation.

(ii) If the contract does not require submission of an invoice for payment (e.g., periodic lease payments), the due date will be as specified in the contract.

(iii) Contract number or other authorization for supplies delivered or services performed (including order number and line item number).

(3) "Contractor's invoice." The Contractor shall prepare and submit invoices to the designated billing office specified in the contract. A proper invoice must include the items listed in paragraphs (a)(3)(i) through (a)(3)(x) of this clause. If the invoice does not comply with these requirements, the designated billing office will return it within 7 days after receipt (3 days for meat, meat food products, or fish; 5 days for perishable agricultural commodities, dairy products, edible fats or oils, and food products

prepared from edible fats or oils), with the reasons why it is not a proper invoice. The Government will take into account untimely notification when computing any interest penalty owed the Contractor.

(i) Name and address of the Contractor.

(ii) Invoice date and invoice number. (The Contractor should date invoices as close as possible to the date of the mailing or transmission.)

(iv) Description, quantity, unit of measure, unit price, and extended price of supplies delivered or services performed.

(v) Shipping and payment terms (e.g., shipment number and date of shipment, discount for prompt payment terms). Bill of lading number and weight of shipment will be shown for shipments on Government bills of lading.

(vi) Name and address of Contractor official to whom payment is to be sent (must be the same as that in the contract or in a proper notice of assignment).

(vii) Name (where practicable), title, phone number, and mailing address of person to notify in the event of a defective invoice.

(viii) Taxpayer Identification Number (TIN). The Contractor shall include its TIN on the invoice only if required elsewhere in this contract.

(ix) Electronic funds transfer (EFT) banking information.

(A) The Contractor shall include EFT banking information on the invoice only if required elsewhere in this contract.

(B) If EFT banking information is not required to be on the invoice, in order for the invoice to be a proper invoice, the Contractor shall have submitted correct EFT banking information in accordance with the applicable solicitation provision (e.g., 52.232-38, Submission of Electronic Funds Transfer Information with Offer), contract clause (e.g., 52.232-33, Payment by Electronic Funds Transfer--System for Award Management, or 52.232-34, Payment by Electronic Funds Transfer--Other Than System for Award Management), or applicable agency procedures.

(C) EFT banking information is not required if the Government waived the requirement to pay by EFT.

(x) Any other information or documentation required by the contract (e.g., evidence of shipment).

(4) "Interest penalty." The designated payment office will pay an interest penalty automatically, without request from the Contractor, if payment is not made by the due date and the conditions listed in paragraphs (a)(4)(i) through (a)(4)(iii) of this clause are met, if applicable. However, when the due date falls on a Saturday, Sunday, or legal holiday, the designated payment office may make payment on the following working day without incurring a late payment interest penalty.

(i) The designated billing office received a proper invoice.

(ii) The Government processed a receiving report or other Government documentation authorizing payment, and there was no disagreement over quantity, quality, or Contractor compliance with any contract term or condition.

(iii) In the case of a final invoice for any balance of funds due the Contractor for supplies delivered or services performed, the amount was not subject to further contract settlement actions between the Government and the Contractor.

(5) "Computing penalty amount." The Government will compute the interest penalty in accordance with the Office of Management and Budget prompt payment regulations at 5 CFR part 1315.

(7) "Additional interest penalty."

(i) For the sole purpose of computing an interest penalty that might be due the Contractor, Government acceptance is deemed to occur constructively on the 7th day (unless otherwise specified in this contract) after the Contractor delivers the supplies or performs the services in accordance with the terms and conditions of the contract, unless there is a disagreement over quantity, quality, or Contractor compliance with a contract provision. If actual acceptance occurs within the constructive acceptance period, the Government will base the determination of an interest penalty on the actual date of acceptance. The constructive acceptance requirement does not, however, compel Government officials to accept supplies or services, perform contract administration functions, or make payment prior to fulfilling their responsibilities.

(ii) The prompt payment regulations at 5 CFR 1315.10(c) do not require the Government to pay interest penalties if payment delays are due to disagreement between the Government and the Contractor over the payment amount or other issues involving contract compliance, or on amounts temporarily withheld or retained in accordance with the terms of the contract. The Government and the Contractor shall resolve claims involving disputes and any interest that may be payable in accordance with the clause at FAR 52.233-1, Disputes.

(6) "Discounts for prompt payment." The designated payment office will pay an interest penalty automatically, without request from the Contractor, if the Government takes a discount for prompt payment improperly. The Government will calculate the interest penalty in accordance with the prompt payment regulations at 5 CFR part 1315.

(A) The Government owes an interest penalty of \$1 or more;

(i) The designated payment office will pay a penalty amount, calculated in accordance with the prompt payment regulations at 5 CFR part 1315 in addition to the interest penalty amount only if--

(B) The designated payment office does not pay the interest penalty within 10 days after the date the invoice amount is paid; and

(C) The Contractor makes a written demand to the designated payment office for additional penalty payment, in accordance with paragraph (a)(7)(ii) of this clause, postmarked not later than 40 days after the invoice amount is paid.

(ii)

(A) The Contractor shall support written demands for additional penalty payments with the following data. The Government will not request any additional data. The Contractor shall--

(1) Specifically assert that late payment interest is due under a specific invoice, and request payment of all overdue late payment interest penalty and such additional penalty as may be required;

(2) Attach a copy of the invoice on which the unpaid late payment interest is due; and

(3) State that payment of the principal has been received, including the date of receipt.

(B) If there is no postmark or the postmark is illegible--

(1) The designated payment office that receives the demand will annotate it with the date of receipt, provided the demand is received on or before the 40th day after payment was made; or

(2) If the designated payment office fails to make the required annotation, the Government will determine the demand's validity based on the date the Contractor has placed on the demand, provided such date is no later than the 40th day after payment was made.

(iii) The additional penalty does not apply to payments regulated by other Government regulations (e.g., payments under utility contracts subject to tariffs and regulation).

(b) "Contract financing payment." If this contract provides for contract financing, the Government will make contract financing payments in accordance with the applicable contract financing clause.

(c) "Fast payment procedure due dates." If this contract contains the clause at 52.213-1, Fast Payment Procedure, payments will be made within 15 days after the date of receipt of the invoice.

(iv) Contractor point of contact.

(d) "Overpayments." If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall--

(1) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the--

(i) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(ii) Affected contract number and delivery order number if applicable;

(iii) Affected line item or subline item, if applicable; and

(2) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(End of Clause)

#### I.206 52.232-33 PAYMENT BY ELECTRONIC FUNDS TRANSFER--SYSTEM FOR AWARD MANAGEMENT (OCT 2018)

(a) "Method of payment."

(1) All payments by the Government under this contract shall be made by electronic funds transfer (EFT), except as provided in paragraph (a)(2) of this clause. As used in this clause, the term "EFT" refers to the funds transfer and may also include the payment information transfer.

(2) In the event the Government is unable to release one or more payments by EFT, the Contractor agrees to either--

(i) Accept payment by check or some other mutually agreeable method of payment; or

(ii) Request the Government to extend the payment due date until such time as the Government can make payment by EFT (but see paragraph (d) of this clause).

(b) "Contractor's EFT information." The Government shall make payment to the Contractor using the EFT information contained in the System for Award Management (SAM). In the event that the EFT information changes, the Contractor shall be responsible for providing the updated information to SAM.

(c) "Mechanisms for EFT payment." The Government may make payment by EFT through either the Automated Clearing House (ACH) network, subject to the rules of the National Automated Clearing House Association, or the Fedwire Transfer System. The rules governing Federal payments through the ACH are contained in 31 CFR part 210.

(d) "Suspension of payment." If the Contractor's EFT information in SAM is incorrect, then the Government need not make payment to the Contractor under this contract until correct EFT information is entered into SAM; and any invoice or contract financing request shall be deemed not to be a proper invoice for the purpose of prompt payment under this contract. The prompt payment terms of the contract regarding notice of an improper invoice and delays in accrual of interest penalties apply.

(e) "Liability for uncompleted or erroneous transfers."

(1) If an uncompleted or erroneous transfer occurs because the Government used the Contractor's EFT information incorrectly, the Government remains responsible for--

- (i) Making a correct payment;
- (ii) Paying any prompt payment penalty due; and
- (iii) Recovering any erroneously directed funds.

(f) "EFT and prompt payment." A payment shall be deemed to have been made in a timely manner in accordance with the prompt payment terms of this contract if, in the EFT payment transaction instruction released to the Federal Reserve System, the date specified for settlement of the payment is on or before the prompt payment due date, provided the specified payment date is a valid date under the rules of the Federal Reserve System.

(2) If an uncompleted or erroneous transfer occurs because the Contractor's EFT information was incorrect, or was revised within 30 days of Government release of the EFT payment transaction instruction to the Federal Reserve System, and--

(i) If the funds are no longer under the control of the payment office, the Government is deemed to have made payment and the Contractor is responsible for recovery of any erroneously directed funds; or

(ii) If the funds remain under the control of the payment office, the Government shall not make payment, and the provisions of paragraph (d) of this clause shall apply.

(g) "EFT and assignment of claims." If the Contractor assigns the proceeds of this contract as provided for in the assignment of claims terms of this contract, the Contractor shall require as a condition of any such assignment, that the assignee shall register separately in SAM and shall be paid by EFT in accordance with the terms of this clause. Notwithstanding any other requirement of this contract, payment to an ultimate recipient other than the Contractor, or a financial institution properly recognized under an assignment of claims pursuant to Subpart 32.8, is not permitted. In all respects, the requirements of this clause shall apply to the assignee as if it were the Contractor. EFT information that shows the ultimate recipient of the transfer to be other than the Contractor, in the absence of a proper assignment of claims acceptable to the Government, is incorrect EFT information within the meaning of paragraph (d) of this clause.

(h) "Liability for change of EFT information by financial agent." The Government is not liable for errors resulting from changes to EFT information made by the Contractor's financial agent.

(i) "Payment information." The payment or disbursing office shall forward to the Contractor available payment information that is suitable for transmission as of the date of release of the EFT instruction to the Federal Reserve System. The Government may request the Contractor to designate a desired format and method(s) for delivery of payment information from a list of formats and methods the payment office is capable of executing. However, the Government does not guarantee that any particular format or method of delivery is available at any particular payment office and retains the latitude to use the format and delivery method most convenient to the Government. If the Government makes payment by check in accordance with paragraph (a) of this clause, the Government shall mail the payment information to the remittance address contained in SAM.

(End of Clause)

#### I.207 52.234-4 EARNED VALUE MANAGEMENT SYSTEM (NOV 2016)

(a) The Contractor shall use an earned value management system (EVMS) that has been determined by the Cognizant Federal Agency (CFA) to be compliant with the guidelines in Electronic Industries Alliance Standard 748 (EIA-748) (current version at the time of award) to manage this contract. If the Contractor's current EVMS has not been determined compliant at the time of award, see paragraph (b) of this clause. The Contractor shall submit reports in accordance with the requirements of this contract.

(c) The Government will conduct an Integrated Baseline Review (IBR). If a pre-award IBR has not been conducted, a post award IBR shall be conducted as early as practicable after contract award.

(b) If, at the time of award, the Contractor's EVM System has not been determined by the CFA as complying with EVMS guidelines or the Contractor does not have an existing cost/schedule control system that is compliant with the guidelines in EIA-748 (current version at time of award), the Contractor shall--

(1) Apply the current system to the contract; and

(2) Take necessary actions to meet the milestones in the Contractor's EVMS plan approved by the Contracting Officer.

(d) The Contracting Officer may require an IBR at--

- (1) Exercise of significant options; or
- (2) Incorporation of major modifications.

(e) Unless a waiver is granted by the CFA, Contractor proposed EVMS changes require approval of the CFA prior to implementation. The CFA will advise the Contractor of the acceptability of such changes within 30 calendar days after receipt of the notice of proposed changes from the Contractor. If the advance approval requirements are waived by the CFA, the Contractor shall disclose EVMS changes to the CFA at least 14 calendar days prior to the effective date of implementation.

(f) The Contractor shall provide access to all pertinent records and data requested by the Contracting Officer or an authorized representative as necessary to permit Government surveillance to ensure that the EVMS conforms, and continues to conform, with the performance criteria referenced in paragraph (a) of this clause.

(g) The Contractor shall require the subcontractors specified below to comply with the requirements of this clause:

TBD

(End of clause)

#### I.208 52.242-4 CERTIFICATION OF FINAL INDIRECT COSTS (JAN 1997)

(a) The Contractor shall--

(1) Certify any proposal to establish or modify final indirect cost rates;

(2) Use the format in paragraph (c) of this clause to certify; and

(3) Have the certificate signed by an individual of the Contractor's organization at a level no lower than a vice president or chief financial officer of the business segment of the Contractor that submits the proposal.

(b) Failure by the Contractor to submit a signed certificate, as described in this clause, may result in final indirect costs at rates unilaterally established by the Contracting Officer.

(c) The certificate of final indirect costs shall read as follows:

##### CERTIFICATE OF FINAL INDIRECT COSTS

This is to certify that I have reviewed this proposal to establish final indirect cost rates and to the best of my knowledge and belief:

1. All costs included in this proposal (identify proposal and date) to establish final indirect costs rates for (identify period covered by rate) are allowable in accordance with the cost principles of the Federal Acquisition Regulation (FAR) and its supplements applicable to the contracts to which the final indirect cost rates will apply; and

2. This proposal does not include any costs which are expressly unallowable under applicable cost principles of the FAR or its supplements.

Firm: \_\_\_\_\_

Signature: \_\_\_\_\_

Name of Certifying Official: \_\_\_\_\_

Title: \_\_\_\_\_

Date of Execution: \_\_\_\_\_

(End of Clause)

#### I.209 52.243-2 CHANGES--COST-REIMBURSEMENT (AUG 1987)

(a) The Contracting Officer may at any time, by written order, and without notice to the sureties, if any, make changes within the general scope of this contract in any one or more of the following:

(1) Drawings, designs, or specifications when the supplies to be furnished are to be specially manufactured for the Government in accordance with the drawings, designs, or specifications.

(2) Method of shipment or packing.

(3) Place of delivery.

(b) If any such change causes an increase or decrease in the estimated cost of, or the time required for, performance of any part of the work under this contract, whether or not changed by the order, or otherwise affects any other terms and conditions of this contract, the Contracting Officer shall make an equitable adjustment in the--

(1) Estimated cost, delivery or completion schedule, or both;

(2) Amount of any fixed fee; and (3) other affected terms and shall modify the contract accordingly.

(c) The Contractor must assert its rights to an adjustment under this clause within 30 days from the date of receipt of the written order. However, if the Contracting Officer decides that the facts justify it, the Contracting Officer may receive and act upon a proposal submitted before final payment of the contract.

(d) Failure to agree to any adjustment shall be a dispute under the Disputes clause. However, nothing in this clause shall excuse the Contractor from proceeding with the contract as changed.

[REDACTED]

(End of Clause)

(e) Notwithstanding the terms and conditions of paragraphs (a) and (b) of the clause, the estimated cost of this contract and, if this contract is incrementally funded, the funds allotted for the performance of this contract, shall not be increased or considered to be increased except by specific written modification of the contract indicating the new contract estimated cost and, if this contract is incrementally funded, the new amount allotted to the contract. Until this modification is made, the Contractor shall not be obligated to continue performance or incur costs beyond the point established in the Limitation of Cost or Limitation of Funds clause of this contract.

#### I.210 52.243-7 NOTIFICATION OF CHANGES (JAN 2017)

(a) "Definitions." "Contracting Officer," as used in this clause, does not include any representative of the Contracting Officer.

"Specifically Authorized Representative (SAR)," as used in this clause, means any person the Contracting Officer has so designated by written notice (a copy of which shall be provided to the Contractor) which shall refer to this paragraph and shall be issued to the designated representative before the SAR exercises such authority.

(b) "Notice." The primary purpose of this clause is to obtain prompt reporting of Government conduct that the Contractor considers to constitute a change to this contract. Except for changes identified as such in writing and signed by the Contracting Officer, the Contractor shall notify the Administrative Contracting Officer in writing promptly, within 5 business calendar days from the date that the Contractor identifies any Government conduct (including actions, inactions, and written or oral communications) that the Contractor regards as a change to the contract terms and conditions. On the basis of the most accurate information available to the Contractor, the notice shall state--

(1) The date, nature, and circumstances of the conduct regarded as a change;

(2) The name, function, and activity of each Government individual and Contractor official or employee involved in or knowledgeable about such conduct;

(3) The identification of any documents and the substance of any oral communication involved in such conduct;

(4) In the instance of alleged acceleration of scheduled performance or delivery, the basis upon which it arose;

(5) The particular elements of contract performance for which the Contractor may seek an equitable adjustment under this clause, including--

(i) What line items have been or may be affected by the alleged change;

(ii) What labor or materials or both have been or may be added, deleted, or wasted by the alleged change;

(iii) To the extent practicable, what delay and disruption in the manner and sequence of performance and effect on continued performance have been or may be caused by the alleged change;

(iv) What adjustments to contract price, delivery schedule, and other provisions affected by the alleged change are estimated; and

(6) The Contractor's estimate of the time by which the Government must respond to the Contractor's notice to minimize cost, delay or disruption of performance.

(c) "Continued performance." Following submission of the notice required by paragraph (b) of this clause, the Contractor shall diligently continue performance of this contract to the maximum extent possible in accordance with its terms and conditions as construed by the Contractor, unless the notice reports a direction of the Contracting Officer or a communication from a SAR of the Contracting Officer, in either of which events the Contractor shall continue performance; provided, however, that if the Contractor regards the direction or communication as a change as described in paragraph (b) of this clause, notice shall be given in the manner provided. All directions, communications, interpretations, orders and similar actions of the SAR shall be reduced to writing promptly and copies furnished to the Contractor and to the Contracting Officer. The Contracting Officer shall promptly countermand any action which exceeds the authority of the SAR.

(3) Deny that the conduct of which the Contractor gave notice constitutes a change and when necessary direct the mode of further performance; or

(d) "Government response." The Contracting Officer shall promptly, within 5 business calendar days after receipt of notice, respond to the notice in writing. In responding, the Contracting Officer shall either--

(1) Confirm that the conduct of which the Contractor gave notice constitutes a change and when necessary direct the mode of further performance;

(2) Countermand any communication regarded as a change;



(4) In the event the Contractor's notice information is inadequate to make a decision under paragraphs (d)(1), (2), or (3) of this clause, advise the Contractor what additional information is required, and establish the date by which it should be furnished and the date thereafter by which the Government will respond.

(e) "Equitable adjustments."

(1) If the Contracting Officer confirms that Government conduct effected a change as alleged by the Contractor, and the conduct causes an increase or decrease in the Contractor's cost of, or the time required for, performance of any part of the work under this contract, whether changed or not changed by such conduct, an equitable adjustment shall be made--

(i) In the contract price or delivery schedule or both; and

(ii) In such other provisions of the contract as may be affected.

(End of Clause)

(2) The contract shall be modified in writing accordingly. In the case of drawings, designs or specifications which are defective and for which the Government is responsible, the equitable adjustment shall include the cost and time extension for delay reasonably incurred by the Contractor in attempting to comply with the defective drawings, designs or specifications before the Contractor identified, or reasonably should have identified, such defect. When the cost of property made obsolete or excess as a result of a change confirmed by the Contracting Officer under this clause is included in the equitable adjustment, the Contracting Officer shall have the right to prescribe the manner of disposition of the property. The equitable adjustment shall not include increased costs or time extensions for delay resulting from the Contractor's failure to provide notice or to continue performance as provided, respectively, in (b) and (c) of this clause.

#### I.211 52.244-2 SUBCONTRACTS (JUN 2020)

(a) "Definitions." As used in this clause--

"Approved purchasing system" means a Contractor's purchasing system that has been reviewed and approved in accordance with Part 44 of the Federal Acquisition Regulation (FAR).

"Consent to subcontract" means the Contracting Officer's written consent for the Contractor to enter into a particular subcontract.

"Subcontract" means any contract, as defined in FAR Subpart 2.1, entered into by a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(b) When this clause is included in a fixed-price type contract, consent to subcontract is required only on unpriced contract actions (including unpriced modifications or unpriced delivery orders), and only if required in accordance with paragraph (c) or (d) of this clause.

(c) If the Contractor does not have an approved purchasing system, consent to subcontract is required for any subcontract that--

(1) Is of the cost-reimbursement, time-and-materials, or labor-hour type; or

(2) Is fixed-price and exceeds--

(i) For a contract awarded by the Department of Defense, the Coast Guard, or the National Aeronautics and Space Administration, the greater of the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract; or

(ii) For a contract awarded by a civilian agency other than the Coast Guard and the National Aeronautics and Space Administration, either the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract.

(d) If the Contractor has an approved purchasing system, the Contractor nevertheless shall obtain the Contracting Officer's written consent before placing the following subcontracts: TBD

(e)

(1) The Contractor shall notify the Contracting Officer reasonably in advance of placing any subcontract or modification thereof for which consent is required under paragraph (b), (c), or (d) of this clause, including the following information:

(i) A description of the supplies or services to be subcontracted.

(ii) Identification of the type of subcontract to be used.

(iii) Identification of the proposed subcontractor.

(iv) The proposed subcontract price.

(v) The subcontractor's current, complete, and accurate certified cost or pricing data and Certificate of Current Cost or Pricing Data, if required by other contract provisions.

(vi) The subcontractor's Disclosure Statement or Certificate relating to Cost Accounting Standards when such data are required by other provisions of this contract.

(vii) A negotiation memorandum reflecting--

(A) The principal elements of the subcontract price negotiations;

[REDACTED]

(B) The most significant considerations controlling establishment of initial or revised prices;

(C) The reason certified cost or pricing data were or were not required;

(D) The extent, if any, to which the Contractor did not rely on the subcontractor's certified cost or pricing data in determining the price objective and in negotiating the final price;

(E) The extent to which it was recognized in the negotiation that the subcontractor's certified cost or pricing data were not accurate, complete, or current; the action taken by the Contractor and the subcontractor; and the effect of any such defective data on the total price negotiated;

(F) The reasons for any significant difference between the Contractor's price objective and the price negotiated; and

(G) A complete explanation of the incentive fee or profit plan when incentives are used. The explanation shall identify each critical performance element, management decisions used to quantify each incentive element, reasons for the incentives, and a summary of all trade-off possibilities considered.

(2) The Contractor is not required to notify the Contracting Officer in advance of entering into any subcontract for which consent is not required under paragraph (b), (c), or (d) of this clause.

(f) Unless the consent or approval specifically provides otherwise, neither consent by the Contracting Officer to any subcontract nor approval of the Contractor's purchasing system shall constitute a determination--

(1) Of the acceptability of any subcontract terms or conditions;

(2) Of the allowability of any cost under this contract; or

(3) To relieve the Contractor of any responsibility for performing this contract.

(g) No subcontract or modification thereof placed under this contract shall provide for payment on a cost-plus-a-percentage-of-cost-basis, and any fee payable under cost-reimbursement type subcontracts shall not exceed the fee limitations in FAR 15.404-4(c)(4)(i).

(h) The Contractor shall give the Contracting Officer immediate written notice of any action or suit filed and prompt notice of any claim made against the Contractor by any subcontractor or vendor that, in the opinion of the Contractor, may result in litigation related in any way to this contract, with respect to which the Contractor may be entitled to reimbursement from the Government.

(i) The Government reserves the right to review the Contractor's purchasing system as set forth in FAR Subpart 44.3.

(j) Paragraphs (d) and (f) of this clause do not apply to the following subcontracts, which were evaluated during negotiations: TBD

(End Of Clause)

I.212 52.246-20 WARRANTY OF SERVICES (MAY 2001)

(a) Definition. "Acceptance," as used in this clause, means the act of an authorized representative of the Government by which the Government assumes for itself, or as an agent of another, ownership of existing and identified supplies, or approves specific services, as partial or complete performance of the contract.

(b) Notwithstanding inspection and acceptance by the Government or any provision concerning the conclusiveness thereof, the Contractor warrants that all services performed under this contract will, at the time of acceptance, be free from defects in workmanship and conform to the requirements of this contract. The Contracting Officer shall give written notice of any defect or nonconformance to the Contractor TBD This notice shall state either--

(1) That the Contractor shall correct or reperform any defective or nonconforming services; or

(2) That the Government does not require correction or reperformance.

(c) If the Contractor is required to correct or reperform, it shall be at no cost to the Government, and any services corrected or reperformed by the Contractor shall be subject to this clause to the same extent as work initially performed. If the Contractor fails or refuses to correct or reperform, the Contracting Officer may, by contract or otherwise, correct or replace with similar services and charge to the Contractor the cost occasioned to the Government thereby, or make an equitable adjustment in the contract price.

(d) If the Government does not require correction or reperformance, the Contracting Officer shall make an equitable adjustment in the contract price.

(End of Clause)

I.213 52.246-25 LIMITATION OF LIABILITY--SERVICES (FEB 1997)

(a) Except as provided in paragraphs (b) and (c) of this clause, and except to the extent that the Contractor is expressly responsible under this contract for deficiencies in the services required to

be performed under it (including any materials furnished in conjunction with those services), the Contractor shall not be liable for loss of or damage to property of the Government that--

(1) Occurs after Government acceptance of services performed under this contract; and

(2) Results from any defects or deficiencies in the services performed or materials furnished.

(b) The limitation of liability under paragraph (a) of this clause shall not apply when a defect or deficiency in, or the Government's acceptance of, services performed or materials furnished results from willful misconduct or lack of good faith on the part of any of the Contractor's managerial personnel. The term "Contractor's managerial personnel," as used in this clause, means the Contractor's directors, officers, and any of the Contractor's managers, superintendents, or equivalent representatives who have supervision or direction of--

(1) All or substantially all of the Contractor's business;

(2) All or substantially all of the Contractor's operations at any one plant, laboratory, or separate location at which the contract is being performed; or

(3) A separate and complete major industrial operation connected with the performance of this contract.

(c) If the Contractor carries insurance, or has established a reserve for self-insurance, covering liability for loss or damage suffered by the Government through the Contractor's performance of services or furnishing of materials under this contract, the Contractor shall be liable to the Government, to the extent of such insurance or reserve, for loss of or damage to property of the Government occurring after Government acceptance of, and resulting from any defects and deficiencies in, services performed or materials furnished under this contract.

(End of Clause)

#### I.214 52.249-2 TERMINATION FOR CONVENIENCE OF THE GOVERNMENT (FIXED-PRICE) (APR 2012)

(a) The Government may terminate performance of work under this contract in whole or, from time to time, in part if the Contracting Officer determines that a termination is in the Government's interest. The Contracting Officer shall terminate by delivering to the Contractor a Notice of Termination specifying the extent of termination and the effective date.

(b) After receipt of a Notice of Termination, and except as directed by the Contracting Officer, the Contractor shall immediately proceed with the following obligations, regardless of any delay in determining or adjusting any amounts due under this clause:

(1) Stop work as specified in the notice.

(2) Place no further subcontracts or orders (referred to as subcontracts in this clause) for materials, services, or facilities, except as necessary to complete the continued portion of the contract.

(3) Terminate all subcontracts to the extent they relate to the work terminated.

(4) Assign to the Government, as directed by the Contracting Officer, all right, title, and interest of the Contractor under the subcontracts terminated, in which case the Government shall have the right to settle or to pay any termination settlement proposal arising out of those terminations.

(5) With approval or ratification to the extent required by the Contracting Officer, settle all outstanding liabilities and termination settlement proposals arising from the termination of subcontracts; the approval or ratification will be final for purposes of this clause.

(6) As directed by the Contracting Officer, transfer title and deliver to the Government--

(i) The fabricated or unfabricated parts, work in process, completed work, supplies, and other material produced or acquired for the work terminated; and

(ii) The completed or partially completed plans, drawings, information, and other property that, if the contract had been completed, would be required to be furnished to the Government.

(7) Complete performance of the work not terminated.

(8) Take any action that may be necessary, or that the Contracting Officer may direct, for the protection and preservation of the property related to this contract that is in the possession of the Contractor and in which the Government has or may acquire an interest.

(9) Use its best efforts to sell, as directed or authorized by the Contracting Officer, any property of the types referred to in paragraph (b)(6) of this clause; provided, however, that the Contractor

(i) is not required to extend credit to any purchaser and

(ii) may acquire the property under the conditions prescribed by, and at prices approved by, the Contracting Officer. The proceeds of any transfer or disposition will be applied to reduce any payments to be made by the Government under this contract, credited to the price or cost of the work, or paid in any other manner directed by the Contracting Officer.

(c) The Contractor shall submit complete termination inventory schedules no later than 120 days from the effective date of termination, unless extended in writing by the Contracting Officer upon written request of the Contractor within this 120-day period.

(f) Subject to paragraph (e) of this clause, the Contractor and the Contracting Officer may agree upon the whole or any part of the amount to be paid or remaining to be paid because of the termination. The amount may include a reasonable allowance for profit on work done. However, the agreed amount, whether under this paragraph (f) or paragraph (g) of this clause, exclusive of costs shown in paragraph (g)(3) of this clause, may not exceed the total contract price as reduced by

(d) After expiration of the plant clearance period as defined in Subpart 49.001 of the Federal Acquisition Regulation, the Contractor may submit to the Contracting Officer a list, certified as to quantity and quality, of termination inventory not previously disposed of, excluding items authorized for disposition by the Contracting Officer. The Contractor may request the Government to remove those items or enter into an agreement for their storage. Within 15 days, the Government will accept title to those items and remove them or enter into a storage agreement. The Contracting Officer may verify the list upon removal of the items, or if stored, within 45 days from submission of the list, and shall correct the list, as necessary, before final settlement.

(e) After termination, the Contractor shall submit a final termination settlement proposal to the Contracting Officer in the form and with the certification prescribed by the Contracting Officer. The Contractor shall submit the proposal promptly, but no later than 1 year from the effective date of termination, unless extended in writing by the Contracting Officer upon written request of the Contractor within this 1-year period. However, if the Contracting Officer determines that the facts justify it, a termination settlement proposal may be received and acted on after 1 year or any extension. If the Contractor fails to submit the proposal within the time allowed, the Contracting Officer may determine, on the basis of information available, the amount, if any, due the Contractor because of the termination and shall pay the amount determined.

(1) the amount of payments previously made and

(2) the contract price of work not terminated. The contract shall be modified, and the Contractor paid the agreed amount. Paragraph (g) of this clause shall not limit, restrict, or affect the amount that may be agreed upon to be paid under this paragraph.

(g) If the Contractor and the Contracting Officer fail to agree on the whole amount to be paid because of the termination of work, the Contracting Officer shall pay the Contractor the amounts determined by the Contracting Officer as follows, but without duplication of any amounts agreed on under paragraph (f) of this clause:

(1) The contract price for completed supplies or services accepted by the Government (or sold or acquired under paragraph (b)(9) of this clause) not previously paid for, adjusted for any saving of freight and other charges.

(2) The total of--

(i) Accounting, legal, clerical, and other expenses reasonably necessary for the preparation of termination settlement proposals and supporting data;

(i) The costs incurred in the performance of the work terminated, including initial costs and preparatory expense allocable thereto, but excluding any costs attributable to supplies or services paid or to be paid under paragraph (g)(1) of this clause;

(ii) The cost of settling and paying termination settlement proposals under terminated subcontracts that are properly chargeable to the terminated portion of the contract if not included in subdivision (g)(2)(i) of this clause; and

(iii) A sum, as profit on subdivision (g)(2)(i) of this clause, determined by the Contracting Officer under 49.202 of the Federal Acquisition Regulation, in effect on the date of this contract, to be fair and reasonable; however, if it appears that the Contractor would have sustained a loss on the entire contract had it been completed, the Contracting Officer shall allow no profit under this subdivision (g)(2)(iii) and shall reduce the settlement to reflect the indicated rate of loss.

(3) The reasonable costs of settlement of the work terminated, including--

(ii) The termination and settlement of subcontracts (excluding the amounts of such settlements); and

(iii) Storage, transportation, and other costs incurred, reasonably necessary for the preservation, protection, or disposition of the termination inventory.

(h) Except for normal spoilage, and except to the extent that the Government expressly assumed the risk of loss, the Contracting Officer shall exclude from the amounts payable to the Contractor under paragraph (g) of this clause, the fair value as determined by the Contracting Officer, for the loss of the Government property.

(i) The cost principles and procedures of Part 31 of the Federal Acquisition Regulation, in effect on the date of this contract, shall govern all costs claimed, agreed to, or determined under this clause.

(j) The Contractor shall have the right of appeal, under the Disputes clause, from any determination made by the Contracting Officer under paragraph (e), (g), or (l) of this clause, except that if the

Contractor failed to submit the termination settlement proposal or request for equitable adjustment within the time provided in paragraph (e) or (l), respectively, and failed to request a time extension, there is no right of appeal.

(k) In arriving at the amount due the Contractor under this clause, there shall be deducted--

(1) All unliquidated advance or other payments to the Contractor under the terminated portion of this contract;

(l) If the termination is partial, the Contractor may file a proposal with the Contracting Officer for an equitable adjustment of the price(s) of the continued portion of the contract. The Contracting Officer shall make any equitable adjustment agreed upon. Any proposal by the Contractor for an equitable adjustment under this clause shall be requested within 90 days from the effective date of termination unless extended in writing by the Contracting Officer.

(2) Any claim which the Government has against the Contractor under this contract; and

(3) The agreed price for, or the proceeds of sale of, materials, supplies, or other things acquired by the Contractor or sold under the provisions of this clause and not recovered by or credited to the Government.

(m)

(1) The Government may, under the terms and conditions it prescribes, make partial payments and payments against costs incurred by the Contractor for the terminated portion of the contract, if the Contracting Officer believes the total of these payments will not exceed the amount to which the Contractor will be entitled.

(n) Unless otherwise provided in this contract or by statute, the Contractor shall maintain all records and documents relating to the terminated portion of this contract for 3 years after final settlement. This includes all books and other evidence bearing on the Contractor's costs and expenses under this contract. The Contractor shall make these records and documents available to the Government, at the Contractor's office, at all reasonable times, without any direct charge. If approved by the Contracting Officer, photographs, microphotographs, or other authentic reproductions may be maintained instead of original records and documents.

(End of Clause)

(2) If the total payments exceed the amount finally determined to be due, the Contractor shall repay the excess to the Government upon demand, together with interest computed at the rate established by the Secretary of the Treasury under 50 U.S.C. App. 1215(b)(2). Interest shall be computed for the period from the date the excess payment is received by the Contractor to the date the excess is repaid. Interest shall not be charged on any excess payment due to a reduction in the Contractor's termination settlement proposal because of retention or other disposition of termination inventory until 10 days after the date of the retention or disposition, or a later date determined by the Contracting Officer because of the circumstances.

#### I.215 52.249-4 TERMINATION FOR CONVENIENCE OF THE GOVERNMENT (SERVICES) (SHORT FORM) (APR 1984)

The Contracting Officer, by written notice, may terminate this contract, in whole or in part, when it is in the Government's interest. If this contract is terminated, the Government shall be liable only for payment under the payment provisions of this contract for services rendered before the effective date of termination.

(End of Clause)

#### I.216 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):  
<http://acquisition.gov>

(End of Clause)

I.217 52.252-4 ALTERATIONS IN CONTRACT (APR 1984)

Portions of this contract are altered as follows: See individual TO.

(End of Clause)

I.218 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End Of Clause)

I.219 252.204-7018 PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES (JAN 2023)

(a) Definitions. As used in this clause--

Covered defense telecommunications equipment or services means--

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation, or any subsidiary or affiliate of such entities;

(2) Telecommunications services provided by such entities or using such equipment; or

(3) Telecommunications equipment or services produced or provided by an entity that the Secretary of Defense reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Covered foreign country means--

(1) The People's Republic of China; or

(2) The Russian Federation.

Covered missions means--

(1) The nuclear deterrence mission of DoD, including with respect to nuclear command, control, and communications, integrated tactical warning and attack assessment, and continuity of Government; or

(2) The homeland defense mission of DoD, including with respect to ballistic missile defense.

``Critical technology`` means--

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled--

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

(b) Prohibition. In accordance with section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91), the contractor shall not provide to the Government any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless the covered defense telecommunication equipment or services are covered by a waiver described in Defense Federal Acquisition Regulation Supplement 204.2104.

(c) Procedures. The Contractor shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service, to carry out covered missions, that uses covered defense telecommunications equipment

or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Reporting.

(1) In the event the Contractor identifies covered defense telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system, during contract performance, the Contractor shall report at <https://dibnet.dod.mil> the information in paragraph (d)(2) of this clause.

(2) The Contractor shall report the following information pursuant to paragraph (d)(1) of this clause:

(i) Within 3 business days from the date of such identification or notification: The contract number; the order number(s), if applicable; supplier name; brand; model number (original equipment manufacturer number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.

(ii) Within 30 business days of submitting the information in paragraph (d)(2)(i) of this clause: Any further available information about mitigation actions undertaken or recommended. In addition, the Contractor shall describe the efforts it undertook to prevent use or submission of a covered defense telecommunications equipment or services, and any additional efforts that will be incorporated to prevent future use or submission of covered telecommunications equipment or services.

(e) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (e), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

I.220 252.211-7003 ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)

(a) Definitions. As used in this clause-

Automatic identification device means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

Concatenated unique item identifier means

(1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

(2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

Data matrix means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

Enterprise means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

Data qualifier means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows. DoD recognized

unique identification equivalent means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at [http://www.acq.osd.mil/dpap/pdi/uid/iuid\\_equivalents.html](http://www.acq.osd.mil/dpap/pdi/uid/iuid_equivalents.html).

DoD recognized unique identification equivalent means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

DoD item unique identification means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

Enterprise identifier means a code that is uniquely assigned to an enterprise by an issuing agency.

Governments unit acquisition cost means

Item means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

(1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;

(2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractors estimated fully burdened unit cost to the Government at the time of delivery; and

(3) For items produced under a time-and-materials contract, the Contractors estimated fully burdened unit cost to the Government at the time of delivery.

Issuing agency means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at [http://www.aimglobal.org/?Reg\\_Authority15459](http://www.aimglobal.org/?Reg_Authority15459).

Issuing agency code means a code that designates the registration(or controlling) authority for the enterprise identifier.

Machine-readable means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

Lot or batch number means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

Original part number means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

Serialization within the enterprise identifier means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again.

The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

Serialization within the part, lot, or batch number means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

Parent item means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

Serial number within the enterprise identifier means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

Serial number within the part, lot, or batch number means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

Type designation means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

(c) Unique item identifier.

Unique item identifier means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

Unique item identifier type means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.  
Exhibit Line Item Number

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Governments unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or  
Item Description

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(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or  
Exhibit Line Item Number  
Item Description

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|  |
|  |
|  |

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparable and DoD serially managed nonreparable as specified in Attachment Number\_\_\_\_.

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\_\_\_\_\_(If items are identified in the Schedule, insert See Schedule in this table.)

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number \_\_\_\_.

(v) Any item not included in (i), (ii), (iii), or (iv) for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology - International symbology specification - Data matrix; CC200 data matrix specification.

(4) Data syntax and semantics of unique item identifiers.

The Contractor shall ensure that

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(A) Determine whether to-

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology - Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) Unique item identifier.

(i) The Contractor shall-

(1) Serialize within the enterprise identifier;

(2) Serialize within the part, lot, or batch number; or

(3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DOD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code -

(A) Shall not be placed on the item; and

(B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

(1) Unique item identifier.

(2) Unique item identifier type.

(3) Issuing agency code (if concatenated unique item identifier is used).

- (4) Enterprise identifier (if concatenated unique item identifier is used).
- (5) Original part number (if there is serialization within the original part number).
- (6) Lot or batch number (if there is serialization within the lot or batch number).
- (7) Current part number (optional and only if not the same as the original part number).
- (8) Current part number effective date (optional and only if current part number is used).
- (9) Serial number (if concatenated unique item identifier is used).
- (10) Governments unit acquisition cost.
- (11) Unit of measure.
- (12) Type designation of the item as specified in the contract schedule, if any.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

- (13) Whether the item is an item of Special Tooling or Special Test Equipment.
- (14) Whether the item is covered by a warranty.

(1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.

- (2) Unique item identifier of the embedded subassembly, component, or part.

- (3) Unique item identifier type.TBD

- (4) Issuing agency code (if concatenated unique item identifier is used).HHM402

- (5) Enterprise identifier (if concatenated unique item identifier is used).TBD

- (6) Original part number (if there is serialization within the original part number).TBD

- (7) Lot or batch number (if there is serialization within the lot or batch number).TBD

- (8) Current part number (optional and only if not the same as the original part number).TBD

(9) Current part number effective date (optional and only if current part number is used).TBD

- (10) Serial number (if concatenated unique item identifier is used).TBD

- (11) Description.TBDOnce per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/>.

- (2) Embedded items shall be reported by one of the following methods -

- (i) Use of the embedded items capability in WAWF;

- (ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/>; or

- (iii) Via WAWF as a deliverable attachment for exhibit line item number (fill in) \_\_\_\_, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) Subcontracts. If the Contractor acquires by subcontract, any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End Of Clause)

#### I.221 252.222-7000 RESTRICTIONS ON EMPLOYMENT OF PERSONNEL (MAR 2000)

(a) The Contractor shall employ, for the purpose of performing that portion of the contract work in TBD individuals who are residents of thereof and who, in the case of any craft or trade, possess or would be able to acquire promptly the necessary skills to perform the contract.

(b) The Contractor shall insert the substance of this clause, including this paragraph (b), in each subcontract awarded under this contract.

(End of clause)

#### I.222 252.225-7043 ANTITERRORISM/FORCE PROTECTION POLICY FOR DEFENSE CONTRACTORS OUTSIDE THE UNITED STATES (JUN 2015)

(a) Definition. ``United States,`` as used in this clause, means, the 50States, the District of Columbia, and outlying areas.

(b) Except as provided in paragraph (b) of this clause, the Contractor and its subcontractors, if performing or traveling outside the United States under this contract, shall--

(1) Affiliate with the Overseas Security Advisory Council, if the Contractor or subcontractor is a U.S. entity;

(2) Ensure that Contractor and subcontractor personnel who are U.S. nationals and are in-country on a non-transitory basis, register with the U.S. Embassy, and that Contractor and subcontractor personnel who are third country nationals comply with any security related requirements of the Embassy of their nationality;

(3) Provide, to Contractor and subcontractor personnel, antiterrorism/force protection awareness information commensurate with that which the Department of Defense (DoD) provides to its military and civilian personnel and their families, to the extent such information can be made available prior to travel outside the United States; and

(4) Obtain and comply with the most current antiterrorism/force protection guidance for Contractor and subcontractor personnel.

(c) The requirements of this clause do not apply to any subcontractor that is--

(1) A foreign government;

(2) A representative of a foreign government; or

(3) A foreign corporation wholly owned by a foreign government.

(d) Information and guidance pertaining to DoD antiterrorism/force protection can be obtained from (Contracting Officer to insert applicable information cited in PGI 225.372-1 (DFARS/PGI view)). TBD

(End of clause)

#### I.223 252.232-7007 LIMITATION OF GOVERNMENT'S OBLIGATION (APR 2014)

(a) Contract line item(s) TBD through TBD are incrementally funded. For this/these item(s), the sum of \$TBD of the total price is presently available for payment and allotted to this contract. An allotment schedule is set forth in paragraph (j) of this clause.

(b) For item(s) identified in paragraph (a) of this clause, the Contractor agrees to perform up to the point at which the total amount payable by the Government, including reimbursement in the event of termination of those item(s) for the Government's convenience, approximates the total amount currently allotted to the contract. The Contractor is not authorized to continue work on those item(s) beyond that point. The Government will not be obligated in any event to reimburse the Contractor in excess of the amount allotted to the contract for those item(s) regardless of anything to the contrary in the clause entitled "Termination for Convenience of the Government." As used in this clause, the total amount payable by the Government in the event of termination of applicable contract line item(s) for convenience includes costs, profit, and estimated termination settlement costs for those item(s).

(c) Notwithstanding the dates specified in the allotment schedule in paragraph (j) of this clause, the Contractor will notify the Contracting Officer in writing at least ninety days prior to the date when, in the Contractor's best judgment, the work will reach the point at which the total amount payable by the Government, including any cost for termination for convenience, will approximate 85 percent of the total amount then allotted to the contract for performance of the applicable item(s). The notification will state (1) the estimated date when that point will be reached and (2) an estimate of additional funding, if any, needed to continue performance of applicable line items up to the next scheduled date for allotment of funds identified in paragraph (j) of this clause, or to a mutually agreed upon substitute date. The notification will also advise the Contracting Officer of the estimated amount of additional funds that will be required for the timely performance of the item(s) funded pursuant to this clause, for a subsequent period as may be specified in the allotment schedule in paragraph (j) of this clause or otherwise agreed to by the parties. If after such notification additional funds are not allotted by the date identified in the Contractor's notification, or by an agreed substitute date, the Contracting Officer will terminate any item(s) for which additional funds have not been allotted, pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(d) When additional funds are allotted for continued performance of the contract line item(s) identified in paragraph (a) of this clause, the parties will agree as to the period of contract performance which will be covered by the funds. The provisions of paragraphs (b) through (d) of this clause will apply in like manner to the additional allotted funds and agreed substitute date, and the contract will be modified accordingly.

(e) If, solely by reason of failure of the Government to allot additional funds, by the dates indicated below, in amounts sufficient for timely performance of the contract line item(s) identified in paragraph (a) of this clause, the Contractor incurs additional costs or is delayed in the performance of the work under this contract and if additional funds are allotted, an equitable adjustment will be made in the price or prices (including appropriate target, billing, and ceiling prices where applicable) of the item(s), or in the time of delivery, or both. Failure to agree to any such equitable adjustment hereunder will be a dispute concerning a question of fact within the meaning of the clause entitled "Disputes."

(f) The Government may at any time prior to termination allot additional funds for the performance of the contract line item(s) identified in paragraph (a) of this clause.

(g) The termination provisions of this clause do not limit the rights of the Government under the clause entitled "Default." The provisions of this clause are limited to the work and allotment of funds for the contract line item(s) set forth in paragraph (a) of this clause. This clause no longer applies once the contract is fully funded except with regard to the rights or obligations of the parties concerning equitable adjustment negotiated under paragraphs (d) and (e) of this clause.

(j) The parties contemplate that the Government will allot funds to this contract in accordance with the following schedule:

(h) Nothing in this clause affects the right of the Government to terminate this contract pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(i) Nothing in this clause shall be construed as authorization of voluntary services whose acceptance is otherwise prohibited under 31 U.S.C. 1342.

On execution of contract \$TBD

TBD TBD TBD \$TBD

TBD TBD TBD \$TBD

TBD TBD TBD \$TBD

(End of Clause)

#### I.224 252.251-7000 ORDERING FROM GOVERNMENT SUPPLY SOURCES (AUG 2012)

(a) When placing orders under Federal Supply Schedules, Personal Property Rehabilitation Price Schedules, or Enterprise Software Agreements, the Contractor shall follow the terms of the applicable schedule or agreement and authorization. Include in each order:

(b) When placing orders under nonmandatory schedule contracts and requirements contracts, issued by the General Services Administration (GSA) Office of Information Resources Management, for automated data processing equipment, software and maintenance, communications equipment and supplies, and teleprocessing services, the Contractor shall follow the terms of the applicable contract and the procedures in paragraph (a) of this clause.

(1) A copy of the authorization (unless a copy was previously furnished to the Federal Supply Schedule, Personal Property Rehabilitation Price Schedule, or Enterprise Software Agreement contractor).

(2) The following statement: Any price reductions negotiated as part of an Enterprise Software Agreement issued under a Federal Supply Schedule contract shall control. In the event of any other inconsistencies between an Enterprise Software Agreement, established as a Federal Supply Schedule blanket purchase agreement, and the Federal Supply Schedule contract, the latter shall govern.

(3) The completed address(es) to which the Contractor's mail, freight, and billing documents are to be directed.

(c) When placing orders for Government stock on a reimbursable basis, the Contractor shall--

(1) Comply with the requirements of the Contracting Officer's authorization, using FEDSTRIP or MILSTRIP procedures, as appropriate;

(2) Use only the GSA Form 1948-A, Retail Services Shopping Plate, when ordering from GSA Self-Service Stores;

(3) Order only those items required in the performance of Government contracts; and

(d) When placing orders for Government stock on a non-reimbursable basis, the Contractor shall--

(1) Comply with the requirements of the Contracting Officer's authorization; and

Government Remittance Address TBD

(4) Pay invoices from Government supply sources promptly. For purchases made from DoD supply sources, this means within 30 days of the date of a proper invoice (see also Defense Federal Acquisition Regulation Supplement (DFARS) 251.105). For purchases made from DoD supply sources, this means within 30 days of the date of a proper invoice. The Contractor shall annotate each invoice with the date of receipt. The Contractor's failure to pay may also result in the DoD supply source refusing to honor the requisition (see DFARS 251.102(f)) or in the Contracting Officer terminating the Contractor's authorization to use DoD supply sources. In the event the Contracting Officer decides to terminate the authorization due to the Contractor's failure to pay in a timely manner, the Contracting Officer shall provide the Contractor with prompt written notice of the intent to terminate the authorization and the basis for such action. The Contractor shall have 10 days after receipt of the Government's notice in which to provide additional information as to why the authorization should not be terminated. The termination shall not provide the Contractor with an excusable delay for failure to perform or complete the contract in accordance with the terms of the contract, and the Contractor shall be solely responsible for any increased costs.

(2) When using electronic transactions to submit requisitions on a non-reimbursable basis only, place orders by authorizing contract number using the Defense Logistics Management System (DLMS) Supplement to Federal Implementation Convention 511R, Requisition; and acknowledge receipts by authorizing contract number using the DLMS Supplement 527R, Receipt, Inquiry, Response and Material Receipt Acknowledgement.

(e) Only the Contractor may request authorization for subcontractor use of Government supply sources. The Contracting Officer will not grant authorizations for subcontractor use without approval of the Contractor.

(f) Government invoices shall be submitted to the Contractor's billing address, and Contractor payments shall be sent to the Government remittance address specified below:

Contractor's Billing Address TBD

(End of Clause)

I.225 5552.203-9002 DIA CONTRACTOR WHISTLEBLOWER PROTECTION (SEP 2025)

(a) The Contractor shall inform its employees in writing, in the predominant native language of the workforce, of contractor employee whistleblower rights and protections under 50 U.S.C. § 3234, as described in DIAD 7050.200, #Whistleblower Protection."#

(b) Recipients of lawful disclosures of information contemplated by subparagraph (c)(1) of 50 U.S.C. § 3234 are -

(1) As head of the contracting agency, the Director, DIA;

(2) The inspector general of the contracting agency;

(3) Congressional intelligence committees; or

(4) Members of a congressional intelligence committee.

(c) The Contractor shall include the substance of this clause, including this paragraph (c), in all subcontracts.

(d) The Contractor shall ensure that its employees receive annual Whistleblower Protection training as referenced in DIAD 7050.200. (AGILE Course: DIACMP-2036)

(End of Clause)

I.226 5552.204-9001 RESTRICTIONS ON CONTRACTOR SECURITY CLEARANCES (OCT 2015)

All contractor employees submitted for TS/SCI security billets on this contract effort shall be prioritized. For efforts requiring twenty or more TS/SCI FTE billets, the contractor shall not submit candidates to fill more than 110% of all available TS/SCI FTE billets (rounded to the next higher whole number) on the contract (to include all CLINS and options), without the express authorization of the Contracting Officer or his/her designee.

For efforts requiring less than twenty TS/SCI FTE billets, the contractor shall not submit candidates to fill more than four FTE billets over the available TS/SCI FTE billets on the contract (to include all CLINS and options), without the express authorization of the Contracting Officer or his/her designee.

(End of Clause)

I.227 5552.204-9003 PACKAGING AND MARKING OF CLASSIFIED ITEMS (AUG 2010)

Classified information to be transmitted outside of a facility shall be enclosed in opaque inner and outer covers. The inner cover shall be a sealed wrapper or envelope plainly marked with the assigned classification and addresses of both sender and addressee. The outer cover shall be sealed and addressed with no identification of the classification of its contents. A receipt shall be attached to or enclosed in the inner cover, except that CONFIDENTIAL information shall require a receipt only if the sender deems it necessary. The receipt shall identify the sender, the addressee and the document, but shall contain no classified information. It shall be signed by the recipient and returned to the sender.

[REDACTED]

A suspense system will be established to track transmitted documents until a signed copy of the receipt is returned.

When the material is of a size, weight, or nature that precludes the use of envelopes, the materials used for packaging shall be of such strength and durability to ensure the necessary protection while the material is in transit. (See Chapter 5 of the Industrial Security Manual for Safeguarding Classified Information DoD Manual 5220.22-M).

(End of Clause)

I.228 5552.204-9004 METHOD OF TRANSMISSION (DEC 2008)  
TOP SECRET material may be transmitted by:

- a. a specifically designated escort or courier cleared for access to TOP SECRET information (Military, U.S. Civilian employee, or a responsible employee designated by the contractor, except that the contractor's employee shall not carry classified material across international boundaries);
- b. Defense Courier Service using a contractor assigned DCS Account number. Under no circumstances shall TOP SECRET material be transmitted through the U.S. or company mail channels. (See Chapter 5 of the Industrial Security Manual for Safeguarding Classified Information DoD Manual 5220.22-M).

(End of Clause)

I.229 5552.204-9008 HANDLING UNCLASSIFIED DoD INFORMATION (JAN 2013)

All unclassified DoD information in the possession or control of non-DoD entities on non-DoD information systems shall minimally be safeguarded as follows:

1. Contractors shall not process unclassified DoD information on publically available computers (e.g., those available for use by the general public in kiosks or hotel business centers).
2. Contractors shall protect unclassified DoD information by at least one physical or electronic barrier (e.g., locked container or room, logical authentication or logon procedure) when not under direct individual control of an authorized user.
3. At a minimum, contractors shall overwrite media that have been used to process unclassified DoD information before external release or disposal.
4. Contractors shall encrypt all information that has been identified as Controlled Unclassified Information (CUI) when it is stored on mobile computing devices such as laptops and personal digital assistants, compact disks, or authorized removable storage media such as thumb drives and compact disks, using the best encryption technology available to the contractor. (For Official Use Only (FOUO) is considered Controlled Unclassified Information (CUI).)
5. Contractors shall limit transfer of unclassified DoD information to subcontractors or teaming partners with a need to know and obtain a commitment from them to protect the information they receive to at least the same level of protection as that specified in the contract or other written agreement.
6. Contractors shall transmit e-mail, text messages, and similar communications containing unclassified DoD information using technology and processes that provide the best level of privacy available, given facilities, conditions, and environment. Examples of recommended technologies or processes include closed networks, virtual private networks, public key-enabled encryption, and transport layer security (TLS).
7. Contractors shall encrypt organizational wireless connections and use encrypted wireless connections where available when traveling. If encrypted wireless is not available, encrypt document files (e.g., spreadsheet and word processing files), using at least application-provided password protected level encryption.

- [REDACTED]
8. Contractors shall transmit voice and fax transmissions only when there is a reasonable assurance that access is limited to authorized recipients.
9. Contractors shall not post unclassified DoD information to website pages that are publicly available or have access limited only by domain or Internet protocol restriction. Such information may be posted to website pages that control access by user identification and password, user certificates, or other technical means and provide protection via use of TLS or other equivalent technologies during transmission. Access control may be provided by the intranet (vice the website itself or the application it hosts).
10. Contractors shall flow down the above requirements to all affected subcontractors.

(End of Clause)

I.230 5552.204-9009 COUNTERINTELLIGENCE AND SECURITY THREAT REPORTING REQUIREMENTS (SEP 2025)

This contract is sponsored by the Defense Intelligence Agency. All work and services to be performed hereunder will be in compliance with DIAD 5240.200, Counterintelligence and Security Threat Reporting and its reporting requirements. The contractor will ensure that all contractor employees receive annual counterintelligence and security reporting requirements training.

The Contractor will take all reasonable precautions in the work under this contract to protect DIA programs, facilities, technology, personnel, unclassified sensitive information and classified matter from foreign intelligence threats and activities conducted for governmental or industrial purposes, in accordance with DIA Instruction 5240.009, Counterintelligence and Security Threat Reporting; Executive Order 12333, U.S. Intelligence Activities; and other pertinent national and Departmental Counterintelligence requirements.

(End of Clause)

I.231 5552.209-9006 PROTECTION OF INFORMATION AND NONDISCLOSURE AGREEMENTS (FEB 2018)

a. Definitions. As used in this clause only:

- (1) Protected information and computer software. Unless specifically excluded by paragraph (2), all information and computer software, in any form or media, that in the course of performing work under this contract are disclosed to the contractor, its subcontractors, or their employees, or to which those persons otherwise are given access to, by (i) DIA, (ii) other agencies, (iii) foreign governments or (iv) other contractors while directly supporting DIA, which is accompanied by written legends identifying use or disclosure restrictions or disclosed under circumstances that the contractor knows are subject to use or disclosure restrictions established in writing by the government.
- (2) Protected information and computer software does not include information that
- (i) Has been released to the general public through no action of the undersigned in breach of this agreement or through no action of any other party in breach of any other obligation of confidentiality owing to the government or the owner of the protected information or computer software.
- (ii) Has been lawfully obtained by the recipient outside the course of the performance of this contract.
- (iii) Has been properly licensed or provided directly by the owner (or other authorized source) of the information or computer software to the recipient to the extent so licensed or provided.
- (iv) Has been owned by the recipient or was developed independently of the disclosure hereunder.
- (v) Has been used or disclosed by the recipient in response to an order of a court or administrative body of competent jurisdiction to the extent permitted by that authority.

[REDACTED]

(vi) Has been disclosed to the recipient by the government who has explicitly authorized the recipient to use or disclose the information for another purpose, to the extent so authorized.

b. Use and disclosure restrictions. The contractor must use and disclose protected information and computer software only as necessary for the performance of the requirements of this contract. Protected information and computer software may not be used or disclosed for any other purpose, including bid or proposal preparation or business marketing, without the written approval of the contracting officer.

Furthermore, unless otherwise directed by the contracting officer, the contractor shall comply with all restrictions set forth in any legends, licenses or instructions provided to the contractor or accompanying protected information and computer software or other written directives of the government known to the contractor. The use and disclosure obligations imposed by this paragraph shall expire as follows:

(1) There will be no expiration date for the following protected information and computer software:

(i) Technical data or computer software containing limited rights, restricted rights, government purpose rights, special license rights, or unlimited rights legends;

(ii) Information or software marked limited distribution (LIMDIS);

(iii) Information or software marked source selection information;

(iv) Contract proposal information marked pursuant to FAR 52.215-1(e) limiting its use for proposal evaluation purposes only;

(v) Information and computer software marked contractor proprietary or a similar legend;

(vi) Data known by the contractor to be protected by the privacy act; and

(vii) Information and software marked for official use only (FOUO).

(2) For all other protected information and computer software, the expiration date will be three (3) years from the date the information or software is first disclosed to the contractor.

c. Unauthorized use or disclosure. The contractor shall immediately notify the contracting officer of any unauthorized use or disclosure known by the contractor of protected information and computer software in violation of the obligations contained in this clause.

d. Disposition. At the conclusion of performance of work under this contract, the contractor shall immediately return to the government all protected information and computer software in its possession.

Furthermore, if an employee of the contractor who has access to protected information and computer software is terminated or reassigned and thus is no longer performing work under this contract, the contractor shall immediately return all protected information and computer software in the employee's possession. Moreover, if a contractor's employee is dedicated to support a specific DIA office or directorate or DIA program under this contract, but is subsequently reassigned to support another DIA office or directorate or DIA program under this contract, the contractor shall immediately return all protected information or computer software in the employee's possession previously furnished by the prior DIA office or directorate or DIA program. In lieu of returning protected information and computer software, the contracting officer or contracting officer's representative may authorize the destruction of the information or the transfer of the information to another employee of the contractor working under the contract. Finally, this clause shall not be interpreted as preventing the contractor from retaining records required by statutes or other clauses of this contract, such as FAR 52.215-2 Audit and Records Negotiations.

e. Third party beneficiaries. This clause is executed for the benefit of the government and the owners of protected information and computer software. The government and the owners of protected information and computer software (and their delegates, successors and assignees) are third party beneficiaries of the above obligations who may have additional legal rights not specified in this clause.

f. Duration. The above obligations imposed by this clause shall survive the termination or completion of this contract.

g. Classified information. This clause is in addition to and in no manner abrogates requirements, obligations or remedies regarding the protection of classified information and does not supersede the



requirements of any laws, regulations, other directives or nondisclosure agreements regarding classified information.

- h. Other restrictions. This agreement does not abrogate any other obligations currently placed upon the contractor or which may be imposed upon the contractor in the future by the government or other persons; or remedies afforded those persons regarding those obligations.
- i. Nondisclosure agreements. The contractor shall require and ensure that each of its employees who may receive or be given access to protected information and computer software signs the nondisclosure agreement attached at Section J of this contract prior to the employee performing work under this contract covered by the nondisclosure agreement. The contractor shall provide the contracting officer copies of those agreements at no additional cost to the government. The contractor shall maintain copies of signed nondisclosure agreements for a period of at least three years after final payment under this contract.
- j. The contractor must include the substance of this clause in all subcontracts under this contract in which subcontractors may be disclosed or granted access to protected information and computer software.

(End of Clause)

I.232 5552.209-9007 ORGANIZATIONAL CONFLICT OF INTEREST (DEC 2008)

- a. The offeror warrants, to the best of its knowledge and belief, that (1) there are no relevant facts that could give rise to organizational conflicts of interest, as defined in FAR 9.5; or (2) the offeror has disclosed all relevant information regarding any actual or potential organizational conflicts of interest. Offerors are encouraged to inform the contracting officer of any potential conflicts of interest, including those involving contracts with other foreign or domestic government organizations, before preparing their proposals to determine whether the Government will require mitigation of those conflicts. If the successful offeror was aware, or should have been aware, of an organizational conflict of interest before award of this contract and did not fully disclose that conflict to the contracting officer, the Government may terminate the contract for default.
- b. If during contract performance the contractor discovers an organizational conflict of interest involving this contract, the contractor agrees to make an immediate and full disclosure in writing to the contracting officer. Such notification will include a description of the action the contractor and/or subcontractor has taken or proposes to take to avoid, neutralize, or mitigate the conflict. The contractor will continue contract performance until notified by the contracting officer of any contrary actions to be taken. The Government may terminate this contract for its convenience if it deems such termination to be in the best interest of the Government.
- c. The contractor shall inform the contracting officer of any activities, efforts, or actions planned, entered into, or on-going by the contractor or any other corporate entity of the contractor, at the prime or sub-contract level, involving the review of information or providing any advice, assistance, or support to foreign or domestic government agencies, entities, or units outside of DIA which may result in a perceived or actual organizational conflict of interest with any known DIA activity. The contractor shall provide detailed information to the contracting officer as to the specifics of the situation immediately upon its recognition. Based on the severity of the conflict, the contracting officer may direct the contractor to take certain actions, revise current work effort, or restrict the contractor's future participation in DIA contracts as may be necessary to appropriately neutralize, mitigate, or avoid the organizational conflict of interest.
- d. If necessary to mitigate organizational conflict of interest concerns, or when directed to do so by the contracting officer, the contractor shall submit an organizational conflict of interest mitigation plan for approval. The plan must describe how the contractor will mitigate, neutralize, or avoid potential and/or actual conflicts of interest or unfair competitive advantages. After approval of the mitigation plan, the contractor must conduct a yearly self-assessment and submit an annual certification of compliance with the terms of the plan signed by a corporate official at the level of Vice President or above. The contractor shall submit a revised mitigation plan for approval whenever corporate,

contractual, or personnel changes create or appear to create new organizational conflict of interest concerns, or when directed to do so by the contracting officer.

e. The contractor shall insert a clause containing all the requirements of this clause in all subcontracts for work similar to the services provided by the prime contractor.

f. Before this contract is modified to add new work or to significantly increase the period of performance, the contractor agrees to submit an organizational conflict of interest disclosure or representation if requested by the Government.

g. The contractor shall allow the Government to review the contractor's compliance with these provisions or require such self-assessments or additional certifications as the Government deems appropriate.

(End of Clause)

#### I.233 5552.211-9006 SHIPPING AND MARKING DELIVERABLES (SEP 2018)

For all shipments of packaged materiel to the Government, which includes either Depot or Direct Vendor Delivery (DDVD) shipments, both DoD linear and two-dimensional (2D) bar code markings are required on Military shipping labels in accordance with MIL-STD-129P, dated 19 September 2007, or commercially acceptable equivalent.

Subject 2D bar coding shall be in accordance with ISO/IEC 15434 (MHIA MH10.8.2) and DoD 4500.9-R. Linear (Code 39) bar coding shall be in accordance with ISO/IEC 16388.

For sensitive electronic devices, special marking, packaging, labeling and handling instructions shall be applied IAW MIL-STD-129P, or commercial equivalent. An electrostatic discharge sensitivity identifier shall be plainly marked. Items shall be protectively wrapped against Electro- Magnetic Interference (EMI), IAW MIL-STD-2073D or commercially acceptable equivalent.

The Bar-Code and Shipping Label shall be in accordance with the Contractors best commercial practice for domestic shipment to ensure safe arrival at destination. Two copies of the packing slip shall be included with the shipment and must contain the following information on the shipping label:

At a minimum, the container(s) must be clearly marked with the following:

1. Delivery Address (See Block 15 of SF 1449; Block 11 of SF26 or Block 14 of DD1155)
2. Recipients Name, Office Symbol, Phone Number
3. Contract Number, Task Order Number, and (modification#, if applicable)
4. Purchase Request Number
5. Total number of boxes shipped (i.e., Box 1 of 5, Box 2 of 5, Box 3 of 5, etc. ")
6. Contracting Officer Representative (COR) Name and Phone Number
7. Name of Prime Contractor (Note: this is not the third party, drop shipper)
8. Prime Contractors Point of Contact

Additional label items as required:

National Stock Number (NSN)

Gross weight and cubic dimensions

Transportation Control Number (TCN)

PRIOR to shipment of all supplies and equipment an email shall be sent to:

VACACContractorDeliveries@dodiis.mil. The email shall include, at a minimum

1. Contract number, task order number, modification number
2. COR or TPOC name and phone number
3. Packing Slip for all packages being shipped
4. Shipping label
5. Copy of signed contract

The default shipping address is for the DLOC unless an Alternate address is specified below.

#### DEFAULT ADDRESS:

Defense Logistics Operations Center (DLOC)

3300 75th Avenue, Rear Entrance

Landover, MD 20785

Attn: Recipient's Name/Office Symbol/Phone Number: <q>\_\_\_\_\_</q>

Contract/Task Order/Mod #: <q>\_\_\_\_\_</q>

Purchase Request#: <q>\_\_\_\_\_</q>  
Total number of boxes shipped (Box 1 of 5, Box 2 of 5, etc.): <q>\_\_\_\_\_</q>  
COR (Name and Phone number): <q>\_\_\_\_\_</q>  
Name of Contractor: <q>\_\_\_\_\_</q>  
Prime Contractor POC: <q>\_\_\_\_\_</q>

Contract/Task Order/Mod #:

TBD  
Purchase Request#: TBD  
Total number of boxes shipped (Box 1 of 5, Box 2 of 5, etc.):TBD  
COR (Name and Phone number):TBD  
Name of Contractor:TBD  
Prime Contractor POC:TBD

ALTERNATE ADDRESS:

Agency Name:TBD  
Street Address:TBD  
City/State/Zip code:TBD  
Attn: Recipient's Name/Office Symbol/Phone Number:TBD  
Contract/Task Order/Mod #:TBD  
Purchase Request#:TBD  
Total number of boxes shipped (Box 1 of 5, Box 2 of 5, etc.):TBD  
COR (Name and Phone number):TBD  
Name of Contractor:TBD  
Prime Contractor POC:

EXAMPLE:

Defense Logistics Operations Center (DLOC)  
3300 75th Avenue, Rear Entrance  
Landover, MD 20785  
Attn: Mr. Recipient of Shipment, COR, Phone: 202-231-1234  
Contract #: 14-D-0001/ P00005  
PR#: 999-0000-16Z  
Total Number of boxes shipped (Box 1 of 5, Box 2 of 5, Box 3 of 5, etc.)  
Mr. COR, 202-231-9999  
ACME Company  
Mr. Prime ACME

If the contract number begins with HHM402, only the last seven letters/numbers (plus any delivery order number, if applicable) needs to be referenced. For example, HHM402-0X-C-0001 MUST BE shown on the packing slip as 0X-C-0001, and HHM402-0X-D-1001, Delivery Order 0005 may be shown as 0X-D-1001/0005. Contract numbers beginning with other than HHM402 shall be included in their entirety. The contract/delivery order number may be hand written on packing slip if contractor's automated system will not accommodate the entire contract number.

Packing List, Invoice, Shipping Documents

- A packing list, invoice or shipping document shall accompany and be included in all shipments, and is required for both interior and exterior packaging.
- The packing documentation shall include the following:
- Complete "mark-for or ship to" information including Requisition or PR number

- Point of Contact and/or Alternate POC

Packing slips shall contain:

1. Name of Contractor
2. Point of Contact and/or Alternate POC
3. Contract Number and Delivery Order Number (modification number, if applicable)
4. Delivery Address
5. Quantity of items included correlating to the CLIN/SLIN numbers in the contract
6. CLIN/SLIN and Unit of Issue identification to include the quantity shipped, contract item description and part numbers

- [REDACTED]
7. Governments Point of Contact
  8. The prime contractors point of contact and phone number (to discuss any discrepancies)
  9. National Stock Number (NSN), if applicable or Part number or item number, if NSN is not available
  10. Identify any hazardous material (include Materiel Safety Data Sheet)

(End of Clause)

I.234 5552.211-9007 DROP-SHIPPING AND FOREIGN SHIPMENTS (APRIL 2021)

For the purposes of this clause, the term person includes, without limitation, any individual, firm, manufacturer, distributor, supplier, vendor, wholesaler, jobber, or retailer acting at the direction of the Contractor or a subcontractor.

Drop-shipping is a supply chain management method in which the Contractor or a subcontractor does not maintain supplies in stock as physical inventory, but instead instructs another person to ship supplies directly to the Government. This practice is prohibited. All supplies under this award shall be shipped to the Government directly from the Contractor's or subcontractor's possession. Processing and labeling of supplies shall adhere to shipping, receiving and marking instructions. Supplies delivered using drop-shipping will not be accepted by the Government and shall be returned or made available for return pick-up at the Contractor's expense.

Shipments shall not originate from any foreign location for direct delivery to the Government. Address and labeling documents shall be affixed at a location within the United States.

(End of Clause)

I.235 5552.215-9001 NOTICE: INCORPORATION OF SECTION K BY REFERENCE (DEC 2008)

In accordance with FAR 15.204-1(b), Part IV of the Uniform Contract Format shall not be physically included in the contract, but Section K, Representations, Certifications, and Other Statements of Offerors (as completed by the contractor) shall be deemed incorporated by reference in the contract.

(End of Clause)

I.236 5552.215-9007 CHANGE IN KEY PERSONNEL (DEC 2008)

The contractor shall notify the contracting officer prior to making any change in the individuals listed below as key personnel assigned to this contract. The contractor must demonstrate that the qualifications of the prospective personnel are equal to, or better than, the qualifications of the personnel being replaced.

[List here the key personnel]TBD

(End of Clause)

I.237 5552.216-9002 PRICE ADJUSTMENT - LEVEL OF EFFORT (FIXED PRICE) (APR 2010)

(a) This is a Firm Fixed Price Level-of-Effort Term Contract as identified in FAR 16.207. The total price for full performance hereunder is \$ .

(b) The Contractor shall expend its best effort towards accomplishing the work outlined in the clause entitled "Scope of Contract". The level-of-effort required for total performance under this contract is a minimum of direct labor hours and a maximum of direct labor hours.

(c) The estimated composition of the total direct labor hours under this contract is as follows: NOTE:  
The contracting officer shall include all relevant contract direct labor categories and direct labor hours from the prime contractor and the subcontractor(s).]

(d) The Contractor shall continually evaluate the total level of effort required and recommend to the Government changes thereto that are considered beneficial in attaining the overall objectives of this

contract. In controlling the utilization of direct labor hours, the Contractor shall promptly notify the Contracting Officer, in writing, when there is an indication that premature exhaustion of the total direct labor hours is predicted.

(e) It is understood and agreed that the rate of direct labor hours per month may fluctuate in pursuit of the technical objective; however, such fluctuations will be controlled to avoid an exhaustion of the total direct labor hours of effort before the expiration of the term of the contract.

(f) It is further agreed that the Contractor may submit written requests for acceleration of the average hourly rate of effort that will result in the utilization of the total direct labor hours set forth above prior to the expiration date of this contract. If the contractor's request is approved by the Contracting Officer, the accelerated performance shall be without increase in contract price and the transaction formalized by modification to this contract.

(g) On or about the completion date of this contract, the Contractor shall submit to the Contracting Officer a brief certified statement supported by a breakdown, by direct labor category, of the direct labor hours actually expended in the performance of this contract.

(h) The Firm Fixed Price (FFP) for performance under this contract is predicated upon the Contractor furnishing at least the minimum Level of Effort (LOE) but up to and including the maximum LOE specified. In the event the minimum LOE is not provided as specified, the Contracting Officer shall either require the Contractor to continue to perform work under the contract until the minimum LOE has been provided (if consistent with appropriations law) or make an equitable downward adjustment in contract price in accordance with the following formula:

Price Reduction = FFP (in dollars) x (Target LOE - Expended LOE) Target LOE =

(i) "Price Reduction" computed by the above formula is the dollar amount by which the contract price will be reduced. "FFP" in the above formula means the fixed price specified in the contract. "LOE" in the above formula means "level of effort". "Target" in the formula means the minimum level of effort considered acceptable by the Government. Any amount less than the minimum LOE shall trigger the use of the formula to adjust the price.

(End of Clause)

I.238 5552.216-9008 TASK ORDERS (DEC 2008)

a. This is a cost plus fixed fee contract for the provision of services specified and effective for the period stated in the Schedule.

b. All work performed under this contract shall be accomplished in accordance with Task Orders issued by the contracting officer and will be based on one or more Government requirements as stated in Section B and C. Each Task Order shall be deemed to incorporate the terms and conditions of this contract and will include a description of the precise effort to be expended, the delivery date required and an estimated cost to the Government of the work to be performed.

c. Notwithstanding any provision of this contract to the contrary and notwithstanding any language of the Task Orders issued hereunder, the estimated cost of this contract, and, if this contract is incrementally funded, the funds allowed for the performance thereof, shall not be increased or deemed to be increased, except by written modification of the contract indicating the new contract estimated cost and, if the contract is incrementally funded, the new amount allotted to the contract.

d. Specific tasks to be accomplished within the scope of this contract will be authorized by the contracting officer by issuance of a serially numbered Task Order after receiving labor hour, material and cost estimate from the contractor. It is essential that a close working relationship exist between the contractor and the Contracting Officer's Representative which will permit projects to be requested of the contractor, proposed upon by the contractor and authorized by the contracting officer within a period of 10 working days or less.

e. The contracting officer's Representative does not have the authority to authorize tasks outside the scope of work nor any task or task approach which would require funds beyond those specifically available under this contract.

f. Data will be furnished in accordance with the Contract Data Requirements List (DD Form 1423) as specified in each task order.

[REDACTED]

g. Any task order issued during the effective period and not completed within that period shall be completed by the contractor within the time specified in the order. The contract shall govern the contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contractor's effective period. The contractor shall not be required to perform work and services under any Task Order for a period in excess of six months after expiration of the contract.

(End of Clause)

I.239 5552.216-9009 FEE ADJUSTMENT TERM (LEVEL OF EFFORT) TASK ORDERS (Sep 2013)

The balance of the fixed fee withheld pursuant to the contract clause entitled "Fixed Fee" shall be released at the expiration of the period of performance for any level of effort task order placed under the contract upon certification by the contractor that he/she has expended the level of effort specified in performing the work called for in the task order. The contractor shall submit to the ordering officer: (1) a breakdown of the category and number of man- hours for each category expended in the performance of the task order, and (2) a certification stating to what extent the total number of man hours specified within the task order schedule have been expended. Deviations below the level of effort shall be subject to the approval of the ordering officer, and after approval, the fee may be adjusted proportionately. The above breakdown and certification shall be submitted in the original and three copies upon completion of work and services required in Section B of each individual task order.

(End of Clause)

I.240 5552.216-9010 TIME & MATERIAL SUPPLIES/SERVICES AND PRICES (AUG 2010)

Labor Categories Estimated Labor Hours Labor Rate Total Amount

[Insert listing of [Insert estimated hours      TBD    TBD  
labor categories] required]

Material (Not To Exceed) TBD

ODC (Not To Exceed) TBD

Ceiling Price: TBD

(End of Clause)

I.241 5552.217-9000 INCENTIVE TERM YEARS (SEP 2015)

Should all option years pursuant to FAR clause 52.217-9 under this contract be exercised and all incentive term years be completely awarded, the period of performance will be a maximum of TBD years. FAR clause 52.217-8 may also be exercised for up to an additional six months for a total maximum period of performance of TBD years.

I.242 5552.219-9000 Intelligence Community Electronic Subcontracting Reporting System (IC eSRS) (AUG 2024)

The Department of Defense has begun using the Electronic Subcontracting Reporting System (eSRS) as required by the FAR. eSRS is a real time contract retrieval interface with the Federal Procurement Data System-Next Generation (FPDS-NG). The interface permits Contractors to enter their contract number into eSRS and have the data retrieved from FPDS and immediately made available for reporting in eSRS.

Specifically, eSRS eliminates the need for paper submissions and processing of the SF 294 (Individual Subcontracting Report) and the SF 295 (Summary Subcontracting Report).

The Intelligence Community (IC) prime Contractors are not able to enter their Individual Subcontracting Report (ISR) into eSRS because eSRS does not support submission of ISRs to agencies such as DIA that have waivers from reporting to FPDS.

[REDACTED]

DIA prime Contractors shall submit their ISRs through the IC eSRS. These submissions are required semi-annually, as of 30 Sep and 31 Mar of each year.

To enable DIA's prime Contractors to be compliant with the reporting requirements of their subcontracting plans and in accordance with FAR 52.219-9, Small Business Subcontracting w/Alternate III; DFARS 252.219-7003 (DoD Contracts) w/Alternate I; and/or DFARS 252-219-7004 (Test Program), ODNI developed the IC eSRS which is equivalent to the Government-wide eSRS.

DIA prime Contractors that hold one or more contracts over the threshold identified in FAR 19.702 (a) shall submit their ISR to DIA via the IC eSRS in lieu of the SF 294 (Subcontracting Report for Individual Contracts). Prime Contractors are responsible for entering accurate, timely and complete reports in the IC eSRS as required and in accordance with the reporting requirements of FAR 52.219-9, DFARS 252.219-7003 and/or DFARS 252.219-7004.

The IC eSRS can be found at: on the (NIPRNET) <http://icesrs.westfields.net> and on the JWICS at <https://icesrs.nro.ic.gov> and can be accessed via the JWICS or similar network for Contractors with active accounts.

It is important to note that all users must have the proper credentials in order to gain access to (NIPRNET) <https://icesrs.nro.ic.gov>.

The reporting requirements of FAR 52.219-9, DFARS 252.219-7003 and/or DFARS 252.219-7004 shall remain in full effect.

For those DIA prime Contractors that are unable to obtain an IC eSRS account, the SF 294 (paper or electronic copy) shall be submitted to the OSBP at [ssmallbusiness@dodiis.mil](mailto:ssmallbusiness@dodiis.mil) and the Contracting Officer of the procuring contracting office. Every effort shall be made to establish an account within (1) one-year of contract award or public notification (i.e., IC eSRS home page, SBP home page, etc.) of this clause. All contracts with subcontracting plans will be modified to include this clause.

For those DIA prime Contractors that are able to establish an IC eSRS account, use of the IC eSRS shall be effective immediately.

With regards to the Summary Subcontract Reports (SSRs), prime Contractors and Sub-contractors are required to submit one SSR via IC eSRS found at [www.esrs.gov](http://www.esrs.gov), and this report shall be submitted to the Department or Agency which administers the majority of its subcontracting plans (i.e. the Army, Navy, Air Force, DLA, DCMA at the top level (2100, 1700, etc.)). If the majority of its contracts are administered by DIA, Contractors shall select OSD as the Department for DIA, Agency ID #9700".

(end of clause)

#### I.243 5552.231-9001 PRE-CONTRACT COSTS (DEC 2008)

In accordance with FAR 31.205-32, it is understood and agreed between the parties that costs incurred between \_\_\_\_\_ and the date of award of this contract shall be allowable in an amount not to exceed a total of \$ \_\_\_\_\_, to the extent that they would have been allowable had they been incurred after award of contract. The amount of pre-contract costs is included in the estimated cost of the contract.

(End of Clause)

#### I.244 5552.231-9002 HOURS OF OPERATION AND HOLIDAY SCHEDULE (FEB 2025)

(a) For services to be performed on-site at the government's location, the contractor shall provide such services in accordance with the contract and technical direction provided by the Government.

(b) Contractors may be required to provide services under the contract outside of normal business hours, including during weekends, on federal holidays, or via shifts. The Government may require the contractor to adjust its employees' work schedules within the time of performance established by the contract, at no additional cost to the Government, by providing the contractor 24-hour advance notice. This notice may be written or oral.

c) The Government may authorize an alternate place for performance of the services, at no additional cost to the Government.

d) The Government hereby provides notification that Government personnel observe the following days as federal holidays:

|                               |                  |  |
|-------------------------------|------------------|--|
| New Year's Day                | Labor Day        |  |
| Martin Luther King's Birthday | Columbus Day     |  |
| President's Day               | Veteran's Day    |  |
| Memorial Day                  | Thanksgiving Day |  |
| Independence Day              | Christmas Day    |  |
| Juneteenth Day                |                  |  |

Any other day designated by federal law, executive order or presidential proclamation.

e) When any holiday specified above falls on a Saturday, the preceding Friday will be observed. When any such holiday falls on a Sunday, the following Monday will be observed. Observances of such days by Government personnel shall not be cause for additional period of performance or entitlement to compensation except as set forth in the contract. If the contractor's personnel work on a holiday, holiday or other premium compensation shall not be reimbursed either as a direct or indirect cost, other than their normal compensation for the time worked.

f) The Government may close a Government facility (or individual offices therein) for all or a portion of a business day as a result of:

- 1) Granting administrative leave to non-essential Government employees (e.g. unanticipated holiday);
- 2) Inclement weather;
- 3) Failure of Congress to appropriate operational funds; or
- 4) Any other reason.

a) When a DIA facility is closed down, contractor personnel providing essential contractor services, as identified in their contract in accordance with DFARS 252.2377023 or other terms and conditions, shall be prepared to report and continue providing such services, as required by the COR and/or the Contracting Officer. Contractor personnel not providing essential contractor services shall not report to the facility.

b) Contractor personnel already present at the facility that are not performing essential contractor services will be dismissed and shall leave the facility.

c) During shutdowns, other than those resulting from a lack of funding, contractor personnel not performing essential contractor services may work from an Agency authorized alternate work location(s), if approved by the Contracting Officer (or their designee), or take leave in accordance with the Contractor's policies.

(i) When Federal employees working in an DIA facility are excused in bulk from work for whatever reason (including early release), but the DIA facility is not closed, contractor personnel working in the facility shall continue working unless otherwise directed by the Contracting Officer.

(ii) It is the Contractor's responsibility to pre-determine and disclose its charging practices, which shall be in accordance with the FAR and applicable CAS requirements. Contractors shall follow their disclosed charging practices during the contract period of performance, and shall not follow any verbal directions to the contrary. The Contracting Officer will make the determination of cost allowability for time lost due to facility closure in accordance with the FAR, applicable Cost Accounting Standards, and the Contractor's established accounting policies. Those contractor personnel who take leave shall not direct charge the non-working hours to the Contract.

(End of Clause)



I.245 5552.231-9003 TRAVEL AND PER DIEM (DEC 2008)

Travel costs shall be allowed to the extent that they are reasonable, allocable, and determined to be allowable under FAR 31.205-46. Travel by air will be reimbursed at the actual cost incurred and will not exceed the lowest customary standard coach, or equivalent fare offered during normal business hours. Airfares above the standard airfare may be allowable if the conditions of FAR 31.205-46(d) are documented and justified. As prescribed in FAR 31.205-46(a), travel costs for lodging, meals, and incidental expenses are limited to the maximum per diem rates in effect at the time of travel set forth in the Federal Travel regulation (FTR); the Joint Travel Regulations, Volume 2, DoD Civilian Personnel, Appendix A; or the Standardized Regulations (Government Civilians, Foreign Areas), Section 925, "Maximum Travel Per Diem Allowances for Foreign Areas." The per diem allowance shall not be allowed when the period of official travel is 10 hours or less during the same calendar day. Travel by privately owned vehicle will be reimbursed at the current GSA approved mileage rate. Current travel policy and per diem rates may be obtained at the following Internet site: <http://perdiem.hqda.pentagon.mil/perdiem/>.

(End of Clause)

I.246 5552.232-9000 INVOICING PROCEDURES AND PAYMENT - FIXED PRICE CONTRACTS (OCT 2025)

a) Invoices shall be submitted electronically through the Maryland Procurement Office (MPO) website, accessible via NIPRNET, following the guidelines found at: <https://www.nsa.gov/business/programs/electronic-invoicing.shtml>, unless otherwise authorized. Access to the electronic invoicing website requires an External Certificate Authority/Interim External Certificate Authority (ECA/IECA) PKI certificate. Information about purchasing an ECA/IECA certificate, including its initial and annual cost, is available on the (NIPRNET) site at: <http://iase.disa.mil/pki/eca/Pages/index.aspx>.

b) The following details must be included on the supporting documentation and detailed as specified on the electronic form submitted through the MPO website. Invoices shall contain the following:

1) Name and address of the contractor.

2) The invoice number, dates for invoice submission, period of performance for which reimbursement is being requested and all supporting documentation, which must match the "Service Performed/Goods Delivered" date that is entered on the electronic form.

3) Contract number for supplies delivered or services performed (if award is a delivery or job order, ensure entire contract number - basic award and order number - is included).

4) Description on the invoice should describe what is being billed on the support documents. Quantities and prices will be described including (i) Contract Line Item Number (CLIN), (ii) Sub-Line Item Number (SLIN) (Where no SLIN applies, specify #00# for the SLIN number.), and (iii)

Accounting Classification Reference Number (ACRN). (NOTE: An invoice not properly allocated to include all three of these numbers will be an improper invoice under the Prompt Payment Act and automatically rejected by the paying office.)

5) Name of the contractor's official (and address) to whom payment is to be sent, if other than Electronic Funds Transfer (EFT) is authorized.

6) Shipping details/payment terms (e.g., date of shipment, tracking number, address, discount for prompt payment).

7) Name, title, phone number and mailing address of person to be notified in the event of a defective invoice.

8) Taxpayer Identification Number (TIN), EFT banking information, and Unique Entity Identifier (UEI) number.

9) COR's name and POC information.

10) Supporting backup documentation from the vendor is required to provide sufficient information documenting the validity and accuracy of its invoice submission to include applicable CDRLS and DIDs

required. Supporting documentation must provide clear evidence that services were performed or goods were delivered (e.g. DD 250 completed for COR acceptance) in compliance with the terms and conditions of the contract. The total amount, date on invoice, and supporting documentation provided to validate invoice must match for audit trail. If a mismatch occurs, the invoice will be rejected.

- c) The contractor is authorized to invoice TBD (insert, as appropriate: #monthly,# #bi-weekly#, etc.)
- d) The COR is required to review and approve invoices as part of the payment process. When invoicing electronically, the identified COR will automatically receive notification of a pending invoice.
- e) Invoicing for a milestone, the vendor must select the #milestone# radio button in MPO on the electronic form submitted through the website. In addition, CDRL standard milestone acceptance must be submitted as part of the vendor#s supporting documents.
- f) Questions regarding payment shall be directed to the Finance and Accounting Office at (443) 654-3700.

(End of Clause)

I.247 5552.232-9001 INVOICING PROCEDURES AND PAYMENT - COST REIMBURSABLE CONTRACTS (OCT 2025)

- (a) Invoices shall be submitted electronically through the Maryland Procurement Office (MPO) website, accessible via NIPRNET, following the guidelines found at: <https://www.nsa.gov/business/programs/electronic-invoicing.shtml>, unless otherwise authorized. Access to the electronic invoicing website requires an External Certificate Authority/Interim External Certificate Authority (ECA/IECA) PKI certificate. Information about purchasing an ECA/IECA certificate, including its initial and annual cost, is available on the (NIPRNET) site at: <http://iase.disa.mil/pki/eca/Pages/index.aspx>.
- b) The supporting documentation must include the following details, as specified on the electronic form submitted through the MPO website, invoices shall contain the following:
  - 1) Name and address of the contractor.
  - 2) The invoice number, dates for invoice submission, period of performance for which reimbursement is being requested and all supporting documentation, which must match the "Service Performed/Goods Delivered" date that is entered on the electronic form.
  - 3) Contract number for supplies delivered or services performed (if award is a delivery or job order, ensure entire contract number - basic award and order number - is included).
  - 4) Description, quantities and prices will be described as shown on the Contract and describe what is being billed for in the support invoice period, including (i) Contract Line Item Number (CLIN), (ii) Sub-Line Item Number (SLIN) (Where no SLIN applies, specify #00# for the SLIN number.), and (iii) Accounting Classification Reference Number (ACRN). (NOTE: An invoice not properly allocated to include all three (3) of these numbers will be an improper invoice under the Prompt Payment Act and automatically rejected by the paying office.)
  - 5) Name of the contractor#s official (and address) to whom payment is to be sent, if other than Electronic Funds Transfer (EFT) is authorized.
  - 6) Shipping details/payment terms (e.g., date of shipment, tracking number, address, discount for prompt payment).
  - 7) Name, title, phone number and mailing address of person to be notified in the event of a defective invoice.

- [REDACTED]
- 8) Taxpayer Identification Number (TIN), EFT banking information Unique Entity Identifier (UEI) number.
- 9) COR#s POC/ Telephone Number/ Email Address.
- 10) Supporting backup documentation, the vendor is required to provide sufficient information documenting the validity and accuracy of its invoice submission to include applicable CDRLS and DIDs required. Supporting documentation must provide clear evidence that services were performed or goods were delivered (e.g. DD 250 completed for COR acceptance) in compliance with the terms and conditions of the contract. The total amount, date on invoice, and supporting documentation provided to validate the invoice must match for the audit trail. If a mismatch occurs, the invoice will be rejected.
- 11) Invoicing for Contract Acquired Property (CAP):
- i. All CAP invoice submissions shall be reported IAW applicable CDRL. A copy of the report shall be provided to the COR and PA, in the appropriate field on the electronic invoice form and attach the corresponding approved DD250 and CDRL CAP Report. The total valued of the CAP invoice must be supported by the CAP report(s) and match at the CLIN/SLIN/ACRN level. If the totals do not match a detailed explanation must be provided. When submitting a partial payment request, specify which invoice components are being billed and indicate relevant information that apply.
- 12) Invoicing for a milestone, the vendor must select the #milestone# radio button in MPO on the electronic form submitted through the website. In addition, CDRL standard milestone acceptance must be submitted as part of the vendor#s supporting documents.
- c) The contractor is authorized to invoice TBD (insert, as appropriate: #monthly,# #bi-weekly#, etc.)
- d) All electronic invoices will be reviewed and approved by the appropriate Defense Contract Audit Agency (DCAA) Field Detachment Branch Office prior to payment by the Accounts Payable organization: Questions regarding the identity of the appropriate DCAA Field Detachment office will be directed to the Finance and Accounting Office at (443) 654-3700.
- e) Any invoice not properly routed through and approved by the cognizant DCAA Field Detachment Branch Office will be considered an improper invoice under the Prompt Payment Act. The DCAA Field Detachment Branch Office will automatically receive notification of a pending electronic invoice. When an invoice is approved, the responsible Field Detachment auditor will mark the invoice approved and forward it to the disbursement office for payment. When an invoice is disapproved, the Field Detachment auditor will mark the invoice disapproved and state within the invoice comments section what the contractor will do to correct the invoice.
- f) The COR is required to review and approve invoices as part of the payment process. When invoicing electronically, the identified COR will automatically receive notification of a pending invoice.
- g) Payment approvals under cost reimbursement type contracts, including time and materials/labor hour contracts are considered provisional invoice approvals until DCAA or other cognizant Government audit authority has determined the costs and fees under the contract are valid and allowable. For auditing assistance, call the DCAA Field Detachment-Special Programs Division office at (703) 227-9056 or (703) 227-9045.
- h) Questions regarding payment shall be directed to the Finance and Accounting Office at (443) 654-3700.
- (End of Clause)

I.248 5552.232-9003 SEGREGATION OF COST (DEC 2008)

The clauses under Section I, entitled, "ALLOWABLE COST, AND PAYMENT" and "FIXED FEE" are in full force and effect individually to \_\_\_\_\_ TBD of the program as set forth under Section B. The contractor will be required to keep all expenses arising under \_\_\_\_\_ TBD completely segregated. In such

[REDACTED]

event, the Government will not be obligated to reimburse the contractor for costs and fixed fee incurred in excess of the amount shown under each \_\_\_\_\_ TBD . In the event the Government does not elect to authorize the contractor to proceed to the next \_\_\_\_\_ TBD this contract shall be terminated for the convenience of the Government, pursuant to the contract clause, entitled "TERMINATION COST-REIMBURSEMENT".

(End of Clause)

I.249 5552.232-9005 ALLOCATION OF CONTRACT COSTS (DEC 2008)

Because this contract is supported by two or more fund citations, all requests for progress payments and invoices submitted for payment shall allocate costs based on the tasks defined in the Schedule. An invoice not properly allocated shall be considered an improper invoice under the Prompt Payment Act. For cost- reimbursement type contracts requiring a Contract Fund Status Report (CFSR), the contractor shall provide a summary sheet with the billing (rather than submitting a copy of the CFSR), using the data from the current period CFSRs to identify each accounting classification reference number (ACRN) and cost for the current period. The total of the summary sheet should equate to the total amount of the contractor's billing. Below is a model for the contractor's use in accomplishing cost allocation.

| ITEM | SUPPLIES/SERVICES | QTY | UNIT | PRICE | AMOUNT |
|------|-------------------|-----|------|-------|--------|
|------|-------------------|-----|------|-------|--------|

---

ACRN: AA

---

ACRN: AB

TOTAL \_\_\_\_\_

INVOICED AMOUNT BY ACRN:

ACRN: AA - \_\_\_\_\_

ACRN: AB - \_\_\_\_\_

(End of Clause)

I.250 5552.237-9000 REQUIRED CONTRACTOR INFORMATION FOR DIA HUMAN CAPITAL MANAGEMENT SYSTEM (myHR) (JUL 2016)

The contractor will ensure that all contractor personnel will accurately enter and maintain required administrative information in DIA official human capital management system (i.e., myHR). Information maintained in myHR is protected by the Privacy Act of 1974. DIA will use this information to facilitate enterprise management and operations (e.g., authenticate security and systems access, issue identification cards, compile total force metrics, and electronically maintain administrative information in other DIA and/or Intelligence Community business systems). Contractor personnel are required to update their myHR records within 72 hours after an event occurs that requires a record update. The Contracting Officer or the Contracting Officers Representative will provide a copy of the appropriate guidance to the contractor upon award.

I.251 5552.239-9000 SOFTWARE WARRANTY (DEC 2008)

[REDACTED]

The contractor warrants that, to the best of its knowledge and belief, software provided under this contract does not contain any malicious code, program, or other internal component (e.g., computer virus) which could damage, destroy, or alter software, firmware, or hardware or which could reveal any data or other information accessed through or processed by the software. Further, the contractor shall immediately inform the contracting officer upon reasonable suspicion that any software provided hereunder may cause the harm described above.

(End of Clause)

I.252 5552.239-9001 SECTION 508 COMPLIANCE (NOVEMBER 2024)

a.) Section 508 Accessibility Standards:

All ICT products and services provided under this requirement must conform to the Section 508 standards specified in Title 36, Code of Federal Regulations (CFR), Part 1194. The applicable standards and guidelines, for compliance with Section 508, are available on the U.S. Access Board's website <https://www.access-board.gov/ict/>.

b.) Accessibility Requirements: The contractor must ensure that:

- 1) All software applications and operating systems comply with 36 CFR Part 1194, Subpart B, Section 1194.21.
- 2) All web-based intranet and internet information and applications comply with 36 CFR Part 1194, Subpart B, Section 1194.22.
- 3) All telecommunications products comply with 36 CFR Part 1194, Subpart D, Section 1194.23.
- 4) All video and multimedia products comply with 36 CFR Part 1194, Subpart E, Section 1194.24.
- 5) All desktop and portable computers comply with 36 CFR Part 1194, Subpart F, Section 1194.26.

c.) Documentation and Testing:

At the request of the government, the contractor shall provide via a deliverable, a Voluntary Product Accessibility Template (VPAT) (<https://www.section508.gov/sell/how-to-create-acr-with-vpat/>) or equivalent documentation for each ICT product or service, detailing compliance with the applicable Section 508 standards. The agency reserves the right to independently test and validate the certified accessibility features of the products and services provided as part of the inspection/acceptance. False or misleading compliance certifications may be a basis for the Government to pursue any and all contractual remedies, including termination of the contract as well as other remedies provided by statute or regulation.

-----End of clause-----

I.253 5552.242-9000 CONTRACTOR CONTRACT ADMINISTRATOR(S) (DEC 2008)

Designate below the person(s) whom the government may contact for prompt action on matters pertaining to administration of the contract.

NAME: TBD

TITLE: TBD

TELEPHONE NUMBER: TBD

(End of Clause)

I.254 5552.242-9001 CONTRACTING OFFICER'S REPRESENTATIVE (DEC 2008)

CONTRACTING OFFICER'S REPRESENTATIVE (DEC 2008)

(a) The following person is designated as the Contracting Officer's Representative (COR):

Amy Wolf

.

.

(b) For guidance from the COR to the contractor to be valid, it will:

(1) be consistent with the Statement of Work in this contract;

(2) not constitute new assignment of work or change the expressed terms, conditions, or specifications incorporated in this contract;

[REDACTED]

(3) not constitute a basis for an extension to the period of performance or contract delivery schedule;  
and

(4) not constitute a basis for an increase in any contract line item number quantities or in the total contract value.

(End of Clause)

I.255 5552.242-9002 PURCHASING OFFICER REPRESENTATIVES (DEC 2008)

Contracting Officer: TBD

Office Symbol: TBD

Telephone (1) Commercial: TBD

(2) DSN: TBD

Contract Specialist: TBD

Office Symbol: TBD

Telephone (1) Commercial: TBD

(2) DSN: TBD

Technical Point of Contact: TBD

Office Symbol: TBD

Telephone (1) Commercial: TBD

(2) DSN: TBD

(End of Clause)

I.256 5552.242-9003 LIMITATION OF AUTHORITY (DEC 2008)

a. No person in the Government, other than a contracting officer, has the authority to provide direction to the contractor that alters the contractor's obligations or changes this contract in any way. If any person representing the Government, other than the contracting officer, attempts to alter contract obligations, change the contract specifications/statement of work or tells the contractor to perform some effort, that the contractor believes to be outside the scope of this contract, the contractor shall immediately notify the contracting officer. Contractor personnel shall not comply with any order or direction that they believe to be outside the scope of this contract, unless the order or direction is issued by a contracting officer.

b. Only the contracting officer, or his duly authorized successor, is authorized to take action on behalf of the U.S. Government, which results in changes in the terms of the contract, including deviations from specifications, details, delivery schedules and costs. Any changes in the unit price, total contract prices, quantity, quality, or delivery schedule must be approved by the contracting officer. The contractor should never proceed with any proposed work changes without written authority or direct instructions from the contracting officer; otherwise you risk not being reimbursed. The authority to change the contract provisions rests solely with the contracting officer.

(End of Clause)

I.257 5552.242-9004 DOWNWARD ADJUSTMENT OF RATES (DEC 2008)

The contract prices set forth in Section B of this contract are based on rates not yet finalized by negotiations between the Government and the contractor. The Government therefore reserves the right to make a downward adjustment in labor rates and indirect rates as a result of any negotiated Forward Pricing Rate Agreement between the Government and the contractor effective on or before TBD .

(End of Clause)

I.258 5552.245-9000 GOVERNMENT FURNISHED PROPERTY (DEC 2008)

- a. Pursuant to the contract clause entitled "Government Furnished Property" the Government shall furnish the property indicated hereinafter to the contractor within TBD days after contract award for use in connection with the performance of the requirements set forth herein and for a period not to exceed the effective period of this contract (including any subsequent extension) F.O.B. contractor's place of performance.
- b. Upon completion or termination of this contract, unless sooner requested by the Government, the contractor shall return to the Government all such physically deliverable property or equipment, as well as any contractor acquired property which may accrue to the Government under contractual terms, provided such property has not been previously incorporated into any contractual line items as a part hereof, tested to destruction, or otherwise expended or rendered valueless as a result of performance.

(End of Clause)

I.259 5552.245-9001 GOVERNMENT FURNISHED DATA (DEC 2008)

- a. The data identified below to be provided the contractor will be made available within TBD days from the date of award and will be returned TBD days from performance completion.
- b. The data identified to be made available for on-site review will be made available upon request to the COR provided the requestor has adequate identification, evidence of appropriate security clearance and evidence of authorization (contract).
- c. Any data required and not listed will be made available only upon written authority of the COR.
- d. Data to be provided: TBD

(End of Clause)

I.260 5552.245-9002 CONTRACTOR PROPERTY REPORTING REQUIREMENTS (SEPT 2025)

- a) The contractor is responsible for documenting and reporting on all Contractor Acquired Property (CAP) and Government Furnished Property (GFP) in its possession.
- b) The contractor will prepare a Government Property report in accordance with the specified Contract Data Requirements List (CDRL). This report must clearly differentiate between GFP and CAP assets and utilize the designated Property CDRL Agency template provided by the government.
- c) The CDRL will include a mandatory reporting template, which is the sole acceptable format for submitting CAP and GFP data; vendor-generated reports will not be accepted. All submissions must be formatted using the GFP/CAP mandatory CDRL and MS Excel template. The CDRL document contains detailed instructions, the MS Excel template, a baseline inventory of CAP/GFP, reporting frequency, and distribution guidelines, including the email addresses for report submissions.
- d) Reporting Timelines:
  1. A baseline property report must be submitted no later than 60 calendar days following the award of the contract.
  2. Monthly property report updates are required to be provided to the Contracting Officer, Contracting Officer Representative, and Property Administrator.
  3. A final report detailing all property associated with the contract must be submitted to the Government no later than 90 calendar days after the contract's completion or termination.

(End of Clause)

[REDACTED]



FAR Clauses by Reference

The following clauses are incorporated by reference:

FAR 52.208-90

FAR 52.208-91

The full clause text can be found at [acquisition.gov](https://www.acquisition.gov).

[REDACTED]

[REDACTED]

**SECTION J**  
**LIST OF ATTACHMENTS**

J.1 J.1 DORE3 NDA

**NONDISCLOSURE AGREEMENT**  
Defense Intelligence Agency

[This agreement is to be signed by all contractor employees who in the course of performing contract work for DIA may be disclosed, or have access to, Protected Information and Computer Software as defined below.]

I, \_\_\_\_\_, the employee of \_\_\_\_\_ understand in the course of my work for the Defense Intelligence Agency (DIA) under Contract Number \_\_\_\_\_ that Protected Information and Computer Software may be disclosed to me and I may otherwise have access to such items on DIA information technology networks or in DIA workspaces. I agree to abide by all terms and obligations contained in this agreement regarding the protection of such items.

1. Definition.

a. Unless specifically excluded by paragraph 1.c, "Protected Information and Computer Software" means all information and computer software, in any form or media, that in the course of performing work for the DIA under various contracts are disclosed to me, or to which I am otherwise given access to, by (i) DIA, (ii) other government agencies, (iii) foreign governments or (iv) other contractors while directly supporting DIA, which is accompanied by written legends identifying use or disclosure restrictions or disclosed under circumstances that I know are subject to use or disclosure restrictions established in writing by the Government.

b. Protected Information and Computer Software includes by way of illustration, but is not limited to: (i) intelligence products and data marked Limited Distribution (LIMDIS); (ii) information marked For Official Use Only (FOUO); (iii) personnel data protected by the Privacy Act; (iv) data, information and material (including software documentation and computer databases) of a technical, scientific, or government predeliberative nature; (v) contractor proposals, acquisition plans, government cost estimates, draft statements of work, source selection plans, and evaluations of contractor proposals; (vi) financial and management data used for contract award or administration purposes; (vii) test reports; (viii) government requirements documents; (ix) financial statements and reports; (x) manpower reports; (xi) planning, cost and program development documents, resource forecasts, National Intelligence Program/Military Intelligence Program (NIP/MIP) data, Program Objective Memorandums (POM), Program Budget Submissions/Intelligence Program and Budget Submissions (PBS/IPBS), Congressional Budget Justification Books/Congressional Justification Books (CJB/CJB), President's Budget Submissions, Program Budget Decisions (PBD), and Five Year Plans; and (xii) computer programs, source code, source code listings, object code listings, design details, algorithms, processes, flow charts, formulae, and related material that would enable the software to be reproduced, recreated, or recompiled.

c. Protected Information and Computer Software does not include information that:

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- [REDACTED]
- (1) Has been released to the general public through no action of the undersigned in breach of this agreement or through no action of any other party in breach of any other obligation of confidentiality owing to the Government or the owner of the protected information or computer software;
  - (2) Has been lawfully obtained by the recipient outside the course of the performance of a government contract;
  - (3) Has been properly licensed or provided directly by the owner (or other authorized source) of the information or computer software to the recipient to the extent so licensed or provided;
  - (4) Is owned by the recipient or was developed independently of the disclosure hereunder;
  - (5) Has been used or disclosed by the recipient in response to an order of a court or administrative body of competent jurisdiction to the extent permitted by that authority; or
  - (6) Has been disclosed to the recipient by the Government who has explicitly authorized the recipient to use or disclose the information for another purpose, to the extent so authorized.

**2. Use and Disclosure Obligations.** I will use and disclose Protected Information and Computer Software only as necessary for the performance of the requirements of this contract under which the information or computer software is furnished. I understand Protected Information and Computer Software may not be used or disclosed for any other purpose, including bid or proposal preparation or business marketing, without the written approval of the cognizant government contracting officer. Furthermore, unless otherwise authorized by the cognizant government contracting officer, I will comply with all restrictions set forth in any legends, licenses or instructions provided to me or accompanying Protected Information and Computer Software or other written directives of my employer or the Government known to me. The use and disclosure obligations imposed by this paragraph shall expire as follows:

- a.** There shall be no expiration date for the following Protected Information and Computer Software:
  - (i) technical data or computer software containing Limited Rights, Restricted Rights, Government Purpose Rights, Special License Rights, or Unlimited Rights legends;
  - (ii) information or software marked Limited Distribution (LIMDIS);
  - (iii) information or software marked Source Selection Information;
  - (iv) contract proposal information marked pursuant to FAR 52.215-1(e) limiting its use for proposal evaluation purposes only;
  - (v) information and computer software marked Contractor Proprietary or with a similar legend;
  - (vi) data known by me to be protected by the Privacy Act; and
  - (vii) information marked For Official Use Only (FOUO).
- b.** For other information or software accompanied at time of disclosure by a written legend identifying use or disclosure restriction time periods, the expiration date shall be as stated in or derived from the legend.
- c.** For all other Protected Information and Computer Software, the expiration date shall be 3 years from the date the information or software is first disclosed to me.

3. Unauthorized Use or Disclosures. I will immediately notify my employer of the circumstances of any unauthorized use or disclosure known to me of Protected Information and Computer Software in violation of the obligations contained in this agreement.

4. Disposition. At the termination of my employment or when I no longer perform contract work for DIA, I agree to immediately return (or destroy if directed by my employer) all Protected Information and Computer Software in my possession. Furthermore, if I am dedicated to support a specific DIA Office or Directorate or DIA program and am reassigned to support another DIA Office or Directorate or DIA program, I will immediately return (or destroy if directed by my employer) all Protected Information or Computer Software in my possession previously furnished by the prior DIA Office or Directorate or DIA program.

5. Duration. The above obligations imposed by this agreement shall survive termination of my employment or the expiration or termination of this contract under which the protected information or computer software was furnished to me.

6. Classified Information. This agreement is in addition to and in no manner abrogates requirements, obligations or remedies regarding the protection of classified information and does not supersede the requirements of any laws, regulations, other directives or nondisclosure agreements regarding classified information.

7. Other Restrictions. This agreement does not abrogate any other obligations currently placed upon me or which may be imposed upon me in the future by my employer, DIA or other entities; or remedies afforded those entities regarding those obligations.

8. These provisions are consistent with and do not supersede, conflict with, or otherwise alter the employee obligations, rights, or liabilities created by existing statute or Executive order relating to (1) classified information, (2) communications to Congress, (3) the reporting to an Inspector General or the Office of Special Counsel of a violation of any law, rule, or regulation, or mismanagement, a gross waste of funds, an abuse of authority, or a substantial and specific danger to public health or safety, or (4) any other whistleblower protection. The definitions, requirements, obligations, rights, sanctions, and liabilities created by controlling Executive orders and statutory provisions are incorporated into this agreement and are controlling.

9. Copy Provided. I acknowledge I have been provided a copy of this agreement.

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Signature

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Date

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Printed Name

[REDACTED]

[REDACTED]

## SECTION K

### REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF OFFERORS

- K.1 52.203-11 CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS (SEP 2024)  
(Reference 52.203-11)
- K.2 52.203-18 PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS--REPRESENTATION (JAN 2017)  
(Reference 52.203-18)
- K.3 52.204-5 WOMEN-OWNED BUSINESS (OTHER THAN SMALL BUSINESS) (OCT 2014)  
(Reference 52.204-5)
- K.4 52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)  
(Reference 52.204-24)
- K.5 52.225-25 PROHIBITION ON CONTRACTING WITH ENTITIES ENGAGING IN CERTAIN ACTIVITIES OR TRANSACTIONS RELATING TO IRAN--REPRESENTATION AND CERTIFICATIONS (JUN 2020)  
(Reference 52.225-25)
- K.6 252.203-7005 REPRESENTATION RELATING TO COMPENSATION OF FORMER DOD OFFICIALS (SEP 2022)  
(Reference 252.203-7005)
- K.7 252.204-7008 COMPLIANCE WITH SAFEGUARDING COVERED DEFENSE INFORMATION (OCT 2016)  
(Reference 252.204-7008)
- K.8 252.204-7016 COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-- REPRESENTATION (DEC 2019)  
(Reference 252.204-7016)
- K.9 252.204-7017 PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES--REPRESENTATION (MAY 2021)  
(Reference 252.204-7017)
- K.10 252.219-7000 ADVANCING SMALL BUSINESS GROWTH (JUN 2023)  
(Reference 252.219-7000)
- K.11 252.225-7003 REPORT OF INTENDED PERFORMANCE OUTSIDE THE UNITED STATES AND CANADA -- SUBMISSION WITH OFFER (OCT 2025)  
(Reference 252.225-7003)
- K.12 252.225-7042 AUTHORIZATION TO PERFORM (APR 2003)  
(Reference 252.225-7042)
- K.13 252.225-7055 REPRESENTATION REGARDING BUSINESS OPERATIONS WITH THE MADURO REGIME (MAY 2022)  
(Reference 252.225-7055)
- K.14 252.225-7057 PREAWARD DISCLOSURE OF EMPLOYMENT OF INDIVIDUALS WHO WORK IN THE PEOPLE'S REPUBLIC OF CHINA (AUG 2022)  
(Reference 252.225-7057)
- K.15 252.225-7059 PROHIBITION ON CERTAIN PROCUREMENTS FROM THE XINJIANG UYGHUR AUTONOMOUS REGION-- REPRESENTATION (JUN 2023)  
(Reference 252.225-7059)
- K.16 52.204-26 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES--REPRESENTATION (OCT 2020)

[REDACTED]

(a) Definitions. As used in this provision, "covered telecommunications equipment or services" and "reasonable inquiry" have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c) Representations. (1) The Offeror represents that it [ ] does, [ ] does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it [ ] does, [ ] does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End Of Provision)

K.17 52.204-29 FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS--REPRESENTATION AND DISCLOSURES (DEC 2023)

(a) Definitions. As used in this provision, Covered article, FASCSA order, Intelligence community, National security system, Reasonable inquiry, Sensitive compartmented information, Sensitive compartmented information system, and Source have the meaning provided in the clause 52.204-30, Federal Acquisition Supply Chain Security Act Orders--Prohibition.

(b) Prohibition. Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the prohibition is set out in an applicable Federal Acquisition Supply Chain Security Act (FASCSA) order, as described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders--Prohibition.

(c) Procedures. (1) The Offeror shall search for the phrase "FASCSA order" in the System for Award Management (SAM)(<https://www.sam.gov>) for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders--Prohibition.

(2) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM, but are effective and do apply to the solicitation and resultant contract (see FAR 4.2303(c)(2)).

(3) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(d) Representation. By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (e).

(e) Disclosures. The purpose for this disclosure is so the Government may decide whether to issue a waiver. For any covered article, or any products or services produced or provided by a source, if the covered article or the source is subject to an applicable FASCSA order, and the Offeror is unable to represent compliance, then the Offeror shall provide the following information as part of the offer:

(1) Name of the product or service provided to the Government;

(2) Name of the covered article or source subject to a FASCSA order;

(3) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Offeror;

(4) Brand;

(5) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(6) Item description;

(7) Reason why the applicable covered article or the product or service is being provided or used;

(f) Executive agency review of disclosures. The contracting officer will review disclosures provided in paragraph (e) to determine if any waiver may be sought. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise subject to a FASCSA order and may instead make an award to an offeror that does not require a waiver.

(End Of Provision)

K.18 52.209-2 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS-REPRESENTATION (NOV 2015)

(a) Definitions. Inverted domestic corporation and subsidiary have the meaning given in the clause of this contract entitled Prohibition on Contracting with Inverted Domestic Corporations (52.209-10).



(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(c) Representation. The Offeror represents that--

- (1) It [TBD ] is, [TBD ] is not an inverted domestic corporation; and
- (2) It [TBD ] is, [TBD ] is not a subsidiary of an inverted domestic corporation.

(End of provision)

K.19 52.209-5 CERTIFICATION REGARDING RESPONSIBILITY MATTERS (AUG 2020)

(a)

(1) The Offeror certifies, to the best of its knowledge and belief, that--

(i) The Offeror and/or any of its Principals--

(A) Are /\_/ are not /\_/ presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have /\_/ have not /\_/, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks ``have``, the offeror shall also see 52.209-7, if included in this solicitation);

(C) Are /\_/ are not /\_/ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i)(B) of this provision.

(D) Have /\_/, have not /\_/, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(1) Federal taxes are considered delinquent if both of the following criteria apply:

(i) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(ii) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(2) Examples.

(iv) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. 362 (the Bankruptcy Code).

(i) The taxpayer has received a statutory notice of deficiency, under I.R.C. 6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(ii) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. 6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(iii) The taxpayer has entered into an installment agreement pursuant to I.R.C. 6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(ii) The Offeror has /\_/ has not /\_/, within a three-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the certification will be considered in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror nonresponsive.

[REDACTED]

(2) "Principal," for the purposes of this certification, means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

This Certification Concerns a Matter Within the Jurisdiction of an Agency of the United States and the Making of a False, Fictitious, or Fraudulent Certification May Render the Maker Subject to Prosecution Under Section 1001, Title 18, United States Code.

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(d) Nothing contained in the foregoing shall be construed to require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a) of this provision. The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of Provision)

K.20 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) Definitions. As used in this provision--

"Administrative proceeding" means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

"Federal contracts and grants with total value greater than \$10,000,000" means--

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

"Principal" means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror [ ] has [ ] does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in--

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c) (1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

[REDACTED]

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

K.21 52.209-11 REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW (FEB 2016)

(a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that--

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that--

(1) It is [TBD ] is not [TBD ] a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is [TBD ] is not [TBD ] a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

K.22 52.209-12 CERTIFICATION REGARDING TAX MATTERS (OCT 2025)

(a) This provision implements section 523 of Division B of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts.

(b) If the Offeror is proposing a total contract price that will exceed \$7 million (including options), the Offeror shall certify that, to the best of its knowledge and belief, it--

(1) Has [TBD ] filed all Federal tax returns required during the three years preceding the certification;

(2) Has not [TBD ] been convicted of a criminal offense under the Internal Revenue Code of 1986; and

(3) Has not [TBD ], more than 90 days prior to certification, been notified of any unpaid Federal tax assessment for which the liability remains unsatisfied, unless the assessment is the subject of an installment agreement or offer in compromise that has been approved by the Internal Revenue Service and is not in default, or the assessment is the subject of a non-frivolous administrative or judicial proceeding.

(End Of Provision)

K.23 52.209-13 VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS--CERTIFICATION (NOV 2021)

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal Acquisition Regulation 2.101.

(b) Certification. [Offeror shall check either (1) or (2).]

\_\_\_ (1) The Offeror certifies that--

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; or

\_\_\_\_ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d) (2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If there may have been such activity, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

- (i) An inability to certify compliance.
- (ii) An inability to conclude compliance.
- (iii) A statement about compliance concerns.

(1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless--

(2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has--

- (i) Waived application under 22 U.S.C. 2593e(d) or (e); or
- (ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C. 2593e(b).

(e) Remedies. The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End Of Provision)

#### K.24 52.215-6 PLACE OF PERFORMANCE (OCT 1997)

(a) The offeror or respondent, in the performance of any contract resulting from this solicitation, / / intends, / / does not intend to use one or more plants or facilities located at a different address from the address of the offeror or respondent as indicated in this proposal or response to request for information.

(b) If the offeror or respondent checks "intends" in paragraph (a) of this provision, it shall insert in the following spaces the required information:

| State, County, Zip Code)   Facility if Other than |                                                                                    |
|---------------------------------------------------|------------------------------------------------------------------------------------|
| Place of Performance<br>(Street Address, City,    | Name and Address of Owner and<br>Operator of the Plant or<br>Offeror or Respondent |
|                                                   |                                                                                    |
|                                                   |                                                                                    |
|                                                   |                                                                                    |

(End of Provision)

K.25 52.219-1 SMALL BUSINESS PROGRAM REPRESENTATIONS (FEB 2024)

(a) Definitions. As used in this provision--

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern--

(1)

(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran or;

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) Service-disabled veteran, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that--

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern--

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that--

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by--

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Veteran-owned small business concern means a small business concern--

(1) Not less than 51 percent of which is owned by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned small business concern means a small business concern--

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 541990 .

(2) The small business size standard is \$20,000,000.00 .

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (i.e., nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition--

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) Representations.

(1) The offeror represents as part of its offer that--

(i) It [ TBD ] is, [ TBD ] is not a small business concern; or

(ii) It [ TBD ] is, [ TBD ] is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture:\_\_\_.]

(3) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it [ TBD ] is, [ TBD ] is not a women-owned small business concern.

(2) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it [ TBD ] is, [ TBD ] is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The offeror represents as part of its offer that it [ TBD ] is, [ TBD ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_.]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The offeror represents as part of its offer that it [ TBD ] is, [ TBD ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_.]

(6) Veteran-owned small business concern. The offeror represents as part of its offer that it [ TBD ] is, [ TBD ] is not a veteran-owned small business concern.

(7) SDVOSB concern. The offeror represents as part of its offer that it [ TBD ] is, [ TBD ] is not an SDVOSB concern.

(8) SDVOSB joint venture eligible under the SDVOSB Program. The offeror represents as part of its offer that it [ TBD ] is, [ TBD ] is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The offeror shall enter the name and unique entity identifier of each party to the joint venture:\_\_\_.]

(9) HUBZone small business concern. The offeror represents, as part of its offer, that--

(i) It [ TBD ] is, [ TBD ] is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

[REDACTED]

(ii) It [ TBD ] is, [ TBD ] is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(1) Be punished by imposition of fine, imprisonment, or both;

(d) Notice. Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, shall--

(2) Be subject to administrative remedies, including suspension and debarment; and

(3) Be ineligible for participation in programs conducted under the authority of the Act.

(End Of Provision)

K.26 52.227-15 REPRESENTATION OF LIMITED RIGHTS DATA AND RESTRICTED COMPUTER SOFTWARE (DEC 2007)

(a) This solicitation sets forth the Government's known delivery requirements for data (as defined in the clause at 52.227-14, Rights in Data--General). Any resulting contract may also provide the Government the option to order additional data under the Additional Data Requirements clause at 52.227-16, if included in the contract. Any data delivered under the resulting contract will be subject to the Rights in Data--General clause at 52.227-14 included in this contract. Under the latter clause, a Contractor may withhold from delivery data that qualify as limited rights data or restricted computer software, and deliver form, fit, and function data instead. The latter clause also may be used with its Alternates II and/or III to obtain delivery of limited rights data or restricted computer software, marked with limited rights or restricted rights notices, as appropriate. In addition, use of Alternate V with this latter clause provides the Government the right to inspect such data at the Contractor's facility.

(b) By completing the remainder of this paragraph, the offeror represents that it has reviewed the requirements for the delivery of technical data or computer software and states [offeror check appropriate block]--

/\_\_\_/ (1) None of the data proposed for fulfilling the data delivery requirements qualifies as limited rights data or restricted computer software; or

/\_\_\_/ (2) Data proposed for fulfilling the data delivery requirements qualify as limited rights data or restricted computer software and are identified as follows:

\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

(c) Any identification of limited rights data or restricted computer software in the offeror's response is not determinative of the status of the data should a contract be awarded to the offeror.

(End of provision)

K.27 52.230-1 COST ACCOUNTING STANDARDS NOTICES AND CERTIFICATION (JUN 2020)

Note: This notice does not apply to small businesses or foreign governments. This notice is in three parts, identified by Roman numerals I through III.

Offerors shall examine each part and provide the requested information in order to determine Cost Accounting Standards (CAS) requirements applicable to any resultant contract.

If the offeror is an educational institution, Part II does not apply unless the contemplated contract will be subject to full or modified CAS coverage pursuant to 48 CFR 9903.201-2(c)(5) or 9903.201-2(c)(6), respectively.

I. Disclosure Statement-Cost Accounting Practices and Certification

(a) Any contract in excess of the lower CAS threshold specified in Federal Acquisition Regulation (FAR) 30.201-4(b) resulting from this solicitation will be subject to the requirements of the Cost Accounting Standards Board (48 CFR chapter 99), except for those contracts which are exempt as specified in 48 CFR 9903.201-1.

(b) Any offeror submitting a proposal which, if accepted, will result in a contract subject to the requirements of 48 CFR Chapter 99 must, as a condition of contracting, submit a Disclosure Statement as required by 48 CFR 9903.202. When required, the Disclosure Statement must be submitted as a part of the offeror's proposal under this solicitation unless the offeror has already submitted a Disclosure

Statement disclosing the practices used in connection with the pricing of this proposal. If an applicable Disclosure Statement has already been submitted, the offeror may satisfy the requirement for submission by providing the information requested in paragraph (c) of Part I of this provision.

Caution: In the absence of specific regulations or agreement, a practice disclosed in a Disclosure Statement shall not, by virtue of such disclosure, be deemed to be a proper, approved, or agreed-to practice for pricing proposals or accumulating and reporting contract performance cost data.

(c) Check the appropriate box below:

/\_/\_ (1) ``Certificate of Concurrent Submission of Disclosure Statement.`` The offeror hereby certifies that, as a part of the offer, copies of the Disclosure Statement have been submitted as follows:

- (i) Original and one copy to the cognizant Administrative Contracting Officer (ACO) or cognizant Federal agency official authorized to act in that capacity (Federal official), as applicable; and
- (ii) One copy to the cognizant Federal auditor.

(Disclosure must be on Form No. CASB DS-1 or CASB DS-2, as applicable. Forms may be obtained from the cognizant ACO or Federal official.)

Date of Disclosure Statement: \_\_\_\_\_

Name and Address of Cognizant ACO or Federal Official Where Filed: \_\_\_\_\_

Name and Address of Cognizant ACO or Federal Official

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the Disclosure Statement.

/\_/\_ (2) ``Certificate of Previously Submitted Disclosure Statement.`` The offeror hereby certifies that the required Disclosure Statement was filed as follows:

Date of Disclosure Statement: \_\_\_\_\_

Where Filed: \_\_\_\_\_

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the applicable Disclosure Statement.

/\_/\_ The offeror hereby claims an exemption from the Cost Accounting Standards clause under the provisions of 48 CFR 9903.201-2(b) and certifies that the offeror is eligible for use of the Disclosure and Consistency of Cost Accounting Practices clause because during the cost accounting period immediately preceding the period in which this proposal was submitted, the offeror received less than \$50 million in awards of CAS-covered prime contracts and subcontracts. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

/\_/\_ (3) ``Certificate of Monetary Exemption.`` The offeror hereby certifies that the offeror, together with all divisions, subsidiaries, and affiliates under common control, did not receive net awards of negotiated prime contracts and subcontracts subject to CAS totaling \$50 million or more in the cost accounting period immediately preceding the period in which this proposal was submitted. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

/\_/\_ (4) ``Certificate of Interim Exemption.`` The offeror hereby certifies that (i) the offeror first exceeded the monetary exemption for disclosure, as defined in(3) of this subsection, in the cost accounting period immediately preceding the period in which this offer was submitted and (ii) in accordance with 48 CFR 9903.202-1, the offeror is not yet required to submit a Disclosure Statement. The offeror further certifies that if an award resulting from this proposal has not been made within 90 days after the end of that period, the offeror will immediately submit a revised certificate to the Contracting Officer, in the form specified under paragraph (c)(1) or (c)(2) of Part I of this provision, as appropriate, to verify submission of a completed Disclosure Statement.

Caution: Offerors currently required to disclose because they were awarded a CAS-covered prime contract or subcontract of \$50 million or more in the current cost accounting period may not claim this exemption (4). Further, the exemption applies only in connection with proposals submitted before expiration of the 90-day period following the cost accounting period in which the monetary exemption was exceeded.

## II. Cost Accounting Standards-Eligibility for Modified Contract Coverage

If the offeror is eligible to use the modified provisions of 48 CFR 9903.201-2(b) and elects to do so, the offeror shall indicate by checking the box below. Checking the box below shall mean that the resultant contract is subject to the Disclosure and Consistency of Cost Accounting Practices clause in lieu of the Cost Accounting Standards clause.

Caution: An offeror may not claim the above eligibility for modified contract coverage if this proposal is expected to result in the award of a CAS-covered contract of \$50 million or more or if, during its current cost accounting period, the offeror has been awarded a single CAS-covered prime contract or subcontract of \$50 million or more.

## III. Additional Cost Accounting Standards Applicable to Existing Contracts



[REDACTED]

The offeror shall indicate below whether award of the contemplated contract would, in accordance with paragraph (a)(3) of the Cost Accounting Standards clause, require a change in established cost accounting practices affecting existing contracts and subcontracts. /\_/ yes /\_/ no  
(End Of Provision)

K.28 52.230-7 PROPOSAL DISCLOSURE -- COST ACCOUNTING PRACTICE CHANGES (APR 2005)

The offeror shall check "yes" below if the contract award will result in a required or unilateral change in cost accounting practice, including unilateral changes requested to be desirable changes.  
TBD Yes  
TBD No

If the offeror checked "Yes" above, the offeror shall--

- (1) Prepare the price proposal in response to the solicitation using the changed practice for the period of performance for which the practice will be used; and
- (2) Submit a description of the changed cost accounting practice to the Contracting Officer and the Cognizant Federal Agency Official as pricing support for the proposal.

(End of Provision)

K.29 52.237-8 RESTRICTION ON SEVERANCE PAYMENTS TO FOREIGN NATIONALS (AUG 2003)

(a) The Federal Acquisition Regulation (FAR), at 31.205-6(g)(6), limits the cost allowability of severance payments to foreign nationals employed under a service contract performed outside the United States unless the agency grants a waiver pursuant to FAR 37.113-1 before contract award.

(b) In making the determination concerning the granting of a waiver, the agency will determine that--

(1) The application of the severance pay limitations to the contract would adversely affect the continuation of a program, project or activity that provides significant support services for--

(i) Members of the armed forces stationed or deployed outside the United States; or

(ii) Employees of an executive agency posted outside the United States;

(2) The Contractor has taken (or has established plans to take) appropriate actions within its control to minimize the amount and number of incidents of the payment of severance pay to employees under the contract who are foreign nationals; and

(3) The payment of severance pay is necessary in order to comply with a law that is generally applicable to a significant number of businesses in the country in which the foreign national receiving the payment performed services under the contract, or is necessary to comply with a collective bargaining agreement.

(End of Provision)

K.30 552.209-9003 DISCLOSURE OF INFORMATION - RFP (DEC 2008)

a. The recipient organization of the Request for Proposal (RFP) shall not, unless authorized elsewhere in the RFP, disclose any information concerning the request or its sponsorship to anyone other than those offerors and employees of the recipient organization who require the information in order to prepare and submit a proposal or a response.

b. The recipient organization may obtain necessary subcontracting and purchasing data from prospective vendors or subcontractors, provided that sponsorship of this RFP is not disclosed; and, where required, the appropriate security regulations are observed.

c. Any disclosure, other than that described in Paragraphs (a) and (b) above, considered necessary by the recipient organization may be made only with the written consent of the contracting officer.

(End of Provision)

**SECTION L**  
**INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS**

- L.1 52.207-6 SOLICITATION OF OFFERS FROM SMALL BUSINESS CONCERNS AND SMALL BUSINESS TEAMING ARRANGEMENTS OR JOINT VENTURES (MULTIPLE-AWARD CONTRACTS) (AUG 2024)  
(Reference 52.207-6)
- L.2 52.215-1 INSTRUCTIONS TO OFFERORS--COMPETITIVE ACQUISITION (NOV 2021)  
(Reference 52.215-1)
- L.3 52.215-16 FACILITIES CAPITAL COST OF MONEY (JUN 2003)  
(Reference 52.215-16)
- L.4 52.215-22 LIMITATIONS ON PASS-THROUGH CHARGES -- IDENTIFICATION OF SUBCONTRACT EFFORT (OCT 2009)  
(Reference 52.215-22)
- L.5 52.216-1 TYPE OF CONTRACT (APR 1984)  
(Reference 52.216-1)
- L.6 52.222-56 CERTIFICATION REGARDING TRAFFICKING IN PERSONS COMPLIANCE PLAN (OCT 2025)  
(Reference 52.222-56)
- L.7 52.237-1 SITE VISIT (APR 1984)  
(Reference 52.237-1)
- L.8 52.237-10 IDENTIFICATION OF UNCOMPENSATED OVERTIME (MAR 2015)  
(Reference 52.237-10)
- L.9 252.204-7019 NOTICE OF NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS (NOV 2023)  
(Reference 252.204-7019)
- L.10 252.206-7000 DOMESTIC SOURCE RESTRICTION (AUG 2023)  
(Reference 252.206-7000)
- L.11 252.215-7007 NOTICE OF INTENT TO RESOLICIT (JUN 2012)  
(Reference 252.215-7007)
- L.12 252.215-7010 REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA- (MAY 2024)  
(Reference 252.215-7010)
- L.13 252.215-7012 REQUIREMENTS FOR SUBMISSION OF PROPOSALS VIA ELECTRONIC MEDIA (JAN 2018)  
(Reference 252.215-7012)
- L.14 252.215-7013 SUPPLIES AND SERVICES PROVIDED BY NONTRADITIONAL DEFENSE CONTRACTORS (JAN 2023)  
(Reference 252.215-7013)
- L.15 252.270-7000 PILOT PROGRAM TO INCENTIVIZE CONTRACTING WITH EMPLOYEE-OWNED BUSINESSES--REPRESENTATION (NOV 2024)  
(Reference 252.270-7000)
- L.16 252.270-7001 PILOT PROGRAM TO INCENTIVIZE CONTRACTING WITH EMPLOYEE-OWNED BUSINESSES--SUBCONTRACTING CERTIFICATION (NOV 2024)  
(Reference 252.270-7001)
- L.17 52.215-20 REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA (NOV 2021)  
(a) "Exceptions from certified cost or pricing data."

(1) In lieu of submitting certified cost or pricing data, offerors may submit a written request for exception by submitting the information described in the following paragraphs. The Contracting Officer may require additional supporting information, but only to the extent necessary to determine whether an exception should be granted, and whether the price is fair and reasonable.

(i) "Identification of the law or regulation establishing the price offered. If the price is controlled under law by periodic rulings, reviews, or similar actions of a governmental body, attach a copy of the controlling document, unless it was previously submitted to the contracting office.

(ii) "Commercial product and commercial service exception." For a commercial product and commercial service exception, the offeror shall submit, at a minimum, information on prices at which the same item or similar items have previously been sold in the commercial market that is adequate for evaluating the reasonableness of the price for this acquisition. Such information may include--

(A) For catalog items, a copy of or identification of the catalog and its date, or the appropriate pages for the offered items, or a statement that the catalog is on file in the buying office to which the proposal is being submitted. Provide a copy or describe current discount policies and price lists (published or unpublished), e.g., wholesale, original equipment manufacturer, or reseller. Also explain the basis of each offered price and its relationship to the established catalog price, including how the proposed price relates to the price of recent sales in quantities similar to the proposed quantities;

(B) For market-priced items, the source and date or period of the market quotation or other basis for market price, the base amount, and applicable discounts. In addition, describe the nature of the market;

(C) For items included on an active Federal Supply Service Multiple Award Schedule contract, proof that an exception has been granted for the schedule item.

(1) The offeror shall prepare and submit certified cost or pricing data, data other than certified cost or pricing data, and supporting attachments in accordance with the instructions contained in Table 15-2 of FAR 15.408, which is incorporated by reference with the same force and effect as though it were inserted here in full text. The instructions in Table 15-2 are incorporated as a mandatory format to be used in this contract, unless the Contracting Officer and the Contractor agree to a different format and change this clause to use Alternate I.

(2) The offeror grants the Contracting Officer or an authorized representative the right to examine, at any time before award, books, records, documents, or other directly pertinent records to verify any request for an exception under this provision, and the reasonableness of price. For items priced using catalog or market prices, or law or regulation, access does not extend to cost or profit information or other data relevant solely to the offeror's determination of the prices to be offered in the catalog or marketplace.

(b) "Requirements for certified cost or pricing data." If the offeror is not granted an exception from the requirement to submit certified cost or pricing data, the following applies:

(End Of Provision)

(2) As soon as practicable after agreement on price, but before contract award (except for unpriced actions such as letter contracts), the offeror shall submit a Certificate of Current Cost or Pricing Data, as prescribed by FAR 15.406-2.

#### L.18 52.216-28 MULTIPLE AWARDS FOR ADVISORY AND ASSISTANCE SERVICES (OCT 1995)

The Government intends to award multiple contracts for the same or similar advisory and assistance services to two or more sources under this solicitation unless the Government determines, after evaluation of offers, that only one offeror is capable of providing the services at the level of quality required.

(End of Provision)

#### L.19 52.216-29 TIME-AND-MATERIALS/LABOR-HOUR PROPOSAL REQUIREMENTS -- OTHER THAN COMMERCIAL ACQUISITION WITH ADEQUATE PRICE COMPETITION (NOV 2021)

(a) The Government contemplates award of a Time-and-Materials or Labor-Hour type of contract resulting from this solicitation.

(b) The offeror must specify fixed hourly rates in its offer that include wages, overhead, general and administrative expenses, and profit. The offeror must specify whether the fixed hourly rate for each labor category applies to labor performed by--

(1) The offeror;

(2) Subcontractors; and/or

(3) Divisions, subsidiaries, or affiliates of the offeror under a common control;

(c) The offeror must establish fixed hourly rates using--

[REDACTED]

(1) Separate rates for each category of labor to be performed by each subcontractor and for each category of labor to be performed by the offeror, and for each category of labor to be transferred between divisions, subsidiaries, or affiliates of the offeror under a common control;

(2) Blended rates for each category of labor to be performed by the offeror, including labor transferred between divisions, subsidiaries, or affiliates of the offeror under a common control, and all subcontractors; or

(3) Any combination of separate and blended rates for each category of labor to be performed by the offeror, affiliates of the offeror under a common control, and subcontractors.

(End Of Provision)

L.20 52.216-30 TIME-AND-MATERIALS/LABOR-HOUR PROPOSAL REQUIREMENTS -- OTHER THAN COMMERCIAL ACQUISITION WITHOUT ADEQUATE PRICE COMPETITION (NOV 2021)

(a) The Government contemplates award of a Time-and- Materials or Labor-Hour type of contract resulting from this solicitation.

(b) The offeror must specify separate fixed hourly rates in its offer that include wages, overhead, general and administrative expenses, and profit for each category of labor to be performed by--

(1) The offeror;

(2) Each subcontractor; and

(3) Each division, subsidiary, or affiliate of the offeror under a common control.

(c) Unless exempt under paragraph (d) of this provision, the fixed hourly rates for services transferred between divisions, subsidiaries, or affiliates of the offeror under a common control--

(1) Shall not include profit for the transferring organization; but

(2) May include profit for the prime Contractor.

(d) The fixed hourly rates for services that meet the definition of "commercial service" at Federal Acquisition Regulation 2.101 that are transferred between divisions, subsidiaries, or affiliates of the offeror under a common control may be the established catalog or market rate when it is the established practice of the transferring organization to price interorganizational transfers at other than cost for commercial work of the offeror or any division, subsidiary or affiliate of the offeror under a common control.

(End Of Provision)

L.21 52.233-2 SERVICE OF PROTEST (SEP 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the General Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from TBD

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of Provision)

L.22 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

Acquisition.Gov

[REDACTED]

(End of Provision)

L.23 52.252-3 ALTERATIONS IN SOLICITATION (APR 1984)

Portions of this solicitation are altered as follows: TBD

(End of Provision)

L.24 52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Clause)

L.25 252.211-7001 {252.211-7001} [RESERVED]

L.26 252.211-7002 AVAILABILITY FOR EXAMINATION OF SPECIFICATIONS, STANDARDS, PLANS, DRAWINGS, DATA ITEM DESCRIPTIONS, AND OTHER PERTINENT DOCUMENTS (DEC 1991)

The specifications, standards, plans, drawings, data item descriptions, and other pertinent documents cited in this solicitation are not available for distribution but may be examined at the following location: TBD

(End of provision)

L.27 552.215-9000 ALTERNATE BIDS/PROPOSALS (DEC 2008)

Contractors may submit more than one bid/proposal in response to this solicitation, provided each bid/proposal meets all requirements specified herein. If alternate bids/proposals are submitted, they must be clearly labeled and identified on the cover page of each separate document. Each bid/proposal must be a complete offer in and of itself.

(End of Provision)

L.28 552.215-9002 INQUIRIES (DEC 2008)

Information concerning the status of an offeror's proposal and/or progress of the proposal evaluations shall be requested only from the contracting officer.

(End of Provision)

L.29 552.215-9006 ARRANGEMENTS FOR SITE VISIT (DEC 2008)

To make arrangements for the site visit, the offeror shall contact:

POC \_\_\_\_\_  
telephone number \_\_\_\_\_

(End of Provision)

L.30 552.217-9001 Evaluation of Options (MAR 2016)

Except when it is determined in accordance with FAR 17.206(b) not to be in the Government's best interests, the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. This includes options under FAR clause 52.217-8, Option to Extend Services, which applies to this solicitation. Evaluation of options under FAR 52.217-8

will be accomplished by using the prices offered for the last option period to determine the price for a 6-month option period, which will be added to the base and other option years to arrive at the total price. Evaluation of options will not obligate the Government to exercise the option(s).

L.31 5552.231-9000 UNALLOWABILITY OF PROPOSAL COSTS (DEC 2008)

The Government will not recognize as a direct cost to this acquisition, the costs incurred by the contractor in the preparation of its proposal.

(End of Provision)

**SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICE TO OFFERORS**  
**HHM402-26-R-0007**

**\*\*\*This is a DRAFT Only\*\*\***

**1. GENERAL**

1.1 The Government intends to award to each and all qualifying offerors. For this purpose, 'qualifying offeror' has the meaning set forth in FAR 2.101. The Government will evaluate proposals in accordance with the evaluation criteria in Section M. This document provides instructions for submitting information and proposals for consideration by the Government. The Government reserves the right to award this effort based on the initial proposal, as received, without discussions.

1.2 Classification. The Government anticipates the receipt of classified or unclassified proposals in response to this RFP. The anticipated proposal classification level may be from Unclassified up to TOP SECRET. Instructions for submittal are identified herein.

1.3 Costs. This RFP does not commit the Government to pay any cost for preparation and submission of proposals. In addition, a Government contracting officer is the only individual who can legally commit the Government to the expenditure of public funds in connection with this proposed acquisition.

1.4 Responsiveness. Offerors are required to meet all RFP requirements, such as terms and conditions, representations and certifications, and technical requirements, in addition to the identified evaluation criteria factors. Failure to comply *may* result in the Offeror being eliminated from the competition. Responses to Section K should be completed in Sam.Gov and notated on the cover letter.

1.5 Retention. In accordance with FAR Subpart 4.7, the Government will retain one hard copy of all unsuccessful proposals. The Government will destroy extra copies of such unsuccessful proposals.

1.6 Communications. All communications with the Government shall be directed to the following email:

[ST\\_Proposal\\_INBOX@dodiis.mil](mailto:ST_Proposal_INBOX@dodiis.mil)

**\*\*\*Telephone inquiries will NOT be accepted.**

1.7 This section is provided to assist the offeror in preparing a proposal in response to this RFP. These instructions are not intended to restrict the offeror's proposal effort. Offerors are encouraged to submit questions through the Q&A process in the event of inconsistencies found among Section L instructions and any other RFP documents.

[REDACTED]

1.8 Failure to adhere to any of the labeling, classification marking, packaging, or other general proposal instructions may cause the Government to reject the offeror's proposal in its entirety.

1.9 Classified Attachments will be posted to NSA ARC.

## 2. PROPOSAL SUBMISSION

2.1. **Delivery Instructions.** All proposal information must be delivered not later than the time and dates specified below. Proposals submitted after the time and date specified for receipt will be considered late in accordance with FAR 52.215-1(c)(3), "Submission, Modification, Revision, and Withdrawal of Proposals," and may be rejected by the Government.

2.2. **The Offeror shall send an electronic submission of the proposal. Electronic submissions shall be made via email of all documents, not a CD.** If the Offeror refers to the DORE3 program by a different, Offeror-specific name, BOTH names shall be listed in the volume on the cover page for easy reference by the Government. The Government might not be able to determine whether the Offeror is submitting against the right proposal if only an Offeror-specific name is listed. Hand-Delivered Proposals will not be accepted.

2.3. Offerors shall pass all volumes together. Should one volume carry classified information, all volumes shall be passed across the appropriate classified network. Offerors may send unclassified proposals to [ST\\_Proposal\\_INBOX@dodiis.mil](mailto:ST_Proposal_INBOX@dodiis.mil). Classified proposals may be sent to: [REDACTED]

### 2.4 Important Dates

| Event                 | Date/Time Group |
|-----------------------|-----------------|
| Final RFP Issued      | TBD May 2026    |
| RFP Questions Due     | TBD             |
| Proposals Due         | TBD             |
| Target Contract Award | ~August 2026    |

## 2.6 QUESTIONS

2.6.1 All questions and inquiries concerning the **FINAL RFP** shall be submitted via email no later than **TBD**. Please submit all unclassified questions/inquires to [ST\\_Proposal\\_INBOX@dodiis.mil](mailto:ST_Proposal_INBOX@dodiis.mil). Classified questions may be sent to: [REDACTED]

2.6.2 Questions shall be submitted in the following format:



| Question # | Category (e.g., technical, contractual) | RFP Section | RFP Reference | QUESTION |
|------------|-----------------------------------------|-------------|---------------|----------|
|            |                                         |             |               |          |
|            |                                         |             |               |          |

2.6.3 The Government's response to questions and inquiries will be returned to all potential Offerors made in writing as part of the final RFP. For questions received after the final RFP is issued, any resulting additions, deletions, or changes to the RFP will be made by issuance of a formal amendment.

## 2.7 WRITTEN PROPOSALS

2.7.1 **Volumes.** The offeror's proposal shall consist of three (3) volumes: Security, Technical Expertise and Management, and Small Business Participation.

| VOLUME | EVALUATION FACTOR                  | RATING                  |
|--------|------------------------------------|-------------------------|
| 0      | COVER LETTER                       | NOT RATED               |
| I      | SECURITY                           | PASS/FAIL               |
| II     | TECHNICAL EXPERTISE AND MANAGEMENT | ACCEPTABLE/UNACCEPTABLE |
| III    | SMALL BUSINESS PARTICIPATION       | ACCEPTABLE/UNACCEPTABLE |

2.7.1.1 Each volume shall be written on a stand-alone basis; offerors are prohibited from cross-referencing other volumes in order to address evaluation factors. Information required for proposal evaluation that is not found in its designated volume may result in unfavorable proposal evaluation.

2.7.1.3 The Government will base its evaluation on the information presented in the offeror's proposal. The offeror shall assume that the Government has no prior knowledge of the offeror's experience and referenced programs. The Government does not assume the duty to search for data to cure problems it finds in proposals.

2.7.1.4 The proposal shall be clear, concise, and include sufficient detail for evaluation and validity of stated claims. The proposal shall not simply rephrase or restate Government's requirements but, rather, shall provide convincing rationale to address how the offeror intends to meet the requirement(s) of IDIQ SOW.

2.7.1.5 The offeror shall indicate its proposal is valid for a period of **no less than 240 days** from the date of submission.

2.7.2 **Proposal Content and Organization.** The proposal volumes, titles, maximum pages, and other related information are listed below. Tabs and Cover Letters (to include the Conflict of Interest assertion), Title Pages, Cover Pages are excluded from the page count. Offerors must comply with the submission requirements specified in below Table 1.

**Table 1 Proposal Content and Organization**

| Vol. | Description                        | Page Limit | Electronic |
|------|------------------------------------|------------|------------|
| 0    | Cover Letter and COI               | No Limit   | 1          |
| I    | Security                           | 5          | 1          |
| II   | Technical Expertise and Management | 30         | 1          |
| III  | Small Business Participation       | 5          | 1          |

**2.7.3 Page Format.** Pages shall be standard 8.5 x 11 inches. Pages shall be single spaced and single sided. Use at least 1" margins on the top, bottom, and side margins. Headers and footers are allowed in the margins. Include line numbers on each page (i.e., page layout, line numbers, restart at each page, .5"-.5") to facilitate Government referencing. When both sides of a sheet display printed material, this shall be counted as two (2) pages. Partial pages will count as full pages for page limitation purposes. All pages within a page-limited volume shall be consecutively numbered, starting at page one. Pages exceeding the page limitation set forth will not be read or evaluated and will be removed from the proposal prior to evaluation by the Contracting Officer. Each page shall be affixed with the following legend: SOURCE SELECTION INFORMATION.

**2.7.4 Text Spacing and Type.** With the exception of reproduced sections of the solicitation, **all** proposal text—including titles for illustrations, tables, graphs, or charts—shall be Times New Roman font sized at **no less than 12 point**. Pages shall be numbered sequentially by volume. *Nine (9) point font is acceptable in the headers, footers, within illustrations, tables, graphs and charts.*

**2.7.5 Illustrations and Tables.** Tables, charts, graphs, diagrams and figures may be used wherever practical to depict organizations, systems and layout, implementation schedules, plans, etc. These displays shall be uncomplicated, legible and shall not exceed 8.5 x 11 inches. Offerors need not alter their company graphics and tables. Foldout pages shall not be used. Elaborate formats, bindings or color presentations are not required. Elaborate brochures or documentation, binding, detailed artwork, or other embellishments are neither required nor desired.

**2.7.6 Graphics.** Graphics that are embedded into documents should be kept as simple as possible. Complex graphics take much longer for the evaluation system to display, which can impede scrolling through the document. Graphics should comply with the following guidelines:

1. Limit colors to 256 colors at 1024 x 768 resolution and avoid color gradients.
2. Simplify the color palette used in creating figures.
3. Monitor the size of graphics files; large files are discouraged.
4. Avoid scanned images.

#### **2.7.7 Table of Contents, Glossary, Compliance Matrix**

**2.7.7.1** A table of contents shall be incorporated into each volume and shall include a

listing of the section titles, subsection titles, and paragraph titles. A page number for each title shall be indicated. These pages shall not be included in the page count of any volume.

2.7.7.2 A glossary of acronyms shall be provided. All acronyms shall be defined at first use. These pages shall not be included in the page count of any volume.

2.7.7.3 Each volume shall include a compliance matrix as an appendix. Each matrix shall be used only to show compliance and shall not be used to describe or elaborate upon the offeror's capabilities; thus, it will not be counted toward page limit. The compliance matrix shall consist of the elements of below Table L.2.

**Table 2 Volume Compliance Matrix Appendix**

|             | <b>Volume I: Technical</b> |                  | <b>RFP HHM40226R0007</b> |             |
|-------------|----------------------------|------------------|--------------------------|-------------|
| RFP Section | RFP Page Number            | Proposal Section | Description              | Page Number |
|             |                            |                  |                          |             |
|             |                            |                  |                          |             |

2.7.8 **Multimedia.** Offerors shall not embed sound or video files into their proposal documents.

2.7.10 **Classification Markings.** All material presented for evaluation by the Government, must be appropriately classified and marked in accordance with Government security classification guidance. Portion marking will be required for all material presented for evaluation by the Government. Markings on the various sections of this RFP do not impose a corresponding level for the volumes in the offeror's proposal. The offeror will be financially responsible for damages caused by incorrectly classifying or marking classified information that contaminate a Government network.

### **3. PROPOSAL FORMAT**

#### **3.0 Volume 0—Cover Letter and Conflict of Interest Assertion**

3.1 **Volume I—Security.** The offeror's proposal must provide the information that supports they possess a TOP SECRET Facility Clearance Level(s) and TOP SECRET level of safeguarding as described in the SOW and DD254 at the *time of proposal submission*. Pass/Fail ratings are detailed in Section M.

3.2 **Volume II—Technical Expertise and Management.** The Government will evaluate the Offeror's Technical Expertise and Management against all support areas of the DORE3 IDIQ Statement of Work to assess whether the Offeror's proposal is Acceptable or Unacceptable. The Technical Expertise and Management volume ratings and evaluation criteria are detailed in Section M.

3.2.1 The Offeror shall identify, with specificity, the contract under which work was performed and describe the work performed, size (# FTE), customer supported, and scope involved in providing the support and how it relates to the DORE3 SOW support areas described below. To be considered sufficient expertise in a support area, such expertise and experience must be demonstrated for a minimum of one (1) year of continuous performance where a portion of performance occurred within the past five (5) years. Offerors are cautioned that generalized statements of its team's expertise or experience is insufficient. The Offeror must clearly identify the specific source of any proposed expertise and experience as it relates to the support areas and provide information for the Government to validate whether it is sufficient. A rating of acceptable will not be given to an Offeror that fails to clearly link claimed expertise and experience to specific prior or current contract efforts. Offerors are responsible for preparing adequately written proposals and an Offeror runs the risk of adverse agency evaluation where a proposal omits, inadequately addresses, or fails to clearly convey required information, see below;

Required Information:

- Specific contract number(s)
- Customer/client name
- Performance period (start and end dates)
- Scope of work performed
- Detailed explanation of how the work relates to all requirements of the specific Support Area

**Sample Format for Expertise & Experience Information**

|                                                                        |                        |
|------------------------------------------------------------------------|------------------------|
| Business Name:                                                         | Indicate Prime or Sub: |
| Contract Number:                                                       | Period of Performance: |
| Customer:                                                              | Annual value & # FTE:  |
| Complexity:                                                            |                        |
| Scope of Work:                                                         |                        |
| How it relates to this requirement:                                    |                        |
| Tasks addressed:                                                       |                        |
| How expertise mitigates issues impacting performance, cost & Schedule: |                        |

**3.3 Volume III—Small Business Participation Commitment.** The Small Business

Participation Commitment volume is required of both small and large business offerors and shall address all elements identified in factor 4, Section M.

**3.4.1 All large business offerors submitting proposals are required to complete a Small Business Participation Plan (SBPP).** Offerors should propose the level of participation of small businesses in the performance of the acquisition relative to the objectives/goals set forth in the evaluation of this area.

(1) Offerors must indicate the applicable size and categories for the PRIME offeror only -- Check all applicable boxes:

- ☐ Large Prime or
- ☐ Small Business Prime; also categorized as a
- ☐ Small Disadvantaged Business (SDB)
- ☐ Woman-Owned Small Business (WOSB)
- ☐ Historically Underutilized Business Zone (HUB Zone) Small Business
- ☐ Service Disabled Veteran Owned Small Business (SDVOSB)

(2) Submit the total combined percentage of work to be performed by both large and small businesses (include the percentage of work to be performed both by prime and subcontractors):

*Example: If Prime proposes a price of \$1,000,000 (including all options), and small business(es) will provide \$250,000 in services/supplies as a prime or subcontractor, the % planned for small businesses is 25%; and 75% for large business equaling 100%.*

|                                                 |         |
|-------------------------------------------------|---------|
| Total Percentage planned for Large Business(es) | _____ % |
| Total Percentage planned for Small Business(es) | _____ % |
|                                                 | 100%    |

*(NOTE: When combined, Large and Small Business totals must equal 100%)*

(3) Please indicate the total percentage of participation to be performed by each type of subcategory small business. The percentage of work performed by Small Businesses that qualify in multiple small business categories may be counted in each category:

*Example: Victory Prop Mgt (WOSB and SDVOSB) performing 2%; and Williams Group (SDB, HubZone and WOSB) performing 3%. Results equate to: SDB 3%; HubZone 3%; WOSB 5%; SDVOSB 2%;. SDVOSBs are also VOSBs automatically.*

|                                   |         |
|-----------------------------------|---------|
| Small Disadvantaged Business      | _____ % |
| HUB Zone Small Business           | _____ % |
| Woman Owned Small Business        | _____ % |
| Service Disabled Veteran Owned SB | _____ % |

(4) List principle supplies/services to be performed by Small Businesses:

*Example: If a Small Business qualifies also as a WOSB and a SDVOSB, and you can add them to each category below in which they qualify.*

| <u>Name of Company</u>                                | <u>Identify Type of Service/Supply</u> |
|-------------------------------------------------------|----------------------------------------|
| Small Business (SB):                                  |                                        |
| <hr/>                                                 | <hr/>                                  |
| <hr/>                                                 | <hr/>                                  |
| Small Disadvantaged Business (SDB):                   |                                        |
| <hr/>                                                 | <hr/>                                  |
| <hr/>                                                 | <hr/>                                  |
| Women-Owned Small Business (WOSB):                    |                                        |
| <hr/>                                                 | <hr/>                                  |
| <hr/>                                                 | <hr/>                                  |
| Historically Underutilized Business Zone (HUB Zone):  |                                        |
| <hr/>                                                 | <hr/>                                  |
| <hr/>                                                 | <hr/>                                  |
| Service Disabled Veteran Owned Small Business (SDVO): |                                        |
| <hr/>                                                 | <hr/>                                  |
| <hr/>                                                 | <hr/>                                  |

(5) Describe the extent of commitment to use small businesses (for example, what types of commitments if any are in place for this specific acquisition either – small business prime, written contract, verbal, enforceable, non-enforceable, joint venturing, mentor-protégé, etc.)

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(6) Describe and provide evidence of your past performance in complying with FAR 52.219-8

“Utilization of Small Business” and maximizing opportunities for U.S. Small Business Subcontractors.

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3.3.2 All large businesses shall submit a Subcontracting Plan (SP) in accordance with FAR 52.219-9, Alternate II. Small businesses are not required to submit a Subcontracting Plan. The Subcontracting Plan, which is distinct from the Small Business Participation Commitment discussed above, will not count against the page limitations of Volume III. The Subcontracting Plan will not be evaluated as part of the best value determination/IDIQ evaluation. After determination of the apparently successful offeror(s) in accordance with the evaluation criteria described in Section M, the contracting officer will determine whether the Subcontracting Plan(s) for the apparently successful offeror(s) are acceptable and will negotiate these plans as necessary prior to award of contract(s). Any negotiations concerning an offeror’s Subcontracting Plan will be treated as a matter of responsibility pursuant to FAR Subpart 9.1. **The subcontracting plan will be incorporated into the resulting DORE3 IDIQ contract.** An offeror submitting a Subcontracting Plan shall ensure that the Subcontracting Plan is consistent with its proposed Small Business Participation Plan.

3.5 Cost. (U) Since the DORE3 IDIQ will be awarded to all “qualifying offerors”, **cost/price is not a factor of this solicitation.**

#### 4. OTHER INFORMATION

##### 4.1 CONFLICT OF INTEREST

5.1.1 Offerors are directed to FAR Subpart 9.5 for detailed information concerning organizational conflicts of interest, include with cover letter.

- A statement certifying that, to the best of its knowledge, it is not aware of any facts which create any actual or potential organizational conflicts of interest relating to the award of the IDIQ or any task order(s); **and/or**
- A statement that describes concisely all relevant facts concerning any past, present, or planned interest (financial, contractual, organizational, or otherwise) relating to the work to be performed under the proposed IDIQ contracts and/or task orders and bearing on whether the offeror has a possible organizational conflict of interest.

4.1.2 The contracting officer may require further relevant information from an offeror. Refusal to provide further relevant information required by the contracting officer, or the willful misrepresentation of any relevant information will result in disqualification of an offeror from

[REDACTED]

[REDACTED]

further consideration for award of a contract under this solicitation.

4.1.3 The contracting officer will use all relevant information submitted by the offeror, and any other relevant information known to Program Office, to determine whether a potential conflict exists. **If the contracting officer determines that a potential conflict exists, the offeror shall not receive an award unless the conflict can be avoided or otherwise resolved through the inclusion of a special contract clause or other appropriate means.**

#### 4.2 SUPPORT CONTRACTORS

This solicitation contains the following Agency Acquisition Regulation Supplement & Instruction (DARSI) provision 5552.209-98 UTILIZATION OF SUPPORT CONTRACTORS BY THE GOVERNMENT (FEB 2009):

- a. Offerors are advised that non-Government employees will serve as advisors for assisting the Government during evaluation of proposals. The Government will authorize these persons access only to those portions of the proposal data and limit discussions only for the purpose of providing technical advice on specialized matters or particular issues. They shall be expressly prohibited from scoring, ranking, or recommending the selection of a source. The Government is responsible for proper safeguards to ensure proposal evaluation objectivity. In this regard, the Government exclusively retains all source selection decision authority and supporting decision responsibilities. Moreover, all participants in the proposal review process with access to source selection sensitive information are required to execute a Government nondisclosure agreement.
- b. Government support contractors who may be involved in review of proposals submitted in response to this solicitation are identified as follows:

*Connexus Hub Inc.*  
*14252 Culver Dr Ste 257*  
*Irvine, CA 92604+0317*

*PRIMCORP, LLC*  
*1300 17<sup>th</sup> St. N #580*  
*Arlington, VA 22209*

*TMPC*  
*1288 East 7<sup>th</sup> Ave*  
*Tampa, FL 33605*

- c. Offerors who submit proposals in response to this solicitation do so with the express understanding that Government support contractors serving as advisors in the proposal review process may have access to the offerors' proposal information, as described above. Offerors requiring nondisclosure agreements (NDAs) with any Government support contractor are not



relieved of solicitation submission time requirements, nor is the Government required to provide additional time to offerors requiring their own bilateral nondisclosure agreements with any Government support contractors.

- d. Offerors requiring NDAs with any Government support contractor shall:
  1. Inform the contracting officer of the offeror's requirement;
  2. Contact the Government support contractor and negotiate the necessary terms and conditions and obtain the contractor's written agreement;
  3. With the proposal submission, provide a signed copy of each executed nondisclosure agreement to the contracting officer; and
  4. Indicate in the proposal that the support contractor(s) may utilize the offeror's proprietary data in evaluating the offeror's proposal.
- e. The offeror shall notify its prospective subcontractor(s) who are submitting proprietary information that the above Government support contractors may require similar access to this information. Any such subcontractors may execute agreements directly with the above Government support contractors or may authorize an offeror to permit such access on such reasonable terms as the subcontractor may provide. For each such subcontractor agreement executed, offerors shall provide copies of such agreements within their proposals, and shall indicate in the proposals that the Government support contractor(s) may utilize subcontractor proprietary data in evaluating the subcontractor's proposal for this acquisition. (End of Provision)

4.3 The Government will not dictate exclusive teaming arrangements and subcontractors are free to partner with multiple prime offerors.

**4.4 Electronic Submission of Proposal Volumes.** This section provides guidance to offerors on the electronic format and application software to be used for submitting electronic copies. The information regarding electronic products presented below should not be construed as Government endorsement for these particular products. Efforts by the Government to clarify and upload electronic proposal submissions will not be considered discussions.

**4.4.1 Evaluation Software.** The Government will access the electronic copy of the offeror's proposal using Microsoft Windows 7 Client/Server network and Microsoft Office 2013. Offerors must submit proposals using Microsoft Office 2013 (or a previous compatible version) *or Adobe PDF*; do not use Apple/Mac versions of these programs. All proposal volumes must be submitted using Microsoft Word 2013 (or a previous compatible version) *or Adobe PDF*; cost and pricing information must be submitted using Microsoft Excel 2013 (or a previous compatible version). Before submitting spreadsheets, offerors must remove or disable macros and external links but retain all computational functionality and embedded formulas. Use of other application software for proposal submission is prohibited.

**4.4.2 File Naming Conventions.** Offerors shall name files using the following standard naming conventions: DORE3 Volume X (Contractor).

[REDACTED]

[REDACTED]

## **5. AMENDMENTS**

Amendments to the solicitation will be announced on the web page [www.sam.gov](http://www.sam.gov). It is the offeror's responsibility to review regularly for any amendments.

[REDACTED]

[REDACTED]

**SECTION M**

**EVALUATION FACTORS FOR AWARD**

- M.1 52.217-3 EVALUATION EXCLUSIVE OF OPTIONS (APR 1984)  
(Reference 52.217-3)
- M.2 52.217-4 EVALUATION OF OPTIONS EXERCISED AT TIME OF CONTRACT AWARD (JUN 1988)  
(Reference 52.217-4)
- M.3 52.217-5 EVALUATION OF OPTIONS (JUL 1990)  
(Reference 52.217-5)

**(U) SECTION M - EVALUATION FACTORS FOR AWARD**  
**HHM40226R0007**

**(U) BASIS FOR AWARD**

(U) The Government intends to award to each and all qualifying offerors. For this purpose, 'qualifying offeror' has the meaning set forth in FAR 2.101. In accordance with FAR 15.304(c)(1)(ii)(A), price or cost will not be evaluated for the contract award. In accordance with FAR 15.304(c)(1)(ii)(B), the contracting officer shall consider price or cost as one of the factors in the selection decision for each task order issued under the resulting contracts. The factors evaluated for award of the IDIQ contract will be rated on a Pass/Fail or Acceptable/Unacceptable basis.

(U) The proposal will be requested in three volumes with the following rating schema:

(U) Table 1: Evaluation Factor Volumes and Rating Scheme *(all data is unclassified)*

| <b>VOLUME</b> | <b>EVALUATION FACTOR</b>           | <b>RATING</b>           |
|---------------|------------------------------------|-------------------------|
| 0             | COVER LETTER                       | NOT RATED               |
| I             | SECURITY                           | PASS/FAIL               |
| II            | TECHNICAL EXPERTISE AND MANAGEMENT | ACCEPTABLE/UNACCEPTABLE |
| III           | SMALL BUSINESS PARTICIPATION       | ACCEPTABLE/UNACCEPTABLE |

(U) In order to be considered for award, each volume must receive the following ratings for each volume/factor:

(U) Table 2: Evaluation Factor Volumes and Rating for Award *(all data is unclassified)*

| <b>VOLUME</b> | <b>EVALUATION FACTOR</b>           | <b>RATING</b> |
|---------------|------------------------------------|---------------|
| I             | SECURITY                           | PASS          |
| II            | TECHNICAL EXPERTISE AND MANAGEMENT | ACCEPTABLE    |
| III           | SMALL BUSINESS PARTICIPATION       | ACCEPTABLE    |

**(U) EVALUATION FACTORS**

**(U) FACTOR 1 – VOLUME I: SECURITY**

(U) The offeror's proposal must provide the information that supports they possess a **TOP SECRET** Facility Clearance Level(s) and **TOP SECRET** level of safeguarding as described in the SOW and DD254 at the *time of proposal submission*.

(U) The Security Factor will be evaluated in terms of Pass-Fail ratings. The definitions for the Pass/Fail ratings are provided in Table 3 and below. If the offeror does not receive a Pass in the Security portion of their proposal, the proposal will not be evaluated further and the offeror will be eliminated from further consideration for award.

**(U) Required Documentation (Both Must Be Met):**

1. (U) **TOP SECRET Facility Clearance**

- Provide CAGE code for the facility holding the TOP SECRET Facility Clearance
- Provide current FCL verification at the time of proposal submission.
- **Evaluation Standard:** Pass = Valid TS FCL documentation provided; Fail = Missing, expired, or invalid documentation

2. (U) **TOP SECRET level of safeguarding Capability**

- Provide CAGE code for the level of safeguarding location(s)
- Provide documentation/certification of approved TS level of safeguarding capability
- If level of safeguarding location differs from facility clearance location, provide documentation for both
- **Evaluation Standard:** Pass = Valid TS level of safeguarding documentation provided; Fail = Missing or invalid documentation

(U) Table 3 summarizes the Pass/Fail rating method for the Overall Security Factor

**Table 3: Security Pass/Fail Ratings Definitions**

| <b>Factor 1 - Security</b> |                                                                                                                                                                   |
|----------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Rating</b>              | <b>Description</b>                                                                                                                                                |
| <b>Pass</b>                | The Prime Offeror, at the time of proposal submission, has a valid TOP SECRET facility clearance and valid TOP SECRET level of safeguarding capability.           |
| <b>Fail</b>                | The Prime Offeror, at the time of proposal submission, DOES NOT have a valid TOP SECRET facility clearance and valid TOP SECRET level of safeguarding capability. |

**(U) FACTOR 2 - VOLUME II: TECHNICAL EXPERTISE AND MANAGEMENT**

(U) The Government will evaluate the Offeror's Technical Expertise and Management against all support areas of the DORE3 IDIQ Statement of Work to assess whether the Offeror's proposal

1. (U) To demonstrate sufficient expertise and experience in a support area, the Offeror must present documentation of previous work performed covering no less than 85% of the SOW Support Area subtasks (eg 4.2.1, 4.2.2, etc) identified under each support area as follows:
  - a. (U) Support Area One: Collection Concept Development
    - No less than 85% of Subtasks under Support Area One is equal to 10 or more subtasks performed by the Prime only
  - b. (U) Support Area Two: Collection Planning and Operations Support
    - No less than 85% of Subtasks under Support Area Two is equal to 8 or more subtasks performed by the Prime only
  - c. (U) Support Area Three: Data Sciences Support
    - No less than 85% of Subtasks under Support Area Three is equal to 5 or more subtasks performed by either the Prime or the Subcontractor(s)
  - d. (U) Support Area Four: Technical Exploitation Support

- No less than 85% of Subtasks under Support Area Four is equal to 18 or more subtasks performed by the Prime only
- e. (U) Support Area Five: Internet of Things (IOT), Social Media & Open Source Support
  - No less than 85% of Subtasks under Support Area Five is equal to 4 or more subtasks performed by either the Prime or the Subcontractor(s)
- f. (U) Support Area Six: Application/Web/Collaboration Support
  - No less than 85% of Subtasks under Support Area Six is equal to 9 or more subtasks performed by either the Prime or the Subcontractor(s)
- g. (U) Support Area Seven: Program/Project Support
  - No less than 85% of Subtasks under Support Area Seven is equal to 14 or more subtasks performed by the Prime only
- h. (U) Support Area Eight: Rapid-Response SME Support
  - No less than 85% of Subtasks under Support Area Eight is equal to 17 or more subtasks performed by either the Prime or the Subcontractor(s)
- i. (U) Support Area Nine: Academic/Industry Outreach and Innovation
  - No less than 85% of Subtasks under Support Area Nine is equal to 6 or more subtasks performed by either the Prime or the Subcontractor(s)
- j. (U) Support Area Ten: Rapid Engineering and Prototyping Support
  - No less than 85% of Subtasks under Support Area Ten is equal to 10 or more subtasks performed by either the Prime or the Subcontractor(s)
- k. (U) Support Area Eleven: Contract Project Management and Common Tasks
  - No less than 85% of Subtasks under Support Area Eleven is equal to 20 or more subtasks performed by the Prime only

(U) Table 4 summarizes the Acceptable/Unacceptable rating method for the Overall Technical Factor.

**Table 4: Technical Expertise and Management Ratings Definitions**

| <b>Factor 2 – Technical Expertise and Management</b> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
|------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Rating</b>                                        | <b>Description</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| <b>Acceptable</b>                                    | The Prime Offeror must demonstrate sufficient technical expertise and experience in performing all eleven (11) support areas described in the Statement of Work (SOW). To meet this factor, the Prime Offeror must demonstrate direct experience in at least six (6) of the eleven (11) support areas outlined in the SOW and listed below. Of these six (6) areas, the Prime Offeror must demonstrate direct experience in Support Areas 1, 2, 4, 7, and 11. Direct experience means the Prime Offeror served as the prime contractor or led performance on relevant past projects of comparable scope and complexity for a minimum of one (1) continuous year in the last five (years).The sixth (and any additional) required |

|                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
|---------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                     | area(s) of direct experience may be selected from the remaining support areas (3, 5, 6, 8, 9, or 10). Experience in the remaining support areas (beyond the minimum six) may be demonstrated by the Prime Offeror directly or through qualified subcontractor teammates, provided the Prime Offeror describes the teammate's role, relevant experience, and how integration will ensure overall performance.                                                                                                                                                                                                                                                                                                                                                               |
| <b>Unacceptable</b> | The Prime Offeror does not demonstrate sufficient technical expertise and experience in performing all eleven (11) support areas described in the Statement of Work (SOW). Specifically, the proposal is Unacceptable if the Prime Offeror does not provide evidence of direct experience in at least six (6) of the eleven (11) support areas outlined in the SOW and listed below. To be rated Unacceptable, the proposal must lack direct experience in one or more of the mandatory Support Areas 1, 2, 4, 7, and 11. Direct experience is defined as the Prime Offeror having served as the prime contractor or led performance on relevant past projects of comparable scope and complexity for a minimum of one (1) continuous year within the last five (5) years. |

### (U) FACTOR 3 – VOLUME III: SMALL BUSINESS PARTICIPATION

(U) Offerors (small and other than small) will be rated as either acceptable or unacceptable (see table below). An offeror will be rated unacceptable and will not be eligible for award if the offeror, having proposed to meet or exceed the mandatory goals, fails to submit a realistic SBPC to achieve the mandatory goals. For purposes of determining acceptability, the Government will consider whether the offeror's SBPC proposal provides a realistic basis for meeting the following:

- a. (U) Whether the offeror proposes to meet the mandatory Minimum Quantitative Requirement (MQR) for Small Business Subcontracting of 25% of total proposed contract value (\$200,000,000) performed by small business firm(s) (whether as a prime or subcontractor). An offeror which fails to propose to meet or exceed the 25% mandatory goal will receive an unacceptable rating and will not be eligible for award.
- b. (U) Whether the offeror proposes to meet the Minimum Quantitative Requirement (MSR) for Small Business Subcontracting for each of the following 4 socio-economic categories:
  - i. Small Disadvantaged Business (SDB) – 5%
  - ii. Woman Owned Small Business (WOSB) – 5%
  - iii. Historically Underutilized Business Zone (HUBZone) – 3%
  - iv. Service Disabled Veteran Owned Small Business (SDVOSB)- 5%
- c. (U) Whether the offeror has committed to use such small business firm(s) during contract performance and whether such commitments are a written contract or agreement, joint venturing, or mentor-protégé. A proposal may be deemed unacceptable based upon lack of commitment.

(U) The Offeror bears the burden of demonstrating the realism of its SBPC. Therefore, the



offeror is required to provide sufficient data to show that it will actually be able to meet small business participation goals during contract performance. The Small Business Participation Factor will be evaluated in terms of Acceptable/Unacceptable ratings. The definitions for Acceptable/Unacceptable ratings are provided in Table 3 below. If the offeror does not receive a rating of Acceptable in the Small Business Participation Factor, the offeror will be ineligible for award.

**Table 5 Small Business Participation Ratings Definitions**

| FACTOR 3 - Small Business Participation |                                                              |
|-----------------------------------------|--------------------------------------------------------------|
| Rating                                  | Description                                                  |
| Acceptable                              | Proposal meets the requirements of the solicitation.         |
| Unacceptable                            | Proposal does not meet the requirements of the solicitation. |

1. (U) Whether the offeror proposes to meet the mandatory minimum 30% of total contract value performed by small business firm(s) (whether as a prime or subcontractor). An offeror which fails to propose to meet or exceed the 30% mandatory goal will receive an unacceptable rating and will not be eligible for award.

2. (U) The extent of participation of small business subcontractors in terms of the percentage of the ceiling value of the total acquisition. The Government will evaluate the extent to which the offeror meets or exceeds the Defense Intelligence Agency goals below. Goals for the Defense Intelligence Agency are expressed as percentages of total contract ceiling value as follows:

3. (U) The extent to which such firms, as defined in FAR Part 19, are specifically identified in proposals;

4. (U) Identification of the complexity and variety of the work small firms are to perform;

(U) The DIA Small Business Program Office will evaluate the offeror small business participation commitment and assign an Acceptable or Unacceptable rating.

**(U) COST/PRICE**

[REDACTED]

[REDACTED]

(U) Since the DORE3 IDIQ will be awarded to qualifying, cost and/or price is not required to be an evaluated factor and analysis is not required.

**(U) BASIS FOR AWARD**

(U) The SSA shall ensure the proposals are evaluated to determine qualification.

(U) The Government intends to award to each and all qualifying offerors. For this purpose, 'qualifying offeror' has the meaning set forth in FAR 2.101. In accordance with FAR 15.304(c)(1)(ii)(A), price or cost will not be evaluated for the contract award. In accordance with FAR 15.304(c)(1)(ii)(B), the contracting officer shall consider price or cost as one of the factors in the selection decision for each task order issued under the resulting contracts. The factors evaluated for award of the IDIQ contract will be rated on a Pass/Fail or Acceptable/Unacceptable basis."

**(U) FINAL SOURCE SELECTION DECISION**

(U) The SSA will document the supporting rationale in the Source Selection Decision Document (SSDD). The SSDD shall be the single summary document supporting selection of the proposals consistent with the stated criteria in the RFP.

[REDACTED]